EMPOWERING INQUIRIES IN THE ACADEMIC LANDSCAPE

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Direktorat Program Pascasarjana
Universitas Muhammadiyah Malang

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EMPOWERING INQUIRIES IN THE ACADEMIC LANDSCAPE

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Editor: Eko Handayanto
Desain Sampul: Ruhtata
Lay out/tata letak Isi: Tim Redaksi Bildung

Perpustakaan Nasional: Katalog Dalam Terbitan (KDT)
Empowering Inquiries in the Academic Landscape/Akhsanul In'am (ed.)/Yogyakarta: CV. Bildung Nusantara, 2021

xiv + 404 halaman; 15,5 x 23 cm
ISBN: 978-623-7148-00-0

Cetakan Pertama: 2021

Penerbit:
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FOREWORD

Globalization, disruption, the industrial era 4.0, and society 5.0 have changed the order in various aspects of life. The pattern of life is no longer linear based on regular and normal cycles. The leap in the advancement of information technology has penetrated into the joints of people's lives and changed the habits that exist in society. Extensive knowledge and insight become the main foundation in order to be able to make adjustments and make decisions quickly and accurately. The rapid and rapid development of information technology will affect and change people's behavior significantly. This study focuses on the impact of the COVID-19 pandemic on changes in people's lives in the perspective of management, psychology, sociology, agribusiness, and law.

A review of the management aspect shows that most of the consumer behavior in buying during the pandemic turned into Panic Buying of health products. Consumers who in normal times don't care about health products, when the COVID-19 pandemic occurs they scramble to get masks and hand sanitizers to protect against virus transmission. The turmoil in the hunt for health products has triggered a black market and a motive to make maximum profits in a short time by a handful of impromptu business actors. Those who are directly affected by the covid-19 virus show more panic in purchasing health products. Panic buying of health products occurs because the Covid-19 virus is very fast in transmission, very deadly, and there is no vaccine yet.

The COVID-19 pandemic has also had an impact on business, government and community organizations. Profit-oriented business organizations have been hit hard in the pandemic situation. The slowing economy wheel makes the company's profits decrease. This decrease resulted in a decrease in company profits, which in turn resulted in the company's inability to pay the salaries of its employees. Many company employees were rationalized and lost their jobs. This of course will have a negative impact on the other side of society at large.

From a psychological perspective, during the COVID-19 pandemic, the morality of some people was degraded. The increasingly heavy burden

of life is felt because the demands of daily life are not balanced with financial strength. People affected by the COVID-19 pandemic will feel their happiness level is reduced. They need to be motivated and stimulated so that their health is maintained, not emotional, remaining wise and wise in responding to pandemic situations. Programs for strengthening and psychological resilience for individuals affected by the pandemic or not must be carried out to maintain immunity and reduce negative emotions. Mental development, children's education, and cognitive must continue to be monitored and maintained properly by parents.

Early childhood education needs more attention because they are the new generation of the nation that will replace the previous generation. Even since they were babies, they must be trained in the use of educational tools to stimulate children's growth and development properly. These efforts must continue to be carried out in line with the development of children so that they can produce a superior generation, even in a pandemic.

Productivity and income of farmers during the pandemic experienced a significant decline. This condition has an impact on the next business trip. The education of farmers' children is very worrying, coupled with online learning. Online learning is a serious challenge for the education of farming families, where they have to add extra funds for the purposes of online learning activities. The effectiveness of online learning becomes an additional burden for parents of farmers' children. The role of parents is very important in assisting their children to learn online. Meanwhile, some parents from farming families do not have sufficient experience for online learning. This situation forces them to work and study hard to become companions in online learning for the future of their children.

The COVID-19 pandemic is very hard for the family life of a businessman in agriculture, both from the aspect of business continuity and from the aspect of his family's education. They find it difficult to maintain their business, let alone increase their production capacity and expand their business area. The financial condition of agricultural entrepreneurs is not sufficient to maintain business conditions, let alone expand their business. For them, the most important thing is to be able to survive in the midst of a pandemic.

Modernization of information technology is very helpful for agribusiness entrepreneurs in offering and marketing agricultural products in the midst of the COVID-19 pandemic. Fishery and agricultural commodities can be sold online, for example fish seeds, freshwater fish, seawater fish, fruit seeds, vegetables, and livestock. The presence of internet technology is very helpful for entrepreneurs in the agribusiness sector in

marketing their business results, even though the profits obtained are not as big as before the pandemic.

Sociological and legal perspectives are quite interesting in highlighting the covid-19 pandemic in society 5.0 which is centered on technological sophistication and humanity. Roles in everyday life no longer belong to a certain gender, but can be performed by both men and women regardless of the type of work. In the event that the general election is held in the midst of the covid-19 pandemic, it is necessary to protect the voters in order to avoid the corona virus outbreak. Likewise, the handling of Covid-19 patients who have health insurance can be served proportionally. Law enforcement and equality before the law must be enforced fairly against anyone who violates health protocols during a pandemic. Clear legal regulations are needed in delegating the authority of doctors to nurses in handling patient cases.

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Panic Buying as A Rational Choice During Covid-19 Pandemic

Agnesia Yuniar[1]

Introduction

Coronavirus disease 19, abbreviated as Covid-19, is an event of the spread of the corona virus disease happened throughout the world and has infected many victims. This disease is caused by a new type of corona virus, named SARS-CoV-2 [1]. The corona virus was first discovered in Wuhan City, Hubei Province, China in December 2019, and was declared a pandemic by the World Health Organization (WHO) on March 11, 2020. This corona virus transmitted to people mainly through respiratory droplets when a person exposed to the virus is coughing. These droplets can be generated from sneezing and breathing normally. In addition, the virus can be transmitted by touching the surface of an object contaminated with the corona virus and then touching someone's face before washing hands. The corona virus is most contagious when a person suffering from this virus has symptoms, although the spread of the virus can occur before symptoms appear. The time between exposure to the virus and the appearance of viral symptoms usually ranges from five to fourteen days. Common symptoms of contracting the corona virus include fever, cough and shortness of breath. Complications can also include pneumonia and severe acute respiratory disease. Until now, there are no vaccine or specific antiviral treatment has been found to cure this corona virus disease. Recommended action to prevent the transmission of the corona virus includes washing hands with running water or using a hand sanitizer, covering mouth when coughing using arm, wearing a mask anywhere and anywhere, keeping a distance from other people at least one meter, and self-isolation for people suspected of having that they are infected with the corona virus. In addition, efforts to prevent the transmission of the corona virus include delaying travel, quarantine, enforcing curfews, postponing and canceling events or determining the maximum number of people by adhering to health protocols, and closing public facilities. Schools and universities have also been temporarily closed either nationally or locally in more than one country to an undetermined time.

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The corona virus pandemic has caused various disruptions including the global socio-economy, postponement or cancellation of events, and concerns about shortages of goods due to people's panic buying act. In almost every country in the world, the outbreak of the Covid-19 pandemic has devastated the current situation of society. Almost all community activities that include many people are stopped (except for certain services that are important to the public), schools and campuses are temporarily closed and started to use online learning methods until an undetermined time. In addition, mass purchases of essential commodities such as fast food, hand sanitizers hand soap, masks, etc. also happened. In Indonesia, the bulk purchases of hand soap, hand sanitizer and masks have led to exorbitant increases in prices for these three items. Many of them were also hoarding goods to meet their needs in the future for fear of running out of stock for the next few weeks.

In recent times, panic buying has occurred in several countries where the population is heavily infected with Covid-19. In Indonesia, panic buying occurred after Indonesian President Jokowi announced the first two positive cases of Covid-19 in Indonesia in early March. Not much different from Indonesia, in America there are several products that have been bought up by the public, such as hand sanitizers, wet wipes, and toilet paper. This situation of public panic was eventually exploited by the sellers to rocket the price, about 2 to 3 times higher in the short term. For example the hand sanitizer, which initially cost around Rp. 15,000 to Rp. 20,000 then rocketed to Rp. 40,000. This increase is due to increased demand for these goods [2]. Panic, in general, is a kind of self-anxiety that is attacked by excessive fear, along with the feeling that something big is going to happen. This excessive panic can spread to other people and eventually affects the people around them and in the end creates a mass-panic. Panic buying is a psychological response of individuals or people who feel they need certain products even though these products are not a top priority (such as masks, hand sanitizers) in their daily needs when a pandemic occurs. Some of these products are highly sought after by the public. Although Singapore initially had empty shelves too, things returned to normal after Prime Minister Lee Hsien Long released a video message outlining steps citizens could take to prevent the spread of the virus. He assured them there were sufficient supplies of basic commodities and said the disease appeared less deadly than the SARS epidemic [3]. The selfishness of the rich who have more access has resulted in poor people being severely affected during the Covid-19 pandemic. Those who have more money can buy necessities in large quantities even though the price

has increased many times, while the middle to lower class people who have access to necessities are deprived by the rich. Moreover, those who have lost their jobs due to covid-19.

Rational choice theory assumes that individual decision is made by employing the basic unit of analysis in social relations and actors is the main focus in this theory. Actors are seen as having preferences or satisfaction scores[4]. According to Homans in (Ritzer, 2012) rational choice is related to a person's calculation in various alternative actions available to him. They compare the amount of high value reward with the low value one. The reward that is most desirable is a reward that is very valuable and very likely to be achieved. In the proportion of rationality, Homans associated it with success propositions, stimulus propositions, and value propositions.

The studies with a similar theme entitled "Panic buying in the COVID-19 pandemic are: A literature review from a psychological perspective "has also been conducted by Muhammad Abdan Shadiqi, Rima Hariati, Khaerullah Fadhli Arasy Hasan, Noor I'anah & Wita Istiqomah [5]. This study discusses panic buying from a psychology perspective. At the beginning, this study compares the definition of panic buying with similar terms, such as buying frenzies, impulsive buying, and compulsive buying. The significance of this study discusses the psychological explanations behind panic buying through consumer behavior, excessive anxiety and fear, stress, uncertainty, and media exposure.

Another study entitled "COVID-19 Pandemic and the Panic Buying Psychology" conducted by Ndirangu Ngunjiri [6]. This study aims to deepen understanding of the relationship between COVID-19 and panic buying. A study with descriptive survey design using quantitative methods and using a closed questionnaire as a data collection instrument. The findings showed that the panic buying were triggered by anxiety, and a willingness to go to great lengths to allay those fears, such as waiting in line for hours or buying more than needed and people worrying about the regret of not buying something. Consumers feel out of control about many aspects of the pandemic, but they have that control to feel better about the situation.

The researcher employed a qualitative approach to determine social phenomenon within the society. This social phenomenon aims to explore the social behavior of individuals in conducting panic buying during Covid-19 pandemic. Researcher conducted in-depth interviews with informants. The data got were then analyzed. Due to the Covid-19 pandemic, technical interviews were carried out by the help of WhatsApp chat, but at any time needed, the researcher would make phone calls. The

data were analyzed using interactive model, Miles and Haberman divided it into three components, namely data reduction, data presentation, and conclusion drawing [7].

Discussion

The existence of natural disasters that often occur, for example floods or storms, periodically people bought up some things to fill their storage needs during emergencies. "It is rational to prepare for something bad," said David Savage, professor of behavioral and microeconomics at the University of Newcastle, Australia, who writes about the rationality behind hoarding in a crisis. However, it would be irrational for people to buy 150 cans of beef cornets or dozens of cups of instant noodles for being isolated at home for two weeks or a month". Based on the Coleman's theory regarding rational choice, a person's rationality is produced from two factors, namely resources and actors to achieve maximum benefits based on a goal [8]. What is meant by resources is the surrounding environment, such as the community, news in the media, which result in panic buying done by people who have more access to buy goods in excess to hoard for the next few weeks. This corona virus pandemic has created an excessive amount of anxiety within the community so that everyone feels they need to survive in the house in order to avoid this frightening disease.

Many business and factories lay off their employees because of the low income, but in the end they are unable to provide their employees with salaries. Small traders who were forced to close their business premises because of restrictions on activities outside the home made them have no income. The selfishness of people who have more money who do panic buying results in burden to the middle and lower class by the scarcity of goods and the skyrocketing prices of the goods they need. In this panic buying condition, people become stupid and tend to be less wise in buying goods. One of them is the act of buying the Personal Protective Equipment [9]. The equipment should not be used carelessly. It is, of course, detrimental to those who need it, one of which is the hospital. Not only a shortage of PPE stock, but also the medical gloves and tissue swabs. Many people use medical glove without knowing its use. Apart from gloves, many also use tissue swabs to clean their cellphone screens. In fact, tissue swabs should be used to sterilize the skin surface after being injected.

Three people interviewed by the researcher mentioned that those who do panic buying by hoarding some food and other necessities aim to help people who keep doing their activities outside the home because

of their work and they feel that they can anticipate what will happen later. According to them, this action is an act of rational thought. When the virus gets close to them, they want to minimize contact with other people as much as possible by staying at home, and of course they can also survive during a pandemic like this. The bigger the threat, the stronger the reaction. For now, doctors say that this corona virus has an incubation period of up to 14 days, so people who do panic buying want to prepare themselves for isolation at home for at least 14 days by hoarding food and daily needs to minimize contact with other people. The news on the number of people exposed to the corona virus every day on social media and television continue to increase rapidly. This make people panic so they buy daily necessities in large quantities, without thinking about the needs of others even for the lower and middle classes.

Conclusion

Panic buying is a situation where many people suddenly buy as much food, daily needs as they can because they are worried that something bad might happen. There are so many people who have become victims of the corona virus outbreak, starting from buying up masks, hand sanitizers, groceries, to toilet paper. Not only in Indonesia, this also occurred in other countries. After the public heard the news announced by President Jokowi that there were the first two positive cases of the corona virus in Indonesia, some people took panic buying by hoarding their food and daily necessities amid the panic that occurred. Panic buying also occurs in some countries or even almost all countries that have confirmed cases of COVID-19, including Singapore and the United States. Anxiety and panic related to food stock and other needs are felt and experienced every day. The perceived panic can transfer to other people and can be accelerated by social media. The reason for people who do panic buying by hoarding certain products stems from their desire to minimize the risks that will occur. For people who do panic buying, the risk that will occur due to the crisis may be slightly reduced because the materials hoarded can still be used again at a later date. Besides, panic buying can occur because we cannot guess how long this Covid-19 pandemic will last. Information from television news and social media also triggers the people's panic mode.

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The Importance of Employee Motivation in Organization

Agung Tresno Nugroho[1]

Introduction

Employees without work motivation will not be able to make a meaningful contribution to the company and will certainly have an impact on the goals and objectives of an organization's success [1]. This agrees with Gomez which states that human resources play an important and decisive role in organizational success [6]. Humans are the most important assets and have the greatest contribution to the success of an organization.

In connection with the above, some phenomena are detrimental and can destroy the goals of a company organization, including work slowness, work boredom, decreased work efficiency, decreased morale, and decreased work productivity. Nowadays some many workers or employees come in late, are lazy, and so on so that instead of supporting progress and development, but will hinder the progress and development of the company itself. Companies will experience difficulties in improving employee performance which will have an impact on work productivity

That is the reason HRD (Human Resources Department) must be able to observe whether existing employees are still well motivated to work or whether their employees' motivation has decreased. HRD must be able to measure the level of motivation of each employee so that actions can be taken before things are too late. HRD delays in increasing employee work motivation (WM) will affect the lack of productivity of existing human resources which results in not achieving company targets.

Motivation

Chaudhary and sarma say that the term motivation comes from the word motive (Al. Et.al). Latham and Pinder say motivation is a set of energetic forces that originate both within and outside the individual to initiate work-related behavior and to determine its direction, intensity, and duration [18].

Jones & George revealed that motivation is a psychological force that determines the direction of one's behavior in an organization, the level of

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one's efforts, and the level of one's persistence and they mention there are three main components of motivation, such as persistence, intensity, and direction. [15]

Steer and Porter state that several factors influence work motivation [9], such as:

a. Individual factors, such as attitudes, interests, and needs at work.
b. Job factors, such as the level of supervision of certain types of work, the level of responsibility for that work.
c. Factors of the work environment, where individuals work in the form of relationships between groups and between individuals, organizational climate, and job training systems.

Nguyen [15] states that employee motivation is influenced by two factors, namely intrinsic motivation (IM) and extrinsic motivation (EM). EM arises from external elements such as salaries or other benefits packages. Meanwhile, IM which comes from within a person and seems to be related to their needs wants, and goals has shaped the facts to defeat the influence of EM. Some examples of IM can be listed as personal growth, having a work-life balance, an interesting and challenging job, work flexibility, and good relationships with supervisors and coworkers.

There are differences in motivation between public service employees and private employees, Perry and Wise [16] show that when compared to employees in the private sector, employees who work in the public sector focus more on intrinsic reward values and job benefits while serving. society and the public interest Perry. These intrinsic rewards can include task completion, achievement, autonomy, and personal development.

Several empirical research has shown that there are motivational differences between employees in the private and public sectors. Crewson shows that public sector employees have more to feel like helping others and being a person who provides benefits to the public than in the private sector [6]. Meanwhile, private-sector employees value the aspects of promotion and job security/continuity. Lewis and Alonso found a positive relationship between PSM and organizational performance [10].

Schneider and Vaught found that public sector employees are more satisfied with their jobs than private employees because of aspects of their intrinsic motivation at work [6]. Examples include task completion, work achievement, work performance, autonomy, and self-development.

Motivation in employment in the public sector is closely related to the success of employees or public organizations to achieve their goals. Employees in the public sector must have the motivation intended to meet

the needs of civil society and not for personal needs or individual interests. The motivation of public sector employees who prioritize the interests of others or the interests of the community rather than their interests can be called Public Service Motivation [22].

Public service motivation can be defined as general altruistic motivation to serve the interests of a community, country, or society. Perry and Wise [16] define public service motivation as an individual's tendency to respond to unique underlying motives in public institutions and organizations. This theory is based on the opinion that there are people who are interested and motivated to work in the public sector. Three motives are characterized in public service motivation, namely rational, norm, and affective motives. The rational motive is based on individual utility maximization, namely that individuals are interested in working in the public sector because they have an interest in supporting a certain private sector when they have the authority or share in the formulation of public policy. Normative motives are based on a desire to serve the public interest, loyalty to duties and the government, while affective motives are based on emotional factors, namely commitment to a program based on a belief about its social benefits and a sense of patriotism.

Discussion

After conducting a review of 11 research results on motivation and organization, the following is a summary of the results of the study in table 1. This summary is intended so that the reader gets a comprehensive picture of the contents of the research journals under review. then discuss the results of the research will be conducted.

Table 1. Table Research on motivation in organization or workplace

No	Author	Subject	Variable	
			Dependent	Independent
1	Almadi Et. al (2107)	97	Motivation	Organizational Commitment
2	Ali Et al (2016)	200	Motivation	Employee Performance, Job Satisfaction
3	Varma (2017)	150	Employee Motivation & Job Performance	Organizational Performance
4	Mensah et.al (2016)	248	Employee Motivation	Work Performance
5	Richard (2015)	214	Motivation Employes	Employees Performance
6	Nguyen (2017)	314	Employee Motivation	Organizational Effective
7	Tahili (2018)	195	Public Service Motivation	Administration Service
8	Nowel Et. al (2016)	234	Public Service Motivation	Collaborative Leadership
9	Boyd Et. al (2017)	369	Public Service Motivation	Job Satisfaction
10	Sharma & Sharma (2017)	100	Employee Motivation	Employee Performance
11	Deressa & Zeru (2019)	241	Work Motivation	Organizational Performance

Based on the analysis and review of several journals that discuss motivation and organization, several things were found. Employee motivation plays one of the most vital roles in organizational effectiveness and explicitly contributes to organizational growth and well-being [15]. Motivation plays a vital role in the achievement of any organization. Kamalian says motivated employees have goals that align with those organizations and direct their efforts in that direction. Also, organizations are becoming more successful, as their employees are constantly looking for ways to improve their jobs. Getting employees to reach their full potential in the workplace under stressful conditions is a difficult challenge, but it can be achieved by motivating them [8].

Dobre [8] states that employee motivation and performance are important tools for the success of any organization in the long term. A motivated and qualified workforce is essential for any company that wants to increase productivity and customer satisfaction. In this context, motivation means the willingness of individuals to make efforts and take action against organizational goals. The challenge for every manager is to find ways to create and maintain employee motivation. On the one

hand, managers should focus on reducing job dissatisfaction (working conditions, salary, supervision, relationships with colleagues), while on the other hand, they must use motivating factors such as achievement, recognition, responsibility, and the job itself.

The importance of motivation for employees in working is in line with Munandar's opinion [9] which states that work motivation is a process where a person's needs encourage him to carry out a series of activities that lead to the achievement of certain goals and if these goals are successfully achieved it will satisfy or meet the needs. those needs. Encourage to carry out these work activities each goal has a different dignity for each individual. Al-Madi et.al [2] show that investing in motivational factors such as wages, which is important to achieve employee motivation and commitment, where when the level of motivation and employee commitment is high, production activities will increase simultaneously.

Dobre's research [8] shows that factors such as empowerment and recognition increase employee motivation. If the empowerment and recognition of employees increases, their motivation to work will also increase, as well as the achievements and performance of their organizations. However, employee dissatisfaction caused by monotonous work and pressure from clients can weaken organizational performance. Hence, job absentee rates can increase and employees can leave the organization to be with competitors who offer better working conditions and higher incentives. Not all individuals are the same, so everyone must be motivated to use different strategies. For example, one employee may be motivated by a higher commission, while another may be motivated by job satisfaction or a better work environment.

Based on the research results of Lorincova et. al [11], it can be concluded that motivational factors such as basic salary, the atmosphere at work, and a good work team motivate all employees. However, men and women perceive the importance of these factors differently. Basic salary is a more important motivational factor for men, whereas women consider a good atmosphere at work and a good work team to be more important.

The research results of Ali, et.al [1] show that motivation has a positive effect on employee performance and job satisfaction. Motivation is the main tool to improve employee performance and job satisfaction and can increase the level of individual and organizational abilities. Researchers can investigate that motivation is also what is understood about employee performance and job satisfaction. Employee performance and job satisfaction will be achieved if a person is motivated to ensure the effort with personal determination.

The results of Ngunyen's research show that in general the research respondents are motivated to work [15]. Money, personal growth, and work-life balance is what motivates them the most. They enjoy the flexibility of the job, the challenges and attractiveness it brings, and good relationships with their supervisors and colleagues. They have clear goals, priorities, and targets for work plus adequate work facilities. They are inspired to give their best and fulfill the goals that are set every day. Most importantly, they are happy with what they are doing at the moment and are happy to recommend their organization as a great place to work for others.

Mensah et.al pointed out that employees of four large-scale mining companies are motivated by intrinsic and extrinsic factors with a particular emphasis on wages or remuneration [12]. A good salary has been identified as the best motivating factor for employees in the mining industry. In measuring performance using job satisfaction tools, research reveals employee satisfaction leads to better performance, because effective human resource management has become the foundation for companies in the 21st-century business world, especially to adapt to change [5] and also to have the right person who can provide company strategy [25], it is important for employers to implement good strategies and resources that will embrace employees to commit to their jobs. and make work seem like a hobby to them. Security is one of the emerging issues. Pension and health insurance programs guarantee the employment of employees, because of the risks associated with the mining industry, there are still effective occupational health and safety policies in almost all large-scale mining companies because the state ensures that management must implement strategies to prevent possible employment opportunities. health and safety instructions.

Research by AL-Madi et.al [2] revealed that there is a significant influence between employee motivation on organizational commitment (continuation, affective, and normative). A strong relationship between coworkers is considered to be the most motivating factor affecting employees in our study. Employees with strong affective commitment feel an emotional attachment to the organization and will therefore have greater motivation and desire to contribute to the organization than employees with weak affective commitment. Employees with strong normative commitment are associated with the organization with feelings of obligation and obligation.

Suggestion For HRD in Increasing Employee Motivation Based on Research Journals

Management should evaluate employee suggestion schemes and use feedback from the workforce to improve the organizational environment and meet their needs and skills. People are different and they are motivated by various needs, such as physiological needs, safety requirements, and self-actualization needs. Thus, focusing on employees at each level of the workforce and analyzing each department in the organization will provide accurate and detailed information regarding employee needs [8].

Ali Et.al said to motivate employees, namely by using key elements such as reasonable wages and salaries, job security, job expansion, and incentives as well as other additional financial and non-financial bonuses, employee performance and job satisfaction will automatically develop and the organization will easily achieve the goals and objectives they want [1]. Also, if an organization wants to increase its productivity and income, it must consider all aspects to increase the level of work motivation.

Nguyen stated that employee motivation can be achieved through employee empowerment [15]. It shows the extent to which employees are involved in the decision-making process, the reciprocal relationship between employees and the company, and the authorization of the tasks they are currently working on. High employee engagement indicates a higher level of employee motivation and satisfaction. Hence, engaging employees in meetings and discussions and letting them know that their ideas and contributions are heard and valued, giving them space and opportunity to experience and align with the company culture, delegating them to a higher level of responsibility for the tasks they assign them. . their responsibility and freedom in making choices and decisions regarding their specific duties are some of the ways to increase the level of motivation.

Richard's research revealed that employees believe that the nature of work and promotions in organizations greatly influence their level of performance [17]. This implies that management must ensure that promotions within the organization are carried out fairly to encourage consistent employees. The findings further reveal that opportunities for advancement and a sense of responsibility affect performance. Respected for the work done, salary, working conditions, how well superiors relate to subordinates, and relationships with coworkers. Regarding employee satisfaction, it can also be concluded that there are many opportunities for advancement, appreciation for the work that has been done, promotions, and good relations with colleagues, etc. It refers to their satisfaction,

the type of salary they receive, their relationship with their boss. , and working conditions, etc. is the main dissatisfaction. Once again, it can be concluded that the determinants of performance such as qualifications, experience, work environment, compensation packages, job security, among others, are combined with motivational factors that have a beneficial impact on performance and vice versa. Therefore, there is a relationship between motivation and performance, and motivation affects employee performance.

According to Mensah et.al, the occupational safety and health needs of staff must be continuously addressed, especially those exposed to toxic substances and hazardous chemicals as well as other factors identified to affect staff motivation and performance [12]. This research reveals that the death rate, injuries, and illnesses in the workplace are still very high and claim many victims, both men, women, and their families. It is possible that if this theory is applied to mining staff, staff motivation and productivity will continue to increase.

Research conducted by Al-Madi et.al shows that it is important for management to meet the demand for goods of its employees and improve their conditions to strengthen their motivation in maximizing organizational commitment [2]. However, "opportunities for training" also have a motivational effect on employees. It is very important to create loyalty and love between employees for the organization and to implement a system of rewards, employee empowerment, and job involvement.

According to Varma, the role of HR is to continue working to align employee aspirations with organizational goals [24]. This goal can be achieved by creating an inspiring work environment that promotes and meets the needs of employees to grow and develop. These factors although complex and as insurmountable for an individual employee base as they can vary from case to case, it is important for HR to explore the area of intersection in general. Job satisfaction or employee motivation is studied not only to handle turnover but also there are other negative effects of dissatisfaction such as absenteeism, low performance, low morale, low contribution to the team, lack of coordination, lack of orientation towards organizational goals, these can affect capacity organizations to compete in the environment. very competitive business. Therefore, HR must create an organizational environment and promote an organizational culture that considers existing needs

According to Houston [10], Perry [16], Willem at. al [25], Brewer at. al [5], it is necessary to distinguish the increased motivation of employees who work in the public sector from employees who work in the private

or private sector, this is because employees who work in the public sector are motivated to work because they are based on intrinsic or non-financial motivations such as good social relations, promotion, self-esteem and awareness and a desire to serve the public without caring about extrinsic rewards, while employees who work in the private sector are motivated because based on extrinsic motivation such as salary, money, security, and others

Conclusion

Referring to the researches that have been mentioned, it can be seen the relationship between the two variables, namely the motivation variable and the behavioral variables that exist in the organization. For the organization to stop losing outstanding employees due to reduced job satisfaction and lack of motivation to continue the organization for a long time. Motivated and satisfied employees will approach organizational goals; in turn, the organization must also demonstrate the same commitment to employee goals

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Morality in Elementary School Children Using Traditional Game Methods

Ahmad Husain Albaar[1]

Introduction

Many cases of physical and verbal violence recently have been motivated by a lack of morale. Or in other words, there is no solid foundation in instilling the values of life from childhood. There was a case of deadly persecution against art teacher Ahmad Budi Thajyanto by a student of SMAN 1 Torjun, HI in 2018.The incident occurred because the teacher admonished the behavior of his student, where the student disturbed his friend who was studying, then The student did not accept it and issued an impolite sentence then there was a fight between the two. The former head of the Constitutional Court (MK) Mahfud MD assessed the tragedy of the death of a teacher who was tortured by students because of the collapse of morals in the world of education. Therefore, Mahfud encouraged the strengthening of moral and character education. According to Mahfud, educational orientation is guarded in the proper direction, as stated in Article 31 of the 1945 Constitution that builds a national education system that enhances faith and piety as well as noble morals in order to educate the life of the nation and the State. Moral development is a development that is closely related to rules and conventions about what a person should do in his interactions with others [1]. Moral development is a change in behavior that occurs in a child's life with regard to the rules, habits, customs, or value standards that apply in social groups. Santrock also explained further that moral development involves the development of processes in thinking, feeling, and behaving in accordance with existing regulations [2].

The notion of moral is a person's habit or way of life to behave better than the previous behavior in order to be accepted by his social environment or even worse behavior than before, so that morals can be concluded as a condition or necessity for someone to think about social problems [3], especially in moral action.

Moral development is closely related to development in a process of thinking, feeling, and behaving in accordance with the rules or norms

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that always exist in society. The relationship between children's behavior and attitudes with social rules is the goal of development itself, this makes children's morals the responsibility of parents, teachers, and society in their development. So that moral development becomes an important part of child development. Children's morals can be seen from their daily behavior and attitudes, whether the child can follow and understand the prevailing social rules or not. Said that moral development is closely related to the way children think [4]. This means how a child sees, observes, estimates, thinks, and suspects [5]. Several studies have shown that parenting affects children's morale. Among them, the research conducted shows a positive impact on parenting styles on children's behavior. Parenting styles affect children in terms of personality, development, social interactions and relationships with other people, parenting patterns affect children's personal and moral development [6].

The results of observations made by elementary school students, on 17-31 October 2016 at a school in Malang City. Immoral behavior that occurs, such as cheating on exams or copying homework done by friends, committing acts of violence such as hitting friends, and bullying younger classmates. Hitting and yelling at the junior students in grade 6 to their juniors. Disrespectful behavior towards an older person like one of the students who poked an elder's chin. Other behaviors that appear to be rude or dirty to peers. Then the observations made on grade 1 students, they also had known the term dating or kissing, they even practiced kissing scenes by hugging each other with their friends while face to face closely. From the results of these observations, these behaviors include violating rules such as cheating, hitting friends, yelling, bullying, and being rude with older people [7].

The process of forming moral behavior consists of four important stages, first interpreting a situation in an effort to understand and find out what actions might be taken and how they will affect the overall problem at hand. Then the second describes what to do by applying a moral value to certain situations in order to establish a moral behavior. And the third chooses among the many moral values to decide what behavior to do, and the last one takes action in accordance with the existing moral values in the social environment [8].

The importance of morality is very much needed by the younger generation, especially in Indonesia. Because the moral crisis is happening for generations, various behaviors that are shown do not respect human values, such as brawls, lack of respect for parents, lack of obeying family norms, and undisciplined life. Especially in the era of globalization, humans

tend to behave hard, fast, accelerate in getting things done, and have an instant culture. Humans are forced to live like robots where they leave universal norms, justify all means, be selfish, and do not have good morals [9]. Therefore, it is important to instill moral values from childhood, so that immoral cases do not happen again.

Discussion

Children's Development

The following are the stages of moral development according to Kohlberg divided into three levels [10].

1. **Level I: Pre-conventional**

   At this level the rules contain moral rules based on authority. Children do not violate moral rules for fear of threats or punishment from the authorities. This level is divided into two stages: an orientation stage towards obedience and punishment, at this stage the child only knows that these rules are determined by the existence of an irreversible power. Children must obey, or will get punishment if they violate, and the relativistic stage of hedonosm is at this stage the child is no longer absolutely dependent on rules that are outside of himself determined by other people who have authority. Children begin to realize that every event has several aspects that depend on one's needs (relativism) and pleasure (hedonism).

2. **Level II: Conventional**

   At this level the children obey the rules that are made together in order to be accepted in the group. This level consists of two stages: the good child orientation stage. At this stage the child begins to show good or bad behavior orientation by other people or the community. A behavior can be said to be good and right if it can be accepted by other people or society, and the stage is to maintain social norms and authority. At this stage the child shows good and right actions not only so that they can be accepted by the surrounding community, but also so that they can participate in maintaining existing social rules and norms / values as a moral obligation and responsibility to implement existing rules.

   At the time of late child development, children's moral reasoning is at level II, namely conventional moral reasoning. Where this level the child can see good or right deeds, and is valuable for him if he can meet the expectations or approval of a group. Between 10 and 12 years of age, children are familiar with the concepts of morality such as honesty, justice and honor. In the development stage, children aged 10 years and over show autonomous morality. They are aware of the rules and laws

that have been created by humans in the social environment, assess an action, and can consider intensely the behavior and the consequences of that behavior [11].

As for writing this book chapter, the author conducts some analysis of research journals and raises cases or phenomena that are happening. The method of searching for references to journals, e-books, and other mass media uses google scholar and internet sites. Where to search for these references using simple words or words such as morality, elementary school, and traditional games. It aims to make it easier for writers to find and raise these findings as a basis for writing.

Traditional game

The age of children really like games, therefore to instill learning in children, a play method is used. Among the many types of children's games in Indonesia, we know the types of traditional games and modern games. However, in its development, today's traditional games are increasingly marginalized and their popularity has been replaced by the presence of modern games. Whereas traditional games are a nation's cultural wealth that has noble values to be passed on to children as the next generation [12].

According to experts, play for children has very important functions and benefits. For them, playing is not fulfilling the game, but the child feels happy with the game. Playing is a recreational activity with the aim of having fun, filling spare time, or playing sports [13]. By playing children learn to socialize, interact with other friends, learn to form social relationships, learn to communicate and how to deal with and solve problems that arise in these relationships [14].

There are various kinds of traditional games that can improve children's development. Traditional games have several advantages, namely that they can improve children's social skills, where a traditional game is closely related to the psychological function of child development. Traditional games do more than just give pleasure, cognitive function, and social play. Iswinarti further explained that traditional games are carried out in groups, so that it can increase peer affiliation, social contact, conservation, and social skills. Besides that, it also contains benefits and preparations for children to live a social life. It should be noted, the advantages of traditional games are many, one of which is that traditional games do not cost a lot of money and can take advantage of objects around the environment. Several studies have revealed that traditional games have a good impact on children [15]. The results of the studies that have been carried out, found new evidence that traditional children's games have

a close relationship with children's intellectual, social, emotional and personality development [16].

There are various types of children's games in Indonesia, we know the types of traditional games and modern games. However, in its development, today's traditional games are increasingly marginalized and their popularity has been replaced by the presence of modern games. Even though traditional games are a nation's cultural wealth that has noble values that can be passed on to children as the next generation [12].

The benefits of traditional games for morality

Several studies have succeeded in revealing traditional games have a good impact on children. The results of the study conducted reveal that traditional children's games have a close relationship with children's intellectual, social, emotional and personality development [16]. Furthermore, there are the results of other studies that have been carried out to add information, where the results show that traditional games are more effective in improving the development of motor skills in children aged 7-9 years [17].

Furthermore, the results of research show that traditional Javanese games integrated through learning can be an alternative learning method to develop good character in early childhood students and traditional children's games can stimulate children in developing cooperative behavior, help children adapt, interact with each other positively, can condition children in self-control, develop empathy towards friends, obey rules, and respect others [18]. Thus, it can be understood that traditional games can have a very good impact in helping develop various aspects of development in children.

One of the traditional games that can increase the values of morality in children is traditional games originating from Central Java, namely the dragon snake, cublak-cublak suweng, suk-suk pari collapsed, jamuran, and sim-sim terimakasim [19]. Where the results of the study reveal that playing the aesthetic of motion through traditional games of the Yogyakarta community such as dragon snake, cublak-cublak suweng, suk-suk pariambruk, jamuran, and sim-simakasim has a positive effect on the moral development of early childhood in TPA KB Yoga Dharma Santi. This is also supported by empirical data in the first cycle which shows that the traditional games of the dragon snake and cublak-cublak suweng have a positive effect of 64% on children's moral development. Then in the second cycle the traditional games of suk-suk pariambruk and jamuran have a positive effect on 78% of children's moral development. And the third cycle shows that the traditional game activity sim-simakasim has a

positive effect of 83% on children's moral development.

Moral linkages in elementary school age children and traditional games have several advantages, namely that they can improve children's social skills and traditional games are closely related to psychological functions on children's development [15]. One of the many traditional games that has been researched is the Boy-boyan game, where the game is a group game consisting of two groups or groups. Guard group and assault group, where each group consists of 5-10 children. Boy-boy games use balls with the aim of the game to destroy targets in the form of piles of bricks, broken tiles, or broken floor tiles and are played in the field or open space. Boy-boyan games contain the values of cooperation and concentration. In addition, it teaches the basics of building and philosophy about life. Through boyboy games it can be interpreted that children are taught to make strong buildings, they need a strong and balanced basis so that the building will not collapse. This view is sufficient to reflect in life, that to achieve success we must have a fairly solid religious, moral and educational foundation [20].

Conclusion

Based on the explanation above, it can be concluded that the development of a child depends on the environment he plays and what he plays. Therefore, the role of parents and educators is very vital in the cognitive development of children. So many cases of violence, pornography and other deviant behavior are caused by the lack of inculcation of children's morality since elementary school age. Based on the findings of this case, one of the appropriate treatments or interventions from the author's point of view is to do a lot of traditional games at school and in the home environment with the aim of increasing or instilling moral values in children. One of the handling of traditional games when applied in the education or school system is to include it in the curriculum of subjects, for example, arts and sports lessons.

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Flourishing in Daily life

Anhar Mujati[1]

Introduction

Flourishing is a high level of mental well-being and symbolizes mental health. Well-being in the Positive Psychology approach includes both hedonic and eudaemonic approaches as well-being approaches and is also indirectly related to objective well-being (financial and health). The study of psychology is getting wider with the development of positive psychology. Psychology's focus on healing related to mental health will be more developed and return to other Psychology goals, namely: identifying and maintaining talents, potential, and developing strength, and helping humans to live more productively and meaningfully. Thus, the discussion about humans becomes more comprehensive. Thus, the goal of Psychology is flourishing. There are four known flourishing concepts in Positive Psychology developed by Hupert & So, Keyes, Ed Diener, and Seligman. These four concepts have developed their respective instruments for measuring flourishing [1].

Prosperity in the concept of positive psychology is known as flourishing. One of the flourishing concepts in Positive Psychology, namely: (1) Positive Emotion (happiness and life satisfaction are its aspects), (2) Engagement, (3) Relationship, (4) Meaning, and (5) Achievement/ Accomplishment, abbreviated as PERMA. The theory of well-being is multiple in method and content. Positive emotions are a subjective variable, which is defined as what is felt and thought. Engagement, meaning, relationships, and achievement have both subjective and objective components. The explanation can illustrate that welfare is not just what is in the mind. If employees have flourishing, the company will have an effective organization because individuals and teams develop and make positive contributions [2].

This paper aims to provide an overview of the trends of 12 studies published in international journals from 2015 to 2019 regarding flourishing. The trends regarding research subjects, variables related to flourishing, and research results will be reviewed for recommendations for further research in Indonesia so that they can contribute to the development of flourishing

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research both practically and theoretically. The ideas will contribute to expand the current knowledge, promote your discipline, and will have an important impact on domestic and international academic conversations.

Discussion

Flourishing in Positive Psychology

Positive Psychology is the study of how humans become prosperous in the face of adversity [3]. The aim is to discover and promote the factors that enable individuals, communities and societies to grow and develop [4]. Positive Areas of Psychology at the subjective level are about subjective experiences in the past, present, and future. In the past / past includes subjective wellbeing and life satisfaction. In the present, it includes flow, joy, pleasure, and happiness. In the cognitive construction of the future are optimism, hope, and faith [3], [5]. Apart from the flourishing concept from Seligman, there is the flourishing concept from Ed Diener, Keyes, and Huppert & So. There are similarities and differences in the flourishing concept of Seligman, Ed Diener, Keyes, and Huppert & So. Keyes measuring instrument using MHC-SF 14 items / 6 points. Ed Diener uses the Flourish Scale 8 items / 7 points. Seligman uses the PERMA Profiler 16 items / 11 points [6].

Longitudinal research and experimental studies, at the highest level of well-being, are shown to be associated with positive outcomes, including effective learning, productivity and creativity, good relationships, pro-social behavior, and good health and life expectancy [7]–[10]. Diener added purpose in life, positive relationship, engagement, competence, self-esteem, optimism for enrichment of well-being in the flourishing concept. So people with high levels of positive emotions and have good psychological and social functions have complete mental health as Flourishing. From this explanation it shows that flourising is a high level of well-being.

Table 1. Flourishing Comparison Based on Four Theory

Keyes	Huppert & So	Diner et al	Seligman et al
Emotional Wellbeing 1. *Positive affect (happy)* 2. *Positive affect (interested)* 3. *Life satisfaction*	***Positive Apprasial*** 1. *Positive emotion*	1. *Purpose and meaning* 2. *Positive relationship* 3. *Engagement* 4. *Social contribution* 5. *Competence* 6. *Self-acceptence* 7. *Optimism* 8. *Self-esteem*	1. *Positive emotion* 2. *Engagement* 3. *Positive relationship* 4. *Meaning and purpose* 5. *Accomplish-ment/ compe-tence*
Social Wellbeing 1. *Social contribution* 2. *Social intergration* 3. *Social actualitation* 4. *Social acceptance*	***Positive functioning*** 1. *Engagement* 2. *Competence* 3. *Meaning* 4. *Positive relationship*		
Psychological Wellbeing 1. *Self-acceptence* 2. *Environmental mastery* 3. *Positive relationship* 4. *Personal growth* 5. *Autonomy* 6. *Purpose in life*	***Positive characteristics*** 1. *Emotional stability* 2. *Vitalty* 3. *Optimism* 4. *Resilience* 5. *Self-esteem*		

Discussion

Based on the results of the mapping of research subjects from 12 journals on flourishing, there are three journals that do not explain specifically the group of research subjects. However, from the three journals, the description of the subject is based on gender. The results also show that a journal examines 1334 migrant workers in Australia. In this study it was found that migrant workers need 11 sources for social support in order to be able to get flourishing in their workplaces. There are three journals that examine student and student subject groups. Two of these studies were conducted in Europe, and one in the Philippines. The other five journals did not describe specific groups of research subjects. The journal only states that the subject is an adult group.

Based on 12 journals, it is known that flourishing is influenced by the following variables: satisfaction in academic delay; mastery-approach and performance-approach objectives; mastery-avoidence and performance-avoidance goal orientation; bodily dissatisfaction and bodily appreciation; life satisfaction; personality; social support; distress; working life; human relationship; life experiences and affective welfare; involvement of bullying and mental disorders; psychosocial and emotional well-being; sense of community; socio-demographic; situational factors; and physical health.

Based on the results of the review, it is known that seven journals used the flourishing scale adapted from Ed Diener. Two flourishing scales using MHC-SF adapted from Keyes. The other three scales, using the mindfulness scale, positive and negative affect schedule (PANAS) and the popular single heppines item from the world values survey.

Based on the results of research from 12 journals that were reviewed, various variables mentioned above have contributed and are related to flourishing. Following are the results that show the relationship between these variables and flourishing. flourishing is associated with higher levels of academic delay of goal satisfaction and mastery approaches. Evolving is also associated with higher levels of approach to performance, mastery-avoidance, and performance avoidance goals[11]. Women are higher than men in dissatisfaction with body shape, Neuroticism, Extraversion and Conscientiousness. There is no gender difference in body appreciation or well-being. Age, BMI, personality, body appreciation significantly predicted life satisfaction and flourishing in both men and women. Dissatisfaction with body shape can only predict women's life satisfaction[12].

The research variable explained that 46% developed in male respondents and 16% in female respondents; predictors of development differ by gender [13]. All sources of support were significantly related to mental health, but differed somewhat for the distress and growth dimensions. Thrive is associated with higher support from all 11 sources, although not for all cultural groups. High psychological distress is associated with lower support only from family, friends, partners, acquaintances, coworkers and social groups, and only for some cultural groups. In particular, for distress, there is no link between migrants from South Asia and family support, as well as Asian Confucian groups and peer support. Understanding where migrants from different cultural backgrounds find their support can help policymakers and support workers improve health and well-being in the migrant population, particularly by focusing on sources of support associated with lower distress and greater increases, as shown in this study[14].

Intervention outcomes were compared between Chinese and British Hong Kong participants. Five positive variables were examined (self-compassion, meaning in life, positive and negative emotions, gratitude, and concern), and steps were taken before and after the intervention[15]. The results showed that the profiles developed at different ages according to other subjective indicators. We find emotional, psychological and social well-being to be important domains for development. The effect of social life, at various stages of performance, on development, is a strong influence on the age of synchronization [16].

Moderated mediation analysis showed that higher introverts-extravert predicted either directly or indirectly through authenticity dispositions, but this indirect path relies on extravert-deficit beliefs. Extravert-deficit trust is more important for the authenticity and well-being of introverts than it is for extroverts. Taken as a whole, this means that introverts in the West may be more authentic, and therefore improve their overall well-being, if they can change their beliefs to be more accepting of their introverts [17]. The results show adequate psychometric traits for the scale, and convergent validity with measures of subjective well-being [18].

The frequency of positive and negative events is related to positive impacts. However, only the frequency and importance of negative events are associated with negative effects. Flourishing moderates the effect of positive effects of positive and negative events on negative ones. People higher in flourishing show a downward trend in negative influence with increasing importance of negative life events, as well as with an increased importance of positive life events [19]. Measures of mental well-being and emotional regulation skills were also significantly associated with symptoms of anxiety and depression that were clinically relevant among students in our sample, and were shown to partially mediate the relationship between bullying and mental disorders. Further research is needed to investigate the protective effects of positive mental well-being and socio-emotional skills on mental disorders, in the context of secondary school bullying. School-based prevention efforts aimed at fostering emotional intelligence and promoting growth among adolescents may be most effective in dealing with the psychological burden of bullying[4].

The results show that age, income, number of years living in the neighborhood, reported health, and happiness all contribute significantly to SOC, suggesting that happy people may be more connected to their environment [20]. 37% of the respondents were people who flourished, especially characterized by a high level of awareness and extraversion and a low level of neuroticism. Situational factors of social support and positive

life events were significantly associated with flourishing when the analyzes controlled for socio-demographic and personality traits. Flourishing differs most from high hedonic well-being and shows parallelism with high eudaimonic well-being [21].

Conclusion

Based on the results of the discussion of research on flourishing, it is recommended that research subjects should be more than 18 years old. Ed Diener's flourishing scale quantitative research design can be used after considering the advantages and disadvantages of various measuring instruments used in the study to be applied to flourishing-themed research. Demographic variables, personality, and social support are factors that influence flourishing and are several times selected as independent variables associated with flourishing in the above review journal. Thus, it is advisable to consider these variables in flourishing research.

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Evaluation of Farmer Field School for Integrated Pest Management on Productivity and Income of Farmers in Pasuruan Regency

Ani Fitriyah[1]

Introduction

Indonesia is a rice producer and consumer, in which almost the entire population consumes rice as their staple food. Therefore, the rice commodity is positioned as a strategic commodity. As a strategic commodity, the government tries meeting the demand for rice from domestic production. With an increase in population, the need for national rice will also increase. The government engages in various efforts to accommodate these needs. One of the efforts is implementing the green revolution. Green revolution has spectacular increased the productivity of rice per unit area with a production number of 25.8 tons. The activities of green revolution include: intensification, extensification, diversification and agricultural rehabilitation. With the green revolution, Indonesia succeeded in achieving rice self-sufficiency in 1984 [1].

The negative implications and impacts of the green revolution on ecology, health, social, economic and political aspects are exceptionally serious. One of the impacts occurring is the death of various organisms enacting a substantial role in the balance of the ecosystem. It is due to dependence of the green revolution on chemical pesticides. It causes pest immunity to certain types of pesticides (resistance) and pest population explosion (resurrection) of several types of pests, as well as the death of non-target organisms, including natural enemies that indeed offer the potential to control rice plant pests [2]. On the other hand, the previously unknown insects to farmers also exploded in population as a result of the destruction of natural predators [1]. Pests caused a decline in production of up to 80% and even crop failure. [3]

Farmer Field School for Integrated Pest Management (FFS-IPM [in *Bahasa Indonesia*: *SLPHT*; *Sekolah Lapangan Pengendalian Hama Terpadu*]) is an effort to overcome the negative impact of the green revolution due to the continuous and uncontrolled provision of agrochemical inputs

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to lowland rice, which is the primary commodity cultivated in almost all sub-districts in Pasuruan Regency. The activities of FFS-IPM aim at reducing farmers' dependence on chemical pesticides and replace them with environmentally friendly organic/natural materials for sustainable agriculture. Through the FFS-IPM program, farmers planting rice are expected to be more empowered and able to overcome their own problems, especially controlling pest and diseases of rice by utilizing natural materials (non-chemical) when the pests and diseases of rice attack their land. The training in FFS-IPM program is able to transform farmers from a passive and helpless to be active, creative, innovative and have a scientific perspective.

The implementation of FFS-IPM program employs an extension strategy with demonstration and discussion methods, as well as visual aids preferred by farmers. By witnessing the factual situation of the information conveyed by farmers, it is easier to receive and comprehend the information conveyed [6] following the principles of Integrated Pest Management (IPM). The Directorate General of Food Crops (2013) explain IPM as a plant protection system closely related to the efforts to secure production from pre-planting, planting to post-harvest, such as land processing, determining varieties, using superior seeds, determining planting time, balanced appropriate fertilization, water regulation, and other cultivation techniques[4]. IPM is a conception or way of thinking about controlling Plant Disturbing Organisms (*OPT; Organisme Pengganggu Tanaman*) with a multidisciplinary ecological approach to managing the population of the pest and disease by utilizing a variety of compatible control tactics in a management coordination unit [5].

Discussion

Research Methods and Characteristics of Respondents

In this study, the method employed was a survey by selecting respondents as a sample of FFS-IPM participants. The population was the participants of the FFS-IPM program of rice plants in Farmer Group of *Rukun Tani Desa Lemahbang*, Pasuruan Regency, which were 20 respondents. Respondents were selected by utilizing a purposive sample method, in which the population was selected according to the research objectives as a data source or informant. The number of respondents were 10 people selected from the alumni of IMPFFS program of rice plant from Farmers Group of *Rukun Tani Desa Lemahbang*, Pasuruan Regency, in 2018, and they were however trying to cultivate rice plant in 2020. The selected respondents are participants regularly attending the activities

of FFS-IPM program and are active in learning both in observation, discussion and implementation during the FFS-IPM program

The results showed that the characteristics of the respondents were as follows: 1) Respondents' age ranged from 30-62 years old, in which it includes in productive age [6] according to the classification of Statistics Indonesia (*BPS; Badan Pusat Statistik*). [7] BPS states that the respondents aged 15 to 64 years old tend to be more receptive to innovations that will have an effect on increasing their income. 2) Most of the respondents' formal education were primary school (SD) in which it was as many as six respondents (60%); it was followed by junior high school (SMP); and the rest were senior high school (SLTA). It shows that most farmers possess a low level of education, meaning farmers with high education were limited. Meanwhile, based on the farmers' experience farming rice plant, the farmers having more than 10 years of farming experience were as many as six respondents (60%); experiencing less than 10 years were four respondents (40%). It shows the average farmer is loyal to his job. In addition, they did not change their jobs although there are many obstacles and problems they face.

The impact of FFS-IPM on farmers' productivity and income

FFS-IPM causes a significant effect on the farmers' behavior in rice cultivation. It has implications for the increase of farmer productivity and income. The productivity and income of farmers before and after FFS-IPM can be seen in Table 1.

Table 1. Farmers' Productivity and Income as Alumni of IMPFFS

No.	Respondents	Productivity (tonne/ha)		Income (IDR)	
		Before IMPFFS	After IMPFFS	Before IMPFFS	After IMPFFS
1	Respondents 1	7.40	8.00	17,510,000	20,150,000
2	Respondents 2	7.00	7.90	16,315,000	20,275,000
3	Respondents 3	6.70	7.20	13,980,000	16,180,000
4	Respondents 4	6.80	7.30	14,775,000	16,975,000
5	Respondents 5	6.90	7.10	14,505,000	15,385,000
6	Respondents 6	6.00	6.40	8,530,000	10,290,000
7	Respondents 7	6.80	7.00	15,120,000	16,000,000
8	Respondents 8	6.80	7.60	14,740,000	18,260,000
9	Respondents 9	6.90	7.40	15,240,000	17,440,000
1	Respondents 10	6.70	6.90	14,605,000	15,485,000
	Total	68.00	72.80	145,320,000	166,440,000
	Average	6.80	7.28	14,532,000	16,644,000

Source: Primary data processed in 2020

Table 1 shows that the number of rice plants productivity after FFS-IPM program was higher than that of before FFS-IPM. Productivity is calculated based on the results of crop cutting techniques with a size of 2.5m x 2.5m. The results of crop cutting techniques are then converted into tonnes per hectare. The productivity of rice plants after FFS-IPM

program increased to 0.48 tonnes per hectare compared to the time before joining. This increase was due to the fact that there were more productive tillers after FFS-IPM program compared to before FFS-IPM program [8]. In addition, the panicle of rice produced are longer, bigger and heavier so that the results are more. By applying cultivation according to the recommendation of plant roots, it develops well so that it can absorb the nutrients required optimally. Fertilizer delivered to plants is a balanced and complete fertilizer according to the recommended dosage which can increase plant resistance to pests, diseases, stronger stems and heavier grain.

The rice productivity in the application of IPM gradually increases the every season along with the increase in the plant immunity system and the formation of a balanced ecosystem, in which the farmers completely rely on nature controlled by utilizing four IPM principles: cultivation of healthy plants, utilization of natural enemies, periodically observing the pest, as an IPM expert[9]. The cultivation of healthy plants can reduce the attack number of Plant Disturbing Organisms (*OPT; Organisme Pengganggu Tanaman*). Healthy plants will be stronger against OPT than less healthy plant. The second principle of IPM is the use of natural enemies. It can reduce the number of pests because the pests attacking the rice plants will be eaten by their natural enemies, so that the number of pests and diseases can be controlled. The third principle is routine monitoring. Observations carried out regularly and routinely support farmers to find out more about pests and diseases interfering their rice plants, so that farmers can make decisions to control them. Meanwhile, the fourth principle is farmers are IPM experts. If farmers are already IPM experts, they are expected to be able to control pests quickly and precisely so that the productivity of their rice plants can be increased With increased productivity, the production rice plan implementing IPM technology to rice farming will increase [10].

Table 2 Relationship between the Implementation Level of FFS-IPM Technology and Productivity & Income

Analysis	Productivity	Income
Pearson Correlation	0.872	0,932
Sig (2-tailed)	0.000155128	0.000155128
N	10	10

Based on the analysis results presented in Table 2, it is concluded that there is a significant relationship between the implementation level of FFS-IPM technology and rice productivity. The same thing also shows the income of rice farmers after joining the FFS-IPM program of rice plant was higher than that of farmers before joining the program. To see how strong the relationship is, it can be identified from the value of Pearson Correlation. From the output table, the value of Pearson Correlation

obtained is 0.932. If it sees from the correlation results above, the relationship between the implementation level of technology variable and the rice productivity variable is significantly strong and unidirectional. It means that he higher the value of the implementation level of technology used by the farmers of FFS-IPM program, the higher the value of rice productivity.

The average difference between farmers' income after and before joining the FFS-IPM program in Table 1 shows a positive effect. The average income of farmers after joining the FFS-IPM program of rice plant was IDR 16,644,000 (per season/Ha), while the average income of farmers before joining the FFS-IPM program of rice plant was IDR 14,532,000 (per season/Ha). in other word, there was an increase of 14.53%. The percentage of increase in income is higher than that of productivity caused by IPM; the cost of controlling pests and diseases of rice is reduced. IPM has a positive impact on the farmer's economy due to the reduction in pesticide use reducing production costs, and it indirectly increases the knowledge and skills of farmers as IPM experts.[7]

Farmers, the alumni of FFS-IPM, get higher income than before joining FFS-IPM program because of the increase in rice productivity which automatically increases their income. Apart from that, it is also caused by lower farming costs. Farming costs have decreased because farmers can reduce costs for farming, especially the cost of pesticides. Traditional farmers tend to use chemical pesticides which are relatively expensive compared to natural pesticides (vegetable pesticides or biological agents) with an average use of chemical pesticides of more than IDR 1,000,000 - 2,000,000 per hectare in one growing season of rice plant. Meanwhile, farmers, the alumni of FFS-IPM, use natural pesticides, which are very cheap and environmentally friendly. Vegetable pesticides can be made from natural materials like *Gadung* (*Dioscorea hispida),* neem (*Azadirachta indica*), the leaves of the soursop, Lemongrass (*Cymbopogon citratus*), betel leaf, Galangal (*Greater Galangal*) which are easily available around the house or in paddy fields without having to buy and spend a lot of money. Making vegetable pesticides is also exceptionally easy, that is, just crushed and soaked with water and filtered before the application. The use of vegetable pesticides is moderately effective when sprayed regularly and appropriately. The use of vegetable pesticides can reduce the costs of maintaining/controlling the pest, so that farmers' income/profits increase.

Conclusions

From the evaluation and analysis of the success of the FFS-IPM program on the productivity and income of rice farmers, it can be concluded as follows:

1. The Farmer Field School for Integrated Pest Management (FFS-IPM) is implemented at the farmer group of *Rukun Tani Desa Lemahbang* demonstrates a positive impact on rice productivity with an average increase of 0.48 tonnes per hectare compared to the productivity before that program.
2. The respondents' income of the alumni of FFS-IPM program increased by 14.53% after attending that program.

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Relaxation Music Stimulation for Decreasing Negative Emotions During Pregnancy

Annida Dahrul[1]

Introduction

During the pregnancy process, it is difficult to predict whether problems will occur with the pregnancy. This is due to influences involving emotional, physical, social, family, and environmental factors. Evidence consistently suggests maternal psychosocial stress can affect newborns. A study of M. I. Van Den Heuvel, M. A. Johannes, J. Henrichs, and B. R. H. Van Den Bergh [1] showed maternal anxiety during pregnancy is associated with poor birth outcomes and affects cognitive and socio-emotional development, behavior, and even mental health problems in the fetus. Therefore it is necessary to treat as early as possible to reduce negative emotions during pregnancy.

The influence of sound construction and harmony in the uterus forms a harmony that affects interactions in the prenatal period. Through music the fetus can listen to and live in harmony both with oneself and with others, this experience is given to the fetus by direct reflection [2]. This is in line with the study of M. L. M. Gascón, M. R. Mullor, and T. P. Carreño [3] that there is a significant increase in the rate of the basal fetus and the fetus at a further stage with the reactivity of the accelerated fetal heart rate in pregnant women with music stimulation can affect the vital signs of pregnant women and increase fetal rate and reactivity.

In the last decades' music has been recognized to have a therapeutic effect on the body and mind meaning that by neutralizing negative emotions, music can lower the stress threshold, in tune with the process of helping patients achieve advanced states of relaxation [4]. In women who have received music therapy during pregnancy was found to have a significant decrease in anxiety scores, with the provision of prenatal music can be a useful and effective tool to reduce anxiety in pregnant women both during pregnancy and during delivery [5].

Infants of mothers who were exposed to music during pregnancy showed significantly better performance which influenced neonatal

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behavior both perception, afferent conduction, integration, and decision selection [6]. Another experiment related to listening to the mother's favorite music during pregnancy showed that newborns recognize and react in a certain way to familiar songs and have a calming or relaxing effect similar to the effect of listening to their mother's voice. These findings show how important it is for parents to talk, sing, and tell stories to fetuses from before birth [2].

In a study of M. L. M. Gascón, M. R. Mullor, and T. P. Carreño [3], it was explained that music can increase the vital signs of pregnant women during the third trimester and have an effect in increasing the heart rate and reactivity of the fetus during the pregnancy process. This explains that exposure to prenatal music given to mothers significantly influences fetal neonatal behavior and greatly affects the development and socio-emotional of pregnant women, with sound and music media can educate, listen and maintain harmony based on fetal development during the pregnancy process by direct reflection [6].

The provision of soothing music and relaxation also demonstrated a much longer-lasting prenatal effect than that reported in the very few studies conducted without music administration, suggesting the effect of prenatal exposure lasting at least six weeks to contour melodies without additional stimulation after the fetus was born [7]. Listening to relaxation music during pregnancy is also associated with higher levels of well-being and reduced symptoms of postnatal depression especially in pregnant women who show low well-being or symptoms of postnatal depression during pregnancy.

In the prenatal period of the fetus, according to L.E. Berk [8] during pregnancy, the zygote one cell will grow into a complex human baby and ready to be born. The major changes lasted 38 weeks divided into three phases: (a) zygote period; The zygote period lasts about 2 weeks, from small fertilization until the cell mass drifts down and out of the fallopian tube and attaches itself to the uterine wall. Gradually, new cells were added at a faster rate. On the fourth day, there are 60 to 70 cells that form a hollow ball filled with a fluid called a blastocyst which will become a new organism. (b) the embryonic period; the embryonic period lasts from implantation to the eighth week of gestation. For 6 weeks, prenatal changes occur most rapidly for all body structures and organs in the fetus. (c) fetal period; lasts until the end of pregnancy, the fetal period is the finishing phase. During this longest prenatal period, the developing organism increases in size rapidly. The rate at which the body develops is extraordinary, especially from the ninth week to 9 months of pregnancy.

With all the things that explain the importance of applying relaxation music to fetal development and its effect on reducing negative emotions during pregnancy, this review aims to provide directions and an overview of the benefits of giving relaxation music. The trend of their effect on decreasing negative and socio-emotional emotions during pregnancy will be reviewed so that they can provide contribution and direction to women during pregnancy.

Socio-emotional during Pregnancy

Psychosocial stress in pregnancy can be defined as a condition of imbalance in which pregnant women feel unable to fulfill their obligations at a certain point, this will occur automatically through behavior and physiological conditions. Periodic negative thoughts and fear will be a major cause of stress. Women who suffer stress during pregnancy either directly or indirectly will affect the physiological and psychological development of the fetus [9].

When a mother is frightened and anxious that triggers negative emotions, stimulant hormones are released into the bloodstream causing large amounts of blood to be sent to the parts of the body involved in the defense response - the brain, heart, and muscles in the arms and legs causing blood flow to other organs. As a result, including the uterus is reduced; the fetus is deprived of a full supply of oxygen and nutrients [8]. This can cause problems for the fetus in the future with an increased risk of anxiety and depression, behavioral problems such as Attention Deficit Hyperactivity Disorder (ADHD), and sub-optimal cognitive development [10].

Negative emotions that are felt during the period of pregnancy can cause stress in pregnant women, according to M. Pais [11] stress of pregnant women is divided into 3 categories of low stress; Stress in the low category during the prenatal period is good for optimal fetal development. Moderate stress during pregnancy can harm the fetus' relationship with the mother. If it exceeds it may cause long-term effects later, and alter the development of the fetal nervous system. High stress; when a woman experiences very severe emotions or high stress during pregnancy, the baby is at risk for a variety of difficulties. Intense anxiety is associated with rates of miscarriage, prematurity, low birth, high body weight, and respiratory disease of newborns [12].

Three factors underlie the emotional development of women during the pregnancy process according to M. Tyrlik, S. Konecny, and L. Kukla [13], namely personality conditions, related to a woman's ability to cope

with problems, especially her emotional stability and anxiety, the influence of plans and skills, another very important aspect is her previous experience, especially a miscarriage or pregnancy. birth defects. Furthermore, social and material living conditions including close and social relationships needed to support promising pregnancy and childbirth programs in the future as well as material or economic status and sustainable employment. In this case, social support from family, relatives, friends, or colleagues can also be considered in influencing women's emotions during pregnancy.

Relaxation Music Stimulation

One of the challenges for pregnant women is that during the pregnancy process, sometimes women consider it stressful and somewhat anxious. Music therapy may serve as a modality that decreases the physiological response to stress and anxiety responses among pregnant women. With pleasure music received by the right brain can release endorphins from the pituitary gland, thereby reducing physiological response and relaxation. Moreover, music can alter the interaction of the thalamus and reticular activating system, and affect emotional, muscular, and autonomic functions such as blood pressure, heart rate, and respiratory rate [4].

Starting from the earliest phases of development when listening to music can trigger a cognitive and emotional array of different and interconnected neural substrates. Human brain imaging studies have shown the neural activity associated with listening to music extends well beyond the auditory cortex involving extensive bilateral frontal, temporal, parietal, and subcortical area networks associated with attention, motor function, memory, limbic and paralimbic areas associated with emotional processing [14].

In a study of C. Nwebube, V. Glover, and L. Stewart [10] regularly listening to relaxing music as a non-pharmacological method is effective in reducing anxiety and depression during pregnancy. Researchers suggest that the routine use of relaxation music takes into account the pre-stressful clinical events and should be performed as a household routine during pregnancy [15]. Therefore music can be an effective and inexpensive way to reduce anxiety levels in a relatively short time, by playing relaxation music showing the total number of neurons and glia in the nerve core area and the total volume of the auditory nucleus and hippocampus at birth increases this result is better than a noise-stimulated group with unpatched music [16].

Results Implications of Relaxation Music Recommendations

The structure of music can affect emotional expression, the volume of the music has a special effect on hearing. The major and minor modes can influence whether the listener thinks the music is happy or sad. Furthermore, genre or subjective classification as calming or unpleasant to influence cooperative behavior that can enhance cognitive tasks and even arousal and mood. Therefore it is recommended that pregnant women choose music with a regular rhythm, slow tempo, narrow tone ranges, and simple harmonies in the form of consonants and regular rhythms that can enhance the relaxing nature of the music. This can be seen in classical and instrumental music.

a. *Classical music*

Classical music predates the 19th century from conservatories in Italy. Classical music consists of a beautiful composition of notes and tones and does not create boredom for the listener [17]. Western classical music is associated with automatic emotional assessment, such as musical stimulation and sound which can explain that music will activate areas associated with physical feelings (motor and interoception) to a greater extent and will activate the language area when listening to classical music [18]. Examples of classical music such as music by Mozart are Symphony No.40, Piano Sonata No. 16 in C Major, Piano Concerto No. Maestro Beethoven also has classical music works such as Moonlight Sonata, Fur Elise, 6th Symphony, etc.

b. *Instrumental music*

The development of instrumental music in the 19th century was marked by the use of the sonata form, classically within the framework of a freer emotional style in various compositions, such as sonata (solo sonata), concerto, overture (overture). , symphony (symphony), the symphony of poetry (tone poem / symphonic poem). This is a direct result of the musical inventor's desire to avoid all things that are too rational, balanced, and traditional [19]. Instrumental music differs in tempo, articulation, and modes of music guided by the science of harmony and chords. Instrumental music is a type of music that is presented only with a combination of the sounds of musical instruments without any vocals [20]. Examples of instrumental music include piano instruments in classical music, acoustic guitar instruments, saxophone instruments.

The characteristics of the internal components of relaxation music according to D. Elliott, R. Polman, and R. McGregor [21] see on table 1.

Table 1. The characteristics of the internal components of relaxation

Component	Characteristics of relaxation music
Melody tempo	The tempo should be between 80-100 beats per minute. The melody should be strong and safe, so that it is easy for the listener to hum, ranging from pitch progression from low to high.
Beat	Relaxing music contains a constant, regular sequence with a 4/4 beat mark.
Harmoni	Harmony in relaxing music is used in the development of harmony which is popular in Indonesia and western music. In this case the instrumentation harmonies and vocal arrangements "mix well together," "sound great" and complement the melody well.
Rhythm	Simple, constant, and relatively smooth in most musical compositions.
Complexity	The most relaxing music is complex music because it has relatively few parts or sounds similar, harmonious instruments, the music is relatively constant, has little dramatic volume changes to the melody and has regular beats.
Key	Primary chord tends to be perceived as 'happy' and minor as 'sad,' but it can also be conducive and other characteristics are perceived as having more influence.
Articulation	In general, for relaxing music can be both smooth and connected notes; there is no period of silence between note transitions (legato).
Sound	The composition contains vocal elements. In this case it is considered "soft, calm, smooth and connected "especially during the 'sing' in special parts.
Instrument	The most common uses of the instrument in casual compositions are eg piano and include guitar, bass, drums, strings.
Dynamics	Relaxed music tends to have a relatively constant composition in terms of volume.
Character	The most relaxed option is seen if the music can appear 'lively' and have 'calm' to strengthen the character.

Conclusion

Based on a review of the application of relaxation music to decrease negative emotions during pregnancy, it was found that pregnant women who are depressed, anxious, or stressed can increase the risk to the fetus and a variety of adverse outcomes including emotional problems, attention deficit disorder symptoms or cognitive development disorders. With the application of soothing music such as the flow of lyrical melodies, simple harmonies, soft tones and easy rhythms such as classical music and instrumental music with attention to the internal components of music can stimulate a relaxation response and facilitate emotional homeostasis

in pregnant women and fetuses. Studies show that well-chosen music can improve health and well-being during pregnancy. Listening to music during pregnancy provides a potentially fun, inexpensive and non-stigmatizing intervention. That is why relaxation music is believed to provide a psychologically and physically stable condition for pregnant women, increase happiness, help create comfort and increase the bond between mother and fetus during the pregnancy process.

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The Effect of Product Quality and Brand Image on Customer Loyalty with Satisfaction as an Intervening Variable

Bebi Ratnasari[1]

Introduction

Customer loyalty as a high commitment to buy back a preferred product / service in the future. Loyal or loyal customers are customers who are satisfied with a product / service and make consistent or repeat purchases and do not switch to other products / services. Customer loyalty illustrates the frequency of purchases made by customers for goods or services repeatedly at the same provider [1]. Customer loyalty is very important, this is supported by several previous studies which state that good customer loyalty is evidence of customer loyalty to products or services provided by providers [2]. Loyalty is high not just be created, will be but is based on a good product quality and satisfactory for customers.

Product quality is the first thing consumers look at when they want to make a purchase. A buyer will buy a product the first time that product quality is seen. Good product quality stimulates consumers to buy it, and the better the quality of the product makes these consumers make purchases on the same product repeatedly and makes customers stay (loyal customers). Product quality is something the customer hopes are in accordance with the reality of the product being offered. Good quality is very important, this is supported by previous research which states that product quality has a positive and significant effect on customer loyalty [3].

Customer loyalty is created apart from product quality, also formed by a good brand image. Brand image is very important, because the brand image is the consumer's view of a product or service that is considered good and suitable for continuous consumption. Consumers view of a particular brand and how consumers perceive a brand. A positive brand image will make consumers like a product with the relevant brand in the future. This is supported previous research that says that a strong brand image and a significant positive impact on customer loyalty [4].

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In addition to product quality and brand image, customer satisfaction variables can also shape customer loyalty. Customers who are satisfied will the product / certain services indirectly foster loyalty to the products / services consumed. So that customer loyalty will be created when consumers feel satisfied with the products / services consumed. Customers who are satisfied with the product / service will have a plan to repeat the purchase. This is supported by the results of previous studies which state that customer satisfaction has a positive and significant effect on customer loyalty [5].

Customer satisfaction is created because of the supporting factors, namely product quality, service quality, emotional (brand image), price, and cost [6]. Based on the many factors driving customer satisfaction created because of the quality of the product and a good brand image. The quality of the product received by the customer is good and in accordance with customer expectations, so a customer is directly satisfied with the product or service. Good product quality is very important for customer satisfaction. This is in line with research ter in advance that the quality of the product has a positive effect on customer satisfaction [7].

Factors other supporting customer satisfaction that is the image of the brand. Customer satisfaction is also created because the product has a good brand image in the eyes of its customers. Products that already have a good brand image will be a satisfaction for customers when enjoying these products. Customers feel satisfied because the product has a good brand image. A good brand image in the eyes of customers will lead to good satisfaction for customers of these products. This is consistent with previous research that brand image berp engaruh positively and significantly on customer satisfaction The [8].

The recent phenomenon has emerged that the habit of drinking coffee in shops has become a habit of Indonesian society, not just drinking coffee, but usually coffee shops are also a destination for certain activities, such as meeting friends, as a place for socialization, as a free photo studio, or as a place of study for students and university students. The coffee shop business in Indonesia began to flourish with the emergence of local coffees such as Kenangan coffee, Soe coffee, Tuku coffee, Janji soul coffee, Kulo coffee, Kokali, and Sagaleh coffee which are local coffees that have different characteristics according to the desires of their consumers.

One of the fastest growing local coffee shops in Indonesia is the Janji Jiwa Coffee Shop. This shop is a local Indonesian coffee *brand* that is growing rapidly and won an award from the Indonesian World Record Museum (Muri) for breaking the record for the fastest Coffee Shop Growth

in One Year. This proves that the coffee promised soul is a *brand* that is well known by the Indonesian people [10]. The promised Jiwa Coffee Shop has spread over 700 stores in 50 cities in Indonesia, and the target is to reach 1000 shops throughout Indonesia.

Blitar City is one of the cities that has become the target market for the Janji Jiwa Coffee Shop. The customer of the soul promise coffee shop in Blitar shows high enthusiasm. This is reflected in the number of visitors to the coffee shop every day. The phenomenon of consumer loyalty to coffee drinks can be seen with the naked eye from the crowds of visitors at the Promise of Soul coffee shop every day, even though they are willing to queue long and wait for hours to enjoy a cup of coffee.

This proves that nowadays coffee shops have become a place for young people to share happiness with friends and family and even just to relax and fill their spare time enjoying coffee with a modern atmosphere [11]. This phenomenon inspires researchers to be interested in examining more deeply about customer loyalty and its antecedents which include product quality and brand image which are considered quite relevant to customer satisfaction as an intervening variable in the context of the Janji Jiwa Coffee Shop. The purpose of this study is to determine, test and analyze the effect of product quality and brand image on customer loyalty and position customer satisfaction as an intervening variable.

Discussion

Loyalitas is deeply committed last customer to re-subscribe or re-purchase of products / services selected consistently in the future, although the influence of the situation and marketing efforts have the potential to cause a shift in customer behavior [14]. Customer loyalty is a customer commitment to a brand, store or supplier in term purchase p gathering is [15]. So it can be concluded that the researcher shows that customer loyalty is customer loyalty which is represented in a consistent purchase of a product or service over time and a good attitude to recommend others to buy the product.

Indikator customer loyalty is no *repeat purchase* (loyalty in the purchase of products), *retention* (resistance to the negative effect on the company), and *referalls* (referencing the total existence of the company) [16]. In addition, other research indicators are repeated purchases, consuming the brand becomes a habit, liking the brand, still choosing the brand, believing that the brand is the best, and recommending the brand to others [17]. Based on the above indicators, the researcher maintains research indicators, namely making repeated purchases, recommending to

others, not being influenced by the attractiveness of competitors' products, and believing that the brand is the best.

K Quality of product is something that customers' expectations in accordance with the reality on the products offered [18]. Product quality is the suitability of using the product to meet customer needs and satisfaction [19]. From the description above, it can be concluded that the writer concludes that product quality is related to the value contained in a product that can be enjoyed by customers in the long term. The dimension of product quality is good taste, which concerns customer assessment of the taste of a product being offered. Products that taste good and are able to be accepted by customers are always loved by customers. Furthermore, product features, feature dimensions are a competitive tool to differentiate the company's products from competitors' products. Unique and attractive product features in the eyes of customers will remain in the eyes of customers, so that customers will still like the product features. Finally, packaging durability, durability shows in terms of packaging and product age. Well packaged products will last a long time. In terms of promotion, the packaging functions as a customer attraction, because with the unique and attractive color, shape and decoration of the packaging, customers can be attracted [20]. Based on the above indicators, the researchers chose indicators as research, namely good taste, product features (product characteristics), packaging durability, and product beauty *(Aesthetics).*

Brand image is a set of memories that exist in the minds of consumers about a brand, be it positive or negative [21]. Brand image is a description of the association and consumer confidence in a particular brand. So it can be concluded that the brand image is the customer's trust in a particular brand so that the brand association is attached to the minds of customers, both positive and negative [22]. Further indicators of brand image is the recognition *(recognition)*, reputasi *(reputation),* afinitas *(affinity),* and the domain [23].

Customers are feeling happy or disappointed that comes after the products are considered appropriate to the expected performance [24]. Customer satisfaction occurs as a result of psychological responses that occur by consumers who compare the gap between what was previously expected and what was experienced after consuming a product [25]. An indicator that can be used in measuring customer satisfaction is creating a *Word-of-Mouth,* customers will say good and interesting things about the company's products to others, the goal is that other people also consume the same product. Creating a brand image, build loyalty and encourage customers to recommend to others by way

of creating a strong brand image on the product. The added value of the product for the customer is a strong brand. Creating purchasing decisions at the same company, satisfied customers will make repeated purchases of products from the company. Repeated purchases of the same product in the same company are highly coveted by the company [26].

Conceptual framework based on *experimental marketing theory* with customer loyalty relationship is the consistency or activity of consuming a customer for a product / service, this is of course driven by the existence of good product quality, good brand image and good customer satisfaction.

Conclusion

Customer loyalty is a form of customer loyalty to an existing product. Customer loyalty is created when customers are satisfied with good product quality and a good brand image created in the minds of customers. In addition, customer loyalty is created when customers feel satisfied with what they get from the quality of the product received and the product image that is considered good.

Loyalty is created at the coffee shop appointments based terntunya life for their customer satisfaction will be a good product quality and brand image of the promise of life inherent in the minds of customers, so as to create customer loyalty in the coffee shop appointment Blitar city life.

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Causality of Happiness

Brian Z. Hakim[1]

Introduction

Happiness is an assessment of affection and cognition of human life, consisting of general satisfaction with life, the presence of positive affection [13], and happiness affects health, is physically healthy and psychologically healthy [2]. Individual happiness can be different from one another. There are also various variables. But where does happiness come from? Various life events that occur provide stimuli to humans with various interpretations. Different interpretations due to differences in each human being, different perspectives, different beliefs, different behaviors. At first glance subjective but it is true. Psychology is known as subjective well-being (SWB) in which the well-being of every human being is subjective.

Happiness is plural in nature, because it has different meanings depending on the context used and the types of professional disciplines that vary, for example, psychologists, sociologists, educators [35]. Happiness was once considered too heavy for a psychological term, but currently, development and research on happiness, especially positive psychology, has developed [35]. Several psychological points of view argue about happiness. Psychological well-being theory argues that happy individuals have several positive characteristics, including autonomy, environmental mastery, and personal growth [29].

The theory of eudaimonic well-being argues that happy individuals are individuals who are intensely involved in self-exploration, self-expression, and maximum self-potential development with positive emotions [38]. The social-psychological prosperity theory argues that there are several domains related to “very happy life” such as having quality social relationships, sharing happiness with others, and having enthusiasm in daily life [14]. According to Seligman, happiness is a "full" life, including Pleasure and positive emotion (comfortable life), engagement or flow (the good life), meaningful (meaningful life), achievements, and social relationships. The purpose of this article is to share knowledge about the psychological constructs of happiness, its description, and its relationship to various variables [34].

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Method

This paper is a Systematic Review Literature (SLR). The data from this paper is in the form of a collection of Research Journals related to happiness from various websites. This review literature is synthesized using a narrative method by classifying the extracted data according to the measured results to answer the objectives.

Result and Discussion

Happiness Theory Categorization

Several theories of happiness have similarities and differences. In different contexts happiness has different meanings, such as subjective well-being, Onion theory, Objective happiness, Eudaimonic well being and Authentic happiness. Well-being and happiness are two prone to overlap, so to prevent overlap, the author wants to provide a classification of the theory of happiness in the research of L.K. Kaczmarek [18] and its components.

Measuring Happiness

The Oxford Happiness Inventory (OHI) [3] was created to measure happiness which is usually used for experimental psychology at the University of Oxford in 1980. OHI can be adapted or adapted according to the culture in each country, such as in Taiwan which adapts OHI into China Happiness Inventory [21]. With different objectives, the Oxford Happiness Questionnaire (OHQ) is a simple psychometric, for example by using the Six Point Likert Scale which is easier to use by the public [17].

Subjective Happiness Scale (SHS) [22] yang berbentuk 7 poin Likert Style skala ini dibuat berdasarkan pendakatan subjektifis yang mengandalkan dari perspektif responden. Individu akan dimint untuk menilai bahagia atau tidak bahagia secara global.

Positive Affect Negatif Affect (PANAS) [8] yang berisikan 10 pernyataan yang menyaytakan perasaan dan emosi (lebih kepada mood). Pernyataan akan di respon dengan penilaian 1-5 (tidak sama sekali-Sangat Setuju).

PERMA Profiler is a measuring tool developed by Butler & Kent, its aspect refers to Seligman's well-being theory, namely P positive emotion and negative emotion, E engagement, R relationship, M meaning, A accomplishment/achievement. PERMA consists of 23 items with a choice distance of 0-10.

The Authentic Happiness Scale (AHS) [32] measures the authentic happiness of an individual by Seligman. Consists of 16 items with 5

Likert-type responses. AHS consists of 2 sub-theories, namely authentic happiness and fluctuating happiness with a total variance of 45.54%.

Happiness Impact

Happiness has a big role in behavior and attitudes, based on the results of research in terms of personality, that someone with an extrovert personality has a higher level of happiness than an extrovert. This is because someone with an extrovert personality prefers social relationships such as enjoyment of interaction, social activity, prosocial behavior, community involvement, emotional expression in the social environment, social perceptions of others and oneself, which is inversely proportional to introverts which are more counter to conditions. social [23]. In intimate relationships between humans, the role of happiness is also very important, someone who has a high level of happiness has good qualities for marriage and romance.

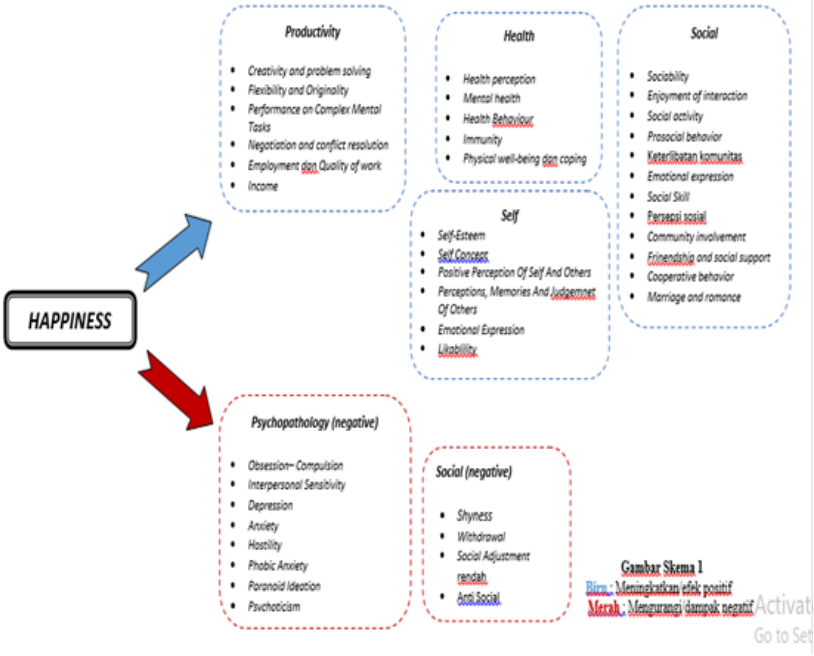
Physical activity or sports that a person does is also associated with happiness. When doing physical activity (aerobic), an extrovert has a higher level of happiness than an introvert, the sports activity of an introvert himself has a lower happiness score [26]. Some types of team sports show higher scores of happiness than individual sports, higher scores are influenced by social interaction in a supportive sports team [16]. Happiness and health have a relationship that a person who has a high level of happiness is positively related to health perception, health behavior, physical health, and has good immunity, most likely due to low-stress levels [23].

Socially, happiness makes individuals easier to interact, can mingle, and be more adaptive to the environment. A person with a high level of happiness is less likely to withdraw from the environment (Shyness-withdrawal), the social adjustment is low. If the level of happiness is high, there are also highly social skills [11], emotional expression, social interaction, social relations [36], enjoyment of activities, prosocial behavior, and organizational citizenship. In the work environment and productivity, happiness plays an important role for work performance, Happiness productivity and the work environment has a positive effect on employment, work quality, income, creativity, problem-solving, flexibility, originality, and in the world of education such as academic achievements, performance on assignments. complicated [23].

In humans, happiness contributes to how humans think and behave. Someone who has a high level of happiness has a positive relationship with self-concept, self-esteem [31, 33], emotional expression, perception,

memory, coping, judgments of others. Meanwhile, a high level of happiness is negatively related to symptoms of psychological disorders such as obsessive-compulsiveness, interpersonal sensitivity, depression, anxiety, phobia, hostility (hostility), paranoia, psychoticism, and psychosomatics [15].

In other types of research such as semi-experiments and correlations with added mediation and moderation, the results of happiness scores can be strengthened or weakened, based on the data obtained that there are mediations that affect happiness, such as resilience or independence [27], life satisfaction [1], mindfulness, self-compassion [7], subjective vitality [37]. Happiness is a very broad psychological construct, there are also various kinds of constructs that can be related to happiness, in the context of research, it can be positioned as an antecedent or an outcome. The following is an illustration in schematic image 1.

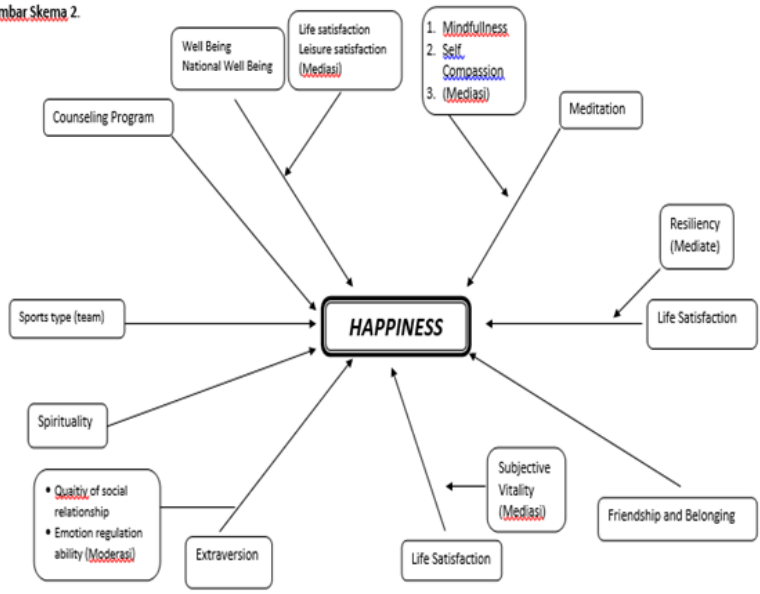


Happiness is obtained in certain ways such as life satisfaction, which is mediated by resilience, that life satisfaction has a significant effect on happiness, life satisfaction and happiness are mediated by resilience [27], national well-being which is moderated by life satisfaction and leisure satisfaction, that well being as an initial factor affects leisure satisfaction and life satisfaction and indirectly affects happiness, [1], sports (team) with the finding that group sports show significant happiness than

others. Group sports increase life satisfaction, self-esteem, subjective well being and positive mood [16], physical activity [26], spirituality [35]. Self-compassion and mindfulness mediate meditation with happiness [7]. Extraverted personalities are moderated by the quality of social relationships and emotional regulation. A high degree of extraversion is related to happiness, the size of the happiness score is moderated by the size of the social relationship quality score and emotional regulation, income, and because the meaning of happiness is wide-reaching, there are other ways to be happy [9]. There are differences between happy and unhappy individuals, based on research findings, for example, people who have high happiness will enjoy social processes and have a high level of social interaction, altruism, and prosocial.

Unhappy people are the opposite of the results of a high level of happiness, for example, they do not like social interactions, withdrawals, negative social perceptions, and others [15], so people who are happy and unhappy are observable. Personality affects individuals to get happiness, someone with an extrovert personality has a higher level of happiness than an introvert, but when mediated by the quality of social relationships and emotional regulation, the level of happiness is higher [9]. Intervention programs such as counseling have been shown to increase group counseling to positive emotions, happiness, and life satisfaction. Qualitatively, the subject feels developed personally and professionally [6]. The following is an illustration in schematic image 2.

Gambar Skema 2.



Enhancing The Happiness

Positive Psychology Intervention (PPIs) in Lambert D'raven, Moliver, & Thompson [20] the intervention was given to 124 nurses for 6 weeks and showed significant results compared to pre-intervention, that there was a decrease in the level of depression, perception of pain, and increased social function, subjective vitality, and general health over time. Malboeuf-Hurtubise, Taylor, Lefrançois, Essopos, & Lacourse conducted a Mindfulness-based Intervention (MBI) intervention in one elementary school child who is experiencing social difficulties [24], aged 9 years who has major depressive disorder based on the DSM V criteria. Although the criteria for major depression have not completely disappeared, MBI has a positive impact on happiness and has a positive value on life events in the present and the future. Research by Bailey [5] on Happiness-inducing exercises of the chillPACK intervention was used to improve psychological well being and happiness aimed at smokers who experienced depression and motivation to stop working. The results of this study are to improve psychological well-being, and motivation to quit smoking, and help reduce the public health burden associated with depression and smoking.

Apart from intervention, happiness can be practiced simply and universally. Three Good Things, to write positive experiences every day and describe their role in delivering those experiences. Writing letters of gratitude, writing down every thanksgiving every day. Performing Act of Kindness, doing positive behavior towards oneself and others. practicing optimism, behaving, and behaving with enthusiasm and optimism. Using strengths in a new way, using the advantages possessed in carrying out activities or work.

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The Stage of Language Development and Stimulation of Toddlers (Under Three Years)

Brilian Tri Wicaksono[1]

Introduction

The first three years of child development are the golden period or critical period for optimizing the process of growth and development. Child development consists of gross motor skills, fine motor skills, socialization, cognitive, and language. In a more specific matter, early childhood in human development is the golden age of children learning a language, so that the role of the people around them is very helpful in the acquisition and mastery of children's language [1]. Therefore, this period is the most important and prone to the successful development of children's language skills.

Language education is an education that a mother can do to her child from an early age, even when the child is still in the womb. This is reinforced by previous research which explains that talking with your little one from an early age will help children learn to talk [2]. It can be seen here that parents also determine the acquisition and development of children's language at an early age.

In order for the child's language and cognitive development to be optimal, verbal stimulation should be done as early as possible. Stimulation can be done by the mother since the child is still in the womb, because the child's hearing system has started functioning since the age of 7 months of pregnancy [3]. Parents, especially mothers, are the closest people to children who can stimulate or stimulate children intensively to optimize the development of their speaking skills [4]. Children who receive targeted and regular stimulation will develop faster than children who do not or do not receive stimulation. Therefore, parents need to know the form of language stimulation in children and adjust it according to the age of development as a basis for education in childcare.

Discussion

In general, there are 5 language stimulation strategies in children that are often carried out by parents, including: **Moterese, Echoling, Labeling,**

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Expanding, Recasting. **Motherese**, is a form of strategy for parents to speak intensively using simple language when talking to children, for example, “why is that ayang? Want mimi, right? wait." **Echoling**, is a parent strategy by repeating what the child says with the aim of perfecting the child's words, for example the child says “..cing” then the parents repeat “yes, cat”. **Labeling**, parents ask children to identify the names of objects, it can be in the form of real objects or artificial objects (replicas), pictures, word games, and so on. **Expanding**, parents by repeating what the child has said in a more perfect sentence, for example the child says "the cat is eating", the parent answers "yes, the cat is eating". **Recasting**, is a strategy in the form of a parent's response to a child's sentence by saying a sentence with the same meaning but in different ways, for example the child says "the cat eats", the parent responds by asking "when did the cat eat?". Furthermore, in more detail the application of these strategies will be described in the following 8 stages of children's language development.

Birth to 6 weeks

All activities for newborns up to about 3 weeks of age are still reflex, so this stage is called Reflex Vocalization [5]. Children's activities at this stage are unconscious, unwilling, and are not responding to external stimuli. After about 4 weeks of age, the crying or voice starts to be different. Furthermore, around 6 weeks of age the child will make a sound similar to the sound of a dove (snoring). The snoring that babies do is a way to train the device, he says [6]. Fathers and mothers can begin to train themselves to communicate with babies at this age to adapt.

7 weeks to 3 months

At the age range of 7 weeks to 3 months, children begin to make vowel-like sounds such as "a, i, u, e, or o". The child also begins to react by looking at the source of the sound or the person talking to him. This is because before starting to learn words, children try to recognize subtle differences between language sounds [7]. The child also begins to react by looking at the source of the sound or the person talking to him. At this stage, parents can stimulate actively speaking to children with great attention and use attractive intonations when speaking (Motherese stimulation strategy).

4 to 6 months

Between 4 and 6 months of age, children like to repeat the sounds they make. Slowly the child starts chattering and talking like crying to get attention. The babbling of the child produced various sounds. These sounds are often combined with vowels and have long and short sounds,

such as "bba..ba" or "na..n..naaa". From birth to 6 months of age, children can almost always recognize if there is a change in sound, either the language or some syllables they hear [8]. Around 6 months of age, children show the development of understanding their first words before being able to pronounce them, they also begin to recognize their own name when someone says it [9]. Language development in these children, respectively, is followed by responses in the form of expressions and the number of words a child hears each day affects his intelligence, social goodness, and learning achievement. Therefore, parents are advised to sing a simple children's song with a slow intonation while doing activities together, such as eating, bathing, or changing diapers.

6 to 9 months

Around the age of 6 months the child slowly begins to pick up on changes in the sounds of their own language (the language spoken by their parents) and slowly also ignores unnecessary sounds in their own language [10]. At this stage it is a training stage to move on to pronouncing word forms, such as "mam" when hungry, and is not a reflex anymore. The speech of children in this age range shows a higher ability in neurodevelopment (development of neuromoscular coordination of the vowel tract), namely babbling in the form of CVC syllables (Consonants-Vowels-Consonants) [11].

From the age of 8 months the child begins to detect word boundaries. In Jusczyk & Hohne's study [12] tested several children aged 8 months to listen to story recordings with words that were not common and then 2 weeks after that they recorded the words they spoke, the results obtained two lists of words, namely words in recorded stories. and new words that weren't in the story earlier.

During this time, the child also begins to use gestures to communicate such as waving, holding the parent's arm to lift it, nodding to agree, or rubbing his eyes as a sign that he is sleepy. Pointing gestures are important indicators of the social aspects of language in sequence from: gestures pointing without checking the views of a nearby adult, to pointing while looking back and forth between the direction of the object pointed to and the adult near them [13]. Parents should pay attention if the child does not show the development of "pointing activity" until 12 months of age, as this may be a symptom of an autistic child [14].

9 to 12 monts

Age 9 to 12 months, babies not only repeat their own babbling, but also repeat what they hear from their surroundings. It is also followed by

gestures and hand signs. Parents should be more concerned if in these age their babies do not repeat words or respond to what other people say, as it is a common sign of deafness and speech trouble.

Approximately at about 10 to 11 months, babies with normal development start to realize that giving attention to others convey communicational intentions [15]. Joint attention is a period when a child is interested in objects or events as their parents do. Babies and toddler having joint attention often times have better attention, understand more languages, create signs and words earlier and show linguistic development earlier [16]

12 to 18 months

Gradually from 12 to 18 months of age the child begins to say his first words. At this age children have started to memorize and store language, the acquisition of language from each child is different from one another. Children can get 10 to 50 words by 13 months of age, but they cannot pronounce most of these words until around 18 months of age [17]. They began to be able to pronounce the names of important people "mama..papa..kung..uti ..", as pet stars call them "pussy..mbek," the names of moving objects "mobil..ball", etc. [18].

Sometimes children too narrow and expand the words they use [19]. When they first learn the pronunciation of their first words, children underextension the meaning of the words they use for the first time, suppose a 16 month old child uses the word "bear", which he means only to designate a toy bear. When the vocabulary increases, there is overextension that is to apply the word to interpret a collection of objects or events from what it should be, for example a child says "papa" not only to male parents but also to other male gender. This shows that children often do overextension due to difficulty remembering or not finding suitable words. When a word is difficult to pronounce, children like to replace it with related words that they can say [17]. Overextension that is done by children shows their sensitivity to the category. As vocabulary and pronunciation improve, the overextension goes away on its own.

Short phrases uttered by parents can be a good stimulus for children and should be given repetitions so that children can easily and quickly understand them [6]. The language stimulation strategy that has been applied can be combined with a simple expanding strategy. For example, parents sit in front of the mirror holding the child on their back while practicing how to introduce themselves along with the child's name.

18 to 24 months

The vocabulary spoken by children will increase rapidly after he is able to say his first words [20]. Most 18 month old children say about 50 words, but by 24 months they will be able to say around 200 words. This rapid increase in vocabulary from 18 months of age is called a vocabulary spruce or vocabulary spike [21]. The spike in vocabulary between the ages of 18 and 24 months occurs because the child begins to combine two words accompanied by relying on body language and tone of pronunciation to express the intended meaning.

In the early stages of this phase children tend to be able to speak in “two-word sentences” such as telegrams so that their speaking style is also referred to as telegraphic speech which is different from the holophrastic “one word sentence” phase [22]. The word order is made like a person sending a telegram centered on two word content and eliminating additional verbs and other conjunctions, for example when a child asks for milk, for example, he will say, "mama milk".

At around 18 months of age, parents can add expanding and recasting stimulation strategies to introduce perfect sentences and question sentences. At this age, parents can occasionally invite children to role play (learning by giving certain roles to students and dramatizing this role into a stage). In role playing, children create places and scenes that are very familiar to them, such as imitating scenes from family members, and acting out the different roles that surround them. Through role playing, children can increase vocabulary and practice pronunciation as well as train their memory, creativity, and social skills [23].

2 to 3 years

Research by Oberecker and on children aged 2 to 2.5 years showed that their brain wave patterns and nervous system were almost the same as that of adults [24]. Around the age of 2 years to 6 years a child's vocabulary can reach up to around 3000 words. The development of children's words between the ages of 2 and 3 years will gradually become more perfect, for example, "Mama i wants milk", "Daddy i wants to sleep", etc. Children also begin to be able to develop words with intonation to form simple interrogative sentences for example "What is that?", "Where are you going?" Around the age of 3 years, there is an increase in active speaking and the child gains social awareness in conversation. At this stage they can categorize objects, know a concept (for example, animals or plants), categorize people, and simply tell what they experience (eg morning routine) [25].

Around 3 years of age, parents can stimulate the child's language

with the Child Directed Speech (CDS) strategy [26]. CDS is a form of communication consisting of short sentences with a high tone of expression and exaggeration, clear and clear pronunciation, clear spacing between words, accompanied by the repetition of new words in various contexts [27]. Most of the CDS is done automatically by parents and often they don't realize they are doing it. CDS is used by utilizing Joint Attention Interaction, rotating conversation patterns, and parental sensitivity to children's gestures.

Conclusion

From some of the discussions above, it can be concluded that parents must recognize each stage of children's language development in order to provide appropriate stimulation to children. The attention and activeness of parents in stimulating language is the key to the speed of language acquisition and development of children. Parents need to be patient with more energy and time spent on children so that each period of their development develops optimally.

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Strengthening the Role of National Commission on Violence against Women *(KOMNAS Perempuan)* as a Form of Gender Mainstreaming Policy in the Criminal Justice System

Diana Putri Elvira[1]

Introduction

So far, it is not uncommon for us to find many women who have faced the law, either as victims, as witnesses, or as parties. Because they are dealing with the law, then it makes women have to deal with the criminal justice system. In the criminal justice system, rumors often circulate about discriminatory practices against women. Discrimination against women shows that women's rights are not fulfilled properly. In fact, discrimination can also lead to violence.

The discrimination experienced by women is caused by a lack of gender sensitivity from law enforcers. During investigations, for example, law enforcers are often biased and stigmatizing women. The stigma of law enforcers then causes women to be given the burden of proof when facing trial, women are in a weak position because they cannot access justice and fight for their rights.

Not only that, there are other obstacles faced by women who are faced with the law. The obstacles experienced by women further complicate the conditions for women who are faced with the law. These obstacles can be in the form of psychological conditions and dependence of the victim on the perpetrator, the absence of support from family and the surrounding environment, bias from the authorities to the absence of protection from the state for women's human rights.[1]

Women who are dealing with the law of course need support in the form of advocacy assistance from institutions or communities related to women's human rights, for example, *Komnas Perempuan*. Advocacy assistance from *Komnas Perempuan* will greatly assist women who are faced with the law to access justice and fight for their rights.

Discrimination experienced by women in the justice system is a problem that is full of gender issues. This makes women unable to access

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justice properly, even though justice is part of women's own human rights. To overcome this, a gender mainstreaming policy is needed to realize gender equality and justice in the criminal justice system. This policy must also be supported by strengthening institutions that fight for women's human rights, namely the National Commission on Violence against Women (*Komnas Perempuan*).

So far, *Komnas Perempuan* is deemed ineffective and not yet optimal in carrying out its duties and roles. On this basis, it is necessary to strengthen the role of *Komnas Perempuan* so that *Komnas Perempuan* can assist the government in realizing gender mainstreaming in all aspects, especially in the criminal justice system.

Based on the introduction that has been described above, the author is interested in reviewing the role of *Komnas Perempuan* in gender mainstreaming in the criminal justice system and what policies can be taken to strengthen the role of *Komnas Perempuan* itself.

Discussion

The Importance of Gender Mainstreaming in the Criminal Justice System

To find out what is the importance of gender mainstreaming, one must first be understood the meaning and concept of gender itself. Gender is fundamentally different from gender. In principle, gender races on the roles and responsibilities of a person, both as men and as women. Meanwhile, gender refers to the biological condition of a person which is absolute and cannot be exchanged.

Gender can be interpreted as differentiating roles, responsibilities, behaviors, and attributes that grow and develop in society. Society is the one who judges the appropriate behavior of a person based on gender because gender is included in the culture of society. Therefore, understanding related to gender has been internalized in habits and social life in society.

In society, men are depicted as masculine, strong, and firm, so that men are considered to have the role of head of the household. In contrast to men, women are depicted as feminine, gentle, emotional, and obedient so that the role of women is as housewives.

Based on this description, the term gender stereotype appears. Gender stereotyping is labeling a person according to gender. Gender stereotypes are very influential on the patriarchal system that develops in society and becomes a social construction. This social construction can harm women because women are considered weak and do not have power. Women are only considered to have interests in the private sphere, not the

public sphere.

Then, the consequences of gender stereotypes will affect women's lives. Not infrequently, women experience a treatment that seems to marginalize women, such as discrimination, marginalization, subordination, and so on. This treatment can be experienced by women in all aspects, including in the justice system.

In the justice system, gender-biased treatment is experienced by women in conflict with the law. However, in practice, not all women in conflict with the law can receive their rights properly. Often, women who are victims of violence cannot access justice because of their weak position.

The things experienced by women who conflict with the law are proof that the judicial system and its Law Enforcement Officials (APH) do not have gender sensitivity. Referring to this, it is fitting for the state to protect women's rights in the justice system by issuing policies whose main focus is gender mainstreaming.

According to the Big Indonesian Dictionary (KBBI), gender mainstreaming is a strategy that is carried out systematically to achieve and realize gender equality and justice in several aspects of human life. From this definition, it is clear that the goal of gender mainstreaming is gender equality and justice. Gender equality is the equality of conditions between men and women in obtaining their rights in all aspects of life, while gender justice is a process and fair treatment of men and women.[2]

Thus, gender is an important thing that should not be ignored in several aspects of life, including the justice system. Gender and gender mainstreaming in the justice system are important due to several things that will be explained as follows.[3]

First, as a state guarantee to fulfill their responsibilities according to international law and to improve the protection of women's human rights (HAM). The agreement related to women's human rights obliges the state to fulfill it. Fulfilling these obligations can be in the form of making laws, policies, or programs with a gender perspective.

Women's human rights are part of Human Rights (HAM) that must be protected. This is by the main principles of the CEDAW Convention to fight for gender equality and justice, namely the principle of substantive equality, the principle of non-discrimination, and the principle of state obligations.[4]

The substantive approach deals with measures that focus on the realization and equality of men and women both in terms of opportunity and access. The principle of non-discrimination is related to the

assurance from the state that any decisions or policies made in law do not discriminate against women. Meanwhile, the principle of state obligations includes all state obligations in fighting for gender equality and justice, such as guaranteeing women's rights through both de jure and de facto laws, realizing women's rights, creating a competent justice system, and protecting women from discrimination.

Second, build public trust in the justice system and ensure equal access to justice. Public trust is important so that gender mainstreaming can be carried out. This trust must also be accompanied by good cooperation as well. If the community believes in its own judicial system, likely, the community will not find a way to solve the problem by taking justice into its own hands.

Then, from the law enforcement side, it must also reflect services that can represent the needs of the community. In terms of gender mainstreaming, the community's need is to ensure and protect women's human rights properly and that women can access justice. For this reason, a role for women law enforcers is needed to strengthen the legitimacy and fight for issues of gender equality and justice in the justice sector.

Fourth, eliminate gender-biased laws. So far, many cases involving women as victims have only resulted in peace or in a family way. This is due to the lack of gender sensitivity of law enforcers. Lack of gender sensitivity from law enforcers then makes women seem to be at a weak point and it seems that women find it difficult to access justice.

If law enforcers have gender sensitivity in carrying out their duties, in the future the law will run well by the aspirations of society. Gender sensitivity can also eliminate gender-biased laws and increase public trust in the justice system.

Fifth, strengthen supervision and monitoring of the justice system. Supervision and monitoring are essential to support justice reform. Supervision and monitoring can be carried out by institutions that are full of gender issues, social community organizations (NGOs), or communities that fight for gender equality and justice and civil society.

The existence of surveillance and monitoring from various parties can help to highlight signs of problems and non-compliance of law enforcers with the law itself. All parties can also ensure that the judicial process runs well.

Policies related to Strengthening the Role of Komnas Perempuan in the Criminal Justice System

To be able to realize gender mainstreaming policies in any field, of course, requires assistance and support from various parties. Gender

mainstreaming will not materialize if there is no awareness of the parties involved. In the justice system, gender mainstreaming is basically the responsibility of the state. However, the state cannot make it happen if there is no assistance from state institutions. One of the state institutions that can help achieve gender mainstreaming is the National Commission on Violence against Women (*Komnas Perempuan*).

Komnas Perempuan is an independent state institution for upholding the human rights of Indonesian women. This institution was formed on October 9, 1998, through Presidential Decree No. 181 of 1998 was later strengthened by Presidential Regulation No. 65 of 2005. As the name implies, *Komnas Perempuan's* main task is to eliminate violence against women as well as to protect women's human rights.

Also, *Komnas Perempuan* has several roles, namely: (a) to monitor and report gender-based human rights violations and the conditions for fulfilling the rights of women victims; (b) as a knowledge center related to women's human rights; (c) triggers for change and policy formulation; (d) negotiators and mediators between the government and communities of victims and communities of women's rights defenders; and (e) as a facilitator for the development and strengthening of networks from the local, regional, national and international levels related to the interests of prevention, capacity building to handle and eliminate all forms of violence against women.[5]

However, even though it has been established for more than 2 decades, the role of *Komnas Perempuan* in fighting for and protecting women's human rights is considered ineffective considering that the number of violence that occurs is increasing every year. However, the ineffective role of *Komnas Perempuan* cannot be separated from the problems that exist within the institution. *Komnas Perempuan* is considered to have several weaknesses that actually need strengthening from the state, especially in the judiciary.

Therefore, the state needs to strengthen the role of *Komnas Perempuan*, especially in the criminal justice system so that *Komnas Perempuan* can carry out its duties and roles properly. Strengthening the role of *Komnas Perempuan* can also be considered as a form of gender mainstreaming policy in the criminal justice system. Strengthening the role of *Komnas Perempuan* can be carried out from several aspects such as the independence of *Komnas Perempuan's* institution, *Komnas Perempuan's* jurisdiction and authority, access to cooperation, and resource support.[6]

First, *Komnas Perempuan* is basically an independent institution, but in reality, *Komnas Perempuan* is not truly independent. This is because *Komnas Perempuan's* legal basis has not been optimal as an institution that fights for gender equality and justice. The legal basis for the formation of *Komnas Perempuan* is the Presidential Decree, which is a legal basis that is vulnerable because the Presidential Decree can be revoked at any time by the president.

The not yet optimal legal basis has made *Komnas Perempuan's* position unequal to that of the executive, legislative, and judiciary bodies. In fact, strengthening the legal basis will have several positive impacts, among others, *Komnas Perempuan* will have stronger bargaining power in negotiating laws with a gender perspective, can encourage the making and supervision of public policies related to women, and conduct investigations into cases involving women.[7]

Second, related to the jurisdiction and authority of *Komnas Perempuan*. This institution needs to be given authority related to the criminal justice system. This authority can be in the form of a mandate to carry out investigations and examinations of cases involving women so that *Komnas Perempuan* can take part in handling and providing optimal protection of women's human rights against women in conflict with the law.

Ketiga, penguatan peran *Komnas Perempuan* dapat berupa kemudahan akses oleh publik, Third, strengthening the role of *Komnas Perempuan* can be in the form of easy access by the public, especially for women in conflict with the law. This is because women in conflict with the law really need advocacy from *Komnas Perempuan*. The ease of access is also intended for other institutions that wish to collaborate with *Komnas Perempuan*. This ease of access must be in line with the existence of *Komnas Perempuan* in society so that women in conflict with the law are not blind in seeking advocacy assistance.

Fourth, *Komnas Perempuan's* role in the criminal justice system cannot be separated from the support of resources. Resource support can be in the form of human resources, budget, and infrastructure so that *Komnas Perempuan* can perform its role optimally. If the support of these resources is adequate, then in the future the quality and efficiency of *Komnas Perempuan* will be taken into account by the public which will then have an impact on increasing public confidence in *Komnas Perempuan* to become part of the criminal justice system.

Some of the aspects mentioned above can be realized by reforming norms related to the granting of authority to *Komnas Perempuan* in addressing cases of gender-based violence. A legal basis related to the authority of *Komnas Perempuan* is needed. This authority includes the power to consult and negotiate legislation, guide and supervise the making of public policies related to gender-based violence, to take part in investigations, investigations, and prosecutions.

The authority and mandate obtained by *Komnas Perempuan* can be formulated in full in the form of laws. This is because the law is the main source of law as well as the strongest. With the provision of authority and mandate to *Komnas Perempuan*, *Komnas Perempuan* will be able to play an active role in helping the government in handling various cases of sexual violence. Also, strengthening the role of *Komnas Perempuan* can assist the government in realizing a gender-just criminal justice system as well as improving the situation of protection for women.

Conclusion

Some of the reasons for the importance of gender mainstreaming in the criminal justice system, namely as state guarantees to fulfill responsibilities under international law, build public trust in the justice system and ensure equal access to justice, reform the justice system, and improve the protection of human rights, abolish laws that gender bias and strengthening oversight and monitoring of the justice system.

Strengthening the role of *Komnas Perempuan* can be realized by reforming norms related to the granting of authority and mandate to *Komnas Perempuan*. This authority and mandate can take the form of consultation and negotiation of legislation, guiding and overseeing the making of public policies related to gender-based violence, to taking part in investigations, investigations, and prosecutions of cases involving women. This authority and mandate can be formulated in full in the form of a law. This renewal and strengthening of the legal foundation will greatly affect the procedural aspects of *Komnas Perempuan* in addressing cases and supporting gender mainstreaming in the criminal justice system.

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The employment of Land Husbandry in farmer groups towards Agro-community development

Eny Dyah Yuniwati[1]

Introduction

Land husbandry refers to a conservation treatment toward an agricultural land with lower fertility through organic agriculture plantation to improve fertility and productivity. This treatment is mainly needed on agricultural lands with soil degradation and low fertility. Soil degradation has always been an issue overtime, which undergoes a faster pace compared to the previous period. In fact, reliable soil conservation technologies are available today with technical and economic feasibilities. However, only a few has adopted this technology. Apart from inaccurate assembly and technology transfer, mistakes in approaches and paradigms also cause failures in the conservation programs so far.

The c onventional c onservation p aradigm m ainly f ocuses o n t he measurement to reduce soil loss due to runoff and erosion. Hence, the velocity is less than the rate of soil formation, and cannot increase soil productivity. Accordingly [1], attempts on soil conservation have been focused on keeping the soil from being damaged do not fit farmers' needs. In this case, the farmers' objectives in agricultural cultivation is to maximize harvesting by increasing agricultural yields in a sustainable manner.

Studies have shown that soil loss is highly associated with reduced production. However, this is not an immediate cause as observed by farmers. Soils with thick solum, for example, does not decrease in production as experienced by cassava farmers in Kromengan, Malang [2]. Similar cases are reported in organic paddy plants in Bareng, Jombang [3] [4]. These phenomena call for a new paradigm as proposed by conservation experts in the efforts of soil conservation.

Accordingly, land husbandry is introduced based on farmers' goals in agricultural cultivation to maximize harvesting and income in a sustainable manner [5]. Being "sustainable" is highlighted as any technology to conserve soil must be ongoing. Farmers are less likely to adapt technology that is incapable of increasing harvest. In this case, productivity is related

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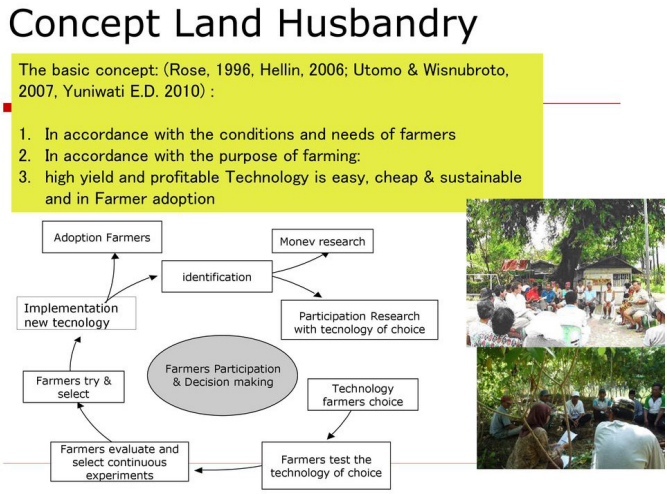
to soil quality, which can be measure through soil quality index.

Land husbandry emphasizes the importance of managing soil quality as a holistic and practical maintenance framework in soil quality improvement [6]. This method also aims to resolve farmers' problems on decreased productivity caused by erosion and high runoff. Land husbandry employs the technology of soil conservation transfer. Such technology selection can assist farmers to increase broad-based production and improve soil conservation in sustainable land use systems [7].

Technically, the involving factors in land husbandry management are rain, vegetation, slopes, and soil. Slopes and soil are required collectively and individually to increase productivity and conservation. In addition, land husbandry requires a combination of agronomic, biological and mechanical management [1][8].



Although land husbandry primarily focuses on improving soil quality, it also aims to achieve a self-sustaining soil quality improvement system. It employs soil management with the use of organic matter and soil organisms. Additionally, land husbandry aims to improve soil conditions, especially soil physical properties, chemistry, soil biology and hydrology for root growth, transmission and water retention. Land husbandry conveys a "conservation" mission in the long term natural resources [9][10].

Offering a new concept of holistic and comprehensive land conservation, land husbandry covers a combination of handling technical, social, economic, and cultural issues. There are 3 main keys of land husbandry, named in:

1. Farmers' objectives in cultivating agricultural crops is to obtain sustainable maximum harvesting;
2. agricultural crop yields that are related to soil quality. In this case, soil quality is the key to successful land maintenance; and
3. farmers as the main actor in the land maintenance work. Therefore, the success of land maintenance lies on farmers, who should be treated as active actors during problem recognition, formulating alternative solutions, testing alternative solutions, and the selection of adoption of technology.

Apart from these three keys, the provision of infrastructure, markets, and culture should also be taken into accounts [7].

Discussion

Land husbandry was once practiced by [11] through a participatory research in Malang, Indonesia. It was found that sustainable soil management requires erosion control through technology transfer, in which the erosion control is carried out by cover crops plantation. Land cover plantation includes grass selection with 90% cover, which functions to reduce erosion that meet farmers' needs.

It is recommended that [12] proper land maintenance likely changes the attitude of local farming community, farmer groups, and target groups. This is mainly because they realize that sole terracing cannot increase production without additional organic and non-norganic fertilizers. Land maintenance implemented by the local farmers used the village as a holistic planning, which land is associated with six aspects that include: 1) assessment; 2) soil fertility; 3) increased phosphor; 4) increased harvest to 70% of the area unit; 5) changes in farmers' attitudes; and 6) further improvements of proper land maintenance.

Indeed, a holistic and simultaneous management is required to implement land maintenance in farmers' areas. This can be done by inviting indigenous people to a rapid participatory assessment. The planning of agricultural land use through this program aims to underlie the effective resources, improvement, and utilization without being linked to the principle of resource utilization of indigenous peoples [1], [13][14].

Problems of Land Husbandry

The realization of land husbandry concept requires descriptions in partner problems and partner priority problems. Similar to community service, an analysis on partners' situation is necessary. The data can be obtained through several methodologies used, such as in-depth interview, social partner mapping, and partner territorial mapping. Such mappings

will identify partners' priority problems (farmer groups). The identified problems based on the results on mentoring toward organic rice farmer groups in Jombang include:

1. Low community empowerment
   It is often found among larger farmer groups for superior programs that are transferred to smaller groups. For example, an integrated and sustainable land conservation program about decreased soil fertility did not provide adequate technological innovations that support sustainable technology transfer for farmers.
2. Low human resources
   Adequate human resources in farmer partner groups and farmer groups are critical to the success of community empowerment. In the practice of land husbandry, the increase of agricultural output does not only lie on the production factor, but also on the teamwork factor to run the program and transfer the technology.
3. Low optimization of local resources
   Local resources to improve agricultural crops and land conservation are poorly done because farmers have usually been doing conventional cultivation over years without innovation. In fertilization, farmers are highly dependent on non-organic fertilizers. When these fertilizers reach its culmination point, the dosage used is already too high, so that the crop rate decreases. It is suggested that farmers shift to local resources with organic fertilizers.
4. Lack of educational facilities and infrastructure
   The availability of working facilities and infrastructure is considered low despite their importance to increase crop rates. Hence, improvements are necessary, especially input facilities and output infrastructure.
5. Low optimization of institutional roles
   The institutions play a critical role in a program success, but more often than not, institutions hamper the success of various programs. In villages and cities, managing institutions are merely symbols of authority; they are not actively involved in rural programs, community empowerment, or technology implementation.
6. Low innovation of technology
   Often, villages experience lacking of technology innovation. This can be avoided when there is government funding. Unfortunately, government programs often stop at the socialization and announcement without meaningful implementation or follow-up activities. This is among the reasons why agricultural technology is underdeveloped. Land husbandry is introduced as a quick solution of technology transfer for farmers.

7. Lack of service development
   There are lacking of technical services on agricultural production, land conservation, soil fertility improvement, and community empowerment [23].

Solutions

Based on the identified problems, land husbandry was put forward based on [15]:

1. farmers' needs and conditions;
2. agricultural purposes; and
3. the adoption of easy, cheap, and sustainable technology to increase crops.

Hence, the following solutions are offered:

1. Community empowerment
   It is an integrated sustainable land conservation program that involves community as active actors instead of activity objects. In this case, the land conservation program refers to area development activities carried out in stages. Farmer groups in the targeted area plays a pivotal role in the spread of technology to continuously improve towards independency [16][17].
2. Human resources development
   The improvement of quality human resources (HR) is important for an integrated and sustainable land conservation. This is because HR in agricultural development plays in the factor of production, and also as direct actors of program development [18]. The development of HR and teamwork aims to allow access into the existing institutions in upstream, downstream, farming, and support systems [19].
3. Optimization of local natural resources
   Domestic resources in the target area must be optimally utilized to achieve integrated and sustainable land conservation activities, particularly organic agriculture. Natural resources need to be preserved, including the expansion of "resource-based" of domestic resources and their optimal use. These are based on the land capacity, regional capability, technology, and also efficiency and availability of facilities and infrastructure [20].
4. Development and maintenance of education and infrastructure
   The development of infrastructure is inextricable from the other sectors. To establish a strong relationship, an improvement in the coordination is required during regular meetings that include:
   a. Investment in education and infrastructure facilities
   b. Agricultural performance as an input for land conservation

c. Strengthening institutions, services, and profitable joint ventures.

5. Institutional development

   Strong rural farmer institutions can strengthen community institutions. It calls for an effective approach where farmers can take advantage of existing programs in a sustainable manner. Additionally, it can foster a sense of belonging, participation and creativity, along with other community support where all rural farming communities can develop together. This effort is mainly directed towards the formation of farmer groups, the work among farmer groups, as well as the formation of productive groups to cooperate in organic agriculture. Institutional development focuses on building market access, capital, technology, information, and HR development to welcome the global market. These activities are expected to facilitate farmers' interaction to enhance, strengthen, and support each other. Ultimately, the targeted farmers can increase their skills and knowledge to manage the system in a potential and sustainable manner [21].

6. Technology development

   It is previously argued that the land conservation program must be carried out in an integrated and comprehensive manner. However, the program may not be implemented in a single large area. The preference of location is critical to determine sustainable technology dissemination and land conservation, which will be carried out independently by community groups in an area. Hence, it is necessary to choose the most appropriate and applicable technology and to yield impact in a short period of time where the community is capable of deploying technology independently to improve land conditions [22][11]. The most suitable technology nowadays is biochar, which is applied following the biophysical conditions and area potential for sustainable land conservation [23].

7. Service development

   Agricultural technical services are necessary to optimize the development of conservation areas that are sustainable.

The methodology of Land Husbandry

The empowerment of land husbandry towards Agro-community development requires several methodologies based on the priority problems of partners and the program solutions offered, described as follows:

1. Community education

   It refers to building socialization and outreaching programs to partners prior to the implementation of the program.

2. Training

The program includes several trainings that fit farmers' priority issues. In example, making solid fertilizers, liquid fertilizers, organic pesticides, and biochar as the soil amendment materials to improve soil fertility.

3. Introduction tool
   The provision of tools and technology to partners, as a result of mentoring and training, is expected to make partners be able to use the tools on their own.
4. Group assistance
   Group assistance is required, especially regarding the optimization of the institution. This includes assistance in using tools if the partner group requests.
5. Initiation of online marketing and market places
   Online marketing initiation is needed to facilitate the marketing of agricultural products. Especially during current pandemic, the manufacture and registration of agricultural products through online scheme is very helpful in product distribution. Mentors can also provide training in marketplace apps considering online marketing activities. Online marketing is useful to shorten the flow of fresh produce from farmers to consumers where the goods are in a good condition. This method is also applicable for value added products, like chips and crackers.
6. Evaluation of program sustainability
   Evaluation is carried out to determine the sustainability of the program when the program is finished, or the partner is carrying out and continuing the program. This is also useful to identify the condition in pre- and post-mentoring. The companion can distribute surveys to partners.

The details are provided in the chart below:

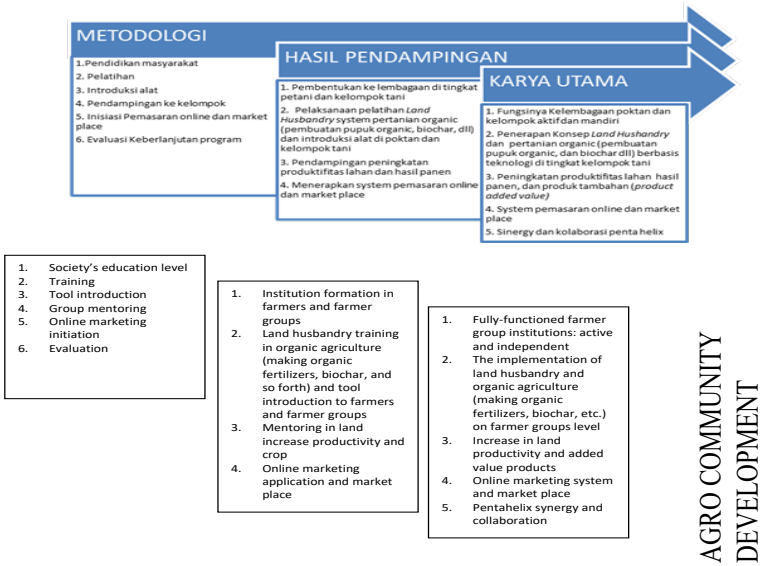


Figure 1. The methodology of "Land Husbandy" empowermenttowards Agro-Community Development

Results

After the implementation of activities and programs of land husbandry empowerment, the following results were obtained:

1. Establishment of institutions at the farmer and farmer groups levels
   The establishment of institutions is the key to optimize the facilitation of the program and technology transfer. The supporting activities were provided by assistants to farmer groups or village partners. Prior to the introduction of land husbandry, the establishment of institutions and technology adoption were carried out to manage local institutions (such as *gapoktan, bumdes,* and farmer groups) as a form of public empowerment. As a result, the structured management of technology adoptions would facilitate coordination with farmers and communities, rather through individual farmers or partners instead. This was done to avoid problems within the community itself.
2. Training on organic farming system (making organic fertilizer and biochar) and introducing tools to farmer groups.
   In response to the identified problems, several trainings about land husbandry were carried out together with group partners. The training focused on organic farming systems, for example, making solid organic fertilizers, organic liquid fertilizers, organic pesticides, and making

biochar from plant waste and other materials. The trainings were given in partner groups in the hope that partners would be able to make it on their own, and use it in their farming practices. If the partner group could implement their cultivation regularly, it could be concluded that the land husbandry was successful. The soil fertility was maintenanced, the land was improved, and the soil quality was increased, so any plants will survive. This is in accordance with the concept of land husbandry to maintain soil fertility and increase crop yields [24].

3. Assistance to increase land productivity and crop yields
   Upon completion of several trainings, assistance was provided to increase land productivity and crop yields. This was important because farmers were often reluctant to apply the skills and knowledge from the training. For example, using 100% organic fertilizers and not blended it with inorganic fertilizers, and using organic pesticides instead of inorganic pesticides. Despite of the training, farmers' behaviours were not easy to change. Continuous assistance were required in terms of technology use until the soil fertility, land quality, and cop yield increase. This is in line with the concept of land husbandry when the introduced technology was adopted by cassava farmers continuously for 3 years. The results have increased significantly, including positive changes in soil properties (physical and chemical). However, it took up to 2 years of assistance to the cassava farmer groups [25].
   Similar results were shown in Jombang when a farmer group applied land husbandry in organic rice. The assistance was given in making solid and liquid organic fertilizers, and organic pesticides in the first year, which included technology adoption. However, it did not result well and showed a crop yield decrease. The assistance was continued until the 3rd year, in which it showed a different result. The farmers and farmer groups did not show changes in technology behaviours, hence regular assistance was required. Organic rice yields have also been certified with a planned area of 25 hectares, and only 7 hectares have been realized during the first 3 years [3].
4. The implementation of online marketing system and market place
   During current Covid-19 pandemic, marketing methods have changed completely following the new normal. Agricultural marketing, accordingly, must be able to transform changes in the marketing behavior to online marketing based on "market place". In land husbandry, the empowerment to assist farmer groups will be given when the agricultural products are ready to market. The local institutions, such as *bumdes* and *gapoktan* must be trained on online marketing to keep up with changes

in the new era. This is critical so that farmers can survive, get income, and maintain stable income from their agricultural products [26].

Main Work

The main works obtained from the empowerment of land husbandry towards Agro-community development include:

1. The function of farmer groups as active and independent groups.
2. The implementation of land husbandry concept and organic agriculture (making organic fertilizers, biochar, etc.) and introduction of tools in farmer groups.
3. Increased productivity of harvested land and value-added products.
4. Online marketing system and market place.
5. Pentahelix synergy and collaboration.

These five main works must be applied in a simultaneous and sustainable empowerment in group/ village partners, so that the program can run well and strengthen each other. Institutions and farmer partners also play a critical role, in which the empowerment of land husbandry can advance and prosper farmers towards leading villages.

Conclusion

In conclusion, the empowerment of land husbandry towards Agro-community development requires:

1. Socialization of the land husbandry concept (organic farming) to the farmer communities to accelerate Agro-community development
2. Village-based approach by agricultural academics and community assistants
3. Farmers as program subjects who understand their priority issues
4. Recommendations in creating an Agro-community development movement for all Indonesian agricultural communities.

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Reconvention in Administrative Law Enforcement

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Introduction

The independence of judicial power as mandated by the amended 1945 Constitution and Law No. 48/2009 concerning Judicial Power. Juridically, it will run more easily if it is supported by good judicial administration. The administrative court is one of the executors of judicial power for the people who seek justice over administrative disputes regulated in Law No. 5 of 1986 which has been replaced and recently added by Law No. 51 of 2009 concerning State Administrative Courts.[1]

The Surabaya State Administrative Law Council as the front guard of the Supreme Court (doorpost) in the region has the main task and is to accept, check, decide and resolve all administrative disputes in the jurisdiction of the Surabaya State Administrative Law Council, covering East Java Province, universally policies implemented by the Surabaya State Administrative Law Council in carrying out all activities related to the interests of the preliminary judiciary with administrative, financial and organizational characteristics.[1]

Sourced from Article 1 number 4 of Law No.5 of 1986 concerning State Administrative Courts, which is defined as a State Administrative Dispute is a dispute that has arisen in the field of State Administration between a person or a civil legal body with a State Administrative Body or Official, both at the center. or in the region, as if the result of the issuance of a State Administration Decree, it is stated that the employment dispute originates from the prevailing laws and regulations.

In the second replacement through Law Number. 51 of 2009 the definition of PTUN disputes is in Article 1 number 10 of the Law, the same definition only changes to the role of numbers that originally existed in Article 1 number 4 of Law 5/1986, changed to Article 1 number 10 in Law 51/2009.[2]

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Conclusion

Legal Subjects and Objects of Administrative Disputes

Based on the requirements of Article 53 paragraph (1) in conjunction with Article 1 number 4 in conjunction with Article 3 of Law Number. 5 of 1986, the objects of PTUN are in the form of state administrative disputes, including:

Article 1 point 3: A State Administrative Decree is a written stipulation issued by a State Administrative Body or Official containing legal action on State Administration originating from the prevailing laws and regulations, which have a concrete, individual and final character, which gives rise to legal consequences for a person or a civil legal body. [3]

Article 3 of Law Number. 5/1986, among others:

a. If the State Administration Agency or Official does not produce a decision, on the contrary, this matter becomes their obligation, so that the matter is equated with a State Administrative Decree.
b. If a State Administration Agency or Official does not produce the requested decision, on the other hand, the time frame as stipulated in the information on laws and regulations are interpreted as having passed, until the Body or State Administrative Official is thought to have refused to produce an interpreted decision.
c. In the matter of statutory regulations concerned do not confirm the time period as defined in paragraph (2) until after a period of 4 months has passed since the application is received, the State Administration Agency or Official concerned is thought to have resulted in a decision to refuse.

PTUN subject

If you look at the object of the PTUN Dispute above, the subject of PTUN consists of parties in litigation, the litigant is a person or civil legal body who feels aggrieved by the Body or State Administrative Officials, either at the center or in the region, as a result of the issuance of an Administrative Decree. Country.

Plaintiff

If you look at the PTUN subject above and come from Article 53 paragraph (1) in conjunction with Article 1 number 4 Law Number. 5 of 1986, the Plaintiff in PTUN Issues is a legal subject, either a person or a civil legal entity who feels that his interests have been harmed by a State Administrative Decree, can file a written lawsuit to the competent legal council containing demands that the disputed State Administrative

Decree be declared null and void or not legal, with or without a claim for compensation and/or rehabilitation.[2]

Defendant

If you look at the legal subject above, as well as the definition of the PTUN dispute in Article 1 number 4 of Law Number. 5 of 1986, the Defendant is a State Administrative Body or Officer, both at the central and regional levels, who issued a State Administration Decree and was deemed to be harmful by a person or legal entity (Plaintiff).

Sourced in Article 83 of Law Number. 5 of 1986, it is said that "As long as the checking takes place, each person with an interest in the dispute of the other party which is being considered by the judiciary, either on their own initiative by submitting a petition, or on the judge's initiative, can enter into a State Administration dispute, and play a role as a) parties who defend their rights; or; b) participants who join one of the disputing parties.[4]

The respective interested persons in Article 83 of Law Number. 5 of 1986, it is said that "a third party who has not been able to participate and/or be included during the time of checking the dispute concerned is for the conditions of Article 83 and he is afraid that his interests will be harmed by the implementation of a verdict that has received a legal force that can always file a lawsuit against the application of the Assembly's verdict. the law to the judiciary which adjudicates the dispute at an early stage ". In general, the legal subjects in an administrative dispute consist of Plaintiff and Defendant. In contrast to the Defendant's specific authentic criteria contained in the provisions of Article 1 point, 12 of the Administrative Law, namely "State administrative body/official who created the decision, and after that was sued", the criteria and classification of the new Plaintiff can be traced systematically and grammatically in the provisions of Article 53 paragraph (1) of the Administrative Court Law, which informs: "Individuals or civil legal entities…., can file a lawsuit…".

Identification of the Defendant is a State Administration Agency / Officer, and a Plaintiff is a Person or Civil Legal Entity, of course, has been embedded in the minds and minds of administrative law practitioners. Regarding this, of course, it is not wrong, because normatively and in terms of implementation of the principles of administrative law, a contrario wants to think that the criteria for the Plaintiff or Defendant are unusual, not only what has been indoctrinated for a long time. Even though in fact, there are also norms that provide an extensive meaning to the criteria for the Plaintiff or Defendant, namely as contextually contained

in the provisions of Article 83 of the Administrative Court Law, and after that termed the Technical Guidelines for Administrative and Technical Administrative Courts (Novel II).) sourced from the explanation of the Article, as an Intervention Party. [3]

Until, from the norms contained in the Administrative Court Law, there are at least 2 legal subjects (parties) and a maximum of 3 legal subjects (parties) in an administrative dispute which is judged by the State Administrative Court, namely the Defendant, Plaintiff, and Intervention..

The determination of the legal position of the legal subjects is based on their respective legal standing, namely:[3]

1. State Administration Agency / Official, as if the Defendant has legal standing in a state administrative dispute because the legal product is being sued and requested to be declared null and void;
2. Individuals and civil legal entities like the Plaintiff have legal standing because the issuance of a state administrative decision (which subsequently becomes the object of the lawsuit) is thought to have harmed their interests. Not only that, the author thinks that if 3 other matters accumulatively must be a prerequisite for the emergence of these interests, namely there is a causal link from the issuance of a decision with a sticking out loss, there is a legal / interest that is uniform / equal, especially conflicting between the contained in the decision with the aggrieved interest, and the existence of such decision has directly obstructed, reduced, or eliminated certain legal interests/ties;
3. The person with an interest is like an intervention, has a legal standing, which is a combination of the Defendant's legal standing in terms of maintaining the validity of the defendant's decision, as well as the Plaintiff's legal standing, namely the expertise / it could be that there is a uniform / equal legal / interest, especially when it comes to conflicts between the contained in the decision with the Plaintiff's legal action (filing a lawsuit), as well as the expertise if the Plaintiff's legal action (filing a lawsuit) can directly obstruct, reduce, or eliminate his legal interests/ties as stated in the defendant's decision;

Decision Validity Testing

In the old paradigm regarding administrative disputes, the scope of testing attempted by the Administrative Courts only lies in the validity of a state administrative decision. Regarding this, it is still an imprint until now, although normatively Law Number 30 of 2014 concerning Government Administration has broadened the scope of study and testing of legality, so it is not only administrative decisions, so also administrative actions.[5]

Regarding that which is comparable to that, is the limited concept of thought regarding the test that the Administrative Judge intends and intends to try when resolving an administrative dispute. A decision that is contained explicitly in a lawsuit, and the state administrative body/official that issues it, so one of the objects and subjects is tested and its validity is proven in checking the dispute.

Very absent 2 Regarding the subject which is used as "unwritten limitation" in the administrative dispute checking application relating to that, namely, early if there is no possible counterclaim (reconciliation) in the examination, and second, it is not permissible for a decision that exceeds what is requested for. disconnected.

Early on, counterclaim (reconvention) in administrative disputes is neither universal nor logical, because it would be absurd when the state administrative body/officials sue the civil legal person/entity that first sued. One of the logical alibis is that formerly the object of dispute in an administrative dispute is a state administrative decision, which is only the domain of the state administrative body/official to issue it, resulting in a case if the state administrative body/official wants to sue counter (reconvention), what is going to be sued and what is the object of the dispute?

However, because the administrative dispute checking process did not only link the Plaintiff (civil person / legal entity) and the Defendant (state administrative body/official), but also other interested parties (Intervention), it was also possible that the intervention party questioned/ countering the validity of the decision and legal standing on which the Plaintiff filed the lawsuit ?. So, logically the law could also actually challenge Plaintiff's decision.[2]

Second, can the non-ultra petita principle in enforcing civil law automatically apply and apply when administrative law enforcement is tried?

A limited examination of special state administrative decisions, developed from the doctrine of Civil Judges who are prohibited from making decisions beyond what is requested by the Parties as stipulated in Articles 178 of the HIR and 189 Rbg, namely Judges are prohibited from making decisions regarding matters that are not requested to be decided or made to decide. more than asked to be cut off.

Related to this, the rule of law that may not often be used as a reference by Administrative Judges is as stated in one of the jurisprudence, namely the Supreme Court Decision Number 5 K / TUN / 1992, simultaneously

on January 21, 1993, where one of the legal considerations contains rules and annotations, which basically have the core: "When the decision of the body or the official has deviated from the existing provisions, the PTUN Judge is obliged to decide to cancel the decision being challenged, even though the Plaintiff has not requested to decide this matter himself"[3]

As a consequence of allowing ultra petita in the decision of the Administrative Court, doctrinally it is possible that a decision that is detrimental or reduces the legal interest of the Plaintiff himself, compared to when the lawsuit was filed and reviewed by the judiciary (reformation in peius). Regarding substantially, it would be considered pragmatic when faced with reality if the objective of a legal subject is to sue, is to bring up things that are favorable to him, not even detrimental to him.

In contrast to the duties of the General Courts and the Religious Courts, Article 47 of Law Number 5 the Year 1986 clearly informs that the State Administrative Law Council, not only has the duty and authority to check, decide, but also resolve State Administration disputes. So that contextually, the purpose of checking in the legal counsel is not only ending when making decisions, more than that, the primary purpose is to resolve state administrative disputes, to completion.

In such "resolving" phase for writers, there is another specificity of Administrative Judiciary, namely correcting if the decisions it produces can correct the whole series of administration that does not conflict with or cause new legal problems, there are elements not only what has been considered the main point of checking. disputes, in other words, also includes testing the legality of other administrative decisions/actions, which have the potential to hinder the resolution of administrative disputes.

In this context, it is in line with the rule of law in jurisprudence mentioned above, until a way out to correct the absence of legal conflicts or obstacles in the implementation of later decisions, as well as for the formation of legal order (recorder) between the procedural-substantial series that covers checking an administrative dispute, is to expand the scope of testing in which the Administrative Judge can objectively and measurably think about other matters which are directly related to checking the principal of administrative disputes.

Simple and Just Justice Concept

One of the main principles of good justice is a simple, fast, and low-cost examination. This has also become normalized in the provisions of Article 2 paragraph (4) of Law Number 48 of 2009 concerning Judicial Power. Administrative disputes which doctrinally do not allow

reconciliation in their examination are logical and commonplace when the parties involved in the dispute are only the Plaintiff (individual / civil legal entity) and the Defendant (state administrative body/official). However, it remains logical and even fulfills the simple and fast, even low-cost principle of justice, if there is an Intervention party (a person or civil legal entity) whose decision is being sued by the Plaintiff, where both (Plaintiff and Defendant II Intervene) equally have decisions that have the substance of the same, similar or even contradictory matters and interests of the law.

Evidence regarding the validity of the two decisions issued by Defendant simultaneously will be more effective and efficient when compared to the Intervention Plaintiff and Defendant II then suing each other in 2 lawsuit numbers with different registers.

The thing that could potentially arise from the counterclaim is the changing nature of the parallel/alignment of interests between Defendant and Intervening Defendant II. When each decision (owned by the Plaintiff and Defendant II Intervention) was then tested for its validity, then in the reconstruction, the interests of Defendant II Intervention would not be parallel/parallel to the interests of the Defendant, instead, the Plaintiff would shift its interests to be parallel/parallel to the Defendant. So that within certain limits, Defendant was an entirely independent party, because the two decisions that were (possibly) issued were both tested for their validity.[2]

In disputes with certain classifications, where 2 (or more) administrative decisions can be issued together, it is more likely that the two (two) validity tests are carried out simultaneously, as well as shorten the testing process and prevent disparities and even inconsistencies in the validity of statements that may arise when the test is conducted. done independently (separately).

The classification of administrative disputes is, for example, in the case of:

1. Land Administration, where testing the validity of land title certificates, decrees issued by the National Land Agency (and/or its subordinate agencies), or other land administration documents, which are specifically double (overlapping);
2. Personnel, there are 2 or more Decree on the determination of filling a certain position with different legal subjects;
3. Licensing, there are 2 or more Decree on licensing with different legal subjects;
4. and so on;

The starting point of the lawsuit by the Plaintiff, of course, comes from the existence of legal standing or legal position which feels disturbed/ aggrieved by the administrative decision that is being challenged. This test of the legal standing of the Plaintiff, which can then optionally be positioned as the basis for testing the validity of its decisions (which have legal interests equivalent, are similar to or contrary to other decisions being challenged), whether the issuance is by the laws and regulations and/or general principles of good governance or vice versa.[3]

Legal standing merely refers to the existence of a loss, with several measuring parameters as previously described, while the validity of the decision of the Plaintiff as referred to above, is the beginning or source of the existence of such legal standing. So that within certain limits (casuistically), the overall legal standing test can also contain a correlative test of the validity of the decision where the legal standing comes from.

Criteria and Limits of Reconvention Simultaneous testing of several decisions/actions that are legally contradictory in a state administrative dispute aim to find the material and substantial truth of a decision / administrative action that should have been carried out by a government legal entity, whether it is more appropriately addressed to the Plaintiff, or Defendant II Intervention.

The scope of the review of the test remains the same, namely the authoritative and procedural-substantial aspects of the decision (beschikking), it's just that by expanding the scope of the decision (beschikking), it becomes not only what the Plaintiff requested to be declared null and void.[5]

Coclusion

In the author's description, when such a conception is applied, it is in line with the requirements of Article 97 paragraph (7) of Law No. 5 of 1986, that there are 3 possible behaviors of the Panel of Judges towards the lawsuit filed:

1. The lawsuit is granted, by canceling/declared invalid the decision being challenged; or
2. Rejection of the lawsuit, as well as the trial itself by canceling or reporting the invalidity of the Plaintiff's decision (reformation in peius); or
3. The grant of the lawsuit, is the annulment of the challenged's decision, accompanied by the cancellation of the decision of the Plaintiff (ultra petita and/or reformation in peius):

Instantly, it is true that the type of verdict as criterion number 3 is not commonplace, because it eliminates the totality of administrative decisions

on certain matters, meaning that both the Plaintiff's and Defendant II Intervention's decisions are entirely declared null and void based on the results of legal considerations.

One of the conceptions to be formed is based on the probability of canceling the totality of the decision being disputed, which is the responsibility for justice, benefit, and legal certainty that is borne by the Administrative Judge. When there is a decision that does not match the aspect of justice, and it also disturbs the legal order (Recht order), until ex officio the Judge must straighten out and correct the matter.

For example, there is a double certificate on the same parcel of land, namely A (belonging to Defendant II of the Intervention and B (belonging to Plaintiff). filed, the Certificate B belonging to the Plaintiff also in fact has a juridical flaw. At that time, the author commented that both of these certificates must be canceled first, to "sterilize" the land parcel from the existence of the land rights base and share opportunities to the parties claiming have an interest or have to take (repeat) appropriate procedural returns in the issuance of a certificate by statutory regulations and universal principles of good governance.

To cancel one of the certificates which are legally flawed by allowing the existence of another certificate which is evidently also tested for the juridical flaw, for the author it has inconsistencies in the aspect of law enforcement which is not only obligatory about "of course the law", but is also obliged to be "fair" and "useful".

From this explanation, some prerequisites must be compacted so that reconciliation in administrative disputes is possible, namely:

1. There were other interested parties and/or Defendant II intervening in the dispute, not only the Plaintiff and Defendant;
2. There is a decision with legal interest content that is equal/proportional to the decision being challenged by each party (Plaintiff and Defendant II Intervening), such as the double certificate exemplified above;
3. There is trust from the Panel of Judges who check, overwrite the urgency of ultra petita and/or reformation in peius as described above, about legal order (Recht order) in the administration of the country concerned, or related to aspects of justice, benefits and certainty in law enforcement.

With the passing of Law No. 30/2014 on Government Administration, it is definitely appropriate to share a new paradigm in administrative law enforcement, both internally among government bodies/officials, and most importantly externally by the Administrative Court, which in this matter is followed up with a study on the reform of the Law of Activities. Administrative Judiciary.

This study, although its substance certainly still needs to be tested and studied carefully, it is hoped that it can become one of the proposed conceptions for updating and refining the Draft Law on Administrative Courts currently being drafted.

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The Concept of Equality Before the Law in the State Administrative Court in the Middle of a Pandemic in the Review of Perpu Number 1 of 2020 concerning State Financial Policy and Financial System Stability for Handling the 2019 Coronavirus Disease Pandemic (Covid-19)

Fais Mirwan Hamid[1]

Introduction

The conception of the principle of equality before the law (equality before the law), equality without discrimination, between the poor and rich or the ruler and the people of the law must really be able to be upheld to achieve justice for every human being on earth. How is the application of the concept of equality before the law in the state administrative court against government regulations instead of law number 1 of 2020 concerning state financial policies and financial system stability for handling the 2019 coronavirus disease pandemic (covid-19) and/or in the context of dealing with threats that are endangering the national economy and/or financial system stability (pepper 1/2020)? feel that they are not in favor of the aspects of society, how can an official get impunity regarding free policy making so that if something goes wrong in the future it will have a bad impact or abuse of authority and it is very contrary to the principle of the rule of law that the community should receive full attention so that the rights of life both materially and socially bias goes well. This is the principle of equality before the law. manifesting equality before the law in the state administrative court according to the wet sacred, the purpose of the state administrative court (pun) is to provide legal protection and legal certainty, not only for the people but also for state administration in the sense of maintaining and choosing a balance of interests society with individual interests [1] .

Discussion

The background of the birth of the principle of equality before the law as social creatures that live interacting with one another, being a good

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culture for the existence of love, affection and mutual respect is the key to a good life manifestation, the law is the only tool for maintaining order and comfort between people. The conditions of life before the first and second world wars provide a picture of how the power of a king or queen is the most respected and feared, because every policy issued to the people must be fulfilled, it seems impossible for justice seekers to feel peace in life. which then reminds us of the dark history of the Indonesian nation which has always been colored by the dynamics of a hard and struggling life, for centuries this nation was controlled by Dutch colonialists, and Japan made the meaning of legal justice very far away. how the colonizers ran their government with various kinds of slavery systems, taxes on the natives so that there was no humanizing treatment - humans at all [2].

During the Old Order and the New Order era, this nation was still struggling in providing access to justice for its own citizens. The reflection of the story above makes law the foundation of justice that must be upheld. one of them is the conception of the principle of equality before the law, equality without discrimination, between the poor and rich or the ruler and the people of the law must truly be able to be upheld to achieve justice for every human being on earth. equality before the law has a history since the Dutch colonial era, namely legislation through the burgelicke wetboek (hyperdata) and the wetboek van koophandel (for Indonesia (kuhdadang) which contains the meaning of equality before the law. existed in the colonial era, so that the separation of spaces is different between colonial, Islamic, and customary law. In the Indonesian dictionary, EBL is simply defined as equality before the law [3].

How is the application of the concept of equality before the law in the state administrative court against government regulations instead of law number 1 of 2020 concerning state financial policies and financial system stability for handling the 2019 coronavirus disease pandemic (covid-19) and/or in the context of dealing with threats that are endangering the national economy and/or financial system stability (pepper 1/2020)? In Perpu issued by the government, there is a weakness in Article 27 paragraph 1 that provides legal immunity (immunity) to officials who are responsible for fiscal and monetary policies so that they cannot be prosecuted either civil or criminal [1].

As we know there are weaknesses – weaknesses as follows,

1. Costs incurred by the government and/or member institutions of KSSK in the context of implementing state revenue policies including policies in the field of taxation, state expenditure policies including policies in the regional finance sector, financing policies, financial system stability

policies, and national economic recovery programs, is part of the economic cost to save the economy from the crisis and is not a loss to the state.

2. Members of the kssk, kssk secretariat, members of the kssk secretariat, and officials or employees of the ministry of finance, Indonesian banks, financial services authorities, as well as deposit insurance agencies, and other officials related to the implementation of government regulations instead of this law, cannot. prosecuted both civil and criminal if in carrying out the task is based on good faith and by the provisions of laws and regulations.
3. All actions including decisions made based on government regulations instead of this law are not the object of a lawsuit that can be submitted to the state administrative court.

Article 27 pepper no.1 of 2020 concerning state finances and financial system stability for the handling of the 2019 coronavirus disease (covid-19) pandemic. feel that they are not in favor of the aspects of society, how can an official get impunity regarding free policy making so that if something goes wrong in the future it will have a bad impact or abuse of authority and it is very contrary to the principle of the rule of law that the community should receive full attention so that the rights of life both materially and socially bias goes well. This is the principle of equality before the law [4].

That the importance of a state administrative court is to answer concerns about justice. because the purpose of the establishment of the state is to create social welfare or what we know as the concept of the welfare state. This aims to regulate the relationship between citizens and the government, so that citizens' rights are guaranteed and are not easily ignored by the government, and also facilitate access for justice seekers who are fighting for interests over policies or regulations that are arbitrary by the power of the authorities. as the basis of reference for Law no. 5 of 1986 jo uu no. 9 of 2004 and according to the reference to article 24 paragraph (3) of the third amendment of the 1945 constitution in conjunction with article 10 paragraph (2) of Law no. 4 of 2004 concerning judicial power within the judiciary, namely, general courts, religious courts, military courts, and state administrative courts. with their respective functions and authorities and free from any intervention [5].

In manifesting equality before the law in the state administrative court according to the wet principle, the aim of the state administrative court (PTUN) is to provide legal protection and legal certainty, not only for the people but also for state administration in the sense of maintaining

and choosing balance. the interests of society with individual interests. These objectives are to maintain the credibility and independence of the law to always inspire the values of Pancasila and also to ensure the values of justice according to Philips m. hadjon (1993: 85-89) maintains the principle of harmony, to create a proportional relationship between the government and the people. In this case, it can be seen concretely how the state administrative court issues decisions related to disputes over the arbitrariness of the authorities against citizens, and the position of PTUN is to guarantee certainty, equality (by law) for the realization of justice [6].

Conclusion

The importance of equality before the law values to be integrated into a state structure to maintain government relations with its citizens. as contained in Article 1 paragraph (3), that the state of Indonesia is a constitutional state in which all activities related to the running of the wheels of government in this country must be based on rules that must not deviate. The 1945 constitution confirms that Indonesia is a constitutional state in article 1 paragraph (3), which in article 27 paragraph (1) states, all citizens have the same position before the law, and article 28d that everyone has the right to recognition, guarantee, protection, and fair legal certainty. The articles emphasize that there must be no legal inequality, what is wrong is still wrong and right is still right, not the other way around or we often hear the general term for disappointment with law enforcement, namely, the law is blunt upwards but sharply downward. This term should reflect the legal imbalances that often occur in Indonesia, especially about the government and citizens [7].

Related to state administrative courts, such as the findings of world justice projects, in conclusion, the general public has experienced a lot of injustice committed by government officials and other state institutions, in which they do not dare to carry out legal proceedings, because of the large cost factors and on average seeking assistance law from outside parties, not the government. whereas the findings of the Indonesian judicial reform forum in 20provideides advice regarding the judicial process where there are still many criminalization, illegal levies involving law enforcement officers, and inconsistency in decisions that often ignore equality before the law. Therefore, to maintain the spirit of the law which remains the foundation, the nature of evil must always be placed on the subject between the community and the government, so that justice and legal benefits are upheld.

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Implications of Pretend Play towards Cognitive Development of Early Childhood

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Introduction

Playing is the most conducive activity for children development [1]. The children like playing. Playing is provided the children more chances in exploring various aspects, associate with other people, solving problems, working through different emotions, and train their emerging skill [2]. Playing is an activity that motivating everyone intrinsically because it can take a variety complexities [3].

The cognitive processes involved in play will encourage the development of children's thinking so that children can think creatively and critically to practice understanding concepts, the ability to process information and the application of skills that may be needed by children. The advantages of play are often discussed by researchers who are physical, emotional, social, cognitive and intellectual [4] [5] [6] [7].

There are three main cognitive abilities faced during play in early childhood, namely: problem solving, self-regulation, and creativity. These three abilities are classified into cognitive benefits due to the continuous use of multiple processes, which may include recognition, classification, planning, monitoring, and representation [8] [9]. Pretend play requires cognitive processing. Through pretend play children can develop these three abilities well

One of the ways to play pretend play that can aid cognition is to predispose children to generally pleasant attitudes [10] which can lead to the production of unusual ideas, creative problem solving [11] [12], and then other cognitive talents. This view is in line with the theory of expanding-and-building positive emotions, with play eliciting excitement, which in turn leads to an expansion of the individual's thought-action repertoire. Then, Vygotsky's ideas about symbolic and abstract thinking, which have just been reviewed, also suggest how mock play can aid cognitive abilities.

Therefore, the children who participate in some pretend plays, requires complex social and cognitive skills. They are being more competent in

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cognitive and social aspects. Children have the opportunities to choose activities freely by doing the playing, and then they develop self-directed and self-motivating.

Discussion

Cognitive Development in Early Childhood

The learning process is inseparable from child development. Play-based learning provides an excellent environment to encourage children's cognitive development, especially for thinking skills. Pretend games can improve children's cognitive development. Pretend play is a function of how early childhood can think. Cognitive development develops rapidly at an early age, through this thinking ability children can explore themselves, others, and the environment so they can gain new knowledge from these exploration activities. Children who participate in mock play, more competent in cognitive and social skills [3].

Wiyani (2014) stated that Cognitive Development is the development of thinking or intelligence, which is the ability to learn new skills and concepts, skills to understand what is happening in the environment, and the skills to use memory and solve simple problems [[13]]

One aspect of children's basic abilities that need to be developed which will greatly affect growth and development in other aspects is cognitive development. Mena & Eyer (2009) suggested that cognitive development is a concern because it is related to skills, memory, language and problem-solving abilities.

Moreover, cognitive development in the aged 3 to 6 years is at the preoperational stage, namely (1) Using symbols, where the children don't have to sensorimotor contact with objects. Children can imagine that the object or person has different properties from the real thing; (2) Understanding identity, where children understand that the changes that occur do not change their scientific character; (3) Understanding cause and effect, where children understand that an event has a cause, (4) Able to classify, children classify objects, people, events into meaningful categories, (5) Understand numbers, where children can count and understand numbers Characteristics cognitive development in the preoperational stage includes: grouping objects that have similarities, counting 1-20, recognizing simple forms, understanding the concept of opposite meanings, being able to distinguish circular or square shapes from real objects or pictures, pairing and mentioning objects, matching shapes -Simple shapes, classifies numbers, writing, fruits and vegetables, recognizes small and large letters, recognizes colors [14]

Early childhood can recognize the concepts only by playing. Thus, children will find it easier to accept these concepts by playing than to be taught like adults who are learning. Playing is useful in cognitive development and it is also supported by Montessori who stated that there are four basic facts that play can stimulate children's brains: 1) a grasping mind; 2) critical period; 3) children are learning beings; 4) children learn by playing [15].

Each child has different thinking abilities, pretend play can involve variety of learning domains, including emotional, cognitive, language and sensorimotor development. Play provides children with many opportunities to explore different aspects of their world. Play is an activity that is intrinsically motivating and interesting for children because it can take various forms and varying complexities [3].

Cognitive Theory by Jean Piaget

Jean Piaget, is a biologist who was born in Neuchȃtel, Switzerland in 1896 and develop theory about cognitive development in children. Piaget suggested four stages of cognitive development in children, the sensorimotor, preoperative, concrete operational, and formal operational stages. Cognitive development was a continuous process, even in the context of different environments and cultural diversity around the world.

Piaget suggested that all children travel through the stages of sensorimotor development, preoperative, concrete operations, and formal operations. The sensorimotor stage, which starts from birth until the age of two, at this stage the learning involves only the five senses. First, at the age of 18 months, children can express a limited vocabulary, in two years they can express short and meaningful sentences. Second, children in the final stages of senses develop their capacity to imitate people. another, what Piaget called "delayed imitation" . The imitation is "the ability to reproduce the activity of a model that the child has recorded in the shadow in the past Finally, at the end of this stage, children relatively imagine and represent deferred objects and imitations. According to Piaget, adaptation consists of two activities, namely assimilation, which is a cognitive process in which children understand new perceptions into existing schemes in their minds, and accommodation, which is a cognitive process in which children form new schemes or change old schemas caused by new experiences. into an existing schema.

These two processes, assimilation and accommodation, must continue for balance and cognitive growth. Scheme is a mental structure of a person who intellectually adapts to the surrounding environment.

Cognitive Theory of Lev Vygotsky

Vygotsky's cognitive development is called one of the innovative psychological theories. Vygotsky's hallmark is his emphasis on culture as the most important factor in cognitive development. According to Vygotsky culture as a major role in cognitive development. culture is a force that shapes all higher mental processes, such as perception, attention, memory, and problem solving. In general, Vygotsky proposed three main objectives for studying human psychology: 1). reconstruction of the transition from the way of thinking and behaving animals to humans, 2) investigating the historical changes that have occurred in human mental functions as a result of the introduction of new cultural tools and socio-cultural activities, 3) investigating the construction of the development of psychological functions of children and adults in society in particular [16]

According to Vygotsky, cognitive development prioritizes social aspects. At the social level, a person's mental structures and processes can be identified from their interactions with other people [17]. A child's greatest self-control occurs in play. Vygotsky illustrates that when children play, they constantly encounter conflicts between their game rules and their own impulses. During mock play, children create imaginary situations that allow them to act out selected roles and follow a set of rules defined by those roles.

Pretend Play

Pretend play is a game that uses children's perceptions of the world and fantasy to represent one object as another. Play is an arena in which children are able to construct and reconstruct past experiences which in turn facilitate the development of divergent thinking, which is an important aspect of cognitive development [18]. Children play roles in different scenarios using different objects or toys to represent different things, processing images using cognitive processes to separate and accumulate past experiences and knowledge in unique ways [19]. This process exists by enhancing their divergent thinking and transformational abilities.

In addition, pretend play can be observed when a child is playing with conventional games, such as beds and dolls [3]. With conventional play, children can put the doll to sleep and pretend that the doll is asleep, meaning the play reflects reality. Conventional imaginative games refer to children using conventional games to pretend, whereas symbolic games refer to children. which uses things and turns them into something else. Using the Piagetian model, mock play takes place over a period of 18 months to 6 years, with the preschool years at the peak of mock play [20]

Thus, pretend play is a form of adult play for preschoolers, and the playing child can construct unique symbols, in his experience, to express some personal meaning.

Conclusion

Playing is a children's world. Playing provided children with numerous opportunities to explore different aspects of their world, interact with others, solve problems, work through different emotions, and practice emerging skills. Playing is an intrinsically motivating activity that is attractive to children because it can take many forms and vary in complexity. By playing children can build unique symbols, in their experiences express personal meanings. Many cognitive strategies are demonstrated through mock play, such as joint planning, negotiation, problem solving, and goal-seeking. The main activity for preschool and kindergarten children is playing, considering that the main activity, one of which results in developmental achievements, is playing. Piaget also recognized that cultural contexts and social interactions influence cognitive development. Culture has a great influence on children's cognitive development. With culture, children can gain many aspects of understanding and ways of thinking.

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The Role of Parents in Online Learning for Fishermen's Children During the Covid-19 Pandemic Period in Pasongsongan Sub-District Sumenep Regency

Fijri Dita Nuralamika[1]

Introduction

The implementation of online teaching and learning activities has established parents-teachers communication in carrying out children's learning from home. The Covid-19 pandemic has had a changing impact on human life. Changes that occur include the realignment of learning that should be done face-to-face between the teacher and students to online learning. Online learning applies to all students, from elementary to tertiary levels [1]. Online learning is a learning activity between teachers and students that is carried out from home which is delivered online without meeting in person, but using applications to support the learning. Online teaching and learning activities for students is employing applications made by schools and media platforms such as Zoom, Google Classroom, Whatsapp[1][2]. Access to student learning activities through online certainly requires supervision from parents. Parental supervision at home is done by parents who actively play a role in assisting children to help with their learning difficulties and develop their potential.

Every child has unlimited potential and needs development support from parents. Parental involvement will affect the children's potential in the future. Experts believe that the role of parent in the children's life will have a major impact on their personality. Education is a considerable priority for many parents, so education is not only the role of teachers in schools but the involvement of parents by supporting their children to learn both at school and at home with parents. People from all walks of life are aware of the importance of compulsory education that will give an impact on children's future. Parents play a very important role in assisting children in creating a good learning environment, parents' knowledge and time allocation in supervising their children's learning activities as what is done by parents who work as fishermen in supporting their children's education.

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Fishing households are still identified with human resources at the mediocre level of knowledge and economic limitations [3], multiplying the role of parents or fishing families in carrying out their duties to supervise the learning activities of their children. Parents who have limited working time and are not accustomed to use technology will experience problems just like fishing families. The case study in this present study was carried out on fishing households in Pasongsongan Sub-District, Sumenep Regency on 20 fishing families who have children at the elementary to high school level. Parents of fishing families play a role in accompanying their children during their learning activities, but during the Covid-19 pandemic until now, student learning activities have been carried out online which involves parental assistance in helping their children experience several obstacles in the learning process. The obstacles experienced by the children in fishing family are their limitations in using smartphones during their learning activities, the level of limitations of fishermen's families in their access to technology for their children's learning activities, and the time allocation that parents provide for assisting their children since they spend their time mostly for fishing and trading to meet their daily needs. During the Covid-19 pandemic, fishermen did not make themselves stay at home. Fishing families work in the morning, afternoon or evening, this makes the role of parents in accompanying their children, carrying out their duties while at home during online learning hours, as well as supervising them in learning and doing school work cannot be maximized.

The students' situation of the fishermen's children in the coastal area of Pasongsongan Sub-District is considered quite difficult due to unstable internet access, economic limitations to own an Android smartphone and knowledge of technology. Those children also experience difficulty to understand the material given by their teachers through smartphones, when their parents have limited ability to access technology. Another obstacle experienced by children is that online learning makes children feel free at home while they should be studying because of limited parental assistance. Given the importance of the role of parents in children's education in the future, the results of research on parents' role in assisting their children when learning from home through online access during the Covid-19 pandemic, was that parents played a considerable role in determining their children's achievements and abilities to develop [4][5][6], and parents also played a responsible role in their children's education which then determine their future [4].

Previous research has shown that the role of parents will determine children's future by motivating, educating, guiding, and facilitating the

children's learning[4][5]. This is in accordance with Ki Hajar Dewantara's statement that everyone is a teacher, every house is a school. Both teachers and parents are very influential on the implementation of online learning that is carried out at home, where children still should also able to get maximum learning from school. In this present study, a survey research was conducted on fishermen families who were purposively selected from Pasongangan Sub-District, Sumenep Regency. The objects were 20 fishing households by using structured and in-depth interviews. Research was conducted in August 2020. The data were analyzed by using simple statistics and also validity and reliability tests. The purpose of this study was to analyze the role of parents on the online learning during the Covid-19 pandemic, especially in fishermen's children.

Discussion

Parents as educators within the family environment have an influence on their children's future, so the role of parents in their children's education process is undoubtedly important. The results of this study presenting the response to the role of parents in online learning for fishermen's children during the Covid-19 pandemic in Pasongsongan Sub-District, Sumenep Regency can be seen in this following table 1:

Table 1. The Results The Role of Parents in Online Learning for Fishermen's Children

Dimension	Sub-dimension	Indicators	Percentage of Respondents' Answers (%)	
			Yes	No
Parents' Role	Guiding	Helping to solve online learning problems	40	60
		Prodding their children to learning	40	60
	Motivator	Giving motivation	80	20
		Providing a sense of security and conducive	75	25
	Facilitator	Giving smartphone	60	40
		Giving books or e-books	40	60
Mean			55.83	44.17

Source: Primary Data Processed, 2020.

Based on the table 1, there are aspects of the role of parents in online learning for fishermen's children during the Covid-19 pandemic including guiding, motivating, and facilitating children. On average, parents who answered that they took part in their children's online learning process at home was 55.83 percent, while the responses where parents did not play

a role / take part in online learning were 44.17 percent. This shows that there are still limitations and knowledge of fishing families in helping their children learn online. In terms of time, fishing families prefer to work for earning income to meet their needs so that the parents of fishing family cannot fully direct their children to learn better than studying face-to-face with the teacher. This is in accordance with previous research which stated that parents have limited time to assist their children to study at home because they even work during the pandemic[7][8].

From the results of this study, the role of parents in the aspect of guiding their children, such as helping them whenever they experience online learning difficulties in terms of understanding the learning materials and school assignments, prodding their children to be able to learn such as reading books and doing school assignments, and honing students' skills, obtained 60 percent. It means that parents do not play an active role in their children's learning activities. If parents do not play a role in online learning, it can be said that children's interest in learning independently in the future will experience difficulties. The results of this study support the statement that the obstacle for parents in guiding children during the Covid-19 pandemic is a lack of knowledge and material understanding, not having enough time to accompany their children to study at home, difficulties to grow their children's interest in learning, having Internet service constraints, and struggling in recognizing technology for learning[8]. In research on fishermen's children, it showed that a not-really-active parental guidance resulted in the inability of children in managing their own learning time properly because they feel free.

The next role of parents is to motivate children to learn during the Covid-19 pandemic when fishermen's children experience much boredom and they are only feeling enthusiastic because of the large amount of time they spend at home without going to school. The role of parents' motivation in this study obtained an 80 percent for 'motivating children' and 75 percent for 'the role of parental support to provide a sense of security and conducive to learning at home'. The aspect of the role of parents in children's motivation is in the form of providing motivational advice on the importance of education for their future. As a motivation, the parents said that children's education can be higher than that of their parents, as well as giving good advice to their children that they should always be grateful. The fishing families stated that regarding their economic limitations they must be able to motivate their children because education is the responsibility of the parents. This is consistent with a previous

research [9] which stated that the role of parents in motivating children is giving a sense of security to be grateful and good advice to children.

The parents' responsibility has an influence on the children's development. Family environment and all forms given by parents become examples for their children [10]. This means that the parents' role towards children is the responsibility and obligation in the field of education both formal and non-formal one and improves human resources through education [11][12]. Children who get education and get active involvement of parents' role are ready to face the challenges of the future [5][6].

Further, the results of this study show that the manifestation of the parents' role as facilitators in supporting their children in online learning is to provide android smartphone facilities to access learning from school. Although in fishing families, the parents have economic limitations, they also possess consumptive characteristics. This make fishing families is willingly to spend their money to buy smartphones requested by their children. It is proven by the score of the parents' role in giving smartphones reached 60 percent while the parents' role in providing their children textbooks is low by 40 percent. It is also found that parents neither provide enough guidance and supervision to their children regarding smartphone access, nor do parents provide suggestions for accessing e -book for their online study.

E-books are textbooks in digital format that can be quickly accessed on the internet at any time by readers compared to having to visit a bookstore or library [13]. Although e-books can be accessed quickly by everyone, the role of parents in fishing families is still low in providing easy reading for their children. Instead, they tend to let children use smartphone without giving directions about the benefits of smartphone in learning activities that provide lots of reading access for them. The parents' role should be able to foster literacy by building children's interest in reading and writing. In fostering literacy in children, the role of parents as role models for children is very important.

Conclusion

Online learning for fishermen's children during the Covid-19 pandemic employs smartphone facilities which requires assistance from parents. The results of this study found that learning through online methods in fishing families has experienced difficulties in supporting online learning facilities, limitation of time allocation for parents who work at sea as well as the inability of parents who are involved as sales from fishing or fish traders which then make the to have limited time to

accompany their children to learn, limited parental knowledge and access to technology, and unstable internet network connection.

The role of parents during learning activities using online learning methods in the form of providing study guidance or learning difficulties and reminding learning does not play an active role in guiding children The role of parents as motivators in providing motivation and a sense of security when learning online at home plays an active role, and the role of parents as facilitators is to provide smartphones to children but their support in terms of providing reading material and directing reading e-books is still low. Overall, the average percentage score of parents, in fishing family, who play an active role in online learning is 55.83 percent and the score of parents who do not play an active role in online learning is 44.17 percent. Thus, the role of parental attention and supervision to children while studying at home in the online learning process is so important that education in children is optimal and able support the child's future.

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What Is The Historical Position Of The Law In The Prevailing Legal System

Hairawati El Handayani[1]

Introduction

The development of legal science is basically always followed by a flow or mashed in the science of law itself. These schools are developing and can criticize each other and can also be a feature (carrying capacity) of existing madhabs. From these results, there are also various interpretations of the law. One of the diversity of schools that have influenced the development of legal science is the historical law school or legal historicism. The mashed of historical law provides terminology for the meaning of law which is not only natural and does not have the character of the ruler alone. However, this mashed explores the meaning of law based on the historical approach of a certain nation where the law is applicable so that the applicable law represents the soul of the nation itself. This understanding can be seen from the theory of Karl Von Savigny who is a jurist from Germany and also an activist for the birth of historical law mashed. In supporting this historical law school, Savigny uses the term volkgeits (people's souls) [1]. According to him, an understanding of the law must go through an investigation of the volkgeits or people's souls. Savigny also added that the law does not apply universally, because the law is born from volkgeits which vary from one nation to another. So, the law only applies to a certain society.

The thoughts of the legal paradigm through the historical legal mashed which Savigny put forward made the meaning of law at that time sourced solely from the developing scope of society. This paradigm then gave rise to a critical reaction against the previous mashed, namely the natural law or natural law mashed which argued that the law was natural and rationalistic and applied to all nations. The historical law mashed also provides a different view of the legal positivism mashed. That law is not only interpreted as a tool that can create order in society and is made by the authority or the ruler where the law applies. But law develops based on historical approaches in shaping the values of the society where the law applies without any coercive element from certain authorities or rulers [1]. Along with the development of the historical law mashed also

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experienced massive criticism from the activists of the legal mashed that was born afterward. Critical notes include the fact that the habits that exist in society are not fully based and reflect the real rights and needs of the community. So that it gives rise to a concrete statement that the historical law mashed which focuses on the function and development of law related to the concept of the soul that exists in society cannot clearly show how its content and scope are.

Discussion

The cause of the birth of the historical law mashed

Historical law mashed was born in the early 19th century, which is around 1814. As previously explained, the historical law-mashed activist was Friedrich Karl von Savigny. In his book entitled "Vom Beruf unserer Zeit fur Gezetgebung und Rechtwissenschaft" (on the present call for law and law), he wrote the following notions of law as Das Recht wird nicht gemacht. est ist und wird mit dem volke or the law was not made but grew and developed with the community. This understanding of the law then makes Savigny a historical legal mashed figure who is very thick in combining historical approaches in law as the identity of the nation where the law is enforced. Savigny's teachings are also motivated by a view that says that in this world there are many nations and each nation has a different volkgeist or people's soul. These differences certainly have an impact on differences in in-laws that are adjusted to place and time. Law is very dependent on or sourced from the soul of the people and the content of the law is determined by the interaction of human life from time to time [2].

The term volkgeist was also first popularized by a savigni student named G. Putcha. By popularizing the term Putcha argues that the law grows together with the growth of the people, and becomes strong together with the power of the people and that in the end, he dies if the nation loses its nationality. This theory is part of crystallizing Savigny's opinion about the law that should be investigated based on the soul of the nation. Identifying the birth of this historical law mashed according to Lawrance M. Friedman is a fundamental answer to the current conditions of his day. Where the conditions at that time were influenced by the natural law mashed so that the birth of the historical law school gave the following reasons [2]:

1. The existence of 18th-century rationalism, which is based on natural law, the power of reason, and principles that all play a role in the philosophy of law because it relies on a deductive way of thinking without paying

attention to historical facts, specificities, and national conditions;

2. The belief and spirit of the French revolution with its rebellion against tradition, belief in reason and the power of the human will over the conditions of its time;
3. There is an opinion that prohibits judges from interpreting the law because the law is deemed able to solve all legal problems;
4. Codification of law in Germany proposed by Thibaut (Heidelberg professor): the law does not grow out of history.

The above can be seen as a harsh criticism of the mashed of natural law which integrates natural or natural things with the sanctity of human reason. These elements are logically sidelined by historical law-mashed activists because they are considered to have eliminated historical elements that shape certain societal behavior so that if there are laws and those that are not integrated or in tune with the legal culture of society, the law is difficult to enforce. Basically, both natural law and historical law schools have the same thing, namely by not separating between law and morals. However, the difference is that the moral scope according to the historical school is not universal as it is in the mashed of natural law, but in particular in nature. The existence of each law, including moral values, is different, depending on the place and time of the law. Therefore, the law is seen as the incarnation of the soul of the nation. Likewise with the belief and spirit of the French revolution against rebellion against a tradition that was believed at that time made the historical law mashed emphasize the influence of history on the law. This was confirmed by Savigni that the law contains what human beings interact with from time to time, and this is what is called history.

The mashed of historical law also contributed to the rigidity of law enforcement at that time. Where the judge can only interpret the law based on the law alone. Examining further Savigni's understanding of law there is a massive contradiction when the law is seen as merely a law. Law is not a product that is arbitrarily made by legislators but develops in response to the impersonal forces found in the spirit and soul of the community so that there is no special form and substance of the law because the law is found not made. This further emphasizes the paradigm of historical law mashed that as long as the codified and constitutional law does not completely pollute the soul of the nation where the law applies, the law is a dead organism [2]. Characteristics of historical law in criticizing the codification of law if the codification does not contain elements of history in it. It is on this basis that historical law mashed activists build a hypothesis that all legal systems originate or originate from habits and

their development and then the law is produced through the activities and creations of lawmakers.

Basically, the four (4) things that were stated earlier were the cause of the birth of the historical law mashable making the legal paradigm at that time not top-down (from top to bottom) which was only an impulse on a certain ruler or authority and was natural in a certain legal system as well as what becomes a distinctive feature of natural law mashed activists and legal positivism, but becomes a bottom-up (from the bottom up) because the law is extracted from the habits of the society where the law applies so that the law becomes a free human creation but not a free human being as an individual but a human being in social relationships. live a nation.

The Relevance of Historical Law Mashab Against the Applicable Legal System

Historical legal mashed does not have a significant influence on the legal system of continental Europe. This is due to differences in the paradigm of certain legal systems where the European Continental legal system more closely integrates law into things that are more specific in the form of legislation. Meanwhile, the historical law mashed negates the legal system that applies specifically. The negation process is because the historical law mash provides a paradigm of law that develops in the soul of a particular nation and has different qualifications of the soul of the nation so that it is uncertain. However, it cannot be denied that this theory in the Anglo-Saxon legal system makes a real contribution. Investigating the soul of the nation in finding the ideal law made the anglo Saxon legal system nuanced Savignyan with the adoption of the precedent doctrine. The use of precedent doctrine makes the Anglo-Saxon legal system recognize the principles of general law. By using these principles in deciding a court case, it should not only be based on interpretation or only apply the laws produced by the legislative body, but in the absence of laws governing it, the court must also use other sources of law such as customary law or legal principles. general. However, of the two universally applicable legal systems, the more specific characteristic of their impact on historical legal mashed is the customary law system or the customer of law. Historical law mashed is the embodiment of customary law that applies in a particular society based on the history or tradition that affects that society.

When examined further the influence of historical law mashed in the Indonesian context, it can be seen from the existence of Pancasila as a manifesto of the spirit of the Indonesian nation. The investigation of the spirit of the Indonesian nation is formulated in the 5 precepts which are contained in Pancasila and make Pancasila the source of all legal sources [3]. The paradigm of legal thought from historical legal schools is a firm

stance that says that law is a derivation of the values held by a society. In this connection, it can be assumed that such a law will have the power of sociological effect. Because the law must be by the legal awareness of the community. And emphasized that the only source of law is the legal awareness of a nation. Legal awareness referred to in the Indonesian context can be found in Pancasila. Historical law masses also influence the strengthening of the development of the customary law system. According to Mochtar Kusumaatmadja for Indonesia, the thoughts and attitudes of this school of law have played an important role in maintaining (preservation) of customary law as a reflection of the indigenous cultural values of the indigenous population and preventing too fast westernization, if not. is said to have successfully prevented it altogether, except for a minority of the natives.

Conclusion

Historical law mashed was born in the early 19th century, which is around 1814. As previously explained, the historical law-mashed activist was Friedrich Karl von Savigny. Savigny argued that the law was not created but grew and developed with the community. Law is an investigation of the soul of the nation or better known as a volkgeist. 4 factors led to the birth of the historical legal mashed, namely: the existence of 18th-century rationalism based on natural law, belief, and the spirit of the French revolution with its rebellion against tradition, the existence of an opinion that prohibits judges from interpreting law because laws are considered to be able to solve all legal problems, and Thibaut's proposed codification of law in Germany ignores the historical value. Investigating the soul of the nation in finding the ideal law made the anglo Saxon legal system nuanced Savignyan with the adoption of the precedent doctrine. Whereas in the European continental legal system, historical law mashed does not have a significant impact and influence. If it is related to the influence of historical law mashed in the Indonesian context, it can be seen from the existence of Pancasila as a manifesto of the soul of the Indonesian nation.

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Legal Liability for Delegation of Authority by Doctor To Nurse

Halimatus Khalidawati Salmah[1]

Introduction

People are increasingly aware of their rights as consumers in the world of health. People as patients are no longer silent following all the doctor's words without asking about their illness, examinations and the treatment they receive. Related to that, in fact, every patient's rights must be fulfilled, patient satisfaction is one of the barometers of service quality, on the other hand, patient dissatisfaction can be the basis for service lawsuits. [5]

Nursing service itself in the medical world is an integral service from health services with a care not a cure approach. These two things clearly illustrate that nursing services are different from medical services. But doctors cannot work alone without the help of nurses. Doctors and nurses will continue to work together in their doctor's duties, nurses are not doctor's assistants but nurses are doctors' colleagues. In this relationship, doctors can delegate authority to nurses. The delegation of authority itself consists of two types, namely delegative and mandate delegation of authority, both of which have legal consequences that must be accounted for. However, it turns out that there is often a dilemma regarding accountability in the delegation of authority by doctors to nurses.

On this basis, this study is expected to provide an overview of legal responsibility for the delegation of authority from doctors to nurses. The research method used in this research is normative juridical research method, where research is carried out by examining all existing library materials or secondary materials. By analyzing and collecting data through a review of primary, secondary and tertiary legal materials. Either in the form of documents or applicable laws and regulations related to the theme of the discussion. [3]

Discussion

Judging in the 1945 Constitution Article 28 H states that everyone has the right to get all their rights, including the right to health. Because this is why every patient has the right to fulfill his rights. [6] In Law no.

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36 of 2009 concerning Health Article 1, paragraph 6, also states that every person who is devoted to health and has the ability and or skills through education in the health sector for a certain type requires the authority to make health efforts. This explains that to be able to carry out an action someone must have this authority which also means that doctors or medical teams and even nurses must provide the best service to patients so that the patient's health rights can be fulfilled. [7] UU no. 36 of 2014 concerning Health Workers, Article 58 paragraph 1 itself explains that in carrying out a practice, health workers are obliged to provide health services in accordance with professional standards, professional service standards, standard operating procedures and professional ethics as well as the health needs of health service recipients. Meanwhile, Article 65 of the same law describes the delegation of authority for health workers. [8]

Permenkes RI No. 28 of 2017 Article 22 explains that the delegation of authority in the form of a mandate by doctors and Article 27 paragraph 4 explains that the delegation of authority is the responsibility of the doctor who gives the mandate, as long as the implementation of the action is in accordance with the delegation given. [4] standard operating procedures and professional ethics as well as the health needs of health service recipients. Meanwhile, Article 65 of the same law describes the delegation of authority to health workers. [8] Permenkes RI No. 28 of 2017 Article 22 explains that the delegation of authority in the form of a mandate by doctors and Article 27 paragraph 4 explains that the delegation of authority is the responsibility of the doctor who gives the mandate, as long as the implementation of the action is in accordance with the delegation given. [4] standard operating procedures and professional ethics as well as the health needs of health service recipients. Meanwhile, Article 65 of the same law describes the delegation of authority to health workers. [8] Permenkes RI No. 28 of 2017 Article 22 explains that the delegation of authority in the form of a mandate by doctors and Article 27 paragraph 4 explains that the delegation of authority is the responsibility of the doctor who gives the mandate, as long as the implementation of the action is in accordance with the delegation given. [4]

Legitimate delegation of authority is when viewed from the source from which the authority was born or obtained, then there are three categories of authority, namely attributive, delegative and mandate, which can be explained as follows: [10] First, attributive authority (derived from the distribution of power by laws and regulations) The attributive authority inherent in doctors is to practice medicine as stated in Law Number 29 of 2004 concerning Medical Practice. While the attributive

authority inherent in nurses is to practice nursing care as stated in Law Number 38 of 2014 concerning Nursing. [9] In the implementation of this attributive authority, the implementation is carried out alone by the official or agency stated in the basic regulation. The attributive authority regarding responsibility and accountability rests with the official or agency as stated in the basic regulation. Second, the delegative authority (derived from the delegation of a government organ to another organ on the basis of statutory regulations), in this case the delegative authority, responsibility and accountability, is transferred to those given the authority and transfers to the delegate. Third, mandate authority (derived from the process or procedure of delegation from a higher official or agency to a lower official or agency. Fourth, mandate authority is a routine relationship between superiors and subordinates, unless expressly prohibited.

As for what is called a delegation must meet several conditions, namely: First, the delegation must be definitive (Delegates can no longer use the delegated authority by themselves). Second, the delegation must be based on statutory provisions (delegation is only possible if there are provisions that allow for it in statutory regulations). Third, delegation is not to subordinates (no delegation is allowed in the personnel hierarchy). Fourth, the obligation to provide information (delegans are authorized to request an explanation of the exercise of this authority). Fifth, policy regulations (delegans provide instructions on the use of these powers. [10]

In addition to attributive authority and several others, there is also authority that is non-attributive in nature, namely the authority given by someone who has the above authority or competence to someone who has lower authority or competence. This authority is only temporary. Non-attributive authority is further divided into two types based on accountability, first, mandate is the authority given by doctors to nurses without eliminating legal responsibility from doctors and second is delegation is the authority given by doctors to nurses accompanied by delegation of responsibilities. answer the law from the doctor. Non-attributive authority can also be given by professional nurses to vocational nurses according to their trained abilities.Then, based on Law Number 29 of 2004 concerning Medical Practice Article 35 paragraph (1), the authority of a doctor consists of interviewing patients, examining the patient's physical and mental health, determining supporting examinations, establishing a diagnosis, determining management and treatment of patients, conducting medical action, writing prescriptions for drugs and medical devices, issuing doctor's certificates, storing drugs in the permitted quantity and type, dispensing and delivering medicines to patients, for those who practice

in remote areas and there are no pharmacies. The doctor's authority must then be based on the doctor's competency standard. [2]

The following are some of the conditions that require a doctor to delegate authority, including handling a large number of patients, while the number of doctors is limited, doctors leave a health facility for a certain period of time. The delegation in this condition must be stated in the standard operating procedures (SOP) in health facilities. Subsequently, a delegation letter must be issued which must be signed by the doctor who delegates and the nurse who receives the delegation. In a condition where the number of patients is very large while the number of doctors is limited, the authority that can be delegated is the examination of vital signs, anamnesis of the main complaints, the implementation of treatment measures. Diagnosis and medical management are fully under the authority of the doctor. [2]

In Article 32 of the Nursing Law, it is stated that the delegation of authority in a delegative manner to carry out a medical action is given by medical personnel to nurses accompanied by delegation of responsibilities. Delegative delegation can only be given to professional nurses or trained vocational nurses who have the required competencies. The problem of delegation here is the situation where doctors have to leave the health facility for a certain period of time so that only nurses are in the facility. To delegate the authority to enforce diagnosis and management here still raises the question, namely are delegated nurses trained to diagnose multiple medical diseases and whether delegated nurses are trained to choose the type of treatment for many medical diseases? The following matters must be answered by the nursing professional organization itself (the Indonesian National Nurses Association / PPN I) to describe the competence of nurses who work in health facilities. The competence description aims to protect nurses from legal implications as a result of taking actions that are not their competence (lack of skills). In accordance with the Medical Practice Law, all records regarding patients and medical actions given to patients must be recorded in medical records. The medical record itself is a document owned by a doctor, in the sense that it is the doctor who is obliged to record in the medical record. Based on the Medical Records Manual published by the Indonesian Medical Council (KKI) in 2006, medical records recorded by other than doctors with delegation must be made in writing. [2]

Conclusion

The delegation of authority by doctors to nurses must be done in writing, accompanied by strong and correct reasons and circumstances, the

delegation of authority is not allowed to be given to any nurse, only nurses with certain positions and expertise can be delegated authority, some of the terms and conditions needed to provide delegation of authority already stated in several health and nursing regulations. Meanwhile, responsibility for the delegation of authority by doctors to nurses can only be done if there are mistakes and losses. However, to whom the accountability can be asked must see first from where pthe delegation of authority is born or obtained.

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The Role of Wisdom in the Early Adult period

Hennira Rohyatin[1]

Introduction

In early adulthood, individuals are faced with new life challenges. Entering the adult period, an individual has various demands such as optimization in education, career, establishing a love or family relationship, contributing to social affairs, and so on. The transition from adolescence to adulthood is referred to as emerging adulthood that occurs from 18 to 25 years of age [1]. This period was marked by experimentation and exploration. At this point in their development, many individuals are still exploring the career path they want to take, what kind of individual they want to become, and what kind of lifestyle they want to be; single life, live together, or get married [1]. Individuals who enter adulthood are also required to be mentally mature. Indicators of a mentally mature person can be seen from a positive and open mind-set, able to be wise in dealing with various problems in everyday life.

Individual experiences facing various changes from adolescence to early adulthood include challenges in education and society, of course, leading individuals to be able to make decisions. This challenge can be used as a lesson to be better in the future. The results showed that life experiences and individual attitudes or responses in dealing with changes that occur in their lives are factors that influence subjective well-being [2]. Based on this, it can be said that individuals in early adulthood are required to be able to make meaning and see every challenge as an opportunity to learn. This is what can improve individual evaluation both cognitive and affective towards his life.

The ability to make meaning and be positive about events is an element of wisdom. Wisdom is a cause and effect of behavior. This ability involves the most critical thinking process in an individual's cognitive system to produce positive behavior [3]. Wise individuals are able to see challenges as opportunities to learn from experiences, find meaning and purpose in life, and live in positive feelings [4].

Wisdom affects the improvement of individual welfare, related to physical health and improving the quality of life of individuals [5]. Then,

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increasing age will increase wisdom, lead to a long life, and increased individual interest [6]. Therefore, examining the role of wisdom in early adulthood is useful for adding insight and attention in fostering a prudent attitude as early as possible, especially for individuals who have entered adulthood so that they are able to face various problems in this period.

Discussion

Empirically, the history of wisdom (wisdom) in psychology begins before the 1970s. In the realm of psychology and neuroscience, wisdom focuses on components or elements that can be operationalized and measured. At the beginning of its emergence, wisdom was defined as a philosophical concept and has not been systematically and empirically investigated. Since the last three decades, wisdom has been one of the most interesting areas of psychological research [7]. It is believed that wisdom has been a topic of interest to be researched for centuries because it attracted the attention of the ancient philosophers of Phers such as Plato, and Aristotle, namely for modern thought and social scientists [8].

Wisdom is defined as a way to approach the world and act in it, wisdom is able to distinguish right from wrong, and wisdom can be defined as a skill or competence that can be developed [8]. Wisdom is often seen as a set of skills that contribute to understanding and achieving or sustaining a better life [9]. Wisdom is the use of individual knowledge and skills to achieve the common good by balancing the interests of themselves, others both in the long and short term [10]. Wisdom is an ancient concept that has gained renewed interest among clinical researchers as a complex trait relevant to well-being and healthy aging [11].

There are three aspects to wisdom, including [12]:

1. Cognitive quality, namely individual knowledge;
2. Reflective quality, namely a reflection of individual behavior and the behavior of other individuals; and
3. Affective quality, namely a deep understanding of the imperfections and contradictions associated with human nature.

Wisdom includes three dimensions, namely 1) cognitive, 2) effective, and 3) reflective [13]. The cognitive dimension includes an understanding of the meaning of life and the desire to know the truth, namely to understand meaning and meaning. Associated with phenomena and events, especially those related to intrapersonal and interpersonal. Covers the knowledge skills and acceptance process. Apart from having a deeper understanding of life, wise individuals are also able to develop reflective thinking and can see phenomena from various perspectives that exist [13].

A total of 96 subjects or 60.8% of the total subjects in early adulthood fall into the high category on the wisdom variable [14].

The affective dimension relates to abilities that include empathy and mutual love accompanied by motivation to maintain other people's feelings requires self-centeredness transcendence. Meanwhile, the reflective dimension is the perception of a phenomenon and events from various perspectives and avoids subjective judgments. Requires self-examination, self-awareness, and self-insight.

Wisdom in early adulthood plays a role in helping individuals, especially those at this time in the decision-making and problem-solving. The results of other studies also showed that wisdom in early adults plays a role in helping them to make decisions and problems solving [15]. This is due to the development of cognitive functions that occur in wise early adults, such as developments in terms of knowledge, perspective, being able to consider and make decisions. In addition, wise early adults have the concept of wisdom in reflective dimensions such as fairness, attitude, action, and experience so that they play a role in fostering calm, exemplary, justice, usefulness, being able to educate and to be careful. Then, the affective side of the wise early adults plays a role in generating empathy in individuals [16].

Each dimension in wisdom has its respective roles [16]. However, the most dominant role in early adulthood is cognitive and reflective. It is in line with research which states that there is a relationship between wisdom and cognitive, which can be seen from the thought patterns in the cognitive system and the formation of concepts about self and the world as mental molds or cognitive schemes that are adopted through learning experiences [3]. Then, the individual's ability to determine attitudes towards a problem is strongly influenced by the reflective dimension] 16].

The results showed that age does influence one's wisdom [12]. This impact is related to resources and personal characteristics, one of which is wisdom. It can protect against work-related stress and decreased function due to increasing age. Wisdom also correlates with subjective well-being [14] and quality of life [16]. Parents who have old age, are wise in acting, but at the same time, they experience physical decline and near death [12].

Wisdom and happiness also have a significant relationship [17]. Wisdom measured by scale (3D-WS) can explain 9.2% of the variation in hedonic happiness. The reflective dimension of wisdom is the strongest thing related to happiness. In addition, wisdom also has a significant positive relationship with well-being [18]. A wise individual automatically has wellbeing in his life. Then, wisdom is also influenced by the factor of

increasing age [6]. However, in fact, not all people who are mature in age have mental maturity. However, wisdom which correlates with increasing age here means that with age, a person's cognitive, reflexive and affective experience and development will increase if the individual makes the best use of the development of the three elements of wisdom in his life. Wisdom also increases longevity and further increases individual interest [6].

Based on the explanation above, it can be seen that wisdom in early adulthood has a strong role in forming mentally healthy individuals. Individuals in early adulthood have the potential to become adult individuals because they have experienced cognitive, affective, and reflective development. Wisdom plays a role in helping individuals who are in the early adulthood period in making appropriate decisions and problem solving if individuals want to develop a wise attitude towards themselves.

Conclusions

Wisdom is an attitude that a person has that is unique, is a cognitive and emotional development at a high level that is obtained through long experiences. The concept of wisdom is seen as the development of the personality in adulthood and as the development of individual intelligence. Wisdom is integrated and involves elements of cognition, affection, and reflection. Wisdom in early adults is very instrumental in decision making and problem-solving in everyday life. This is due to the dominance of cognition and affection and to reflective development in the prudent early adult. Then, wisdom is also positively correlated with life satisfaction, quality of life, well-being, and mental health.

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The Evaluation of E-*Learning* in Optimising Education During Pandemic *Covid 19* in The Students of Marine and Fisheries in Malang

Indri Mustikasari[1]

Introduction

Indonesia's marine resources are potential and reliable economic force due to its competitive advantages. The abundant resources of Indonesia's marine resources are the big hope for fishing communities to improve their life welfare. However, there is an opposing fact that most Indonesian fishermen are living below the poverty line. It is argued that one of the causes is the lacking of proper education for human resources in the fisheries and marine sectors. It is noteworthy that education is critical in preparing skilful and knowledgeable human resources in facing the global competition. This objective is in line with the mandate of Law No.7 of 2016 Article 46 Paragraph 1 [1] [2][3].

Education and training for fishermen and the related communities cannot solely be carried out by the central and local governments. The active role of stakeholders is required as stipulated by Law No.7 of 2016 Article 48, which states that business actors have a central role in empowering fishermen, fish farmers, and salt farmers; administration of formal and non formal education; and apprenticeship. In this year, the Covid-19 pandemic has had many impacts on various sectors, including the education sector. World's education system, including Indonesia, is required to shift from traditional face-to-face method to the employment of information communication and technology (ICT) that underlies e-learning system [4].

E-learning is a learning process by utilizing contemporary technological or digital advances such as the internet. It can also be defined as a form of ICT application in education in a virtual platform. The term e-learning is more appropriately intended as an effort to make a transformation of the learning process, in schools or colleges, into a digital form that is centred on internet technology. E-learning is still considered as less popular, especially in Indonesia, although it is widely

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known that contemporary digital is needed to empower individuals. The implementation of e-learning is a critical effort towards innovation to improve the quality of education [4][5][6].

In Indonesia, many education innovations have been applied. Amongst several strategies are technology development, education system, curriculum, learning strategies, and teaching methods or models applied in the teaching and learning process. During Covid-19 pandemic like today, individual empowerment also takes place through increasing self-confidence, competence, and skills to manage, analyze, and filter information. Students must be able to create, develop, and connect new information that collaboratively solve social problems [7] [8].

According to Rusman and colleagues (2011: 264) some characteristics of e-learning are [7]:

a. *Interactivity*, where students perform mutual interaction in accessing information;
b. *Independency*, where students are able to study independently without being solely reliable to teachers or mentors;
c. *Accessibility,* which refers to the availability and easiness in accessing and utilising media to obtain information; and
d. *Enrichment,* which defines as a process to increase skills, knowledge, and information.

Based on the description above, this present paper aims to evaluate the implementation of e-learning in optimising education during the Covid-19 pandemic in students of marine and fisheries.

Discussion

Learning media

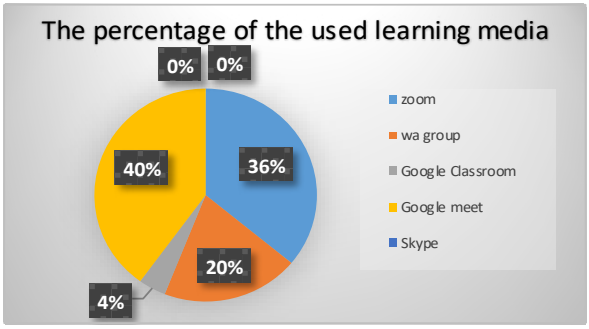

Figure 1. The percentage of the used learning media

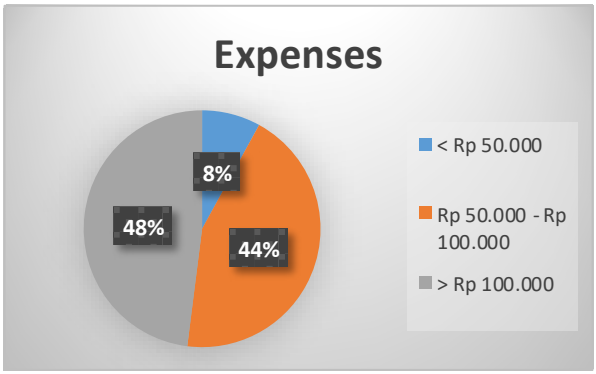

Figure 2. The percentage of students' monthly expenses for learning media

Figure 1 shows that the largest learning media used was Google Meet application (40%). The second most used was Zoom at 36%. Meanwhile, the most rarely used by applications were Whatsapp Group (20%) and Google Classroom (4%).

Figure 2 shows students' monthly allocation in accessing learning media. It is shown that 48% of respondents allocated more than IDR 100,000 per month, while some others spent up to IDR 250,000 per month. This is partly because the learning media requires normal fee rate for online study [9]

Learning content

Figure 3 summarizes respondents' judgment towards the given e-learning content, they are system, quality, modules/ textbooks, and learning material. About 52% of the respondents stated that the given material was interesting. Modules or textbooks prepared by teachers were interesting for 48% of the respondents. Meanwhile, 60% of respondents stated that the teaching system were interesting, and about 52% of respondents stated that the material provided by the teacher was quite interesting.

This results show that students were satisfied with the content given during the e-learning process. They also stated that the teaching materials were clear and comprehensive, which were thoroughly presented in the form of modules, images, videos, and audio. These materials were adjusted to students' needs and level of difficulties, so that it was easy to understand [9][10][11]

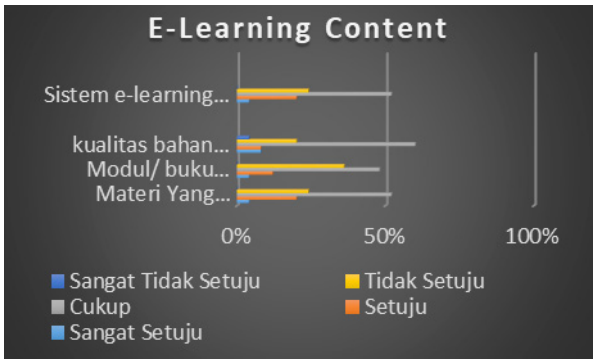

Figure 3. The percentage of e-learning content

Figure 4. The percentage of accessibility

Learning accessibility

Figure 4 summarizes the accessibility where 40% of students stated e-learning was accessible using smartphones, tablets, and computers. The operation of e-learning was smooth and stable, where 56% of students supported this statement. E-learning was also accessible via hardware connected to the internet, which offered learning flexibility. However, as many as 40% of students stated e-learning was not easy to use because they were not familiar with the system, experienced unstable connection, and lacking of financial support to pay internet facilities and quota [5][12][13].

In the aspect of punctuality, four indicators are depicted in Figure 5. First, learning activities are carried out well (structured, on schedule, coordinated), which was agreed by 44% of students. Second, the e-learning system can be implemented flexibly, which was agreed by 36% of students. Third, e-learning system help to submit assignments on time,

which 44% of students agreed. Last, e-learning system provides up-to-date information according to learning needs, which 44% of students agreed. It can be concluded that the implementation of e-learning system did not experience significant problems. One of the enabling factorswas flexibility and range of gadget choices that can be used to support learning.

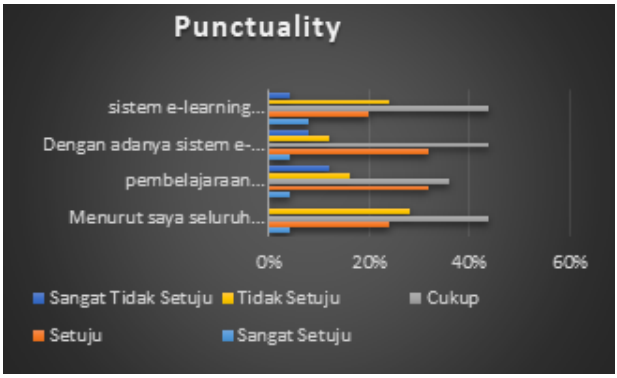

Figure 5. The percentage of punctuality in e-learning

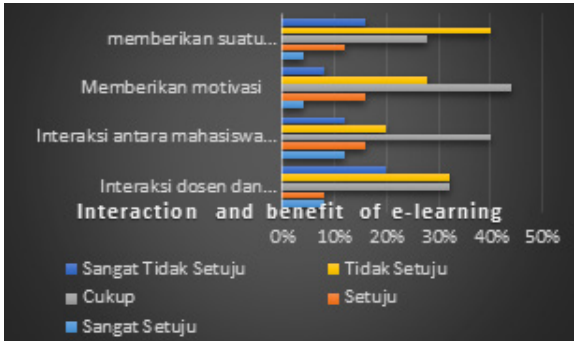

Figure 6. The percentage of interaction and benefit of e-learning

Interaction and benefit of e-learning largely impact the world of education. Students reported to experience different learning sensations from face-to-face learning. As many as 32% of respondents stated that the interaction between lecturers and students was mutual during the e-learning process. Interaction between students, similarly, were mutual where 40% of respondents agreed. In addition, 44% of respondents stated that they were motivated. However, these numbers were inversely proportional to student satisfaction, which 40% stated that they were not satisfied with the learning process due to several obstacles.

The primary obstacle was caused by the large number of areas that are not covered by the internet network, especially in remote rural areas. These

areas did not support e-learning with adequate facilities either. Students in these areas were also hindered by the limited supporting gadgets, such as smartphones, tablets, and laptops.

On the other hand, e-learning offers a primary benefit where students and teachers are given wide access to worldly information. Students can also choose learning styles that suit them the most when taking e-learning classes. E-learning offers flexibility for students and teachers with limited time, limited learning places, geographical separation, and students' desire to learn in their own place. Overall, e-learning has increased opportunities for individuals to obtain education while accelerating the creation of a knowledgeable society.

Conclusion

The application of e-learning learning is not easy and challenging for students, stakeholders, and the government. It requires discipline for independent learning, and the availability of adequate facilities and resources to optimise its implementation. However, e-learning has increased opportunities for individuals to obtain education in the quest of creating knowledgeable society. This paper shows that e-learning materials were clear and comprehensive, motivating, and facilitating active interactions. It also offered learning flexibility. Students' difficulties during e-learning were mostly caused by infrastructure problems, such as unstable internet network, monthly expenses, and gadgets. It is evident that these problems were not caused by internal elements of education itself. These constraints negatively impact students where they have limited learning support facilities that caused them for losing their learning opportunities.

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The Impacts of Covid-19 Pandemic On Primary Education

Indriani[1]

Introduction

The Covid-19 pandemic in Indonesia causes multisectoral impacts. Besides the decline rate of household economy, face-to-face learning activities in primary schools also experience a number of challenges [1]. In response to the outbreak [2] Indonesian government issued several regulations, among them are regional lockdown in some cities and villages, Large-Scale Social Restrictions (or PSBB in Indonesia), the requirement to wear a mask outside house, the implementation of social distancing in public places and washing hands using flowing water and soap.

In early 2020, several plans programmed to be executed after March were canceled or postponed until an undetermined time. As a result of this cancellation, there has been a significant change, especially in teaching and learning activities, where the teaching and learning process was no longer held in schools, campuses or Islamic boarding schools, but was carried out at homes. Learning activities that were previously performed face-to-face, facilitated directly by the teachers, now can only be done independently at home with the parents' supervision and guidance [3]. Students do indirect learning by utilizing online learning so that the spread of Covid 19 could be prevented. This condition is what encouraged the author to study the importance of knowing the impact of Covid-19 in primary education level. The research was conducted by taking the case of the Elementary School 67 Dulang, Makassar.

Discussion

As the corona virus was found in Indonesia, several policies related to the teaching and learning process, especially in the primary education level, were implemented. Among those policies, one of them is social distancing. In Public Elementary Schools 67, this policy of maintaining distance was implemented by utilizing online teaching and learning following health protocols. Learning activity was in groups with a maximum of 5 people

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in one group, from Monday to Friday, from 07.30 am to 11.30 am. The parents' task was to assist and supervise their children and guide them in completing homework or assignments.

From the observations, it was noted that many obstacles were faced, such as when parents had to do their job supervising and guiding their children in completing their homework or assignments. It could not be done properly. Some reasons why parents could not perform their task properly was because they also had to do domestic work such as; cooking, cleaning, washing and so on. In addition, for parents who worked outside the home, it was a very tough challenge. The conflict of interest between the interests of education, domestic work and work outside the home results in the failure of the learning process at home. Having more than one child in the household also contributes significantly to the learning process at home, as they must strictly manage the time.

The online teaching and learning process was carried out remotely, so they had to make sure that the internet network and communication tools (cell phone, TV or computer/laptop) were in a good condition. Unstable internet connection disrupts the learning process. The communication facilities made it easier for the teacher and students to do the teaching and learning process. Another obstacle was the online method used. The use of applications such as; WhatsApp, Google Meet, Zoom and Google Classroom consumed a large amount of data, so costs were expensive.

With the various findings described above, some parents preferred their children to study at school rather than having to study online at home. Some of the reasons that were found were that it was easier for the students to understand the material when learning at school, students could interact with their friends and teachers directly, some parents complained about an increase in spending on the use of data packages and food consumption (snacks) when studying at home. One thing that supports online learning is that children felt happy and comfortable being able to spend time at home with their families and parents.

Conclusion

The learning activities in the primary education level were carried out online in groups with a maximum of 5 students, which is an alternative of teaching and learning process during the Covid-19 pandemic. The consequence of online learning is the need to have good internet service and communication tools.

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Satisfaction in a Positive Psychological Perspective

Laola Badu Wawa[1]

Introduction

Satisfaction means *kepuasan* in Indonesian language. In terms of language, satisfaction comes from the word *puas* which in the Big Indonesian Dictionary (KBBI) means feeling happy, relieved, happy because one's desire is fulfilled. Satisfaction is often associated with the fulfillment of desires, which often have to go through a struggle to get it. Many believe, the heavier the struggle one goes through, the greater the satisfaction that will be felt when achieving something. Maslow argues that we must satisfy lower needs before we seek satisfaction from higher needs [1]. This shows that individuals must fulfill the need to be able to feel satisfaction as the peak of achievement.

In the context of science, satisfaction is often the subject of research which is often used as an evaluation material to improve and even improve the relationships that occur. Industrial psychology researchers make satisfaction a research variable that is associated with job quality, such as job satisfaction. Satisfaction has become a trend in its own right that is being developed in various fields of psychology such as industrial psychology, counseling psychology, educational psychology, developmental psychology, and even various disciplines that make satisfaction a research and research theme.

Humans are said to be satisfied when they get the similarity between hope and reality. Satisfaction certainly gives happiness to individuals, but happiness does not always indicate individual satisfaction. The life satisfaction of one individual will be different from the life satisfaction of other people, because what becomes the standard of happiness is different. As in early childhood, the majority of life satisfaction will be felt when the people around him provide opportunities and protection that make him comfortable to develop all his potential. Huebner stated that life satisfaction is a person's evaluation of his life as a whole as seen from the assessment of his family, friends, and school [3]. When the individual feels good about himself, he will be satisfied with the life he lives. In early childhood, life satisfaction can be created when people around them give appreciation for the things the child does.

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Discussion

Satisfaction from a Positive Psychological Perspective

In everyday life, satisfaction is closely related to happiness. But satisfaction and happiness have a difference if we dig deeper. Happiness is defined as a pleasant experience that is obtained spontaneously after obtaining something relatively quickly passed. While satisfaction is more defined as an overall assessment of life, not just about happiness [2]. Likewise, there are differences between life satisfaction and well-being. Life satisfaction is based on five factors that contribute to welfare which is unable to measure life satisfaction subjectively because of differences in individual perceptions of the meaning of life satisfaction [1].

In some studies, satisfaction is associated with attachment or intimacy that occurs in an intrapersonal interaction. For example, marriage satisfaction is always associated with the intimacy that occurs between husband and wife. Parenting satisfaction is closely related to the attachment that occurs in the relationship between parents and children. Meanwhile, relationship satisfaction reflects human intrapersonal interactions as social beings. Satisfaction is one of the areas of positive psychology that can be measured in addition to the welfare of life that has been achieved in the past. Likewise, with happiness in the present and hope in the future. So, it is clear that satisfaction belongs to the discussion of positive psychology. Many things can be related to satisfaction, including gratitude (grateful), forgiveness (forgiveness). Satisfaction consists of many aspects, as well as satisfaction which can be another variable aspect in positive psychology research.

Factors Affecting Satisfaction

There are many factors that affect a person's life satisfaction, including interpersonal, intrapersonal, environmental [4] experiences and evaluation of life assessments [2]. The ability to manage conflict resolution is also very important for household satisfaction. Couples who are better at conflict resolution will have higher satisfaction in being married than couples who choose to stay away when faced with problems [5]. Understanding emotions, good sex, emotional support, mindfulness, self-forgiveness, self-expanding [6]. Likewise, the causal relationship between self-esteem affects satisfaction, satisfaction affects self-esteem.

The Study of Satisfaction

The study of satisfaction begins with various problems that need to be resolved in a marital relationship. So that many journals and books that discuss satisfaction are closely related to satisfaction in marriage or

what is better known as "marital satisfaction", one example of research that examines satisfaction in marital relationships [7]. Research on satisfaction in marital relationships is usually done to find the cause or description of poor quality in a marriage [8]. Life satisfaction is also a cross-cultural psychological topic which explains that affluent countries tend to have higher life satisfaction rates than countries that are not yet prosperous or countries with high unemployment [9].

Operationally positive psychology is defined in three domains, namely life satisfaction and well-being (describing positivity in the past), flow (flow) and happiness (positive conditions in the present), and hope and optimism (positive in the future). Satisfaction of biological needs is one of the conditions used to consider survival efforts in addition to coordination of social interactions and facilitation of social functions [1]. Satisfaction can also be generated from the strength that is within the individual to continue doing activities when there is a threat or time limit for doing something [1].

Satisfaction is a variable that is widely associated with other variables in positive psychology research. Because satisfaction is a view or assessment that consists of many elements, it can be said that satisfaction is part of another variable that is difficult to describe but becomes clear when combined with other variables. According to [10] humans also have psychological needs which can be a special variable or research variable that is integrated with other variables, for example psychological well-being which is an integration of several positive characters such as mood, life satisfaction, openness to experience, empathy, self-actualization, and conscience.

In a study on meeting daily needs [11], meeting daily needs will make the satisfaction achieved will also increase global welfare. Research on vitality shows that vitality is a positive emotion that is activated so that it is different from just happiness which includes inactive conditions such as satisfaction, pleasure, and so on. Barker concluded that having friends, a purpose in life, a beautiful life history to remember, sufficient money and a strong will to continue to grow are 5 ways to increase satisfaction in life [12].

A study on the elderly shows that wisdom is a determinant of achieving life satisfaction [13]. Likewise, research on adolescents shows a significant positive relationship between wisdom and life satisfaction among adolescents [14]. In contrast to research that looks at life satisfaction for children with special needs who experience low vision, it turns out that satisfaction has a high correlation with self-compassion [15].

By development of many researches, satisfaction is not only examined by individuals with something but also with what is being undertaken, namely in the form of relationships. Satisfaction with the relationships that individuals have with other individuals is the object of research that is widely used outside Indonesia. However, it has not been widely studied in Indonesia, for example the satisfaction of the relationship between parents and children. In Iran, satisfaction in the relationship between parents and children is related to the myths and beliefs that parents have before marriage [16].

Satisfaction Measurement

Each measurement instrument or life satisfaction scale used in research will produce a variety of different information. If using a scale intended for the public, it will yield information about life satisfaction globally (for example, a measurement of the overall level of life satisfaction for an individual or group). If the measurement instrument or scale is used to measure the level of student satisfaction, the resulting information will be related to education and school [17]. Meanwhile, measurement using a multidimensional scale will produce information that is diverse and can further be distinguished related to certain domains.

In general, research on life satisfaction should have a consistent and adequate reliability value (with an Alpha value in the range of 0.70-0.80) and measurements taken not once but repeatedly and usually take one year. Several past life satisfaction studies also show strong evidence of various types of validity. For example, factor analytic studies show comparisons and differences regarding life satisfaction between youth groups from different countries [18], [19].

Furthermore, even though the respondent's condition is in a stable state, but reports on life satisfaction are not static, individual life satisfaction is influenced by changes in life experiences, with observed fluctuations moving in the expected direction. For example, a longitudinal study of global life satisfaction found that when people's responses to stress decreased, their life satisfaction increased [20].

Several life satisfaction measurement instruments include:

1. The Satisfaction with Life Scale [21].
2. The Perceived Life Satisfaction Scale [22].
3. The Multidimensional Students' Life Satisfaction Scale [23].
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Application of Land Acquisition for Development for Public Interest in Dam Construction

M. Stipan Bhakti Ardiyono[1]

Introduction

Land acquisition is the government's act of acquiring land for various development purposes, particularly developed for the public interest. In principle, land acquisition is carried out by deliberation until reaching a consensus by prioritizing the principles of justice and welfare for the communities affected by the impact of land acquisition [4].

Basically, during the implementation of land acquisition, where there is often no agreement between the executing committee for land acquisition and the community, is the provision or implementation of compensation. However, with the existence of law number 2 of 2012 concerning land acquisition for development for the public interest, it has been regulated how the stages in the land acquisition process aim to reach common ground and agreement between the land acquisition executive committee and the community affected by the land acquisition. for the public interest [5].

Discussion

The state as an organization of power for all the people is given the right to control the land to create the prosperity of the people which is known as the right to control the State. The right to control the state referred to in article 2 paragraph (1) UUPA which gives the authority to: [6]

a. Regulating and administering the use of supplies and maintenance of earth, water, and space.
b. Determine and regulate the legal relationships between people and the earth, water, and space
c. Determine and regulate legal relationships between people and legal actions regarding the earth, water, and space.

Based on this authority, the state regulates the use of supplies and maintenance of earth, water, and space. The handling of land for public purposes needs to be done as well as possible and carried out with due

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observance of the role of land in human life and the principle of respect for legal land rights. Land, besides having economic value, also has a social function. As Article 6 of Law Number 5 of 1960 states: "all land rights have a social function", it is this social function that sometimes requires that private interests in land be sacrificed for the sake of public interest. What is meant by public interest is the interest of the State and the government community and is used as much as possible for the prosperity of the people [6].

Land acquisition is the activity of providing land by giving appropriate and fair compensation to those who are entitled. This activity is carried out to provide land for the implementation of development for the welfare and prosperity of the nation, state, and society while still ensuring the rightful legal interests.

Not all development activities can be classified as development for the public interest. Land for public use is used for development (article 10 of Law No.2 of 2012) [1]:

a. Land and national security;
b. public roads, toll roads, tunnels, railways, railway stations, and railway operating facilities;
c. Reservoirs, dams, weirs, irrigation, drinking water channels, sewerage and sanitation, and other irrigation structures;
d. Ports, airports, and terminals;
e. Oil, gas, and geothermal infrastructure;
f. Generating, transmission, substation, grid, and distribution of electric power;
g. Government telecommunications and informatics networks;
h. Landfills and waste processing;
i. Government / local government hospitals;
j. Public safety facilities;
k. Government / local government public burial places;
l. Social facilities, public facilities, and public green open spaces;
m. Nature reserve and cultural heritage;
n. Government / regional / village government offices;
o. Arrangement of urban slum settlements and/or, land consolidation offices, as well as housing for low-income communities with lease status;
p. Educational infrastructure or government / local government schools;
q. Government / regional government sports infrastructure; and
r. Public markets and public parking lots.

Land acquisition for the public interest is carried out based on the principles of [1]:

a. Humanity
   What is meant by "humanitarian principle" is that land acquisition must provide protection and respect for the human rights, dignity, and dignity of every citizen and population of Indonesia in a proportional manner.
b. Justice
   What is meant by the "principle of justice" is to provide guarantees for appropriate compensation to the entitled parties in the land acquisition process so that they have the opportunity to lead a better life.
c. Benefit
   What is meant by the "principle of benefit" is that the results of land acquisition can provide broad benefits for the interests of the community, nation, and state.
d. Certainty
   What is meant by the "principle of certainty" is to provide legal certainty for the availability of land in the process of land acquisition for development and to provide guarantees to the party entitled to obtain appropriate compensation.
e. Openness
   What is meant by the "principle of openness" is that land acquisition for development is carried out by providing access to the public to obtain information related to land acquisition.
f. Deal
   What is meant by the "principle of agreement" is that the land acquisition process is carried out by deliberation of the parties without coercion to obtain a collective agreement.
g. Opt-in
   What is meant by the "principle of participation" is support in the implementation of land acquisition through community participation, either directly or indirectly. From planning to development activities.
h. Welfare
   What is meant by "the principle of welfare" is that of land acquisition for development. Can provide added value for the survival of the entitled parties and society at large.
i. Continuity
   What is meant by the "principle of sustainability" is that development activities can take place continuously and continuously, to achieve the expected goals.

j. Harmony
   What is meant by the "principle of harmony" is that land acquisition for development can be balanced and in line with the interests of the community and the state.

Land procurement for public purposes is carried out by the government by [3]:

a. Spatial plans;
b. National / Regional development plans;
c. The strategic plan; and
d. The work plan of every agency requiring land.

The implementation of land acquisition for the public interest takes into account the balance between the interests of development and the interests of the community, carried out by providing appropriate and fair compensation. Compensation is compensation in the form of money or other goods to someone who feels that they have been harmed because their property is taken and used for the benefit of many people. Compensation for damages is a reasonable and fair compensation to the entitled parties in the land acquisition process [2].

Article 27 paragraph (2) of Law Number 2 of 2012 the implementation of land acquisition includes [2]:

a. Inventory and identification of control, ownership, use, and utilization of land
b. Assessment of compensation
c. Deliberation to determine compensation;
d. Providing compensation; and
e. Release of agency land

Inventory and identification of control, ownership, use, and utilization of land as referred to in Article 27 paragraph (2) letter a includes the following activities [2]:

a. Measurement and mapping per plot of land; and
b. Collecting data on entitled parties and objects of land acquisition.

The implementation of land acquisition for the public interest takes into account the balance between the interests of development and the interests of the community, carried out by providing appropriate and fair compensation. Compensation is compensation in the form of money or other goods to someone who feels that they have been harmed because their property is taken and used for the benefit of many people. Compensation for damages is a reasonable and fair compensation to the entitled parties in the land acquisition process.

Article 27 paragraph (2) of Law Number 2 of 2012 the implementation of land acquisition includes [2]:

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Inventory and identification of control, ownership, use, and utilization of land as referred to in Article 27 paragraph (2) letter a includes the following activities [3]:

a. Measurement and mapping per plot of land; and
b. Collecting data on entitled parties and objects of land acquisition.

Inventory and identification are carried out to identify entitled parties and objects of land acquisition. The results of the inventory and identification contain a list of nominated parties entitled to and objects of land acquisition. The parties are entitled to include the name, address, and occupation of the party who controls/owns the land. The objects of the land acquisition include the location, area, status, and types of land use and utilization. Inventory and identification of control, ownership, use, and utilization of land as carried out within a maximum period of 30 (thirty) working days. The assessment of the value of Compensation by the Appraiser is carried out in a plot per plot of land, including [2]:

a. Soil;
b. Above ground and basement;
c. Building;
d. Plant;
e. Land related objects; and/or
f. Other losses that can be assessed. (What is meant by "other assessable loss" is a non-physical loss that can be equalized to the value of money, for example, losses due to loss of business or job, cost of relocation, cost of profession transfer, and value of the residual property).

After determining the location for the public interest, the entitled party can only transfer the title to the land to the agency requiring the land through the land agency. The transfer of rights is carried out by providing compensation, the value of which is determined at the time of the announcement of the location determination value. The amount of compensation value based on the appraiser's assessment shall be submitted to the land agency with an official report. The value of compensation based on the appraiser's assessment becomes the basis for deliberations to

determine the compensation. In the case of certain land parcels that are affected by land acquisition, some residues can no longer be used according to their designation and use. The entitled party can request a replacement in full of their land parcels [7].

Article 36 of Law Number 2 of 2012 states that compensation can be given in the form of [1]:

a. Money;
b. Replacement land;
c. Resettlement; What is meant by "resettlement" is the process of providing replacement land to the Entitled Party to another location by the agreement in the Land Acquisition process.
d. Shareholding; or What is meant by "form of compensation through share ownership" is the participation of shares in development activities for the related public interest and/or its management based on an agreement between the parties.
e. Another form agreed upon by both parties. Other forms agreed upon by both parties include a combination of 2 (two) or more forms of Compensation as referred to in letter a, letter b, letter c, and letter d.

Regarding compensation in the form of money in land acquisition, based on Presidential Regulation (Perpres) Number 148 of 2015 concerning the Fourth Amendment to Presidential Decree Number 71 of 2012 concerning Implementation of Land Acquisition for Development for Public Interest, it is carried out by agencies requiring land-based on validation from the chief executive. land acquisition or appointed official. The validation shall be carried out within a maximum period of three working days from the minute of the agreement on the form of compensation. Compensation for damages shall be made within a maximum period of seven working days from the determination of the form of compensation by the executor of land acquisition [5].

The land agency shall conduct deliberations with the entitled parties within 30 (thirty) working days since the results of the appraiser's appraisal are submitted to the Land Agency to determine the form and/or amount of compensation based on the results of the Compensation assessment. The result of the agreement in deliberation becomes the basis for the provision of Compensation to the Eligible Party which is included in the minutes of the agreement [4].

Compensation is given to the Eligible Party based on the results of the assessment determined in deliberation. In principle, the provision of compensation must be submitted directly to the party entitled to compensation. If unable to do so, the party entitled by law can give

power of attorney to other parties or the heirs. The power of attorney can only receive power of attorney from one person who is entitled to Compensation. Those entitled to include [3]:

a. Land rights holders;
b. Management rights holders;
c. Nadzir, for the donated land;
d. Owners of former customary land;
e. Indigenous peoples;
f. Parties who control state land in good faith;
g. The basic holder of land tenure; and/or
h. Owners of buildings, plants, or other objects related to land.

In the provisions, Compensation is given to holders of Land Rights. For the right to build or use rights that are on land that does not belong to him, compensation is given to the holder of the right to build or use rights over buildings, plants, or other objects related to the land he owns or owns, while Compensation for the land is given. to holders of ownership or management rights. Compensation for customary land rights is given in the form of replacement land, resettlement, or other forms as agreed by the customary law community concerned. The party who controls state land that can be compensated is the user of the state land who is by or does not violate the provisions of the statutory regulations. For example, former rights holders who have expired who are still using or utilizing the land concerned, parties who control state land based on leases, or other parties who use or utilize free state land without violating the provisions of laws and regulations [4].

What is meant by "basic holder of control over land" is a party who has evidence issued by an authorized official which proves the existence of control in question over the land concerned, for example, the holder of a sale and purchase deed of Land Rights that has not been reversed, the holder of the selling deed. purchase of customary property rights that have not been issued a certificate, and the holder of a residence permit. Buildings, plants, or other objects related to land that does not or do not have land rights, compensation is given to owners of buildings, plants, or other objects related to land [2].

At the time of giving compensation, the party entitled to receive compensation must:

a. Carry out a waiver of rights; and
b. Submit Evidence of Ownership or Ownership of Land Acquisition Objects to agencies requiring land through the Land Agency. Relinquishment of rights is an activity of terminating legal relations

between entitled parties to the State through a land institution.

Article 42 of Law Number 2 of 2012 states: If the Eligible Party refuses the form and/or amount of compensation based on the results of deliberation, the Compensation shall be deposited at the local District Court. Custody of Compensation is also carried out for [3]:

a. The whereabouts of the party entitled to receive compensation are unknown; or
b. Land Acquisition Objects to be compensated for:
c. Being the object of a case in court;
d. Ownership is still being processed;
e. Confiscated by an authorized official; or
f. Become collateral at the bank.

Conclusion

Land acquisition for development for the public interest is an activity to provide land by giving appropriate and fair compensation to entitled parties. Land acquisition is regulated in Article 33 Law 1945, Law Number 5 the Year 1960, and Law Number 2 the Year 2012 concerning Land Acquisition for Development for Public Interest. Inland acquisition carried out using Relinquishment of Rights, is an activity to terminate the legal relationship of the entitled party to the state through the Land Institution.

The policy for providing compensation is carried out using appropriate and fair compensation to entitled parties in the land acquisition process. The appraiser's assessment of the amount of compensation is carried out in a plot per plot of land, including a. Soil; b. Above ground and basement; c. Building; d. Plant; e. Land-related objects; and/or f. Other losses can be assessed. Compensation can be given in the form of a. Money; b. Replacement land; c. Resettlement; d. Shareholding; or e. Another form agreed upon by both parties. Other forms agreed upon by both parties include a combination of 2 (two) or more forms of Compensation as referred to in letter a, letter b, letter c, and letter d.

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Enhancing the Psychological Well-Being of the Elderly through Physical Activities and Arts

Maulani Firul Khotimah[1]

Introduction

The definite changes that occur in humans in the span of life begin with birth, grow, develop, grow old, and face death. Each phase of life gets the attention of various parties, namely the elderly. According to E. B. Hurlock [1] the elderly are those who have entered the age of 60, and in this case, it is hoped that individuals will be able to accept all changes in various aspects of life. Unpreparedness to face these changes can cause the elderly to be vulnerable to stress and end up feeling hopeless.

Depression experienced by the elderly is caused by life emptiness, feelings of boredom, and fear that something bad will happen to them [2]. This is consistent with the empty nest phenomenon. This means that individuals experience a crisis in themselves, a sense of loss because their children live independently, retire, menopause, and the death of a partner.

The results of the study of O. G. Ibitoye, O. A. Sanuade, A. S. Adebowale, and O. Ayeni [3] stated that a person's psychological well-being will decrease with age. Those who have a higher level of education tend to experience psychological well-being compared to those who only take basic education. Another thing that affects the level of individual welfare of the elderly is also a low economy. Seeing the potential problems that occur in the elderly, it is necessary to find a way to prevent or reduce the burden of these problems. One of the things that the elderly can do is to achieve psychological well-being. As for what can be done to achieve psychological well-being is through physical activity and art.

Physical activity is considered to have a positive correlation with improving bodily function and well-being in the elderly. The results of related research indicate that the psychological well-being of the elderly increases along with the improvement of bodily functions. Apart from improving bodily functions, physical activity affects coordination, flexibility, good sleep quality, decreases depression, anxiety, and improves psychological well-being [4].

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Discussions

Psychological Well-Being in the Elderly

The elderly are in the closing period in the life span. This period is divided into an early age-aged 60-69 years and elderly people from 70 years of age until the end of a person's life [1]. Meanwhile, according to [5] old age or late adulthood starts in the 60s until death.

According to R. D. Papalia, D.E., Old, S.W., & Feldman, Human Development [6] psychological well-being is the full achievement of a person's psychological potential and a state when individuals can accept their strengths and weaknesses as they are, have a life purpose, are independent, are able to control the environment, and continue to grow personally. This means that psychological well-being depends on the ability to organize or be fully involved in invaluable roles and activities. The behavioral dimensions of psychological well-being include self-acceptance, positive relations with others, autonomy, environmental mastery, purpose life, and personal development. personal growth) [7].

The elderly are in the range of developmental stages of mature age [8]. At this stage, the psychosocial crisis that emerges is integrity vs despair (integrity vs despair). Integrity is described as a condition that a person achieves after caring for objects, people, ideas, products, and after adjusting to the failures in life. While despair is defined as changes in the life cycle of an individual regarding social conditions and in the face of death. Out of integrity and despair comes a value called wisdom. In this case, the wisdom will direct the elderly individual to achieve a prosperous condition.

Psychological well-being for the elderly is something that must be owned and felt by the elderly for the rest of their life so that they can accept life and achieve a prosperous condition. There are many ways to improve psychological well-being, one of which is the art and physical activities.

Benefits of Physical Activities and Arts

Physical activity is a health behavior associated with improved physical function and heart health, as well as a reduced risk of several major causes of death including cancer and heart disease [9]. According to R. Kumar [10] physical activity has many health, social and economic benefits. Activities carried out can be in the form of walking, cycling, active recreation, and so on.

According to R. Cekin [11] physical activity is divided into two terms, namely aerobic and non-aerobic activity. Aerobic activity is a physical activity with light to a strong intensity that requires more oxygen, such

as cycling, jumping rope, swimming, running, playing ball, basketball, volleyball, and so on. Meanwhile, non-aerobic physical activity is an intense activity of short duration and requires adequate oxygen dissipation. A person who applies physical activity regularly tends to have self-esteem, optimism, psychological well-being, and happiness [12]. The results of another study were conducted which showed that physical activity can reduce the risk of cognitive impairment and Alzheimer's disease [13].

Physical activity such as running and cycling will improve fitness or endurance. Weight training will increase muscle strength. Yoga and stretching will improve flexibility and balance [11]. Other physical activities such as regular exercise can release endorphins which then create feelings of euphoria [14]. Another study conducted by J. Punzalan [15], found that physical exercise can improve mental health. Aerobic training for example can reduce stress levels. Furthermore, cardiovascular (heart health) based training can increase self-confidence and decrease emotional levels.

Art has long been considered part of the affective experience of humans. Art is needed as a medium for expression, communication, exploration, imagination, culture, and historical understanding [16]. Art activity also has various benefits that are in line with physical activity, including reducing levels of stress and depression. One of the art activities that can be done is a painting [17].

Based on the explanation above, it can be concluded that physical activity has many benefits for a person. Likewise artistic activities also have an impact on individual health and well-being. In general, both can lower stress levels, reduce depression, and improve psychological well-being.

Physical Activity and Arts Improve Psychological Well-Being in the Elderly

Physical activity has many benefits in the life of the elderly. Regular participation in physical activity can promote independent living and reduce stress [13]. According to the results of research conducted by [18] physical activity can improve psychological well-being in the elderly because in these activities they meet other people and new environments.

Physical activity in the elderly that is done consistently can improve quality of life, which is related to psychological well-being [19]. In line with the research of Vina et al (2016), the results show that physical activity carried out regularly can improve psychological well-being in the elderly. The elderly who spend at least two hours per week on artistic activities can improve psychological well-being in these individuals [20]. E. S. Kim, L. D. Kubzansky, J. Soo, and J. K. Boehm [21] conducted a study on people

aged ≥ 50 years and found that those who do physical activity get a higher welfare rate than those who do not do physical activity.

Research conducted by S. Kadariya, R. Gautam, and A. R. Aro [22] found that the elderly who do a non-aerobic physical activity can improve psychological well-being. Another study conducted by J. W. Santrock [4] showed that physical activity in the elderly can reduce depression levels, improve sleep quality, and also psychological well-being. All physical activity data in the study were obtained through a report. The physical activities include taking walks in your spare time, meeting with friends, gardening, exercising, stretching muscles, warming up joints, playing tennis, badminton, or golf. These activities in the elderly are not aimed at gaining strength but only for maintaining the body to stay healthy and as a way to achieve psychological well-being. Physical activity or fitness training can be done regularly every day or at least twice a week.

Research conducted C. L. M. Roswiyani, Kwakkenbos, Linda., Spijker, Jan., & Witteman [23] found that visual arts activities can improve the welfare of the elderly. The visual arts activity is carried out by expressing ideas/ideas/thoughts and feelings on the media such as painting on paper, canvas, or making handicrafts using earthenware and clay. Each elderly person can choose a group according to their respective interests and hobbies in the arts.

Based on some of the findings above, it shows that the elderly who take the time to participate in physical and artistic activities can improve their psychological well-being. Through physical activity, they meet new environments and people who share the same interests. In addition, maintaining a healthy body in the elderly can improve psychological well-being.

Based on research of A. Delle Fave, M. Bassi, E. S. Boccaletti, C. Roncaglione, G. Bernardelli, and D. Mari [24], the physical activity carried out by the elderly can be started with regular physical activity such as walking at least once a week. This walking activity is carried out for a maximum of 400m with a duration of about 15 minutes without the need to sit or lean back. The results of the study of R. Cekin [11] physical activities that can be done by the elderly include physical fitness such as exercise and muscle flexibility/stretching.

The elderly can divide art activities into groups such as literature, visual arts, musical performances, handicrafts, and dancing [25]. The elderly literature group can carry out activities such as reading newspapers, comics, or magazines. The elderly are also provided with paper to write

poetry and story essays based on experiences. In the visual arts group, the elderly can participate in activities such as visiting museums, watching drama, comedy, or musical films, playing dramas, attending cultural performances, and creating computer animation works. In performing arts groups, the elderly can attend classical, pop, or jazz music performances. In addition, the elderly can play musical instruments by playing instruments and sing songs according to their personal preferences. In the handicraft group, the elderly can paint, make works through pottery, and paint on cloth media (batik). In the dancing group, what the elderly can do is dance classical dances accompanied by music.

Based on the results of the above research, various physical and artistic activities can be done by the elderly, starting with gymnastics, light muscle stretching exercises, and walking for 15 minutes at least once a week. Art activities that can be carried out are painting, joining vocal groups, making works from pottery, making batik, and others. Art activities are more related to the culture in which each individual lives. So the elderly can adjust to their respective cultures.

Conclusions

Activities that are cultured in one place are not necessarily carried out by the elderly in another place, neither are physical activities and arts. Based on the results of expert exposure and research above, it can be concluded that physical and artistic activities carried out in leisure time can improve psychological well-being in the elderly. As for what individuals can do when they enter their elderly age in order to achieve a condition of success aging and achieve psychological well-being, is to carry out routine activities through physical and artistic activities.

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Helping Slow Learner Children to Solve the Learning Difficulties

Melianawati[1]

Introduction

Slow learning is one of the learning difficulties in children caused by low intelligence factors. The average intelligence score they have is between 71 - 84 [1]. Most of these learning difficulties are encountered in the world of education. Slow learners are not included in the category of having mental retardation, but they have slower abilities to learn than their peers. They require more time, repetition, and must consult with teachers more frequently to achieve success in learning [2].

Slow learning is an internal term/concept filled with psychology, contemporary education, cultural interpretations, and representations [3]. The concept of "slow" is an expression of frequently used words, images, and actions that are convincingly relevant to all ages of children, adolescents, and adults. Slow learners have the same physical appearance and function as other children in general. However, when observed they will take longer time and intensity and require repeated efforts. They also taught slowly when doing academic and non-academic tasks.

Slow learners need special education. But they are not special education students. They are less suited to the special education system. Most of them study in public schools [4]. Therefore, when they are in a special school, they will have very good achievements and grades when compared to other children. But when they are in public schools they will be the children with the lowest learning achievement. Many schools have not provided the right curriculum and learning strategies also some mentoring according to their needs.

Slow learners often have learning and behavioral problems, because they have limited intellectual abilities and psychological skills. In general, their problems include lower learning motivation, academic, and achievement, also difficulties in practicing reading, writing, arithmetic, and memorizing. They also have difficulty in concentrating and get bored easily, so they do a lot of unfocused activities. Their limitation of

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psychological skills makes them have limited mechanical skills, low self-concept, immature interpersonal relationships, communication problems when talking with others, and an inappropriate understanding of their social roles (about who they are, what they think, and the views of others around him). When slow learner children are adults, they continue to experience weakness in self-perception and learning behavior which then causes them to experience held black behavior disorder and drop out of school [5].

In the community, there're some mistakes and a lack of understanding of slow learner children. This misunderstanding causes slow learners to become insecure about their physical and mental state. Even though most of them are children who are resilient in learning. To maintain learning enthusiasm and motivation to be confident requires support and efforts from all parties involved such as parents, families, school authorities (such as teachers), friends, and everyone in their environment.

Discussion

Slow Learner Characteristics

Shaw mentioned some characteristics possessed by children who are slow learners when compared to their peers. They have difficulty understanding learning techniques that use abstract concepts. They also have difficulties when changing and generalizing knowledge, learning strategies and skills and adapting to new concepts in new situations, organizing new material and assimilating new information with previous information (cognitively), timing and setting long-term goals, and including difficulty building achievement or academic motivation [5].

Factors that affect the slow learner

Many factors cause slow learning, internal and external factors. Internal factors are usually caused by illness, absence from school for a long-time, experiencing undetected physical disabilities, and environmental factors such as poor facilities. It causes low support learning skills, undernourished food quantity and quality, lack of sleep, attitudes poor parenting about education, poor or inappropriate opportunities in school (large classes), poor quality of teaching, inadequate and unsophisticated teaching materials, mismatches at home, and school, repeated school changes and changes due to style and content teaching, also because of emotional factors such as dislike of teachers, negative attitudes of parents towards school lead to similar bad attitudes in children, children feeling inadequate, lack of self-confidence and need for achievement, extreme fear and anxiety resulting in lower levels of achievement [4].

Parents effort who have slow learners

Family is the first environment that accepts the presence of slow learner children, especially their parents, siblings, and their closest ones. According to U. Khiyarusoleh [6] parents are their first companions whose task is to help them become independent children. Give love, give attention and respect to children. Every day parents make observations about their behavior and follow up so that the child gets better. Different from children who do not experience slow learner who can do more focused activities, children who experience slow learner have limited abilities that require them to make adjustments to their conditions. The assistance provided by parents for them can be done through activities accompanying them and accompanying them until the class ends. The assistance provided by parents is also very necessary in the school environment so that parents also know about the development of the child and this can be a benchmark for parents when the child is at home.

Parents are expected to understand, strive for, and protect children's rights to get learning opportunities and educational services according to their needs. Parents of slow learners also have the same expectations as other parents. Parents have a role in choosing schools so that their children can learn according to their needs and abilities. Choosing education by parents in inclusive schools has better grades when compared to children who study in regular schools. The inclusion schools have special companion teachers so that they can get services according to what they need and their characteristics as slow learners. By getting the same rights and learning opportunities, it is hoped that children will have good achievements.

Parents are expected to be a source of complete and correct data about themselves so that they can help the child's behavior intervention efforts. Parents' understanding of the characteristics and needs of their children is very influential on individual conditions, especially when they are in a new environment. Emotional instability when they feel bored doesn't want to be quiet. This needs to be considered so that parents are able to understand the child's condition.

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Teachers' effort to help slow learners difficulty

Teachers play an essential role to slow learners when they are at school. Slow learners need more attention when compared to their friends, teachers should ask if somethings they have not understood, close in on children, then ask about the difficulties during the learning process. The teachers can design and implement special programs for slow learners through learning methods and media so that the learning process can run effectively and efficiently [6]. The teachers can also use collaborative learning strategies that involve peers because peers are very influential in fostering their self-confidence, through this collaborative learning strategy children are expected to be able to solve problems during the learning process. They can give a picture of themselves freely according to their abilities [7].

The teachers who accompany slow learners can provide material according to children's abilities by simplifying the learning material so that it is easy for them to understand. Besides that, the teachers are also expected to be able to evaluate the development and progress of children after going through the learning process in class. It aims to find out the extent of their understanding of the material that has been taught [6].

The teachers are expected to appreciate students' efforts not only in academic matters. They can also apply the learning method used specifically for slow learners through concrete instructions. The children who have difficulty understanding abstract concepts will find it easier to learn with an approach through the instruction "look, feel, touch, and do it. Then, through generalization, the slow learners are guided to learn and practice the rules they have learned. However, they have difficulty knowing when, where, and how they must apply the rules. The teachers can explain the material they have mastered beforehand to slow learners through the strategy of organizing instruction so that they continue to the new subject matter easier. The next strategy can be through increasing instructional efficiency. The teachers can make more efficient instructions to make it easier for the children to understand instructions from the teacher such as instructions can be made using the help of a computer. Teachers should connect lessons with real-world experiences to provide academic motivation strengthening academic motivation. It is very important to make slow learners have academic resilience. Through social and economic need, slow learners often experience failure at school. It makes them have a low self-concept and they decide to leave school to prevent this from happening, encouraging students to take part in activities that require skills and unite slow learner children with other children in the group

through this activity significantly gave results and contributed to terms of motivation for school success and academic achievement [5].

The psychological approach to optimize the learning abilities of slow learners

The slow learners have learning barriers when they are asked to read, count, and remember. One way to improve reading skills in children can be done by involving children in the 4 M training (Seeing, Arranging, Spelling, Reading). The involvement of phonological awareness skills is needed in 4M training in the sense that phonology is a linguistic field that investigates language sounds based on their function. But before participating in this training, the children must good at the initial sounds of letters (phonemes) from a list of phonemes such as vowels and consonants. The 4M training took a behaviorist approach by Tolman. According to him, individual cognition is mediation or intermediary that works between stimulation and response, S-O-R (Stimulus / Stimulation - Organism - Stimulation/reciprocation). In this case, O is denoted as the role of cognition which mediates S and R. In this formula, cognition is a thought process to acquire, store, change, and acquire knowledge [8].

The effort in improving numeracy skills in slow learners is by providing learning methods, providing concrete/real learning media. One method of learning with real media is the Montessori method. Learning can be done using a teaching aid called the Montessori apparatus. One of the teaching aids used to help children with slow learners to teach arithmetic operations with material addition and place values can use a stamp game [9].

Based on the results of research conducted by I. M. Najma, R. Ghazala, and H. Rubina [10] on the effect of academic interventions on the development of slow learning skills, it shows that academic intervention is effective in improving adaptive skills, communication, and cognitive development skills.

Conclusion

Slow learners often experience learning and behavior problems, so they have limitations in intellectual abilities and psychological skills also have low learning motivation and academic achievement, have difficulty concentrating, get bored easily, do lots of undirected activities, have a concept low self towards themselves, and those around them. Through the support and efforts of all parties involved such as parents, families, school parties such as teachers, friends, and a psychological approach can optimize the learning abilities of slow learners.

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Role of Family in Fostering Puberty through Islamic Concepts

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Introduction

Adolescence is a period of individual life where there is psychological development to find an identity. During this transitional period, a teenager will develop the talents and abilities that others have shown to make them look different [1]. Along with this growth, puberty also occurs. Puberty in the term Fiqh known as puberty; time when a child experiences physical, psychological changes and maturation of sexual function. Usually begins at the age of eight to ten and ends at approximately fifteen to sixteen years of age. At this time, growth and development took place very rapidly.

The most striking changes are physical changes that occur naturally and cause them to be anxious, embarrassed, and feel that there is a physical problem so that they feel strange in their bodies [1]. One way to reduce anxiety is to provide correct, open, and easy to obtain information about the changes that will experience by adolescents [2].

Good knowledge is important during this puberty period because knowledge is one of the components in shaping a person's attitude. So, if an adolescent's knowledge about puberty is inadequate it will have an impact on adolescent attitudes who tend to negatively assess something related to sexuality [3]. Adolescents who have more mature readiness will feel more ready to face puberty due to family support and the surrounding environment that provides clean, safe, and complete information about reproductive health [4].

However, what often becomes a problem is that knowledge about puberty becomes a taboo discussion for parents towards their children. This problem will be one of the factors for the child to be closed off and embarrassed to share their anxiety so that the child looks for other people who feel able to understand and make it comfortable to tell stories or share anything. Whereas parents and family should be the most comfortable place for them.

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Discussion

Puberty

One of the first phases of teenage life is puberty. Puberty is defined as the transition from childhood to adulthood. During puberty, adolescents will experience many physical and psychological changes very fast. In men, the primary sex changes during puberty are marked by wet dreams, while the secondary changes in the form of voice change, hair growth in the armpits, mustache, beard, and genitals. Meanwhile, primary sex changes in girls are characterized by first menstruation (menarche) and are usually followed by changes in secondary sexual organs, namely enlarged breasts and hips [5].

The physical changes that adolescents experience during puberty have an impact on psychological and social changes. Psychological changes also result from an increase in gonadotropin hormones [6]. The forms of change that accompany puberty include cognitive, moral, emotional, social as a form of adolescent self-development [7]. Although these developments usually follow a certain sequence, the order of sexual maturity is not the same in every child, and there are individual differences in the age of the changes. Puberty usually takes place at the age of 13-20 years and is a more mature phase where the impulse is quiet to protruding to become dynamic [2].

As in all significant periods, the gap between the life span of puberty has certain characteristics that distinguish it from the previous and subsequent periods. Puberty is always a difficult time for teenagers and their parents. According to [8] the difficulty departs from the phenomenon of adolescents themselves with some specific behaviors; namely: adolescents begin to convey their freedom and rights to express their own opinions, adolescents are more easily influenced by their friends than when they were children, adolescents behave and have different pleasures even contrary to family behavior and pleasures, adolescents often become overconfident (overconfidence) and resulting in difficulty receiving parental advice and direction.

According to E. Triyanto [9], puberty is a time of change. At puberty, there are rapid changes both physically and psychologically. Several changes occur during puberty, namely: the emotional increase that occurs rapidly in adolescence known as the storm & stress period is a rapid change physically also accompanied by sexual maturity, a change in values where what they consider important in childhood becomes less important because they have approached adulthood. Most adolescents are

ambivalent in dealing with changes that occur due to wanting freedom but on the other hand, they are afraid of the responsibility that comes with that freedom and doubts their own ability to assume responsibility.

The factors that influence the development of social relationships, according to S. Nina [10], occur in three main environments, namely the family environment, the school environment and the community environment. Families are required to be able to carry out the duties of family development accordingly, namely providing responsible freedom, fostering open communication between parents and children, providing support, providing role models for adolescents. The four tasks of family development are family development tasks that are closely related to the needs of adolescents during puberty.

But in reality, there are still many families who are not fully able to carry out the task of family development for adolescents who are going through puberty. According to [11] some 78 percent of adolescents said that there was no explanation given by their parents about the signs of puberty. If the family does not meet the needs of adolescents who are undergoing puberty, while these adolescents experience the most difficult stages of development, there can be potential for adolescent development failure and causing adolescent health problems, such as confusion due to changes that occur in them, body image disorders, withdrawal, free sex behavior, adolescent violence, sexual identity disorder, and depression.

Sex Education at Puberty

Sex education is an effort to teach, raise awareness, and provide information on issues relating to sexual and marital instincts. This is so that if a teenager has grown into a young man and can understand the affairs of life, he will already know the problems that are forbidden and justified. Furthermore, he is even able to apply Islamic behavior as morals and habits of life and is not enslaved to lust and practices the ways of hedonism [12]. Sex education is providing knowledge about biological, psychological, and psychosocial changes as a result of human growth and development. In other words, sex education is an effort to provide knowledge about the function of the reproductive organs by instilling moral, ethical, and religious commitment so that there is no “abuse” of the reproductive organs, thus sex education can also be called family life education [13].

According to [12] the methods that can be taken by parents to provide sex education to adolescents at puberty are: parents must prohibit their children who are in transition from entering women's rooms, parents

must separate their beds because they sleep with siblings. -brothers are both male and female in one bed including things that provide sexual stimulation to children, parents must teach adab to look at children from their infancy because seeing the opposite sex includes things that provide sexual stimulation to children, parents must control television because television shows have a major influence on moral depravity, parents should never give freedom to their children to strengthen relationships with other boys or girls because that relationship brings great danger to morals, another big responsibility for people. old is to teach the laws of syara' concerning a tendency to lust and sexual maturity to the child.

Application in the family environment at puberty

As previously explained, the factors that influence the development of social relations, the socialization process of individuals according to [14] occur in three main environments, namely the family environment, the school environment, and the community environment. This main factor becomes the most influential thing compared to other factors because family is the environment closest to a person. Initially, the individual will be formed through the family environment. As we know that the main family is the parents, the influence of parental education in a family is very important.

In the life of a teenager, many things must be faced. including temptations in terms of sexuality both from within and from outside the teenager such as pornography, porno-action, prostitution, and so on. So parents must have the right method to help in dealing with these temptations. [12] have provided three methods that can be used by parents to provide sex education to children, these methods are: first, awareness because it is an agreement that since childhood children are taught that social deterioration and moral decadence spread throughout society. Occurs as a result of parents unable to make children aware of the dangers from an early age. The second method of warning, this method is seen as the greatest positive method in preventing children from doing things that are haram and heinous because it can provide a picture to the child about the nature of the danger that arises from uncontrollable lust. The third method of bonding is that if a child is bound by various bonds of belief, spiritual, thought, historical, social, and sports, from pre-puberty to adolescence, then no doubt he will grow up with faith and be educated with piety.

In Islam, it is explained that children have rights and obligations towards parents, as well as parents, have obligations that must be fulfilled

for their children. There are three children's rights that must be fulfilled by parents, namely; given a good name, taught about al-Quran when it has been tamyiz / able to distinguish good and bad and marry it when a child has found a good partner. This shows that parents have full responsibility for their children from birth to adulthood.

However, it does not mean that parents are overprotective of children's behavior and freedom. Excessive supervision or too restrain children can make their creativity die. Parents must remember that children are not miniature adults, therefore children need personal freedom to actualize their potential optimally. Even so, it does not mean that children should be given absolute freedom; they still need guidance from adults.

There are five concepts of children's education in Islam according to U.Abudullah Nashih [12], namely: modeling, habituation, giving advice, implementing control mechanisms, and sanctions systems. The five concepts must be implemented sequentially. The main thing that must be done before giving advice, control, and sanctions is to provide an example and habituation first. The aspects of education that parents should introduce to their children are as follows: first, the aspect of faith; introducing tauhid introducing halal and haram, teaching and getting used to worship, introducing and loving His prophet, as well as knowing and teaching the Qur'an. Both moral aspects, recognizing the concept of good and bad, do good to others, and introduce honesty practice. The three physical aspects; sports, a healthy lifestyle, instill positive character, must not harm yourself and others. The four aspects of reason; learning throughout life, emphasizing the concept of learning and teaching, studying various fields of science, and maintaining a healthy mind. There are five psychiatric aspects; fostering self-confidence, enthusiasm for survival, being fair to others, accepting both physical and material deficiencies, and teaching independence. The six social aspects; foster a sense of brotherhood, foster an attitude of affection, put the interests of others first, want to forgive, protect the rights of others. The seven aspects of sex education; giving an understanding that there are two sexes that have been created by Allah, introducing differences between male and female, introducing the boundaries of male and female genitalia, separating the bedrooms of boys and girls, teaching children to maintain their views.

Because of the above concept, parents can create a good environment for the development of their children from birth to adulthood. When the family has applied the educational concept described above, when children enter adolescence, parents do not have difficulty and do not get emotional easily in dealing with changes in their children. The children will be open

to the family because from the beginning they are educated with a good education.

Conclusion

There are several stages of child development that parents should know so that parents are able to guide and educate children in the right way according to their age. One of the first phases of teenage life is puberty. Puberty adolescence is defined as the transition from childhood to adulthood. adolescents during puberty will experience many physical and psychological changes that are very fast. In men, the primary sex changes during puberty are marked by wet dreams, while the secondary changes in the form of voice change, hair growth in the armpits, mustache, beard, and genitals. Meanwhile, primary sex changes in girls are marked by the first menstruation (menarche) and are usually followed by changes in secondary sexual organs, namely enlarged breasts and hips.

The factors that influence the development of social relations, according to Ali and Asrori, the individual socialization process occurs in three main environments, namely the family environment, the school environment, and the community environment. The family factor is the most influential thing than other factors. Because the family is the environment closest to an individual person. Initially, the individual will be formed through the family environment.

Therefore, parents can create a good environment for the development of their children from birth to adulthood by applying the concepts of Islamic and modern education, so that when children enter adolescence, parents have no trouble dealing with the changes in their children.

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An Analysis of Sustainable Home-yard Food Garden (KRPL) Program in Kebonsari Kulon, Sub-district Kanigaran, Probolinggo

Nabil[1]

Introduction

Food is one of human basic needs, meaning that fulfillment to food is a human right. This right is guaranteed and protected under Act No. 18 Year 2012, which regulates about food. According to data [1], in 2020, Indonesian population was predicted to reach 27.1 million and during 2014-2019 Indonesian rice consumption per capita experienced a decrease by 0.87% per year. However, the national rice consumption will increase by approximately 0.35% per year. Comparably, the demand of other food stocks such as fruits, vegetables, animal protein, and processed food will also rise. Food security is one of main priorities in which the government will focus on increasing food availability, stabilizing food distribution, accelerating food diversification, and supervising the security of fresh produce, famine, and malnutrition.

Ironically, household and individual food needs are still hard to be fully met because the growth of food production in Indonesia is slower than the population growth. According to [1], Indonesia still has a huge number of people living in poverty. In March 2014, the number of people living in poverty in Indonesia reached 10.51 million (8.34%) in villages and 17.78 million (14.17%) in cities, or 28.28 million (11.25%) in total. This group of people is the community that is most vulnerable to food fulfillment problem because of their low buying power.

Department of Food Security have launched several programs designed to solve food security problems, among them are priority activities such as Community Food Business Development (UPM) / Indonesian Farmer Shop (TTI), the Empowerment of Community Food Distribution Institution (LDPM), Community Food Barn Development (LPM), Regional Food Self-Reliant Development (KMP), Food and Nutrition Surveillance System (SKGP). These programs have been implemented in numerous areas in Indonesia (such as the program of Optimization of Sustainable Home-Yard Food Garden or KRPL)

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The KRPL program has been carried out since 2010 in various districts and cities in Indonesia. Every year, more districts and cities are added into this program. As released on the website of the Food Security Department (BKP), in 2012, KRPL program had been done in 5700 villages, 363 districts/cities, and 33 provinces with the target group of women farmers. Meanwhile, in 2017, this program had been carried out in 4824 villages across Indonesia. According to [2], KRPL is a concept of home-yard-based food diversification in order to meet the family's needs of food and nutrition. This program is run on the basis of local resource, environmentally friendly, and sustainability within one area.

There has been a great number of studies exploring the issues about food security; they either study about the impacts of a food security program or observe the food security condition in one area. One among them is a research done by [3]. The research aimed to analyze the added value of the Sustainable Home-Yard Food Garden (KRPL) activities to family's economy. The research employs descriptive analysis methods. The research found that the implementation of KRPL in a women farmer group *Dewi Sri* contributed added values. Qualitatively speaking, the research findings show that there were activities of selling farm products done by the group members. Basically, the main objective of KRPL activity is to ensure family's food security. However, if their food needs were already met by their farming products, they could sell the products. Quantitively measured, when the group members received income that was generated from the sales and purchase variance, this variance is regarded as the member's income. Hence, it can be assumed that the group members could increase their family income through KRPL activities. [4] did a research about The Effectivity of Food Price Policy toward Food Security. This research aimed to analyze the effectivity of food price policy (done by the government) on the national food security, so that the result can be used as a point of reference to revitalize the agriculture sector.

The research was conducted in Kelurahan Kebonsari Kulon, Kanigaran, Probolinggo. The location was selected using purposive method, because the selected location had one area that had already implemented Sustainable Home-Yard Food Garden (KRPL) program. That area was also a pilot area for KRPL program and the farmer group in that area is one of the groups that were updated with the agriculture issues. The sample was decided to be 10 respondents, representing the data of other respondents. The analysis used in this study was by calculating daily food consumption score. The calculation of daily food consumption consists of 1) food categorization based on its commodity, 2) the calculation of actual

energy and protein contents of each food category, and 3) the calculation of actual Average Energy Intake and Average Protein Intake

Discussion

Average Energy Intake (AEI)

The Average Energy Intake is a score that shows the level of energy consumption gained from food consumed daily. This approach was measured by using kilocalorie measurement unit (kcal) per person per day. The result of the analysis on the level of family energy consumption in the Sustainable Home-yard Food Garden (KRPL) group *Lestari Jaya* represents food secure status.

Table 1. The Level of Average Energy Intake (AEI) KRPL Program

Food Group	**Normative AEI level (kcal)**	**Actual AEI level (kcal)**	**% Normative AEI**	**%Actual AEI**
Grains	1075.0	1148.199	50	53.40
Roots and tubers	129.0	60.73	6	2.82
Meat, Poultry, & Fish	258.0	237.55	12.0	11.05
Fats & Oils	215.0	53.3	10.0	2.48
Oilseeds	64.5	52.755	3.0	2.45
Nuts	107.5	154.17	5.0	7.17
Sugar	107.5	84.6	5.5	3.93
Vegetables and Fruits	129.0	242.805	6.0	11.29
Others	64.5	22.955	30	1.07
Total	**2150.0**	2057.014	**100.0**	95.68

Source: Primary data processed in 2020

It can be seen from the table that the actual family energy consumption of the KRPL participants *Lestari Jaya* had not yet met the standard recommended by the government, as instructed in Regulation of Minister of Health No. 75 Year 2013 about Nutritional Adequacy Figures Recommended for Indonesia article 4, which states that the average adequacy of energy and protein for Indonesian people should be respectively 2150 kilo calories and 57 grams per person per day at a rate of consumption.

Table 1 also indicates that the food group of Grains was consumed the most by KRPL participants, with 2057.014 kcals/per person/per day or comprising 55.8% of the total share. Apart from that, several food consumptions in KRPL households had already met the standard of AEI, one of which was the consumption of Vegetables & Fruits food group. The level of vegetables and fruits consumption was 242.8 kcals/person/

day and contributes 11.29 of AEI. As it can be clearly seen from the data in Table 1, the average level of energy intake of KRPL *Lestari* program participants was 95.69%. This number suggests that the level of household food security is food secure.

Average Protein Intake (API)

The level of protein consumption is the amount of protein food group. The level of protein consumption can be seen form the Average Protein Intake (APIs), as instructed in Regulation of Minister of Health No. 75 Year 2013 about Nutritional Adequacy Figures Recommended for Indonesia article 4, which states that the average adequacy of energy and protein for Indonesian people should be respectively 2150 kilo calories and 57 grams per person per day at a rate of consumption.

Table 2 The level of Average Protein Intake (API) KRPL program participants

Food Groups	Actual API level	Actual API level %
Grains	21.03	36.90
Roots and Tubers	1.04	1.82
Meat, Poultry, & Fish	35.16	61.68
Fats and Oils	0	0
Oilseeds	0.49	0.85
Nuts	7.48	13.11
Sugar	0	0
Vegetables and Fruits	4.48	7.85
Others	0	0
Total	69.67	122.22

Source: Processed primary data

Table 2 reveals that the level of household protein intake of the KRPL *Lestari* participants was 69.67 grams/person/day. This number had met the standard of protein consumption in Indonesia by Ministry of Health, which is 57 grams/person/day. The biggest contributor came from animal protein consumption, which made up 35.16 grams/person/day, contributing 61.68% to the total share.

The Pattern of Food Consumption Based on Quality Aspect

Desirable Dietary Pattern (DDP) score is a parameter that is used to know the household food security in one area. The actual household DDP score of KRPL Program *Lestari* can be seen in the table below:

Table 3. The Average Score of Household DDP KRPL Program

Food Groups	Normative DDP Score	Actual DDP Score
Grains	25.0	24.34
Roots and Tubers	2.5	1.26
Meat, Poultry, and Fish	24.0	18.18
Fats and Oils	5.0	1.24
Oilseeds	1.0	0.56
Nuts	10.0	7.37
Sugar	2.5	1.75
Vegetables and Fruits	30.0	30.00
Others	0.0	0
Total	100.0	84.70

Source: Primary data, processed in 2020

Looking at Table 3, it is apparent that the household DDP score of KRPL program *Lestari Jaya* is 84.70. This score is still relatively lower compared to the recommended normative DDP score. Thus, it can be concluded that the household DDP score of KRPL *Lestari Jaya* participants lacks of diversity. The lack of diversity in the participants' food consumption pattern is caused by the lack of trainings by Department of Agriculture, Probolinggo, particularly trainings focusing on utilizing home-yard food garden, family nutrition, nutrition content in food, and good food processing. These trainings are usually held in the form of discussions with KRPL program members, simulations during Empowerment and Family Welfare (PKK) programs, and seminars.

The highest household DDP scores of KRPL *Lestari Jaya* participants are attributed to vegetables and fruits food group with 30.00 and grains food group with 24.34. Those scores indicate that KSPL *Lestari Jaya* households are starting to be aware of the consumption pattern diversification.

Conclusion

Based on the results of this study about the effects of home-yard food garden on the household food security in Kebonsari Kulon, Sub-district Kanigaran, Probolinggo, it can be concluded that the actual household energy consumption of KRPL *Lestari Jaya* participants has not yet met the standard recommended by the government. However, the participants' protein intake has met the standard specified in Regulation of Minister of Health No. 75 Year 2013 about Nutritional Adequacy Figures Recommended for Indonesia article 4. In addition, the average score of DDP achieved by KRPL participants' households is 84.70. This number implies that the food consumption pattern lacks of diversification. Hence, more intensive trainings and monitoring are necessary in order

to promote Sustainable Home-yard Food Garden (KRPL), particularly in Probolinggo.

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The Effectiveness of Online Learning During Covid-19 Pandemic In Malang City

Nadira Fauziyah[1]

Introduction

The COVID-19 pandemic has created a global multi-complex crisis due to its rapid transmission. COVID-19 is a contagious disease caused by severe acute respiratory syndrome coronavirus 2 (SARS-CoV-2) infecting the respiratory system [13]. The pandemic has not only created disturbances in the world's health and economic sectors, but also in the education sector [1]. The immediate measures taken by Indonesian government to prevent the potential of COVID-19 severe impacts on the national education sector is by implementing distance learning. The decision was taken according to the Circular Letter of the Ministry of Education and Culture (MOEC) No. 1 of 2020 concerning the prevention of COVID-19 transmission in higher education institutions. Based on the Circular Letter, MOEC decided that teaching and learning activities are to take place online and urged students to conduct an at-home independent learning. As the follow-up of the Circular, conventional at-school learning activities are replaced by a distance learning from home. Thus, despite the closure of schools, the teaching and learning activities continue to take place online [3].

This study aims at investigating the effectiveness of online learning as well as the students' responses to the newly implemented learning method. The subjects in this study were university students in the city of Malang taking online lectures due to the COVID-19 pandemic.

Discussion

The Effectiveness of Online Lectures

Conventional learning activities in Malang City have been suspended since March 2020. As a replacement, online learning activities are carried out by students learning independently from their respective homes. This decision is in line with the Health Quarantine Law Article 59 Paragraph 3 of 2020 [4] on large-scale social restrictions (PSBB) calling for the

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diversion of school and office activities to homes, restriction on religious activities involving public interaction as well as access restriction on public facilities.

Online lectures during COVID-19 pandemic refer to teaching and learning activities that are supported by internet networks and carried out with a full regard to physical distancing. The implementation of online lectures requires facilities like computers, laptops, smartphones, and a stable internet connection. Aside from ensuring the use of digital support facilities for the online classes, another aspect that the teaching staff needs to pay attention to is the adjustment of student learning activities according to the needs of current development [5].

Regarding the availability of supporting facilities for online learning implementation, a report in 2018 stated that a total of 20.05% of households in Indonesia ensure an ownership of a PC or laptop, and 62.41% of the country's population are smartphone owners [6]. Even though many of Indonesian students do not have a PC or laptop, the majority of them certainly have smartphones in hand to support their online learning.

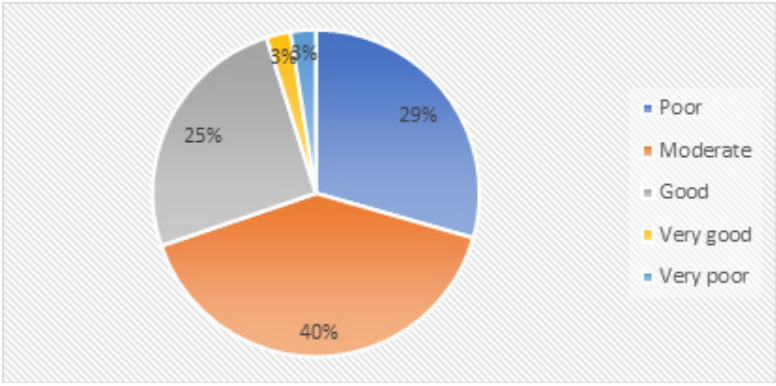
The use of information technology and digital devices such as laptops and smartphones makes the implementation of online lectures more flexible; students are not constrained by time and space for their learning activities [9], promoting the improvement of students' learning outcomes [8]. As online learning requires the support of digital devices for its implementation, this condition certainly has the potential to boost the advancement of communication and information technology in Indonesia. Furthermore, this development of digital communication technology will escalate the internet usage in Indonesia [7].

The results of the study showed that students used smartphones and laptops for online lectures. The use of those devices, which are connected to an internet network, allows students to attend lectures delivered through an online learning media platform [3]. In online lectures, the delivery of lecture materials and assignments is conducted via video conferencing. Students show more enthusiasm in asking questions and expressing their opinion during online lectures [3]. In addition, attending online lectures provides students with an opportunity to train and increase their sense of learning responsibility to become a more independent learner [3].

One of the main challenges of online lectures in Malang City is related to the quality and strength of internet connection. In the practice, most students get access to internet connection from Wi-Fi or internet data

package; they are ready for online lectures. However, when a new semester has been commenced by universities, many of the students are not able to return to Malang from their hometown due to the large-scale social restriction (PSBB) regulation. As quite a lot of those students live in areas without stable internet coverages, they end up having difficulty attending the online lectures. A weak internet signal disturbs and negatively affects the implementation process of online lectures because it hinders students' comprehension on the lecture materials delivered by the lectures [10].

Another downside of online lectures is the students' increasing dependence and addiction to smartphones. The implementation of online lectures does require students to intensively use the device. The study results showed that there was an excessive use of smartphones because, in reality, online lectures are learning activities that are prone to disruptions. Besides using smartphones for attending their online lectures, students use the device to access social media or to surf for online entertainment when they need a getaway from tedious online lectures. There is a concern that this addiction will disrupt students' online learning and studying concentration. Students who are addicted to smartphones generally show a tendency to have academic and social problems. Therefore, most of the respondents prefer to immediately return to conventional face-to-face lectures.



Source: Kompasiana.com, 2020 [12]

Figure 1 The effectiveness of online learning

Although most of the respondents demand the offline lectures back, the current implementation of online lectures in Malang is essentially intended to be a solution in reducing the massive spread of COVID-19 pandemic. As is known, this pandemic is caused by a virus that attacks the human respiratory system and has the ability to spread rapidly [13]. If

offline courses are forced to be reinstated, it is feared that physical contacts among students, also between students and lecturers, will increase the risk of COVID-19 transmission. Therefore, online lectures are a solution supporting the effort to mitigate the pandemic spread. Social distancing is an activity to protect oneself by reducing physical interactions that can channel disease [11].

Conclusion

Online lecture activities are learning activities that are carried out remotely through the support of an internet connection and act as an effort to prevent the widespread of the COVID-19 pandemic in Malang City.

The impact of the COVID-19 pandemic is the imposition of online distance learning. The implementation of this learning method resulted in the replacement of conventional on-campus lectures with online at-home lectures. However, most of the university students of higher education institutions in Malang City prefer to immediately return to the traditional face-to-face lectures due to some downsides that the online lectures have.

In conducting online lectures, the supporting facilities include computers, laptops, smartphones, and a stable internet connection. Although not all students have a laptop facility, most of them have a smartphone that can be used to participate in online lectures.

Activities in online learning can help students to be a more independent learner and a more confident student in expressing their opinions in discussions during online lectures. The government has also provided online learning platforms that can be utilised by students to support their online learning.

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International Regulations Affecting National Investment Law: TRIMs Agreement against Indonesian Investment Law

Nindya Angelina[1]

Introduction

Investment is an important factor in the economic development of a country. The investment itself is any form of investment activity, either by domestic investors or foreign investors to do business in the territory of the Republic of Indonesia [1]. Through investment, both foreign and domestic investment are expected to be able to move the wheels of a country's economy. Practically speaking, it is a foreign investment that opens the Indonesian economy to foreign investment which was previously closed before 1967 with the promulgation of the Foreign Investment Law [2]. egarding this, the state is required to regulate in such a way that investment can have a positive influence on the nation and its people.

The state's obligation to regulate investment is due to the complexity of the nature of investment and has an impact on many aspects, including issues of land, labor, capital, taxation, and various other aspects [3]. Indonesia is deemed necessary to issue policies that have an impact on increasing investment enthusiasm to attract investors' attention. The government's obligation to knit policies that are as friendly as possible to investors, where the policies outlined by the government must be able to increase investment mobility which is very high [4].

These policies have been tried to be accommodated by several organizations through various agreements such as having to apply international investment principles in the word Trade Organization ("WTO"). WTO is an organization that regulates international trade so that these policies do not cause harm to other countries and cause unfair competition between countries. In carrying out its duties, to create an orderly and fair free trade, the WTO applies the principles that are the pillars of the WTO itself by rolling out WTO rules that encourage member countries to follow WTO rules [5]. Indonesia is a developing country that is aiming to improve the country's economy, considers the

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WTO to be one of the right shelters, especially for countries that will carry out good and profitable international trade relations. Economic relations which include ASEAN trade and investment certainly do not only rotate between ASEAN member countries, but there is a need to collaborate with other countries or communities [6].

Indonesia has officially become a member of the WTO since 1995 and ratified the WTO establishment agreement based on Law Number 7 of 1994 concerning Ratification of the Establishing Agreement of The Word Trade Organization since November 2, 1994 [7]. This agreement resulted in Indonesia being in the organization and all agreed obligations became Indonesia's obligation to carry it out.

Especially regarding policies in the investment sector, in regulating the investment policy, adjustments are made to the rules in Trade-Related Investment Measures ("TRIMs") or other trade-related investment efforts. Indonesia ratified the TRIMs agreement based on Law Number 7 of 1994 concerning the Approval for the Establishment of the World Trade Organization, which is contained in Annex 1A paragraph (7) of the Law. That the International Trade Agreement can be said to be binding based on the agreement of the parties that made it, so when a country ratifies it, that country has the obligation to enact it into its national legal rules, as currently regulated in the Investment Law Number 25 of 2007 concerning Investment. Capital, as a substitute for Law Number 6 of 1968 concerning Domestic Investment and Law Number 1 of 1967 concerning Foreign Investment.

One of the WTO agreements is the TRIMs agreement which was signed on April 15, 1994, in Marrakesh, Morocco, and is effective since January 1, 1995 [8]. Indonesia ratified the TRIMs rules through Law Number 25 of 2007 concerning Investment due to special treatment (special and differential treatment) for developing countries, one of which is Indonesia to implement the obligation of ratification for longer than developed countries in implementing obligations. - obligations arising from WTO agreements [9]. With the emergence of TRIMs and Indonesia being one of the countries that participated in ratifying the agreement, the author feels the need to further discuss how TRIMs regulates investment and its relationship with the Investment Law which is the basis of investment regulations in Indonesia.

Discussion

TRIMs and governing agency agreements

The TRIMs Agreement which is known as one of the Annexes of the

WTO in its preamble emphasizes that the purpose of this international agreement is to progressively develop world liberalization and facilitate investment regulations concerning or related to increasing economic growth of all parties, especially free trade partners. and put forward the principles of the WTO-TRIMs Agreement [10].

Several problems in investment in the WTO are mentioned in the preamble section, where the existence of TRIMs aims at the following matters, which include [11]:

a) The investment policy adopted for stipulation by WTO member countries;
b) Compliance with the regulations regarding trade restrictions contained in the 1994 General Agreement on Tariff and Trade (GATT);
c) Increasing the law enforcement in foreign investment that supports free trade;
d) Increase the economic growth of member countries.

In broad terms, TRIMs prohibits investment policies that are not carried out in line with GATT 1994, especially for matters regulated in Articles III and XI of GATT 1994. In its attachment, there is a list stating investment policies that may not be stipulated or prohibited, including regarding forcing foreign investors to use local goods with a certain amount or percentage or forcing them to export certain goods from their production goods[12].

The regulation regarding investment in the WTO agreement is a fundamental result because no arrangement or agreement previously contained investment related to trade. Investment agreements (TRIMs) are also a new rule that binds the majority of countries in the world [13]. The entry into force of this agreement for the first time reinforces the assumption in the fact that there is a close relationship between trade and investment.

Below are some of the principles of TRIMs in the WTO and GATT framework, which are as follows:

1. Principles of National Treatment
   The principle of "National Treatment" is the principle of non-discrimination against investors [14].
2. The Principle of Most Favored Nation (MFN)
   The main principle on which GATT is based is the principle of non-discrimination which in GATT is known as the Most-Favored-Nation Principle or MFN [15]. This principle applies the same treatment from the host country to investors from the country with investors from other countries who carry out investment activities in the country where the investment is made [16].

3. The Principle of the Prohibition of Quantitative Restrictions)
   This principle limits the quantitative limits of exports and imports in any form, such as setting the number of quotas for imports and exports and limiting the use of licenses for import or export activities. GATT countries use this method to protect their domestic industry to increase income for the country concerned.
4. The Principle of Protection through Tariffs
   Basically, GATT does not prohibit protective measures against local industries through tariffs (increasing the level of import duty) or through other trade measures, thus protecting domestic industries and increasing or attracting revenues for the country concerned with the limitation of tariff determination which cannot be discriminatory.
5. The principle of reciprocity
   This principle is the basis in GATT which applies in negotiations through tariffs that are based on reciprocity and mutual benefit for both parties.
6. Special Treatment for Developing Countries
   GATT member countries are developing countries that are still in the early stages of their economic development. The final decision in the 1979 Tokyo Round declared more favorable gifts and more participation for developing countries in world trade. This decision recognizes developing countries as permanent actors in the world trade system. This recognition becomes the legal basis for industrialized countries to provide GSP (Generalized System of Preferences or general preference system) to developing countries [17].

The TRIMs agreement is also considered important for FDI because it plays an important role in removing non-tariff barriers connected to foreign trade, especially those related to foreign investment [18]. This convinces investors from abroad to freely export, import, buy and sell goods for optimal utilization of their investment and repatriation profits [19]. However, several opinions consider the TRIMs agreement to have a negative impact. There is a view that the TRIM agreement is actually seen as a major obstacle because of the negative impact of the agreement on labor and added value because it prohibits developed industrial countries from implementing this policy [20].

The success of discussions on investment in the Uruguay Round created a new institution, namely the WTO with a special body "Committee on TRIMs". This special agency has the task of supervising and guaranteeing the direct liberalization of foreign investment. This is an important contribution to the development of international law in the investment

sector. As is known before 1995, there was no international institution that specifically handled the problem of TRIMs [21]. Furthermore, the role of the WTO regarding this issue is to have a dispute resolution procedure that then handles disputes between member countries if one of its members violates the TRIMs agreement or commitments in the field of investment.

So that the presence of the WTO through the "Committee on TRIMs" acts as an institution that will handle problems related to investment, especially disputes that occur in the framework of the TRIMs Agreement.

Analysis Regarding Foreign Investment Rules according to TRIMs and their relationship with the Indonesian Investment Law

The opening of the TRIMs agreement contains and confirms the mandate of the Punta Del Este Declaration that certain investment efforts can cause obstacles to trade and can be detrimental. In this agreement, there are important basic things, such as basic investment regulations. Article 1 (one) of the TRIMs agreement states: "This agreement applies to investment measures related to trade in goods only (referred to in this agreement as" TRIMs "). capital investment). This article states the desire of a developing country that wishes that regulations in this field do not contain new or additional regulations.

Then, in article 2 of TRIMs concerning National Treatment and Quantitative Limitation, it states 1. "Without prejudice to other right and obligation under GATT 1994, no Member shall apply any TRIM that is inconsistent with the provisions of Article III or Article XI GATT 1994. 2. An Illustrative list of TRIMs that are inconsistent with the obligation of national treatment provided for in paragraph 4 of Article III of GATT 1994 and the obligation of general elimination of quantitative restrictions provided for in paragraph 1 of Article XI of GATT 1994 is contained in the Annex to this Agreement. " This article is a reaffirmation of article III and article XI of GATT 1994 concerning National Treatment and Quantitative Limitation. This article explicitly prohibits member countries from implementing TRIMs, it is necessary to make adjustments by Article III and Article XI of the GATT, and there are still many regulations that regulate investment.

Indonesia, as one of the countries that have ratified this agreement, has also participated in implementing this agreement in the existing investment regulations, namely the Investment Law No. 25 of 2007 ("UUPM"). Regarding some of the TRIMs principles mentioned above, Indonesia also provides equal treatment between domestic investment

and foreign investment. This is as regulated in the provisions of Article 3 Paragraph (1) letter d of the Company Law which states: "Investment is carried out based on the principle of equal treatment and does not differentiate between countries of origin."

In the section on the Elucidation of Law Number 25 of 2007 concerning Investment, what is meant by "the principle of equal treatment and does not differentiate from the country of origin" is the meaning of the principle of non-discriminatory service treatment based on statutory provisions, both between investors from a foreign country. and investors from a foreign country [22]. This aims to encourage foreign investors to invest in Indonesia with non-discriminatory service treatment based on the provisions of the applicable laws, both for domestic investors and foreign investors as well as between investors from a foreign country and investors. from other foreign countries. This principle is referred to as the principle of "non-discrimination" as stipulated in the Investment Law, which is actually taken from the understanding of the principle of National Treatment contained in Article II of the TRIMs Agreement. The provisions in the TRIMs are also applied in the Investment Law in Article 4 Paragraph (2) letter a which states: "In determining the basic policy for investors, the government provides equal treatment for domestic investors and foreign investors while still paying attention to their interests national".

The rules in Article 4 paragraph (2) of the Capital Market Law also contain two variables that must be interpreted as a whole, namely the obligation to provide equal treatment and refer to the national interest. This implies the same thing and cannot be separated from the national interest, meaning that in certain circumstances the same treatment may not be applied to foreign investors. Of course, exceptions of this kind must be by international agreements.

Next is related to special treatment for certain countries. Article 6 of the Investment Law states:

Paragraph (1): "The government provides equal treatment to all investors originating from the state or those carrying out investment activities in Indonesia by the provisions of laws and regulations.
Paragraph (2): "The treatment as referred to in paragraph (1) does not apply to investors from a country who obtain special rights based on an agreement with Indonesia".

Article 6 paragraph (2) of the Capital Market Law which regulates the same treatment cannot apply to investors from a country who have obtained special rights. These special rights include, among others, special

rights related to customs units, free trade areas, common markets, monetary units, similar institutions, and also agreements between the Indonesian government and foreign governments that are bilateral, regional, and multilateral with Indonesia.

In the application of International Trade law, such provisions are based on the principle of Standard of Preferential Treatment (this principle is the opposite of the principle in the question of giving equal rights to all parties). This principle allows a deviation from the principle of Most Favored Nation (MNF) through the special treatment of certain countries, such as neighboring countries and certain regional trading areas or regions. Examples are countries in certain regions such as ASEAN, Free Trade Area which is a form of agreement in ASEAN countries to form a special free trade area that does not impose tariff barriers for ASEAN countries. ASEAN member countries agreed to remove all import duties on goods for Brunei Darussalam in 2010 and Indonesia, Malaysia, the Philippines, Singapore, Thailand, Laos, Myanmar, and Vietnam by 2015 [23].

Referring to this matter where the principles of the WTO, in general, have been applied in the UUPM. The general principles of the WTO, namely National Treatment and MFN, based on Articles 3 and 6 of the Capital Market Law have become the soul of the investment regime in Indonesia. It is appropriate that all the rights and obligations of foreign investors also apply to domestic investors and each member country receives the same treatment, however, there are still articles in the Capital Market Law which provide different treatment for a country.

The last rule to be discussed is related to the negative list of investments. The negative list of investment, namely (a list of what business fields foreign investors cannot enter), article 12 of Law Number 25 of 2007 concerning Investment states:

Paragraph (1): "All business fields or types of business are open to investment activities, except for business fields or types of business which are declared closed and open with conditions."

Paragraph (2): "Business fields closed to foreign investors are a. Production of weapons, ammunition, explosives and war equipment; b. Business fields that are explicitly declared closed under the law. "

Paragraph (3): "The Government based on a Presidential Regulation shall determine business fields closed to domestic investment, based on the criteria of health, morals, culture, environment, national defense, and security, as well as other national interests".

Paragraph (4): "Criteria and requirements for closed and open business fields with requirements as well as a list of closed and open business fields with

*their respective requirements will be regulated by a Presidential Regulation". Paragraph (5): "The government determines open business fields with requirements based o*n criteria of national interest, namely the protection of natural resources, protection of development of micro, small, medium enterprises and cooperatives, supervision of production and distribution, enhancement of technological capacity, the participation of domestic capital, as well as cooperation with business entities appointed by the Government".

Article 12 UUPM actually does not open all business fields to foreign investors, in which certain business fields are directly related to state security such as the production of weapons, gunpowder, explosives, and war equipment as well as business fields that are explicitly declared closed in the law it is not allowed to be shared with foreign investors. According to Mahmul Siregar, restrictions on business fields are not prohibited in international agreements in the field of trade. Based on the expert's opinion, the negative list of investments in Article 12 of the Company Law is declared not to contradict the TRIMs rules. The TRIMs Agreement is not intended to directly regulate business sector restrictions. The TRIMs agreement regulates disciplinary implementation requirements that hurt the smooth trade of goods [24]. From several examples of articles of the UUPA above, it has illustrated how TRIMs are by the LoGA which was made as to the basis for regulations related to investment in Indonesia.

Conclusion

TRIMs is an agreement on investment rules related to or related to trade established by the WTO and authorized by institutions, especially the "Committee on TRIMs". Regarding the WTO through the "Committee on TRIMs" which acts as an institution related to problems related to investment, especially disputes that occur in the framework of the TRIM agreement. As a country that is proposing an economy through investment, Indonesia is also a country that has joined as a member of the WTO and has also ratified the TRIMs agreement. The current Law Number 25 of 2007 concerning investment is the basis for investment regulation in Indonesia, where the Law conforms with the TRIM regulations that have been ratified by Indonesia.

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Marketing Through Social Media to Brand Awarrennes in International Products (Survey on the Nike Community in Malang)

Nur Diana[1], Masita[2]

Introduction

The development of modern globalization today makes everything sophisticated to develop and experience rapid progress. This is of course very much used by the community to get the information they need. The changes in the times are very rapid, of course, affecting many aspects ranging from aspects of the social, economic, cultural education and technology. utilization that is often used is information technology. One of them is information technology to communicate which has made it easier for humans to interact with each other quickly, practically without meeting face-to-face and changing the way people communicate between people starting from small things like sending messages to big things like socializing [2].

Advances in technology in the field of information and communication today, the world knows no boundaries and distances as well as space and time. Humans easily obtain information that occurs in the world, they don't need to know that place. Even humans communicate with whom the internet makes humans communicate anywhere. The internet itself can be used as a means of communication without meeting face to face with other internet users. With the development of the internet, more and more social media sites have emerged. Social media itself provides internet services as a group that can chat about common hobbies or interests. Social media marketing is a term that describes the use of a social network, *online* community, *blog, wiki*, or other collaborative *online* media for marketing, sales, public relations and customer service. Marketing tools, public relations sales and customer service. Common social media marketing tools include *twitter, blog, linkedin, facebooks* and many more [2]. business people can actively update

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and monitor what is viral which can build awareness of certain brands and can also add company personnel. Sometimes *Facebook* and *Twitter are* very, very helpful in disseminating new product information by making social media users curious that people will look for these brands.

Companies that are advancing and quickly adapting to advances in information technology will soon use social media as a marketing tool. Maximizing social media to convey messages or whatever. The more people who use social media, the more talk about product information is spread. The speed with which information on a product is spread will cause a *brand to be* easily recognized by social media users [2].

Since the advent of social media, marketing has dramatically shifted from using advertisements in brochures, research, newspapers, etc. to a more modern form with digital content. Increasing brand awareness is one of the outputs targeted by marketers. Marketers do this because of the ability of social media to do *viral* and *buzz marketing* using *online* WOM (*Word of Mouth*). This is in line with one of the reasons or individuals using social media is being able to display advertisements according to the tastes of users. For marketers this can be profitable because it can make it easier to segment target customers. For example, using an interesting photo or image, or followed by writing that consumers can easily memorize so that the *brand* will be known.

Marketing in Indonesia is growing very fast through social media seeing that the people are consumptive because they do not want to be left behind so they are always looking for and getting the latest practical communication needs which lead to the emergence of cellphones. *Mobile phones are* also developing very fast and are designed to be very innovative technologies. After their *cell phone* a sophisticated then comes smarthphone, where the *smartphone* is very helpful and provide convenience in everything from communication, the internet and social media. Before the existence of *smartphones,* people still used information from printed media, which then appeared social media which turned out to be very informative in sharing all over the world that would soon be obtained very easily. The use of social media has spread to all kinds of circles so that it affects the lifestyle of all circles today.

In connection with the current covid-19 pandemic, people also need to adopt a healthy lifestyle, now it has become a trend among urban communities by routinely carrying out sports activities that were previously only done by a few circles, now it has become a habit for all people [4]. This can be seen from the number of sports equipment providers in the world such as nike, adidas, reebok, and other brands on

the market. With so many brands on the market, it makes consumers have many choices in choosing the product to buy, starting from considerations in terms of price, design quality, features, and also someone's brand about the product or company. with the presence of consumers can identify goods or services from one of the sellers or groups of sellers and as those of their competitors [6].

According to Sasmita and Suki (2015), brands are the most valuable asset for all companies, and are considered as the main consideration factor for consumers in choosing products. In addition, as a factor that differentiates products from one another, so as to increase consumer confidence in buying these products [6].

Using social media has penetrated all kinds of circles so that it affects the lifestyle of all circles today. Social media has had enormous influence on the growth of a *brand brand awareness*, especially for international products. One of them is the Nike product. Nike is one of the international products originating from America.

Discussion

Social Media Marketing

According to Kaplan, & Haenlein, (2010) a phenomenon that has attracted a lot of attention for both companies and individuals interacting in a network is social media marketing [2]. According to Neti (2011) social marketing is an effort to use social media to persuade consumers that a company, product or service is very useful. Marketing uses online communities, social networks, marketing blogs and more. Social media marketing is a marketing strategy used by savvy business people to become part of their online network of friends to get advice, share and socialize. Many different styles of online community have emerged over the years, the variables of social media marketing according to Junral from Moriansyah (2015), are as follows:

a. Customer engagement
b. Viral marketing
c. Marketing buzz
d. Peer influence
e. Online communities

Marketing (Marketing)

Kotler (1997: 8) defines marketing (marketing) as a social and managerial process in which individuals or organizations get what they need and want through the creation, supply and exchange of value

with others. Terence A. Shimp (2003: 4) in (Willem, Tumbel, Samadi, Management, & Economics, 2020) says marketing is a collection of activities in which companies and other organizations transfere or exchange values between them and their customers. From some of the above it can be concluded that marketing is an activity in creating, offering and delivering values to consumers in a way that benefits both parties, namely producers and consumers. Meanwhile, new marketing (marketing mix) is one of the references in formulating a marketing strategy which is quite important. In this case, it is due to the company's success in achieving goals which are largely determined by the extent to which the marketing mix is implemented. The marketing mix is a collection of controlled tactical marketing tools that a company integrates to produce the response it wants in target markets. The marketing mix for a brand consists of four interrelated decision elements regarding: product, price, place (distribution), and promotion.

Social Media Marketing

(Gunelius, nd) said there are four elements that are used as variables for the success of social media marketing, namely content creators, content sharing, connecting, community building. The content that is made must be attractive and must represent the personality of a business so that it can be trusted by target consumers. Sharing content with the social community can help expand a business's network and expand its online audience. Social networking allows a person to meet more people who share the same interests. An extensive network can build relationships that can generate more business. Honest and careful communication must be considered when doing social networking, meanwhile, social web is a large online community of individuals where interactions occur between people who live around the world using technology. building a community on the Internet that has the same interests can occur with social networking.

Social media is an online environment where people with shared interests support to share, comment, and support them (Weber, 2007) The use of online communication platforms based on internet usage and Internet-based technology and cellular-based technology in marketing actions by businesses are very important in the form of the effect intended by consumers on their products and brands presented by what they make to other consumers [1]. (Sigala & Marindis, 2009; Chen et al., 2011) [1].

Social media or social media is a term to describe a type of media that is based on online conversation and is based on online conversations and interactions between people. Social media also comes in many forms, including internet forums, social blogs, microblogging, pictures, and

videos, as well as technologies such as e-mail, image sharing, blogs, wall posts and various music. Social media has five characteristics, namely: participation, openness, conversation, community, and connectedness

Brand Awareness

According to Aaker brand awareness is the ability of a prospective buyer to recognize or recall that a brand is part of a certain product category. *Brand Awareness* is the strength of a bond or impression on memory, where trust, belief is a psychological state that exists when a person agrees to open himself up to others because he has positive expectations about how things will happen (Robbins, 2010) in [5].

Costabile trust is defined as the perception of strength from an angle that can be measured as the ability of consumers to identify brands under different conditions (Kleler, 2012, p. 73) [5]. From the above definition, it can be concluded that brand *awareness* is a person's ability to remember or re-identify a particular brand with the help of certain advertisements or promotions in various circumstances.

Brand Awareness Indicator

a. *Top of Mind* is a brand that is mentioned or the first time by a consumer or first comes to the mind of a consumer. In other words, the brand is the main brand of the various brands that consumers have in mind.
b. *Unaided Awareness*, unaided brands that are known to consumers even though without the help of consumers, they will be aware of the existence of the brand even without assistance.
c. *Aided Awareness*, aided is a brand that needs to be reminded or given assistance on its existence.

The consumer's view is based on a transaction or interaction experience characterized by the fulfillment of expectations for product performance and satisfaction.

Brand Awareness Factor

According to Tjipjono (2008: 40) in [2] brand awareness is the ability of users of manufactured goods or services to identify or not forget that a brand is a member of a certain product category is the result of a certain brand. Brand awareness is concerned with aspects of brand awareness, such as how easy it is for a brand to be remembered and recognized in various situations.

Brand Awareness shows existence core commitment is very important for a company. If brand awareness is high, we can feel the presence of the

brand, a brand with high brand awareness is usually caused by several factors:

1. Advertised widely to the public
2. Existence has stood the test of time, the existence of a brand has lasted a long time, demonstrating that the brand meets consumer needs and expectations
3. Wide distribution coverage, making it easier for consumers to get these products.

Hypothesis

H1: There is an influence between customer engagement on brand awareness of Nike products

H2: There is an influence between viral marketing on brand awareness of Nike products

H3: There is an influence between buzz marketing on brand awareness of Nike products in the Nike community members

H4: There is peer influence on brand awareness of Nike products among members of the Nike community in Malang

H5: There is an influence between the online community on brand awareness of Nike products among members of the Nike community in Malang

H6: There is an influence between social media marketing on brand awareness of Nike products in members of the Nike community in Indonesia

H7: Online communities variable is the variable that has the most influence than any other variable on brand awareness

Conclusion

In connection with the Covid-19 pandemic, people now need to implement activities and it is necessary to adopt a healthy lifestyle, one of which is by exercising. With the development of modern technology today, it is very useful for the community, especially the Nike community in Malang, to get information, and of course it greatly affects the aspects of social, economic, culture, education, technology.

In this case, of course, it makes it very easy for people to know Nike products and know about brand awareness of Nike products, which is an international product.

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Implementation of CSR (Corporate Social Responsibility) in the Community around the Mine

Nurinayah[1]

Introduction

As it is generally known that Corporate social responsibility, which we will call CSR, is a form of obligation that every company must carry out which is by the applicable rules, namely in Law Number 40 of 2007 concerning Social and Environmental Responsibility of Limited Liability Companies (TJSL) precisely as contained in Article 74. Therefore, we hope that this obligation will not become a burdensome burden for every company implementing it. This is because the development and progress of a country is not only the responsibility of the government but also the responsibility of the industrial world, more importantly, the participation and cooperation of the community to create a good and prosperous quality of community life equally.

In this case, there is a role for companies that can encourage the growth of a healthy community economy that considers various factors, namely the environment. Therefore, it is expected that every company that is oriented to implement CSR should pay attention to profit or profit, but also consider various social and environmental aspects so that these three elements can be balanced and synergize to form the concept of sustainable development [1] The term sustainable development can be interpreted as a program to meet the needs of the present church without any impact that eliminates the needs of future or future generations.

Therefore, an important aspect of the needs of present and future generations depends on the availability of natural resources (SDA), especially from natural resources located in mining areas, which as we know, many natural resources in the area are stored. the needs of human life, which in this case are the people in the vicinity of the mine and there is a need for protection from law to maintain all forms of balance to fulfill the needs of the surrounding community. From that role, it can be stated that CSR is one of the programs that improve the quality of life of the community, with the ability of individual members of the community to be more aware of social conditions, including changes that occur in other

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words, this is how a company controls and controls efforts to get a good response. and positive impacts from the surrounding community.

So that in this case, CSR is a form of business commitment to act ethically well, by operating legally and contributing as an effort to improve the sharing economy along with improving the quality of community life, especially in the company's operational areas. As the author has ever known, CSR can be in the form of programs that provide scholarships for students to students who are classified as poor and outstanding, then there is an improvement in social infrastructure, providing economic assistance in the form of working capital even with the provision of skills training to support the community in the world of work and programs. community empowerment and other programs. With such great hopes, the company will get recognition and positive response from the community as well as cooperation for the sake of a good and smooth production process.

However, the facts in the field show that there are several problems regarding the ideals of CSR in empowering communities around the mine which are caused by population problems that we already know originate from two main sources, namely the quantity and quality of the community. What is known is that the problem of quantity is related to a large number of Indonesian people and quality problems related to the low quality of education, that is the cause of the lack of empowerment of the surrounding community, which makes the company bring the heart to work outside the company's area of work, which of course is one of the reasons. reasons for problems arising between the company and the communities surrounding the mine and there are still other causes.

Discussion

Implementation of Corporate Social Responsibility (CSR)

Corporate Social Responsibility (CSR), which we know as Corporate Social Responsibility and Corporate Environment, has become a necessity, especially for companies with legal entities. Implementing CSR is an obligation as a moral imperative for every company when the company becomes part of a new community in society so that it can adapt to be able to intervene in local communities and make a real contribution because its existence later the company can have positive and negative impacts. Therefore, the CSR regulation is contained in several regulations that are certainly binding to monitor the implementation of corporate social and environmental responsibility programs. It cannot be separated from that there is a long process related to the history of the existence of regulations on CSR or a program that was originally known as Community

Development (CD), which is the Community Development Partnership Program (PKBL).

Based on the records that the researchers did, there were at least 8 (eight) regulations related to Corporate Social Responsibility and the Environment in the form of laws, government regulations, regional regulations, and ministerial regulations, namely

a. The 1945 Constitution of the Republic of Indonesia
b. Law Number 22 of 2001 concerning Oil and Gas, State Gazette of the Republic of Indonesia Number 136
c. Law Number 25 of 2007 concerning Investment, State Gazette of the Republic of Indonesia Number 4724
d. Law Number 4 of 2009 concerning Mineral and Coal Mining, Supplement to the State Gazette of the Republic of Indonesia Number 4 of 2009
e. Law Number 21 of 2014 concerning Geothermal Energy, Supplement to the State Gazette of the Republic of Indonesia Number 5585
f. Law Number 13 the Year 2011 Concerning Handling the Poor, Supplement to the State Gazette of the Republic of Indonesia Number 5235
g. Government Regulation Number 23 of 2010 concerning Implementation of Mineral and Coal Mining Business Activities, State Gazette of the Republic of Indonesia Number 29 of 2010, Supplement to State Gazette of the Republic of Indonesia Number 5111
h. Government Regulation Number 47 of 2012 concerning Social and Environmental Responsibility of Limited Liability Companies, Supplement to the State Gazette of the Republic of Indonesia Number 5305

The discussion of each regulation related to CSR is as follows[2]:

a. Law Number 40 of 2007 concerning Limited Liability Companies
   The term CSR which regulates the obligations for every company related to natural resources (SDA) to carry out social and environmental responsibility, is contained in the Limited Liability Company (PT) Law, precisely in article 74 paragraph (1) which reads, "Companies that running its business activities in the field and/or related to natural resources is obliged to carry out Social and Environmental Responsibility (TJSL)".
b. Law Number 25 of 2007 concerning Investment
   In the explanation of Article 15 letter b, it is stated that corporate social responsibility is the responsibility inherent in every investment company to continue to create harmonious, balanced relationships

and by the environment, values, norms, and culture of the local community. It appears that the 2007 Company Law tries to separate social responsibility from environmental responsibility, which leads to CSR as a company committed to sustainable economic development to improve the quality of life and the environment.

c. Law Number 22 the Year 2001 regarding Oil and Gas
   The Oil and Gas Law does not explicitly regulate corporate social responsibility. However, when read carefully, there is one rule that implicitly alludes to CSR. The provision is Article 11 paragraph (3) letter p, which reads, "Cooperation Contracts as referred to in paragraph (1) must contain at least the main provisions, namely: development of the surrounding community and guarantee of the rights of indigenous peoples."
d. Law Number 4 of 2009 concerning Mineral and Coal Mining
   Article 108 paragraph (1) of the Minerva Law "Holders of IUP (Mining Business Permit) and IUPK (Special Mining Business Permit) are required to prepare community development and empowerment programs." Article 1 point 28 of the Minerva Law defines community empowerment as "efforts to increase capacity. society, both individually and collectively, to have a better level of life".
e. Law Number 21 of 2014 concerning Geothermal Energy
   Article 65 Paragraph (2) letter bread: "In implementing geothermal energy, the community has the right to benefit from geothermal exploitation activities through the company's obligation to fulfill corporate social responsibility and/or development of the surrounding community."
f. Government Regulation Number 47 of 2012 concerning Social and Environmental Responsibility of Limited Liability Companies.
   The government issued Government Regulation Number 47 of 2012 as an implementing regulation of Article 74 of the PT Law above. PP No. 47 of 2012 which was signed by President Susilo Bambang Yudhoyono contains only nine articles. One of the regulations that are regulated is the mechanism for implementing the company's Social and Environmental Responsibility. Article 4 paragraph (1) PP No. 47 of 2012 states, "Social and environmental responsibility is carried out by the Board of Directors based on the Company's annual work plan after obtaining approval from the Board of Commissioners or the GMS by the articles of association of the Company unless otherwise stipulated in the laws and regulations."
g. Government Regulation Number 23 of 2010 concerning the Implementation of Mineral and Coal Mining Business Activities

Government Regulation No. 23 of 2010 is a form of implementing regulations of the Minerva Law. This Government Regulation further explains the development and empowerment of the community as mentioned by the Minerva Law. There is one special chapter, namely CHAPTER XII, which consists of four articles that regulate community development and empowerment. One of them is Article 108 which reads, "Every holder of Production Operation IUP and Production Operation IUPK is obliged to submit a report on the realization of community development and empowerment programs every 6 (six) months to the minister, governor, or regent/mayor by their authority." Violation of this obligation may be subject to administrative sanctions.

The implementation of Corporate Social Responsibility (CSR) in the communities surrounding the mine includes social and environmental responsibility consisting of 5 pillars which in principle aim at helping the community and government, namely as follows:

a. Education, there are many CSR activities in the education sector, one of which includes scholarships, both formal and informal
b. Health and Health, CSR activities in the health sector include several things, namely the eradication of malaria/voting in collaboration with ISOS, provision of clean water facilities, handling waste/landfills, creating a healthy environment, arranging to house, and so on.
c. Economy, CSR activities in the economic sector include several things, namely agriculture, fisheries, livestock, MSMEs, agricultural product processing, horticultural plantations.
d. Social, Culture and Religion, CSR activities in the Social, Cultural and Religious fields include several things, including supporting community social activities, social religious activities of communities around the mine, social training, training or community cultural activities and religious activities.
e. Environment, CSR activities in the environmental sector include several things, including supporting environmental conservation activities such as tree planting, reforestation, campaigning for the environment, providing seeds for the community depending on the needs, especially tree seedlings to be revitalized.

The implementation of CSR has started to be consistent even though several programs are not fully implemented in the planning year, so they will be carried out in the programs in the following year. The current implementation of CSR activities is based on several reasons and guidelines. The company's considerations for carrying out CSR activities include the following:

a. To comply with regulations, laws, and statutory regulations
b. The company's commitment is contained in the company's vision, mission and commitment.
c. The company wants to be a partner of the government and the community in developing the West Sumbawa regency, especially the mining ring

CSR activities for the environment provide benefits for companies, including the following:

a. Develop a company's reputation or image in the eyes of consumers and investors
b. Eliminate environmental and social conflicts around the company
c. Increase cooperation with stakeholders
d. Distinguish the company from its competitors

In making decisions and establishing collective and collegial CSR programs in the making of CSR programs, the planning stage (bottom-up) begins, such as code getting proposals from community groups, being prepared as program proposals, then taken to the department team and discussed again to make a program feasibility study and then become a candidate. The program becomes a proposal from the department, seen its viability with the budget whether it is feasible to become a priority program, from the department to present it again to the board of directors then from the board of directors it is proposed that it is worthy of being a program. However, this does not necessarily happen, so a project charter is made again for the implementation of detailed programs made for one by one the program in the big plan the company has a long-term plan of the master plan for community empowerment development programs, the program plan is to post-mining then an annual program plan is made and plans are broken down. detailed program plan.

Inhibiting factors for the implementation of CSR in the Mining Circle Community

The factors inhibiting the implementation of CSR, data collection techniques to identify problems in implementing CSR, and problem-solving procedures, namely:

a. Inhibiting factors for CSR implementation
   1. Lack of Quality Human Resources (HR)
   2. Lack of support and cooperation from the community receiving the program
   3. Lack of support from the government
b. Data collection techniques to identify problems in implementing CSR, namely:

1. The master plan is preceded by the existence of social mapping (Social Mapping) and community Accept
2. Need to be Accessed to identify people's needs in comprehensive ways in collaboration with trusted partners, experts who are already well-known in Indonesia Social Information Indonesia (SII) technically using FGDs, in-depth interviews, questionnaires, and others. It does not only involve these parties but also involves outside institutions that Cradiblle internationally from many fields

c. There are two problem-solving procedures for the implementation of CSR, namely:
   1. Handling complaints and complaints (Complain grievance mechanism)
   2. Handling community action (Community action)
   3. Every time a record occurs, there will be a record in the office, both from the branch office to the central office, there is a form for anyone who complains then a grace period for solving the problem is given, and if it cannot be resolved once then it will be increased through layer 1, 2 and 3 cannot be resolved then it will take legal action, there are regulations for handling problems and the company is open to complaints either through social media or directly and there is a settlement mechanism called the Complain grievance mechanism, Complain grievance procedure and Complain resource.

In some strategic planning, it is necessary to assess the external/external environment, so that the company can adapt to the changes that will occur. Analyzing SWOT to manage all strategies will support its implementation, for example, and be able to exploit strengths and opportunities that serve as references to be able to neutralize all forms of weakness that exist within the company to avoid themselves from various threats. Therefore, in this case, CSR is committed to supporting the creation of sustainable development, with community empowerment efforts, ideally oriented for the long term. Community empowerment is an absolute requirement for the realization of community development and development to eliminate helplessness, both from the levels of education, economy, health, religion, and socio-culture as well as human-centered environmental development.

Conclusion

Based on the description in the previous chapter, the conclusions of this study are as follows:

1. Immplementation of Corporate Social Responsibility (CSR) consists of 5 pillars, namely (1) education, (2) health (3) economy (4) socio-culture and religion, and (5) environment. The implementation of CSR is by government regulations, although there are several programs in implementation that are not by the planning time, but carry the offer in the following year.
2. Inhibiting factors in implementing CSR programs Factors that can hinder the implementation of CSR (1) Lack of Quality Human Resources (HR) (2) Lack of support and cooperation from program recipient communities (3) Lack of support from the government.

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Academic Procrastination in a Positive Psychology Review

Nurul Afifah Syifak[1]

Introduction

Several problems in students' lives make them not responsible for their education. One of the problems that hinder the potential of student education is the behavior of procrastination [1]. Procrastination is defined as the behavior of delaying tasks and in turn causing obvious subjective discomfort [2]. Procrastination in an educational setting is referred to as academic procrastination. Academic procrastination is less specific for study performance and is common among students around the world [3]. Researchers tend to explain that procrastination has cognitive, behavioral, and emotional dimensions. In other words, a person will irrationally delay to complete a task despite being aware of the potentially detrimental consequences [4].

Positive psychology pioneered by Seligman focuses attention on efforts to explore and develop a character of human strength side (promotion of character strength). By exploring and developing the individual side, it will lead a person to authentic happiness who can function optimally (optimal functioning) in his life, both as an individual, a family member, a member of society and the state. With individual characteristics that are full of strength, individual strength and empowerment will be realized in nation-building [5].

Seligman et al. explained that there are at least three reasons why prosperity (well-being) needs to teach in school. The first reason is that the more prosperous, the synergy with better learning. An increase in happiness will increase by learning as the traditional goal of education. A positive mood will result in broader attention, a more creative mind, a more holistic mind [6].

Discussion

Procrastination

Procrastination is delaying in starting or completing a task, resulting in the task not being completed on time and often late in attending

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meetings [7]. Meanwhile, Steel states that procrastination is also a delay in a scheduled task and work that important to do [8]. Ferrari et al. (1995) explain that there are several indicators of academic procrastination, namely: delays in starting and completing assignments, delays in doing assignments, time gaps between plans and actual performance, and doing activities that are more enjoyable [2].

Van Wyk (2006) categorizes procrastinators into four types, The Sometimes Procrastinator. Research shows that 20% of humans engage in procrastination behavior from time to time. This type is someone who procrastination every day. The Chronic Procrastinator, namely someone who performs the act of procrastination in all areas of life. The behavior of procrastination can be a lifestyle for chronic procrastinators. The Tense Afraid Type is someone who often feels under pressure to achieve success and is always afraid of failure so he commits procrastination. The Relaxed Type is someone who does not want to bother with the task that is being or has to be done, they can do it at a later time or prefer to do something that is more fun and makes sense to do [9].

Positive Psychology

The humanistic approach influences positive psychology. The term positive psychology first appeared in Maslow's book, Motivation, and Personality, the chapter title is "Toward a Positive Psychology". In this part, Maslow argues that psychology itself does not have an accurate understanding of human potential, and it tends to be underdeveloped. Maslow explained that psychology is more successful in explaining the negative side than the positive side of humans, digging too much about human shortcomings, disturbances, and sins but only digging a little about human potential, talents, aspirations that can be achieved, or the highest psychological condition [10].

Although both have an influence on positive psychology, but Seligman and Csikszentmihaly, positive psychology figures, chose to give a distance between them and humanistic psychology, because they consider that humanistic is a methodology that is less scientific and lacks a proper scientific basis [11]. The definition of positive psychology according to Seligman and Csikszentmihalyi is a scientific study of positive and developing human functions at several levels covering biological, personal, relational, institutional, cultural, and the global dimensions of life [11]. It aims to identify and enhance human strength and virtue, which in turn enable them to live properly and enable individuals and societies to thrive. Positive psychology intends to initiate change in psychology as a social science, change which can lead to reorientation and a shift from

being exclusively busy to improving sick / bad conditions in life, towards developing the best quality of life. There are three main pillars in positive psychology. First, positive life experiences in individuals by exploring positive emotions. The second pillar is the positive physical properties of the individual, exploring positive personality traits, talents and individual strengths. The third pillar is a positive society, exploring positive social institutions, such as democracy, strong families and education that promote positive development [11]. As a newly developing psychological approach, some of the issues that are widely discussed in positive psychology are well being, hope, optimism, life satisfaction, engagement, prosocial behavior, positive self-concept, gratitude, self-efficacy and others.

Exploring the Strength of Student Character in School

Character strength is an important topic in education today. Character is described as an aspect of personality that has moral values [12]. Strong character is at the core of positive youth development. Even though it is widely discussed at this time, many schools focus more on reading, writing, mathematics and critical thinking skills but do not pay attention to how to make students have strong positive individual characters.

Good character talks not only about the absence of a problem, disorder or pathology but more deeply about how several positive traits work well. Good characters such as honesty, responsibility, kindness, social intelligence, self-control are believed to be able to fight the negative effects of stress and trauma. Besides, good character is associated with academic success, leadership and respect for differences as well as reducing problems such as drug use, alcohol, smoking, violent depression and suicidal ideation [12].

Character education is one of the functions of National Education in Indonesia as stated in Law No. 20 of 2003 that National Education functions to develop abilities and shape the character and civilization of a nation with dignity to educate the nation's life, aims to develop the potential of students to become human beings who believe and fear God Almighty, have noble character, are healthy, knowledgeable, capable, creative, independent and a citizen who is democratic and responsible [13]. However, education is currently considered not able to fully shape the character of students because the learning process is oriented towards morality and morality as well as religious education tends to be a transfer of knowledge and is not given enough experience to become a feature of everyday life [13].

How to shape good character in the school environment? Schools need to explore the positive characteristics of students as well as explore the students weaknesses. Also, schools must have a culture that appreciates the positive character displayed by all elements in the school. According to Bandura's Social Cognitive theory, effective learning will occur with a model that can be imitated by children. Therefore, teachers, school principals and school staff must act as models for children by showing how good character is in their behavior. The habituation of good behaviors will form positive characters in students [14].

Youth Resilience Development in Schools

Grotberg defines resilience as the human capacity to face, overcome, be strengthened, and even be transformed by difficult experiences [15]. Meanwhile, Werner defines resilience as an individual's capacity to bounce back, successfully adapt in the face of adversity, and develop social, academic, and vocational competence even though he is experiencing severe or mild stress [16]. So it can be understood that resilience (flexibility, resilience) is the ability or individual capacity of a person, group or community that enables him to face, prevent, minimize and even eliminate the adverse effects of unpleasant conditions, or change the conditions of life that are misery becomes a natural thing to overcome.

In the efforts of schools to foster youth resilience, Henderson and Milstein introduced six stages of strategy, which he called "The Resilience Wheel" [17]. The six stages of this resilience development strategy are classified by Henderson and Milstein into two, namely: mitigating risk, which consists of three stages: 1) increase bonding, which includes increasing the relationship between individuals and prosocial persons 2) clear and consistent set boundaries, including the development and implementation of school policies and procedures for its consistent implementation 3) teach life skills; includes cooperation, healthy conflict resolution, resistance, communication skills, problem-solving and decision making skills, and healthy stress management.

The second is building resilience that consists of three stages: 4) provide caring and support, including giving appreciation, positive attention, and encouragement 5) set and communicate high expectations, it is important because high and realistic expectations are motivators for students and 6) provide opportunities for meaningful participation, providing responsibility and opportunities for active participation, such as opportunities to solve problems, make decisions, plan, work together and help others.

Fostering Student Engagement and an Optimal Learning Environment

The attachment of students to school is important for the optimal learning process. Research conducted by Dharmayana shows that attachment to lessons and emotional competence has a bigger role in influencing student academic achievement when compared to the role of intelligence as a general ability. Besides, students' attachment to subjects at school has a direct effect on academic achievement [18].

Another study conducted by Sirin and Sirin also supports that school attachment significantly predicts student academic performance. Two of the three components of attachment to school, namely participation in school and expectations / expectations of school are significant predictors of student academic performance, while the component of school identification has no significant relationship with student academic performance after the independent variables in this study were controlled [19].

The attachment of students to lessons at school is quite important, because students who do not have an interest or attachment to school are vulnerable to skipping lessons at school. Truancy during school hours is also linked to other violations such as brawls. In academic terms, students who do not have an attachment to school lessons perceive that school is unpleasant, providing irrelevant and boring experiences [20].

Fostering attachment to students is influenced by several factors, namely students' perceptions of school, learning formats, and teacher characteristics. Most of the existing research tends to show that meaningful student engagement is formed from two independent processes, namely academic intensity and positive emotional response. Research conducted by Aulia shows that perceptions of teacher pedagogical competence and academic self-efficacy contributed 40.2% to student attachment to lessons [21]. Optimal learning combines both of these to make learning fun and challenging as well as spontaneous and important [22].

Therefore, to make students bond with the school, they must have a positive perception about the school itself. This positive perception can be formed from a pleasant learning experience at school. The effort made by the teacher in this case is to increase their competence to be able to create fun and challenging learning formats and to build positive relationships with students themselves.

Conclusion

Positive Psychology is a relatively new approach to psychology but has a significant role in changing how humans perceive life. In the

school context, positive psychology has brought traditional perceptions that focus on problems or learning disorders to focus on the strengths that individuals have to prevent problems from arising. So, there have not been many studies related to the development of positive psychology in Indonesia, so it is homework for researchers to develop it according to the Indonesian context and culture.

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Legal Views Responsive to the Position and Function of Implementing Regulations in the Formation of Laws and Regulations - Invitations in the Covid -19 Era

Rachmatullah Ramadhon[1]

Introduction

Based on the legal system in Indonesia, some laws and regulations can be classified into statutory regulations that have the attribution authority of the constitution or laws and regulations whose function is to carry out orders or delegations of the regulations above which delegate them. called the implementing regulation.

Responsive law is a model or theory initiated by Nonet-Selznick in the midst of Neo-Marxist criticism of liberal legalism. As is well known, liberal legalism presupposes law as an independent institution with a system of regulations and procedures that are objective, impartial, and truly autonomous. The icon of liberal legalism is legal autonomy. The most obvious form of autonomy is the rule of law regime. With its autonomous character, it is believed that the law can control repression and maintain its own integrity [1]

During the Covid -19 period, many implementing regulations were born, to overcome technical problems with health protocols which are a manifestation of the representation of law number 6 of 2018 concerning health quarantine, in fact, many violations were committed by the community against these implementing regulations. Like the return of Habib Riziek Sihhab as the head of FPI in a pickup at Soekarno Hatta airport and the mengandung event in Bogor which caused a large crowd of people, finally, there was a reaction from the palace and the police to take firm action against the problem by removing the positions of the Head of Metro Jaya Police Inspector General Nana Sudjana and Kapolda. West Java Inspector General Rudy Sufahriadi, as well as summoning DKI Jakarta Governor Anies Baswedan and West Java Governor Ridwan Kamil to be investigated for the error. This incident has an impact on the position and function of implementing regulations in the formation of laws and regulations from a responsive legal perspective.

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Results and Discussion

Position and Function of Implementing Regulations in Forming Laws and Regulations in the Covid-19 Era in Indonesia.

The source of the delegation's authority is contained in the laws and regulations that give birth to legislation products, often referred to as Implementing Regulations. Implementing Regulations, namely regulations that function as executors of laws or what are referred to as "delegated legislation" as "subordinate legislation". Said to be "delegated legislation" the authority to determine it comes from the authority delegated from the law by the legislators (legislature) [2]

The explanation above illustrates that implementing regulations are regulations that are formed based on delegation or orders from existing laws and regulations to be able to regulate certain matters explicitly or not according to the statutory regulations that delegate them.

Provisions regarding the Governor's Regulation are contained in Law Number 32 of 2004 concerning Regional Government in Article 146 paragraphs (1) and (2), respectively, which reads: (1) "To implement Regional Regulations and with the power of statutory regulations, the regional head determines regional head regulations. and/or regional head decrees". (2) "Regional head regulations and/or regional head decrees as referred to in paragraph (1) are prohibited from contradicting public interests, regional regulations, and higher laws and regulations" [3]

It is known that the formation of a Regional Head Regulation, in this case, a Governor Regulation, has conditions that include: it is formed based on an order from a Perda. must not violate the public interest. may not conflict with higher laws and regulations. These are the requirements for the formation of a Governor Regulation according to Law Number 32 of 2004 concerning Regional Government.

If seen from the example of problems in the background, there are forms of violations regulated in the implementing regulations, namely the two regulations of the governor of DKI Jakarta, namely the Regulation of the Governor of the Special Capital Region of Jakarta City Number 33 of 2020 concerning Large-Scale Social Restrictions in Handling Corona Virus Disease 2019 (COVID -19). Province of the Special Capital Region of Jakarta and Regulation of the Governor of the Special Capital Region of Jakarta Number 41 of 2020 concerning Imposition of Sanctions for Violations of the Implementation of Large-Period Social Restrictions in Handling Corona Virus Disease 2019 (COVID-19) In the Province of the Special Capital Region of Jakarta, special regional governor regulations

the capital city of Jakarta, if seen from Article 146 paragraphs 1 and 2 of Law Number 32 of 2004 concerning Regional Government, some things are inconsistent, namely in the first point of the Pub based on regional regulations, but in fact, the two regulations are not based on regional regulations but based on statutory regulations invitation n higher order, namely various laws and ministerial regulations.

The problem is whether the two governor's regulations can apply, the answer is that it can be seen that the position of the governor's regulation as an implementing regulation is based on the science of statutory regulations, namely referring to Article 8 paragraph (1) and (2) further affirming that the regulations are not included in the hierarchy of laws in Article 7 is still recognized and has binding power if it is based on the delegation of existing regulations or is established based on its authority.

In simple terms, the position of the government regulation as an implementing regulation in the formation of statutory regulations is contained in Article 8 paragraph (1) and (2), which is not included in the hierarchy but its existence is still recognized and can be binding like statutory regulations in general which are listed in the hierarchy. insofar as the production is based on orders from a higher level of statutory regulations or is established based on a clear authority. The position of the Governor Regulation itself is as the Prevailing Legislation which is confirmed in the provisions of Article 8 paragraph (1) and (2) Law Number 12 the Year 2011 concerning the Formation of Legislative Regulations [4]

Meanwhile, the function of a Governor Regulation is as an implementing regulation of the laws and regulations above it. Basically, implementing regulations functions to regulatory provisions that cannot be regulated in a higher level statutory regulation. In line with this, what has been stated by Jimmy Asshiddiqie that the delegation of rule-making power further regulates from laws to ministers or ministerial-level officials is limited to regulating legal norms that are technical administrative in nature. Meanwhile, legal norms that contain further regulations regarding the substance of rights and obligations are not delegated, let alone sub-delegated [5]

In fact, the two governors acted a lot as regulating the substance of rights and obligations which spoke of PSBB which then expanded the meaning related to health protocols and even related to sanctions stipulated in the governor's regulation whose meaning was expanded even not regulated in Law No.

A Responsive Legal View of Implementing Regulations in the Formation of Laws and Regulations in the Covid -19 era.

The character of legal products in a country can be divided into 3 types, namely repressive, autonomous and responsive legal products. According to Nonet and Szeinick, there are three basic types of law in society, namely as a servant of repressive power (repressive law), the law as a separate institution capable of taming repressive and protecting one's integrity (autonomous law), and law as a facilitator of various responses and needs of aspirations. social (responsive law). [6] Repressive law is a law that serves power and a repressive social order, relying a lot on coercion without considering the interests that exist in society, things that are considered in this repressive law are the maintenance and implementation of the order, public calm, defense, authority, and dispute resolution. Autonomous law is a law that is oriented to the control of repressive powers. The point is that autonomous law is an Anita of repressive law. The important characteristics of autonomous law are first, the emphasis on legal rules as an effort to oversee official power, the existence of freely accessible courts that cannot be manipulated by political and economic power, and has the executive authority to adjudicate violations of the law by both public officials and individuals [7]

If you look at the understanding conveyed by Nonet and Szeinick regarding repressive and autonomous law, it can be said that the two special regional governorates for the capital of Jakarta which are related to Covid-19 have a sense of repressive and autonomous existence of coercion and not prioritizing public interests in society, only making society order, calm, This authority and regulations are only autonomous so that there is supervision from the official power so that violations of these two governors can prosecute public officials and individuals as well as the removal of two regional police chiefs, namely the Jakarta Metropolitan Police Chief and the West Java Regional Police Chief and the summons of the two governors on suspicion. Punishment of other elements of the fraud involved being involved in the offender in the regulation.

Responsive law offers more than just procedural justice but is more oriented towards justice by paying attention to the public interest. This theory is more concerned with the substance of justice. The issue of justice is better understood as quid ius, not quid lures. [8] the characteristics of responsive law are looking for the implicit values contained in regulations and policies.

Mahfud MD, the law of responsiveness is Participatory Making, All of which are aspirational and the details are limitative. Participatory-

making means that in the process of forming a law, from planning, discussion, enactment to the evaluation of its implementation, it requires active community involvement. The content is aspirational, which means that the material or substance of the norms in the law must be by the aspirations of the community. And the details are limitative, namely that all laws and regulations which constitute the implementation of the established law must be by the meaning of the basic norms contained in the law. Based on the relationship between community participation and responsive legal products, the requirements for obtaining responsive legal products are to open space for public participation at every stage of the formation of laws and regulations [9]

The opinion of Nonet and Mahfud MD, if faced with the two governors regulation, it can be said that they do not have a sense of responsiveness, there is no room for community participation that is oriented towards justice by paying attention to the public interest, based on the absence of the involvement of the Jakarta Regional Regulation which is the reference for the governor, only based on law No. 6 of 2018 concerning health quarantine, it cannot answer the problems that occurred in the Covid -19 era because this law was made before the arrival of the Covid -19 virus, so there needs to be an agreement or aspirations of the people represented by DPRD Dki Jakarta in the form of the local regulation so that it can be used as a reference in making the Governor Regulation.

The meaning of the laws contained therein must be by the implementing regulations, if you see an expansion of the meaning of PSBB by implementing health protocols, even related to criminal sanctions in the Governor's Regulation, there are many extensions of meaning which they do not involve the aspirations and participation of the community. We have abandoned matters related to the making of regulations which basically have a repressive and autonomous feeling, so in this era, it is better and deserved that a sense of responsiveness should be prioritized, especially as our country upholds democratic values, all of which are only for the people so that a higher measure of justice is felt.

Conclusion

The position and function of implementing regulations in the Covid-19 era, namely the Regulation of the Governor of the Special Capital Region of Jakarta City Number 33 of 2020 concerning Large-Scale Social Restrictions in Handling Corona Virus Disease 2019 (COVID -19) in the Province of the Special Capital Region of Jakarta and the Regulation of the Governor of the Special Capital Region Jakarta Number 41 Year

2020 Concerning Imposition of Sanctions Against Violations of the Implementation of Large-Period Social Restrictions in Handling Corona Virus Disease 2019 (COVID-19) In the Province of the Special Capital Region of Jakarta, there are regulations that are repressive and autonomous in nature, their position and function are problems that can be seen from how to make it to the stage of supervision even to implementation, there is an expansion of the meaning of the substance of the rights and obligations regulated in Law number 6 of 2018 concerning health quarantine contained in the meaning of PSBB which is expanded to become a health protocol and imposition of excessive sanctions even the law is not regulated in the two regulations, both governorates do not have a responsive sense of law because there are no aspirations or community participation which are oriented towards justice which does not materialize because basically this regulation is only autonomous and repressive in nature, it is contained in the considerations of this regulation. because it does not refer to the local regulation di Jakarta which is basically a representation of the special community in the procedural administration area in a special area of the capital city of Jakarta.

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Socio-Economic Impact on Rabbit Farming Business due to Covid-19 in Batu

Rahmadi[1]

Introduction

The current Covid-19 pandemic has had a major impact on all life sectors, including the rabbit farming business. This study aims to determine the socio-economic impact on rabbit farming due to the Covid-19 pandemic in Indonesia. It employed statistical data, literature review, reports, policies, and regulations. Interestingly, Covid-19 has both positive and negative impacts on rabbit farming. The positive impacts include the prospect of frozen rabbit meat as a response to the current food regulation that must be *Aman, Sehat, Utuh Halal* (Safe, Healthy, Whole and Halal) (ASUH). On the other hand, the negative impact includes disruption of rabbit meat supply outside the region. This might be due to slow delivery services and the closure of tourism in the city of Batu. Such condition results in a decrease in business productivity, farmer income, and a threat to the sustainability of the rabbit farming business.

The broiler rabbit farm produces rabbit meat that plays an important role in the supply of culinary businesses in Batu. Broiler rabbits are farmed in almost all areas of Batu, indicating opportunities to develop rabbit farming sector. Accordingly, broiler rabbits farming has increased production in the last ten years where the population reaches 23,825 in 2019 in Batu alone (Central Bureau of Statistics for Batu City, 2019).

Rabbit farming has developed promising prospects in the amount of consumption and production. The 2019 data from Ministry of Agriculture shows an increasing trend of rabbit meat consumption in the last five years. The average was 1.6% and the average per capita production growth rate was 1.3%. This means that consumption growth is higher than production growth. It can be concluded that there is a wide opportunity for rabbit farming as a strategic business development.

This condition did not last long since China reported cases of pneumonia originating from a new type of Coronavirus infection in early 2020. The disease soon became an outbreak that is currently referred

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as Covid-19. The World Health Organization (WHO) declared an international emergency for the Covid-19 pneumonia case, which also forced Indonesian government to impose *Pembatasan Sosial Berskala Besar* (large-scale social restriction) (PSBB) as an effort to break the chain of the virus spread. This policy is based on Law Number 6 of 2018 concerning Health Quarantine. The rabbit farming business, hence, is also impacted by the PSBB regulations. It is of particular interest of this article to examine the socio-economic impact on rabbit farming during the Covid-19 pandemic.

This study employed interview and literature methods. The data and information were obtained from secondary data consisting of statistical data, literature review, reports and policies, laws and regulations. These methods aim to obtain information about the complex situation and problems experienced by the rabbit farming business due to the Covid-19 outbreak.

Impact of Covid-19 on the Indonesian Economy

The first case of Covid-19 pneumonia was found in the city of Wuhan, China. China is the second largest economic actor in the world, which is also Indonesia's largest trading partner. The International Monetary Fund (IMF) stated that China contributed 39.2% of the total world economic growth by 2019. Hence, a decrease in China's Gross Domestic Product (GDP) of up to one percentage point would affect Indonesia's economic growth by 0.3 percentage points [4]. If Indonesia's economic activities do not run normally, there will be a slowdown in economic indicators that are prone to exposure to global financial market panics [11].

Accordingly, the Covid-19 pandemic has also caused problems in the livestock industry. It is the reason behind acute food crisis and insecurity in Somalia, Afghanistan, and East Africa. It causes disruption of transportation and reduced prices for food products in Bangladesh, trade barriers for food importing countries, including the Caribbean, Ecuador, and Venezuela (Food Agriculture Organization of the United Nations, 2020).

Covid-19 has also impacted domestic economy in the forms of decreased consumption and purchasing power. It decreased performance of breeders, and threats to the banking and financial sectors. In the aspects of consumption and purchasing power, Covid-19 causes a significant reduction in the number of workers and income (Pakpahan, 2020). Covid-19 largely impacted the life of poor people, unemployment, and Indonesia's economic growth.

Two scenarios – worst and severe – are predicted by the Indonesian government concerning this pandemic crisis. First, Indonesian economy is predicted to continue to grow positively by 2.3%, but the number of poor people will increase by 1.16 million, and the number of unemployed will increase by 2.92%. Second, Indonesian economy is predicted to run negatively by 0.4%, and the number of poor people will increase by 3.78 million, while unemployment will increase by 5.23 million (Consumer News and Business Channel Indonesia, 2020).

This data suggests that domestic business will suffer losses in long term, including the rabbit farming business. This will include a reduction in the number of workers and the cessation of livestock business activities. The Central Statistics Agency (2020) reported that from January to May 2020 the supply/ restaurant group experienced inflation of 0.08% and the transportation of 0.87%. Meanwhile, deflation occurred in the food group by 0.32%.

Results and discussion

Respondent profiles

Respondents in this study were rabbit breeders who had 25, 50, and 100 rabbits. Respondents who were willing to interview were 30 breeders with the following data distribution:

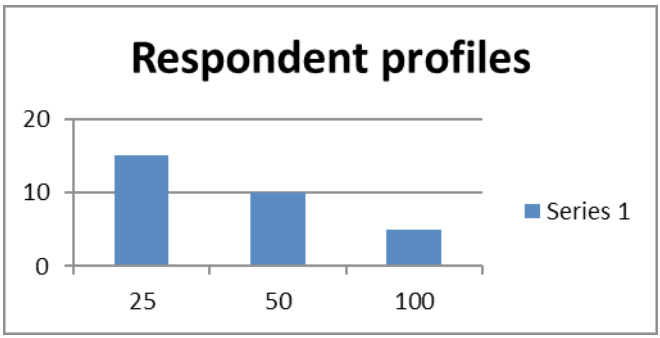

Figure 1. Interviewed respondents

The figure shows that there were 15 breeders in total. Ten breeders had 50 rabbits, and five other breeders had 100 rabbits. Breeders with 25 rabbits gave out responses and participated actively in filling out the questionnaire as much as 75%.

Rabbit Farming

Rabbits are livestock with two functions: as a pet (ornamental); and a meat producer with production speed. Hence, they are a potential

business. The development of broiler rabbits in recent years has shown a great increase in population, production, and consumption (Figure 2). Revenue from rabbit breeders in 2018 was 12.09 million, while the expenditure was 7.50 million IDR. This expenditure consists of 21.95% of workers' wages, 4.12% of electricity and water, 57.87% of feed, 3.23% of medicines, 6.65% of the purchase of tillers, and 5.09% of others (Central Statistics Agency, 2019).

Impact of Covid-19 on Rabbit Farming Business

Coronaviruses are a group of virus subfamily named in Orthocoronavirinae in the Coronaviridae family in the order Nidovirales. This virus attacks birds and mammals, including humans [11]. The current infection of Covid-19 has impacted the whole world, including Indonesia, that brings impacts on the rabbit farming business.

Concurrently, the PSBB policy causes restrictions on community activities and access to transportation. As a result, there is a decrease in consumption and the number of products purchased by the community. Restrictions on transportation access also hamper the movement of business actors to distribute rabbits and rabbit meat between cities, resulting in supply chain management disruptions. Reports the impact of Covid-19 on the livestock sector included disruption of supply chains for seeds, feed and medicines, operations, distribution and marketing of production [5].

Supply chain disruption causes imbalance between supply and demand. High product supply accompanied by falling demand is likely resulting in an uncontrolled fall in meat prices. The demand decreases up to 40-50% and the weight of rabbits sold above 2 kg. Hence, the fall in meat prices due to oversupply has lowered farmer's income.

Impacts of Covid-19 on rabbit farming business causes farmers spending additional feed costs for tillers that are ready to sell, but are not ready to slaughter. It also disrupts meat storage costs, labor income, and causes lost market opportunities. The threat of the Covid-19 outbreak specifically includes failure to achieve production targets, decrease meat production, and labor productivity. Ultimately, it creates externalities that must be borne by farmers due to the negative impact on economic activity.

However, one positive impact can be identified where the prospect of frozen rabbit meat starts to develop. This is a trend in that follows ASUH principles. The oversupply of rabbit meat encourages business actors to develop frozen food products to extend their shelf life, which in turn improves public perceptions of frozen meat products. Public awareness of

the importance of sanitation has also increased the trend of issues of safe, healthy, whole and halal food.

Implementation Aspects

The implementation of rabbit cultivation during this pandemic is only limited to maintaining the existing livestock. In this case, breeders tend not to reproduce their livestock since it will increase the cost of feeding while marketing activities are not running normally. This study found that 25% of breeders stated their capability to carry out normal farming system. Rabbit farming can run with alternative derivative products, as stated by 30% of breeders. The rest 45% of farmers stated that rabbit farming is only limited to maintaining existing livestock and waiting for the market to return to normal.

Conclusion

Covid-19 has both positive and negative impacts on the rabbit farming business. The positive impacts include the prospect of developing frozen rabbit meat that follows ASUH principles. The negative impact includes disruption of the supply chain due to disruption of the distribution of tillers (feeders) and rabbit meat, feed and medicines, as well as operational activities.

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Destination Imagery Effect on Loyalty in Bromo Tengger Semeru National Park Tourists

Regina Sahara Nurdin[1], Siti Anisah Rahmahdinah[2]

Introduction

The development paradigm in many countries, especially developing countries, is now oriented towards the development of the service sector and industry. One of the factors that have become the focus of development in various countries in the tourism sector. Tourism is one of the largest service industries in the world and one of the economic sectors that are very strategic in causing multiple impacts, either directly or indirectly. Tourism in Indonesia is a very important sector to be developed because it can create jobs, increase income, and can encourage local governments to build and maintain infrastructure so that the quality of life of local communities increases. Each region has a large enough opportunity to introduce its tourism potential so that it can attract both local and foreign tourists. The problem faced by the tourism sector in Indonesia is that regions compete with each other to increase destination attractiveness so that the value or tourist attraction will greatly affect the level of tourist visits. To support tourism development in the region, good management is needed.

Regarding tourist destinations, visitor loyalty remains an important indicator of the success of developing tourism [1]. Due to the large number of tourist destinations in Indonesia, tourist destination development companies must win the competition by instilling an element of loyalty in tourists to be loyal. The increase between tourist destination managers is carried out to increase the number of tourist visits. The increase in tourist visits can be achieved if the desire of tourists to come back and are willing to provide recommendations for tourist attractions that have been visited others. Tourist loyalty is an important aspect for tourist destination marketers because it is more desirable and at a lower cost to retain existing tourists than attract new tourists. Many factors underlie loyal tourists to visit,[2].

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In the context of destination marketing, tourist satisfaction is the goal of the service attitude provided. Increasing satisfaction is an important factor in developing a system of services provided. One of the keys to successful destination marketing is tourist satisfaction as it affects destination choices and decisions to revisit. This is related to behavioral intentions where satisfied tourists tend to have the intention to behave positively towards a destination[3]. Apart from satisfaction, of course, other factors can foster a sense of loyalty to tourists, namely by creating a positive image of tourist destinations.[4]explained that the image of a destination is the perception that visitors have about tourist destinations Each tourist has different perceptions and can be positive or negative. This is a challenge for tourist destination managers to maintain the image of the destination so that tourists have a positive perception of their experience that leads to satisfaction from their visit and also fosters a sense of loyalty to return to these tourist destinations.

A strong destination image from tourism will produce a strong attraction. Destination image is defined as the compilation of a person's beliefs and impressions of a destination that comes from processing information from various sources from time to time[5]. In the end, the impression that tourists have on a destination will influence tourists to visit a destination. The number of tourist visits that has increased so rapidly is basically due to Indonesia's tourism resources that have the potential to attract both local and foreign tourists. The increasing number of domestic tourists visiting Bromo Tengger Semeru National Park indirectly assumes that the increase in the number of tourists proves the increase in the satisfaction that tourists get. As explained above, the level of satisfaction can create loyalty which according to researchers is caused by positive things from the destination image and satisfying tourist support facilities.

Based on visit data until 2019, the number of tourists visiting the Bromo Tengger Semeru National Park has fluctuated were from 2015 to 2018 it continues to increase from year to year, but in 2019 the number of visits has decreased. [6]. Seeing the phenomenon that exists in Bromo Tengger Semeru National Park, it is, therefore, necessary to have the right marketing strategy to maintain the growth of tourism and there is a need for an evaluation of the loyalty of tourist visits to Bromo Tengger Semeru National Park to maintain the stability of visitors in the future. The success of marketing objectives should be guided by an in-depth analysis of the destination image of Bromo Tengger Semeru National Park and its interactions with tourist satisfaction and loyalty.

Discussion

Destination image is an important factor in tourism marketing and plays a major role in decision making and tourist behavior in the future. Tourist satisfaction is a subjective evaluation of the performance of a product or service with previous expectations. When the received attractiveness performance is higher than the expectation, the customer will be satisfied. There are several definitions of the construct of satisfaction, but most of these definitions admit that customer satisfaction is a complex construct, which includes cognitive, affective and logical, and physiological aspects of psychodynamics. Travelers who are satisfied with their visit are likely to revisit the destination in the future and leave positive comments about the destination.[7].

The first element of the destination image, the cognitive image, states that knowledge is obtained through the cognitive learning process. Cognitive learning is defined as an (active) process where people form associations between concepts, learn sequences of concepts, solve problems, and get input. Cognitive relates to the possibility or tendency that the individual will take special actions or behave in a certain way towards certain attitude objects, even the conative component may include the actual behavior itself. Customer judgment is based on the difference between a set of attribute combinations that are considered ideal for the individual and his perception of the actual combination of attributes. In other words, the assessment is based on differences between the ideal and the actual. If the ideal is the same as the perception, the customer will be satisfied, on the contrary, if the difference between the ideal and the actual is bigger, the consumer will be more dissatisfied. Based on this model, customer satisfaction can be achieved in two main ways, namely: changing the company's offering so that it fits the ideal, convincing customers that the ideal does not match the actual reality.

The unique image is related to the uniqueness of a tourist attraction. A tourist attraction certainly has 14 different levels of uniqueness. It is this uniqueness that attracts tourists to visit a tourist attraction. The more unique or different the attractiveness of a tourist object will provide a high image of the tourism object concerned. This is because the uniqueness that is owned cannot be replaced by other tourist objects. Then the effective image is based more on feelings (feelings) than on belief and knowledge about objects. Emotions or consumer feelings about a particular product or brand are an effective component of certain attitudes. These emotions or feelings are often considered by consumer researchers to be highly evaluative, which includes a person's assessment of the object of attitude

directly and thoroughly. The effective model says that an individual customer assessment of a product is not solely based on regional calculations but also based on the level of aspiration, learning behavior, specific emotional feelings (satisfaction, reluctance), mood, and others.

The important purpose of marketing is to create and pay attention to and maintain customer loyalty to a product or service. There are two main approaches used to determine customer loyalty: the behavioral and attitudes approach, where the behavioral approach conceptualizes loyalty as a behavior. Only consumers who buy products or services systematically within a certain period are considered loyal customers. The behavioral approach does not differentiate between truly loyal people for reasons of cost or convenience only. The attitude approach conceptualizes loyalty as an attitude that is described as a psychological expression of tourists' willingness to visit again in the future and recommend to others.

Loyalty to a destination can be described as the behavior of the intention of tourists to revisit and make positive recommendations regarding revisiting and making positive recommendations regarding tourist destinations visited by word of mouth. Based on this definition, tourist loyalty is a deep commitment with the desire to return to a tourist destination accompanied by their desire to recommend it to others.[8]. Companies will benefit if they have loyal customers, these advantages include: can reduce marketing costs, can reduce transaction costs, can reduce customer turnover costs or customer turnover, can increase cross-selling, which will enlarge the company's market share, encourage word of mouth more positively, assuming that loyal customers are also satisfied, can reduce the cost of failure.

The influence of destination image on loyalty is mediated by the satisfaction of tourists in Bromo Tengger Semeru National Park Destination image can affect satisfaction positively, positive satisfaction felt by tourists has a positive influence on tourist loyalty[9]. Satisfaction will determine the loyalty of tourists through their desire to return and recommend others to visit. Therefore, satisfaction is the final construct of the purchase decision process, if consumers are satisfied, they will make repeat purchases, on the other hand, if they are not satisfied, they will move to another product. Tourist satisfaction can be created with a positive destination image. Tourists have positive ratings about Bromo Tengger Semeru National Park, so satisfaction can be said to be high, on the contrary, if tourists have a negative assessment, it tends to cause a sense of dissatisfaction or displeasure with tourism destinations. In general, there are six items of

positive image indicators relating to the knowledge/beliefs of tourists about a tourism destination,

Tourists who have a positive assessment of Bromo Tengger Semeru National Park as a tourist destination can become loyal, tourists who already have knowledge or belief about cognitive images (tourist attractions, basic facilities, cultural attractions, accessibility, and tourism substructure, natural environment, and economic factors) from Bromo Tengger Semeru National Park can be loyal by doing certain behaviors. These tourist behaviors include the intention of visiting again in the future, saying positive things, and recommending to others. The level of tourist satisfaction is divided into three zones, namely the zone of diversion, indifference, and affection. The diversion zone leads to low-satisfaction tourists who are less likely to return, even said negative things related to the tourism destinations visited. The indifference zone occurs in tourists who feel moderate satisfaction or get an experience equal to/following their expectations, these tourists tend to not care and have the opportunity to switch to other tourism destinations if they have better alternatives. Then tourists who feel very satisfied, including in the affection zone, tend to have high loyalty towards the tourism destinations they visit and even recommend them to others. These tourists tend not to care and have the opportunity to switch to other tourism destinations if they have better alternatives. Then tourists who feel very satisfied, including in the affection zone, tend to have high loyalty towards the tourism destinations they visit and even recommend them to others. These tourists tend not to care and have the opportunity to switch to other tourism destinations if they have better alternatives. Then tourists who feel very satisfied, including in the affection zone, tend to have high loyalty towards the tourism destinations they visit and even recommend them to others.

The destination image variable affects the tourist loyalty variable through the satisfaction variable felt by tourists. Tourists who have a positive assessment of Bromo Tengger Semeru National Park then when visiting feel satisfaction can result in these tourists being loyal to related tourism destinations, namely by recommending others, saying positive things, and or making repeat visits. The indirect effect between the destination image variable on the tourist loyalty variable through the tourist satisfaction variable, it can be concluded that the destination image variable through tourist satisfaction has an indirect effect on tourist loyalty. Some tourists who feel satisfied when visiting tend to intend to make a return visit,

Conclusion

Destination image has an influence on satisfaction, which means that if the destination image is improved, tourist satisfaction will also increase, the destination image referred to here is a description, beliefs, perceptions, and thoughts of tourists about a destination that involves various attributes of tourism destinations. By improving the destination image, tourist loyalty will increase through visitor satisfaction. Destination image has a positive and significant effect on tourist satisfaction. This shows that the development of effective and cognitive images as an indicator of destination images can increase tourist satisfaction. Destination image has a positive and significant effect on tourist loyalty. This shows that the development of affective images and cognitive images as indicators of destination images can make tourists return to visit Bromo Tengger Semeru National Park or recommend other tours to visit. Satisfaction has a positive and significant effect on tourist loyalty. This shows that tourists who are satisfied enjoying the natural beauty of Bromo Tengger Semeru National Park will visit again or recommend. Destination image has a positive and significant effect on tourist loyalty through satisfaction. This implies that tourist satisfaction can be a variable that mediates between destination image and tourist loyalty.

Destination image has an indirect effect on loyalty mediated by satisfaction This shows that tourists who are satisfied enjoying the natural beauty of Bromo Tengger Semeru National Park will visit again or recommend. Destination image has a positive and significant effect on tourist loyalty through satisfaction. This implies that tourist satisfaction can be a variable that mediates between destination image and tourist loyalty. Destination image has an indirect effect on loyalty mediated by satisfaction This shows that tourists who are satisfied enjoying the natural beauty of Bromo Tengger Semeru National Park will visit again or recommend. Destination image has a positive and significant effect on tourist loyalty through satisfaction. This implies that tourist satisfaction can be a variable that mediates between destination image and tourist loyalty. Destination image has an indirect effect on loyalty mediated by satisfaction This implies that tourist satisfaction can be a variable that mediates between destination image and tourist loyalty. Destination image has an indirect effect on loyalty mediated by satisfaction This implies that tourist satisfaction can be a variable that mediates between destination image and tourist loyalty. Destination image has an indirect effect on loyalty mediated by satisfaction[10]. Satisfaction is considered an essential component of one's travel experience[11], then [12] shows as a sign of

satisfaction that tourists generally tend to give positive opinions and recommend them to others.

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Responsive Approach in Forming Local Regulations

Rifaldi[1]

Introduction

From 2002 to 2009 the Ministry of Home Affairs canceled 2,246 regional regulations (Perda). It did not stop there, between 2010 and 2014 the Ministry of Home Affairs canceled 1,501 regional regulations, then from November to May 2015, there were 139 regional regulations canceled. In total as of May 2015, at least 7,029 Perda have been canceled [1].

The cancellation of regional regulations was canceled again by the Ministry of Home Affairs in June 2016, at which time President Joko Widodo (often called Jokowi) read out the 3,143 regional regulations that were canceled himself. Of the more than 3,000 regional regulations that were canceled, 1,765 of them were provincial and district / municipal regulations as well as 100 regulations/decrees of the Minister of Home Affairs and which were revoked/revised by the Minister of Home Affairs (Mendagri); and 1,267 District / City Perda revoked/revised by the governor (Ministry of Home Affairs of the Republic of Indonesia 2016) [2].

Ideally, the cost of making a Perda is very expensive, averaging over Rp. 100 million, each district and province in Indonesia has different costs from one another. As reported by the Republika media, the cost of making 1 regional regulation in Biak Numfor Regency, Papua Province is Rp. 300 million. Meanwhile, the cost of making 1 Perda in Batam City is higher than that of Biak Numfor Regency, reaching Rp. 480 million. The cost of making regional regulations in Yogyakarta Province in 2013 amounting to Rp. 500 million 1 Perda [3].

These data, provide a strong basis for evidence that in general, the quality of regional regulations in Indonesia is still low. On this basis, the authors try to offer a responsive approach informing local regulations to improve the quality of local regulations in Indonesia.

Result and Discussion

Principles of regulation formation in Indonesia.

The formation of regional regulations is a form of implementing the autonomy system in Indonesia, which was previously centralized

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to decentralized. Also, regional regulations contain a mandate from the center, namely as an assistance task, which means that regions are also assigned to complete central government affairs in addition to having autonomous authority.

In the Indonesian state administration system, the authority to formulate Regional Regulations does not lie with the DPRD's power but lies in the power of two institutions or two organs at once, that is to refer to the theory of authority as described above, then in the Indonesian state administration system, the authority to formulate Regional Regulations does not lie in the power of DPRD, but the power of two institutions or two organs at once.

Law Number 12 of 2011 regulates several principles related to the formation of a regional regulation as follows:

1. The DPRD together with the Governor / Regent / Mayor will discuss the draft Regional Regulation
2. The draft regional regulation that has been approved by the DPRD is stipulated by the regional head to become a regional regulation;
3. Perda is formed in the administration of autonomy, assistance tasks, and accommodating special regional conditions and/or further elaboration of higher-level laws and regulations.
4. Perda must not interfere with the public interest, other regional regulations, or higher laws and regulations.
5. Perda may contain provisions for the burden of law enforcement fees or imprisonment of up to six months or a fine of up to five million rupiahs.
6. Decree of the Regional Head is stipulated to implement the Perda.
7. Perda and decrees of the regional head that regulate are published in regional papers.[4]

Namu The causes of the problematic regional regulations are as follows:

1. The application of regional autonomy has had an impact on the emergence of various problems when it is applied in the field, because the implementation of regional autonomy is very much influenced by factors related to the ability of the executor, the ability in finance, the availability of tools and materials, and the ability of human resources to organize, including expertise in carrying out the legislative process. Regional autonomy is still interfered with by the interests of local elites who try to take advantage of regional autonomy as momentum to achieve their political interests.

2. The shift in authority in the formation of regional regulations to the DPRD has resulted in not making the results of regional regulations better. Because this shift of authority is not accompanied by the legislative capacity possessed by the DPRD, DPRD members themselves have never received specific training on the formation of laws and regulations, besides that the community is not given space to channel their aspirations or participate in observing the draft Perda.
3. There was a tightened understanding of the application of political law, causing it to become a means of political deals in pouring the material content of regional regulation.

Formulation of responsive local regulations.

Talking Making regional regulations that are responsive is a must to regulate and implement regional autonomy. The implementation of regional autonomy really requires the participation of the community as a whole so that regional development efforts can be carried out properly. Efforts to create responsive regional regulations will be achieved if implemented through stages of good planning, careful and careful harmonization processes, and community involvement to gather community aspirations according to the law they want. Regional regulations are autonomous laws that aim to control repressive powers. Autonomous law focuses its attention on the social conditions of the realities that occur in society. Autonomous law also has an emphasis on the rule of law as the primary means of controlling official and private powers. Responsiveness to local regulations can be interpreted as serving social needs and interests that are experienced and discovered, not by officials but by the public.

As has been stated by responsive legal theory, responsive law accommodates social values that are in favor of the needs and justice contained in statutory regulations and policies issued by the authorities. In terms of making a responsive regional regulation, it can be interpreted that the Perda must accommodate all the social needs and interests of the community in general, and not a reflection of the political will or the will of the authorities, but by the people. Responsiveness implies or means that responsive law is beneficial to society. The type of responsive law according to A. Mukhtie Fadjar's opinion has two strong characteristics, namely: a) a shift in emphasis from rules to principles and orientation; and b) the importance of being populist (populist), both as a legal goal and as a means to achieve it.

Local governments are demanded to avoid repressive regional regulations. Government power is called repressive if that power does not pay attention to the interests of the people being governed, that is when

a power is exercised it is not for the interests of those who are governed or neglects their legitimacy. In the case that the desired Perda can meet the needs of the community, the above opinion can be used as a reference that must be considered in the design and preparation of the Perda. Of course, it is not easy to do, because after all the Perda is a product of political compromise that cannot be separated from various influencing factors, even some powers in the parliament will greatly determine which direction the Perda leads. These regional legal products must be able to show partiality to the community without causing pressure to burden the community. [5]

Then, according to Hans Kelsen and Summers, the basic character of regulations that have quality is that they have 4 main function characteristics, namely an instrumental function, a constitutional function, a political function, and a democratic function. [6] To achieve this, it is exemplary in the Netherlands since 2009 that internet-based consultation or public consultation via the internet has been carried out where the Ministry of Justice will publish the draft act of parliament that is being drafted on the webpage for 12 weeks and everyone can provide input on the publication in question. [7] This can reduce the corruption of legislation according to the World Bank's concept of state capture, which is based on the concept of regulatory capture which was first coined by Stigler (1971). [8]

Conclusion

Enforcement The formation of regional regulations in Indonesia is very far from the expected quality, due to the many regional regulations being canceled by the central government. Of course, one of the reasons that caused regional regulations to be canceled is that the regulations that are formed are not compatible with what the community aspires to do. Of course, in this case, the authors offer local regulations formed based on a responsive approach. By forming a special web or special application to accommodate the aspirations of the community.

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Juridical Analysis of Regulating Judicial Process Screenings by TV Media Based on the Principles of Open Trial

Riyanda Dwike Larasadi[1]

Introuction

Television media in Indonesia is the media with the largest consumers compared to other types of media (print, interactive poetry radio/internet). The presence of television media for the shows that are presented has a great influence on consomme les médias. Television media is considered to have the advantage of being able to present broadcasts tout au long for various kinds of broadcasts.

Dimmick and Rothenbuhler argue that the media have three sources of life: content, capital, and audiences. Content related to media presentation content, such as programs (television and radio), news/features, etc. Capital refers to a source of funding to support the media. The audience is still related to the target segment issue. If the media prioritizes content and audience, the presentation of media content will be ideal.[1]

Television media centered on news content has seeped into the world of justice. This process is broadcast directly or indirectly by the media (re-broadcast). In this regard, the research team at the National Legal Development Agency (BPHN) of the Ministry of Law and Human Rights of the Republic of Indonesia surveyed the practice of live television broadcasting. The act of repeatedly broadcasting the case directly meant hunting down the suspect, who of course violated the presumption of innocence or presumption of innocence. There are concerns that the practice of television in court will lead to media trials which can lead to contempt of court.

As in 2017, in the context of broadcast media, Jessica's case is interesting to study more deeply. This case is the basis of this research. Jessica's murder attracted public attention and news of the trial was broadcast live. In fact, the trial was broadcast in detail.

The live broadcast of the trial process of the two cases turned out to be in the public spotlight, even though the international world judged the

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Indonesian judiciary to be very bad. Through this live broadcast, it is feared that judges will be positioned as parties in court by the general public in the process of investigations, examinations, and case terminations. However, the media remains a tool of controversy so that judges will remain fair. This study will further explain its position in the legislation on live broadcasts broadcast by television media and the principle of openness of public information. This white paper focuses on two main problems: First, is the broadcast along the criminal justice process through television media appropriate? with laws and regulations? Second, what are the boundaries of the principle of open trial and general wisdom in the context of broadcasting by the media?

Discussion

Live Broadcast of the Criminal Court Process according to the Prevailing Laws

The judge is a state official who carries out the judiciary according to statutory regulations. Judges are given the authority to decide and settle a case. This shows the freedom of judges as executors of judicial power. [2] K. Berends said that the freedom of judges in judging basically can be classified in the notion of juridical freedom, like the freedom that comes from human rights guaranteed by law. [3]

The function of a judge is to investigate decisions on cases submitted to him. Realizing a decision that fulfills a sense of justice, judges are required to be able to carry out the trial prizes by statutory provisions. [4] One of them is the implementation of criminal justice processes that are open to the public. One of them is the right of the defendant, namely the right to be tried in a court session that is open to the public. This is as stipulated in Article 153 paragraph (1) of Law Number 8 of 1981 concerning Criminal Procedure Law (KUHAP), that, "To examine the head judge at trial and declare it open to the public, except in cases concerning decency or the accused . ". Arrangements for open trials to the public are not only regulated in the Criminal Procedure Code, Article 13 of Law Number 48 the Year 2009 concerning Judicial Power (Law No.48 the Year 2009) also regulates open trials for the public, namely :

1. All trial hearings are open to the public unless the law provides otherwise.
2. A court decision is only valid and has legal force if it is pronounced in a trial open to the public.
3. Failure to fulfill the provisions as referred to in paragraphs (1) and paragraph (2) will result in the verdict being null and void.

The direct broadcast of the trial process is related to the principle of the open trial to the public by Article 195 of the Criminal Procedure Code

(KUHAP) which states that all court decisions are only valid and have legal force if they are pronounced open to the public. Sebagaiman said that the decision then belongs to the public. It is no longer the property of those who litigate it. Every person concerned has the right to know the verdict

Confirmation of Article 153 paragraph (1) of Article 195 of the Criminal Procedure Code and Article 13 paragraph (1,2 and 3) of Law no. 48 of 2009 concerning open trials for the public, opens space for the television media industry to attend the trial process with a live broadcast.

However, in Indonesia, there are actually no provisions in the Criminal Procedure Code or other laws that allow or prohibit live media broadcasting during an explicit and detailed judicial process. The Criminal Procedure Code can regulate judges only as custodians of court orders and exclude those who are deemed degrading the court's dignity from the court. This allows the judge to expel the photographer in court if it is found to have interfered with court proceedings.

Preparing trial records is explained from several perspectives of the Supreme Court Circular Letter (SEMA) Number 4 of 2012 concerning the Recording of Court Processes is regulated in Article 202 paragraph (1) because it regulates the implementation of a more transparent, accountable, and orderly trial, including in the minutes Apart from the memorandum of understanding from the Prosecutor's Commissioner, the provisions of the Criminal Procedure Code require that in the future a systematic and orderly audiovisual recording must be carried out which cannot be separated from the normal course of proceedings. For this reason, proceedings at the Court of First Instance must be accompanied by a step-by-step audiovisual recording under the following conditions:

1. The audio-visual recording results are a complement to the Trial Minutes
2. Audio-visual recording is carried out systematically and its integrity is guaranteed
3. Audio-visual recordings of the trial are managed by the court and
4. Audiovisual recordings as part of bundle A.

To ensure the fulfillment of the above provisions, the priority for the implementation of audiovisual recordings at the trial will be carried out as follows:

1. The first stage is carried out in cases of Corruption Crime and other cases that attract public attention:
2. The chairman of the court is obliged to ensure the operation of the audiovisual recorder by the circular letter.

In addition to allowing audio-visual recordings during the trial, broadcasts are further regulated in Law No.32 of 2002 concerning Broadcasting and the Broadcasting Code of Conduct (P3) and the Indonesian Broadcasting Commission (KPI) 2012 Broadcast Program Standard (SPS).

Journalistic broadcast programs (programs that contain news and information for the public interest, must pay attention to journalistic principles, including applying the presumption of innocence in reporting and broadcasting journalistic broadcast programs and not making judgments.

Regulations on a longing broadcast, apart from referring to the broadcasting law then P3 / SPS, must also pay attention to the legislative regulations relating to the trial process. The essence of proza trial is proof. The Criminal Procedure Code does not explain the meaning of proof, the Criminal Procedure Code contains only types of evidence that are valid according to law, as stipulated in Article 184 paragraph (1) of the Criminal Procedure Code. Rusli Mohammed [6] said that evidence in criminal procedural law is defined as an attempt to obtain statements through evidence and evidence to gain confidence as to whether the criminal act accused is true or not and to know whether or not the defendant is guilty. Witness testimony is the first piece of evidence referred to in the Criminal Procedure Code, in general, no case escapes the proof of the witness testimony.

The procedure for examining witness evidence in KUHAP is regulated in Article 160 paragraph 1, namely: "Witnesses are summoned into the courtroom one by one according to the order deemed best by the head judge at trial after hearing the opinion of the public prosecutor, defendant or legal adviser"

Furthermore, Article 167 paragraph (3) of the Criminal Procedure Code stipulates that: "Witnesses during a trial are prohibited from conversing with each other"

The procedure for examining witnesses as in Article 160 paragraph (1) of the Criminal Procedure Code and Article 167 paragraph (3) of the Criminal Procedure Code emphasizes that the statements given by each witness cannot know each other. This means that if the witness's previous testimony was broadcast along with the television media, there would be potential for witnesses who lag watching the broadcast process along. So that the potential for the tot to influence further witness testimony is very high

To prevent any issues arising from the effects of broadcasting a longing, the proceedings of cases of suspected corruption are carried out in the procurement of electronic-based Identity Cards (e-KTP) as in the South Jakarta Corruption Court. The Chairman of the South Jakarta District Court leads Decree Number 10 U1 / KP 01.1.17505 XI201601, which states that the proza for the trial, even though it is open, trial is prohibited from broadcast directly en media television. There are three reasons for this prohibition [7].

In addition to the South Jakarta District Court, special number W10. UI /KP.01.1.17505X1.2016.01 Class 1A District Courts that follow the regulations of the Minister of the Central Jakarta District Court will also be broadcast live or at the Jakarta District Court Center. .. Try. According to the Central Jakarta District Court television media, the decision of the South Jakarta District Court and the Head of South Jakarta must be interpreted as maintaining the spirit of the trial as a manifestation of the independence of judges in the direct trial process via television. media. Broadcasting is no longer permitted. However, television and mass media are reported in court and can be photographed. This means that the South Jakarta and Central Jakarta District Courts will only limit the live broadcast process.

The explanation above shows that the live broadcast arrangements for the proceedings of criminal cases are not yet uniform. From a broadcasting perspective, broadcasting that is directly processed by the court is allowed in several conditions related to ethics with broadcasting and journalism. However, if the trial process is broadcast live indefinitely, some regulations related to the criminal justice process will be difficult to apply. Therefore, you should limit your broadcasts to the live trial process.

Application of the Principle of Open Trial to the Public in the Context of Broadcasting by the Media

The implementation of the law in the daily life of society has a very important meaning because what is the goal of law lies in the implementation of the law. [8] There are often differences in views/opinions of law enforcement officials to enforce the law in a case, so that the law that is applied contains familiar truth, sometimes subject to consequences, both in the field of prosecution investigation and in court proceedings [9] As a result, people become victims.

The practice of law enforcement in Indonesia is still plagued by various problems that distance the law from its main goal of providing justice, certainty, and benefits to society. [10]

The judicial mechanism in the judicial process is actually not just a judicial process. The judicial process is only part of the process of applying articles and laws to laws, but also a process that involves people's attitudes and takes place in a certain social structure. [11] Being involved in the media is one of the logical consequences of the development of society in a democratic country in today's digital age. So, it is undeniable that the media have an important role, even in the process of running a case up to the trial process.

The media revolution has brought changes and people's behavior not only in accessing information but also in disseminating information activities.[12] hus, the press has a very important role in a democratic country like Indonesia. Press freedom as a citizen's human right is also guaranteed in the Press Law, so that under any pretext, the press must be free from preventive, prohibiting, and suppressive measures so that the public's right to obtain information is guaranteed. [13] he press and mass media that are free to express opinions are some of the values of democracy that need to be held in a democratic country.[14]

The press has the authority to comment on the proceedings of the judiciary, but the news must be full of responsibility and prioritize the principle of the presumption of branch guilt so that the news does not constitute a good and good. Freedom in reporting is cross-cutting freedom, which can be manifested in legal provisions, or which constitutes a Zelf-opened, in the form of moral/ethical form. This freedom must not affect the fair administration of justice.[15] hat means Arianti agrees that what will be done later is a fair trial through a due process of law.

Live broadcast in plain view is a justification for the application of the principle of open trial for the general public. According to Yahya Harahap, [16] the proza for an open trial for the general purpose is that all court hearings are clear, visible, and known to the public. No dark trial que whispers. All public voor open court hearings. When the panel of judges is about to open a trial, it must declare "the trial is open to the public." Anyone who will follow the proceedings can be present and enter the courtroom. The doors and windows of the courtroom are open so that the meaning of the principle of the trial is open to the public really reached.

Meanwhile, Moh. Faisal Salam interpreted the principle of an open trial to the public as a guarantee that the judge did not take sides. That everyone can attend the hearing so that the judiciary is under the supervision of public opinion. The aim is that judges do not apply the law arbitrarily or by discriminating against people.[17] So that the principle of

the open trial to the public essentially aims as a form of general supervision of the trial process.

Control or supervision carried out by the public may not interfere with the trial process or reduce the spirit of the court. In a live broadcast, a criminal court trial must not injure other principles in the adequacy of the principles of a fair trial and impartiality (fair trial).

One of the important elements of the principle of fair trial and impartiality (Fair Trial) based on Human Rights is the principle of the presumption of innocence (the right to presumption of innocence). The principle of presumption of innocence is one of the fundamental human rights to be protected.[18] According to General Comment No. 32, the presumption of innocence must guarantee (the defendant) that guilt is not attached until the accusation is proven beyond doubt. This principle requires that there is no judgment (prejudging) before a court decision is made. Apart from that, the media must also avoid coverage that could harm the presumption of innocence.

The principle of presumption of innocence is often violated by the media in the live broadcast of court trial coverage. The media often presents legal cases starting with broadcasts along the Session process, then discussing them in a discussion with experts and interested parties, even conducting investigations including the press. The live broadcast of the trial process is always inseparable from the comments presented by the news programs broadcasting it. The Indonesian Journalists Association (AJI) revealed that the live broadcast of the criminal justice process does not only contain broadcasts of the proceedings of the trial but is also imbued with views or comments from outside observers. The Press Council expressed the same thing, that the live broadcast had the risk of disrupting the independence of the trial, so they urged that the live broadcast not be carried out. [19]

Thus, it is feared that the process of broadcasting live television media will build public opinion because with the public witnessing directly the process of the trial stages, the community automatically makes a view and even the conclusion that the defendant is guilty or not before the judge's verdict. This condition is a form of process door depression, in which the press acts as a judiciary looking for evidence, and analyzes and studies then ends up making a decision.

The Indonesian Broadcasting Commission (KPI) also warned that in its coverage of the reading of decisions the media should not form or lead an opinion, more so if the verdict is different from public expectations.

[20] Concerns began to arise when public expectations were different from the decisions that were taken. Usually, it is a public opinion (negative side) that is different from legal considerations in decisions. However, of course, there is also a positive aspect. Suppose we can see that fair court procedures follow principles such as legal procedures.

The idea for this trial to be broadcast live on television is based on the assumption that the trial of the case can proceed fairly as feared by the reporter. However, recently, the press council appealed not to broadcast live because it was deemed to have the risk of disrupting the independence of the trial. Yosep Adi Prasetyo, member of the commission, except for reading the indictments. The live trial broadcast could be broadcast, saying that the live broadcast process should not have been carried out except to read the indictments. The voice of direct trials can tame the public and will make witnesses uncomfortable to act.

The restrictions on live broadcasts of the judicial process are illustrated in the verdict of the ASAv Hele Norge Radio P4 Case. European Convention on Human Rights (ECHR) on media coverage of criminal proceedings in Norway and Norway under the European Court of Human Rights. ASA's P4 Hele Norge radio drew public attention when suing the state for a ban on live broadcasting of criminal proceedings. The European Court of Human Rights Judge said that a live broadcast in court could change its character, put more pressure on the parties involved in the judicial process, unduly influence the behavior of these parties and create prejudice against justice. I said there is. The trial process.[21] The court thinks that live broadcasts of the trial process will usually still have elements of screening and journalistic choices. With the element of journalistic choice and filtering carried out by the media, of course, it will make a case that is broadcast by the media to have a certain content that can direct mass opinion.

Former Kruat Press Council Bagir Manan said:

> "In many developed countries, trials are held and the mass media are rarely freely accessible. The tradition of free countries is that they do not have public court proceedings, let alone closed countries. They fear violating the presumption of innocence. Massive coverage of the litigation process can get in the way. The freedom of judges. The freedom of judges is the freedom of law enforcers. The freedom of judges has an absolute nature to uphold justice and truth. Direct coverage can also affect the accused, according to Bagir.[22]

The author emphasizes that the role of television media in broadcasting broadcasts along the judicial process must of course be more careful and able to be balanced in reporting. Including gaf opdracht tot het regarding van hormatales proza judiciary by not making a "counter-trial". De media regarded may not publish reports that are "felt" capable of leading to an opinion that will later precede the judge's decision. Therefore, in covering a case, the media must be limited, especially in the case of longing broadcasts. Kamer in de aims to protect the honor of the judiciary and the parties involved in all forms of trial by the press.

Conclusion

Based on the explanation of the above discussion the writer can conclude that: First, live television media broadcasts about the trial process based on Article 153 Paragraph (1) of the Criminal Procedure Code. Broadcasting laws and technical regulations do not prohibit broadcasting directly from court proceedings as long as it meets the ethical requirements of broadcasting and journalism. However, direct broadcasting of the court process should be limited to avoid violating the rights of defendants, witnesses, and victims as stipulated in the Law on Protection of Witnesses and Victims. Also, restricting the live broadcast process is aimed at smoothing the court process and maintaining the spirit of court independence in the trial process. Second, the application of the principle of blindness in general in the context of media broadcasting must not violate the presumption of innocence. Also, live broadcasts by the media are very likely to give rise to media trials. Therefore, to realize the principles of fair trial and impartiality, it is necessary to restrict live broadcasts in the criminal justice process.

Therefore, the author provides recommendations to the media rather than guiding the public and making decisions before the judge's decision is taken in covering the case. This is to prevent media trials and to apply the principle of presumption of innocence and the principle of a fair and impartial trial. The Supreme Court developed and ratified regulations relating to the broadcasting of criminal programs by the media.

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Formulation of Victim Involvement in Criminal Crime Settlement Process

Rizky Wiyanda Putra[1]

Introduction

Every crime will always develop according to the times, the negative excesses of crime are the losses suffered by parties outside the perpetrator, namely the victim. The existence of victims in criminal law is very significant, as evidenced by the emergence of the term crime without a victim. Sellin dan Wolfgang says that the term victimless [1]. Schafer defines victimless crime as crimes committed by the victims themselves [2]. This indicates that the problem of crime with victims is a unity that will always be related. The relationship between crime and victims has resulted in the development of knowledge related to victims called victimology, in addition to the science of crime or commonly known as criminology.

The study of victims as an aid to criminal law is known as victimology which studies all aspects of the victim, including the protection of the rights, obligations, and involvement of the victim in the occurrence of a criminal act. The definition of the victim according to Arif Gosita victim is an individual or a group who experiences suffering physically and/or spiritually due to a crime that violates the rights of the victim [3]. Van Boven defines victims as individuals or groups who experience loss of mental, emotional, economic, and basic rights [4]. victims of criminal acts are said to be parties to a series of crimes in addition to the perpetrators, who suffer direct and indirect losses, which are material and immaterial. Then Muladi argued that victims are people, both individually and in groups who suffer losses, including physical, mental, emotional, economic, and substantial harm to their fundamental rights, through acts or commissions that violate criminal law in each country, including abuse of power [5]. Thus, seeing the victim automatically sees the losses they have experienced, which include losses that are material and immaterial.

Regarding the harm to the victim, ideally, the victim will receive legal protection. The victimology study recognizes legal protection for victims of crime in two models, namely procedural rights and service rights [6]. Van Boven stated that the rights of victims of criminal acts are the rights to

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justice and to recover materially and immaturely from the losses they have suffered [4]. protecting victims needs to see the essence of losses suffered by victims. The victims' losses are not only material or physical but also psychological. The victim also experiences psychological suffering, such as trauma that hinders the interaction of victims in the community [7]. The protection of victims, in this case, is part of legal protection for victims of criminal acts. Settlement of criminal cases is known as the criminal justice system, which is a series of processes starting from finding the perpetrator and the victim to imposing a sentence on the perpetrator if proven guilty. The general rules (lex generalis) of the Indonesian criminal justice system use Law Number 8 of 1981 concerning Criminal Procedure Law of the State Gazette of 1981 Number 76 (hereinafter referred to as KUHAP). There have been contradictory conditions that have occurred in the Criminal Procedure Code concerning legal protection between perpetrators and victims. Victims do not receive adequate recognition and appear to tend to be neglected, meanwhile for the perpetrators of criminal acts, the Criminal Procedure Code provides very dominant protection. This fact is reflected in several principles stipulated in the Criminal Procedure Code, in which all of these principles protect perpetrators of criminal acts, without giving room for victims to fight for their rights.

The position of victims in the criminal justice system who is not involved from the investigation process to trial about the goal of fulfilling the rights of victims is a form of victim marginalization. As a result, many victims were not satisfied when the verdict was handed down by the judge. Moving on from the weaknesses of the Criminal Procedure Code which does not have regulations that can provide procedural rights to victims as well as the development of modern criminal law which views a crime as not only limited to daad-strafrecht but has developed so far and views that crime is not only that but becomes daad-dader-strafrech and victim. Also, the modern criminal law paradigm has developed a corrective, rehabilitative and restorative punishment paradigm which becomes a consideration for the need for protection of victims of criminal acts.

Consider the position of victims of criminal acts in several regulations related to the justice system and related to the protection of victims who are in a marginal position. For example, the rights of a victim under the Criminal Procedure Code are limited to his position as a witness (which is a procedural right) and the right to obtain compensation through a claim for compensation (a procedural right). Then in law number 31 of 2014 concerning amendments to law number 13 of 2006 regarding the protection of witnesses and victims, the rights of witnesses and victims in

article 5 include obtaining information about case developments, court decisions, if the defendant is acquitted, from this right does not have any impact, for example, the right of the victim to object in the case of a sentence of acquittal. Of course, the absence of victim involvement is seen as unfair law because after all equality before the law is a principle contained in the constitution so that statutory regulations that are not in line with the constitution need to be improved so that they are in line with the constitution. Thus this article will describe the following problems: First, the urgency of involving victims of criminal acts in the criminal case settlement process guided by the Criminal Procedure Code; Second, the Formulation of Victim Involvement in the Criminal Case Settlement Process.

Discussion

The Urgency of Involving Victims of Crime in Criminal Case Settlement Processes Guided by the Criminal Procedure Code

It is very apparent that in the Indonesian criminal law system the influence of western law is very large, such as the neglect of victims of criminal acts in a series of crimes. When talking about crimes, there are several interacting parties, namely the perpetrators, victims, and the general public regarding public order. So that the criminal law has a primary study of crime, while the concept of crime is an act that is contrary to the appropriateness or in other words, an unwanted act. Paul Moedikno's crime is annoying and cannot be allowed to continue, because if it is continued it will cause harm [8]. The loss variable from the crime concept constructs the victim to be the part that experiences the loss.

Talking about the many types of losses suffered by victims. Losses that are material / tangible are known as material losses. There are also invisible losses known as immaterial losses. Immaterial losses can be divided into two types of victims. First, the actual victim is related to the type of suffering in the form of psychological suffering. Second, secondary/potential victim, the invisible suffering suffered by this type of victim is related to suffering that is not directly experienced by the main victim but has the potential to be experienced by people who are related to the actual/primary victim.

The suffering experienced by victims of criminal acts as a reality is the reason for the development of victimology studies. JE. Safety defines victimology as the study of victims in all aspects [9]. Benjamin Mandelson more specifically defines victimology as the study of victims from biological, psychological, and sociological aspects [10]. Mandelson's opinion is closely related to the losses suffered. The biological, psychological, and sociological

aspects of the victim will experience changes from normal conditions. The change to the abnormal condition of the victim does not only include the condition of the victim's body and psyche, socially the victim also suffers. Social suffering occurs in rape victims who are often excluded from their social environment. The issue of losses suffered by victims of criminal acts is very important. Such is the importance of the suffering of the victim of a crime that is also needed by criminology as a condition for criminalization that must contain the element of a victim, the relation between the victim must receive some form of harm or in foreign terms known as harmful which is harmful. It appears that when talking about victims will always be related to losses, let alone talking about criminal acts, of course, the suffering of victims of criminal acts is something that seems very certain to happen because it would not be possible for an act to be prohibited if it did not cause distress and loss that would give suffering.

The position of the victims who suffer the most, on the other hand, has a central role in the criminal justice system. It is said to have a central position because the victim automatically becomes a witness in an attempt to uncover the case and all testimony of the victim as a witness is necessary for proof. After the proof and the output of the perpetrator has been convicted, it is considered that the protection of the victim of a criminal act has been given, which is very wrong. Victims of criminal acts still experience unresolved problems due to being victims, for example, psychological and other material losses. If you only place the victim of a crime as a witness, you can be likened to the victim of a crime that will only become a cash cow in the criminal justice system.

Recognition of the existence of victims of criminal acts today is a necessity considering that being a victim of a criminal act is truly undesirable. There are many losses due to being a victim of criminal acts, including property loss and psychological loss. Against the losses mentioned by the author, the victim has the right to recover the damages. According to Arif Gosita, the right of victims of criminal acts to receive reparation for their losses is one of the rights of victims [4]. According to him, victims have the right to receive guidance and rehabilitation. Also, victims have the right to get their property back. Arif Gosita's opinion regarding the rights of the victim is a right that refers to efforts to recover property loss and psychological damage to victims of crime. Recovery for property losses is part of the protection of human rights, which guarantees the freedom of each individual to feel safe. The right to feel secure in having a derivate is in the form of protection of property rights. Each individual has a guarantee that the ownership rights to the property are

guaranteed and the ownership of the property will not be disturbed by other people.

Formulation of Victim Involvement in Criminal Case Settlement Processes

About the recognition of the extent of the victim's involvement, when compared to the suspect/defendant, it is certainly very different. The Criminal Procedure Code regulates the rights of suspects and/or defendants to obtain legal counsel in the framework of making a defense as referred to in Article 54 of the Criminal Procedure Code. Even in Article 56 of the Criminal Procedure Code, if a suspect and/or defendant is unable to obtain legal counsel, the state provides it. Compare with the position of the victim, in this case, the writer refers to the article that regulates prosecution contained in CHAPTER XV KUHAP. The CHAPTER on prosecution does not regulate the provisions that indicate the involvement of the victim of a criminal act. Even if there is a change in the indictment, the derivative must be notified to the accused and investigator, this will further clarify the affirmation of the victim in the criminal justice system.

Given the fact that the Indonesian criminal justice system with the Criminal Procedure Code as its main instrument is unable to provide protection for victims, a solution to this problem is needed. The existence of a public prosecutor in a criminal case The public prosecutor must represent the State to prosecute a person who is a criminal [11]. The function of the prosecutor who carries out the prosecution of the defendant because the defendant has committed a criminal act that is detrimental to the victim if in the prosecution process forgets the victim, this is not in line with the existence of the principle of equality before the law contained in the Criminal Procedure Code.

Embodying the principle of equality before the law in concrete legal rules is a way of completing legal elements, namely legal principles, legal norms, and legal rules which of the three things must be in harmony with each other, nothing contradicts [11]. For example, the principle of equality before the law must be manifested in the norm that everyone has the same rights and obligations without being discriminatory. Then, from legal norms, it must produce rights for every subject, including victims who have the same rights, for example, the perpetrator has the right to defend himself, so the victim must have the right to be able to determine the right justice for him.

Because until now there are no rules/provisions in the Criminal Procedure Code regarding the involvement of victims and the obligation of the public prosecutor to represent victims, the author will try to provide

a formula. The aim is to provide a formulation of victim involvement in the criminal justice system, the ideas of the authors are as follows:

1. When the public prosecutor feels the files from the investigator are complete and will make an indictment letter, the public prosecutor immediately communicates with the victim to plan the indictment;
2. The victim in communicating with the public prosecutor as referred to in paragraph (1) is given the right to convey his wishes related to the sufferings;
3. If there are no victims, the provisions in paragraph (1) do not need to be carried out by the public prosecutor.

The basis for the arguments of the authors provide this formulation, namely, FIRST, seen from the aspect of restorative justice which is the integration of victims as stakeholders in the criminal scheme into the justice system [12], through communication patterns between victims and public prosecutors will present the existence of victims in the justice system because victims will feel that they have a role. in the judicial process. Apart from that, the communication pattern between the victim and the public prosecutor will give recognition to the victim's rights on a doctrinal basis, namely procedural rights which are the rights so that the victim is actively involved in the prises of criminal justice. Through procedural rights, it can compensate for the actions of law enforcement officials who do not pay attention to the feelings of victims, such as too light charges [10].

SECOND*,* the pattern of communication between the victim and the public prosecutor will also bring justice, considering that the victim also has the right to be involved in the process of solving the case, so the granting of rights is like Aristoteles opinion, namely the principle of the sun Quique tribuere, namely giving rights that should be owned [13]. Also, justice with dignity legitimizes this opinion which argues that if Indonesian people are positioned as humans, justice will be realized [14]. Therefore, a pattern of communication between victims of criminal acts and public prosecutors will result in recognition of the rights of victims of crimes, and recognition of these rights is a form of recognizing human dignity which is automatically a form of humanizing human beings. The pattern of communication that the author offers to acknowledge the existence of victims of crime is in line with Habermas emancipatory delegation [15]. Habermas delegation emphasizes the importance of communication to find common ground for differences. Using an emancipatory deliberative pattern seeks to eliminate the line between the bourgeoisie (state) and the proletariat (in this case victims of crime).

THIRD, the author's idea to involve victims of crime by creating a pattern of communication between victims of criminal acts and public prosecutors when viewed from the purpose of punishment will be by the objectives of Contemporary Criminalization, where the main focus of the purpose of punishment is not too focused on retributive and oriented towards the rehabilitation of the perpetrator (distributive). Criminalization in the context of contemporary criminal objectives tends to be restorative, it is said by Wayne R. Lafave that today's criminalization aims to restore justice [16]. Marshal expressed restorative justice as a process for all parties involved in the case completion process. This involvement can be realized through the formation of a communication between the victim and the public prosecutor to find out what the victims of a crime want. Such involvement will certainly result in a benefit in the form of resolving the conflict, which is the goal of contemporary punishment. The development of legal development in Indonesia also tries to direct punishment so that conflicts are resolved, as stated in the 2019 Criminal Code Bill.

FOURTH, If there is a pattern of communication between the victim and the public prosecutor in the prosecution plan, of course, this will be in line with the principle of equality before the law with the pattern of the perpetrator being accompanied by a legal advisor and the victim being represented by the public prosecutor. The establishment of communication between the public prosecutor and victims of criminal acts, according to the author, is a consequence that must be carried out by the state's monopoly on reactions to crimes. Essentially, the position of the public prosecutor in the criminal justice system represents the state which specifically represents the victim in that position.

FIFTH, reflecting on the provisions of the New Zealand state which gives rights to a very broad range of victims when the crimes that befell them are brought to trial, such as communication with the public prosecutor and statements of suffering to the judge as a consideration. The author feels that this can be adopted in Indonesia because Indonesia and New Zealand are countries that have advanced in the application of restorative justice sourced from their living law so that it is felt in line with Indonesia where living law in Indonesia is imbued with restorative justice.

Thus the form of victim involvement through a communication pattern with the conditions that the author has described will cause the victim to be recognized as being in the criminal justice system. If later in implementation there is potential for revenge from the victim, the public prosecutor can intervene and reduce the victim. The most important thing is the involvement of the victim is the recognition of the victim's right,

namely the right of the victim to be involved in the process of solving the case. With the involvement of the victim, the retributive features of Indonesian criminal law will automatically be erased and will be replaced by restorative justice. Thus, the conflict will be resolved, so it is hoped that incidents such as the first travel victim, which was booming some time ago, will not happen again and justice will be obtained by the victim and accept the judge's decision.

Conclusion

Whereas the settlement of criminal cases based on the Criminal Procedure Code has not been able to provide comprehensive rights to victims of criminal acts, and the law on witness and victim protection has not yet provided comprehensive protection to victims of criminal acts. So based on this it is deemed necessary to provide opportunities for victims to be involved in the settlement of the case. Providing opportunities for victims of criminal acts to be involved in the settlement of cases will be able to give the rights of victims of criminal acts in this case procedural rights. Also, it will acknowledge the same position before the law between the victim and the suspect/defendant, where equality before the law is a principle that underlies the birth of the Criminal Procedure Code.

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Analysis of the Protection of Voters' Rights Residing Outside the Regions in the Pilkada of Bima Regency

Rusadin[1]

Introduction

The right to vote and be elected is a constitutional right for citizens which is recognized as part of the right to an equal position in law and government as guaranteed by the 1945 Constitution. As a constitutional right, guarantees for the implementation of these rights are regulated in the Law relating to the election of members of the legislature, the election of the President, and the Deputy. President and regional head elections. [1] The right to vote or the right to vote in an election (right to vote) is a basic right inherent in every individual which must be guaranteed for its fulfillment by the state. In the conference of the International Covenant On Civil and Political Right (ICCPR) which took place in 1966, discussing the political rights of citizens emphasized in article 25 that "Every citizen must have the same rights and opportunities without any distinction and without improper restrictions to participate in carrying out all public affairs either directly or through freely chosen representatives ".

Bima Regency, West Nusa Tenggara Province (NTB) is one of the regions that carry out the simultaneous Pilkada in 2020. With all the complexities of Law Number 10 of 2016 concerning Concurrent Pilkada and Law Number 7 of 2017 concerning General Elections, apparently, there is still a lack of regulations for the people of Bima Regency. in the distribution of the right to vote. In particular, the people of Bima Regency who are outside the region due to work and educational matters, such as Bima students in Malang City, East Java who cannot channel their political rights in the implementation of the Bima Regency Pilkada in 2020.

Residents of Bima Regency who are currently studying in Malang City do not get room to vote in Malang City or other alternatives in channeling their voting rights, due to limited regulations so that the political rights of citizens are neglected. This occurs in the absence of an explicit regulation regulating the election for residents of Kabupaten Bima who are outside Bima. Moreover, Law Number 10 of 2016 is still the juridical basis for the implementation of simultaneous regional elections in 2020.

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From these provisions, it is clear that the state guarantees the right to vote for every citizen, without exception. The KPU of Bima Regency as the implementer of regional head elections does not have a juridical basis to hold elections outside the region and/or create a polling station (TPS) in Malang City or the like to provide voting rights because it refers to the provisions of article 18 of Law Number 7 of 2017 concerning Letter Elections (b) "City Regency KPU has the duty to carry out all stages of implementation in a regency/city based on the provisions of laws and regulations."

Based on the provisions of "Implementing in a Regency / City", the KPU of Kabupaten Bima can only carry out the election in its own working area, namely in Kabupaten Bima. So that it cannot accommodate the implementation of regional head elections for Bima residents who are outside the region such as in Malang City. Whereas if you refer to several articles in Law Number 10 of 2016 concerning Pilkada, citizens have the right to get facilities to channel their political rights as stipulated in Article 56 paragraph (3) "If a Voters have more than 1 (one) place to live, the voter must select one of the places of residence listed in the voter list based on the Electronic Identity Card and/or domicile certificate from the Village Head or other designation / head of the village.

Then Article 57 paragraph (1) "To be able to exercise the right to vote, Indonesian citizens must be registered as voters." Paragraph (2) "If Indonesian citizens are not registered as voters as referred to in paragraph (1), the Voters shall show an Electronic Identity Card or resident certificate at the time of voting." Paragraph (3) “To be registered as voters, Indonesian citizens as referred to in paragraph (1) must meet the following requirements: a. not having a mental/memory disturbance; and/or, b. their voting rights are not being revoked based on a court decision which has permanent legal force. Furthermore, the right to vote for citizens is also mentioned in Article 95 paragraph (2) "Voters as referred to in paragraph (1) can exercise their right to vote at another TPS by showing a notification letter from PPS to vote at another TPS." Paragraph (3) "If Voters are not registered in the Voters' list as referred to in paragraph (1), the Voters can exercise their right to vote at TPS according to their domicile by showing their Electronic Identity Card or a resident certificate."

Discussion

Voters and Voters Outside the Region

Voters are Indonesian citizens who have met the requirements as stipulated in the laws and regulations and are not deprived of their rights by

the state to vote in General Elections, Legislative Elections, and Regional Head Elections. Meanwhile, foreign voters are Indonesian citizens who have met the requirements as stated in the laws and regulations and their rights have not been revoked by a country that is outside their original place of residence (domicile) who is doing certain work and has not declared that they have moved to another area which evidenced by a letter of transfer from the relevant agency.

Requirements to become voters include:

a. Are you even 17 years of age or older on voting day or have been married.
b. Not being mentally / mentally disturbed based on a doctor's certificate.
c. The right to vote is not being revoked based on a court decision that has permanent legal force.
d. Domiciled in an electoral district as evidenced by an Electronic KTP.
e. Not currently a member of the TNI / Polri

Political Rights in the Constitution

The state is an important milestone for the reflection of justice, democracy, and protection of human rights, especially about the right to elect and vote which always upholds human rights, guarantees all rights of citizens equal position in law and government without exception. One part of these human rights is the political right to hold public office which shows the existence of freedom from the political and civil rights of citizens through regular elections with universal and equal voting rights. Regulations regarding this concept are contained in the Universal Declaration of Human Rights, namely in Article 21 paragraph (1), paragraph (2), and paragraph (3). So, political rights are one of the substantial elements that determine the success of building a rule of law, protection of human rights, democracy in a country, and the position of political rights which is quite central in state life. [2]

Political rights are a family of human rights as stipulated in Article 25 of the International Covenant on Civil and Political Rights. This right is closely related to the right to vote or to vote, which is the basic right of every individual or citizen which must be guaranteed by the state. This is because the right to vote and be elected is a right regulated in civil-political rights as rights owned by citizens who have sovereignty, who also have the same position in the view of the state, there is no discrimination and as a legal subject. Vierdag categorizes these civil and political rights as negative rights because to realize them, the state must be silent, not take action (passive), so the formulation uses freedom.

The provisions regarding this matter, then get the form of regulation in Article 1 paragraph (2), Article 2 paragraph (1), Article 6A (1), Article

19 paragraph (1), and Article 22C (1) of the 1945 NRI Constitution. Formulation of several articles -this article is very clear that there is no justification for discrimination regarding race, wealth, religion, and descent. When referring to the 1945 Constitution of the Republic of Indonesia, the right to vote is regulated starting from Article 27 paragraph (1) and (2); Article 28, Article 28D paragraph (3), and Article 28E paragraph (3). Then, the right to be elected is in Article 1 paragraph (2); Article 2 paragraph (1); Article 6A paragraph (1); Article 19 paragraph (1) and Article 22C paragraph (1) of the 1945 Constitution; and Article 28D paragraph (3). So, the meaning of these regulations regulates the voting rights of citizens.[2]

Protection of Citizen Voting Rights

General Election is a means of people's sovereignty which is the right of citizens guaranteed by the constitution as regulated in Article 27 of the 1945 Constitution which reads "All citizens have the same position in law and government and are obliged to uphold the law and government without exception", and " Everyone has the right to the recognition of guarantees, protection and legal certainty that is just and equal treatment before the law "and the equal opportunity principle.

In the implementation of the simultaneous Pilkada in 2020, it was found that there were still many citizens, especially residents of Bima district who were outside the region in terms of work and so we're unable to channel their political rights and were included in the white group (Golput). This is based on the non-regulation of the procedures for channeling the voting rights of Bima residents who are outside the region. The absence of clear rules creates a difference in the state's treatment of its citizens. The state does not guarantee equal rights for all citizens, especially the constitutional rights of the people of the Bima Regency who are currently outside the region in the regional head election.

The absence of equal rights for citizens can be seen from the right to vote for Indonesian citizens (WNI) who are abroad in the implementation of the General Election for the President and Vice President. Indonesian citizens are in fact given wide space to vote in their domicile where they live abroad. Indonesian citizens are even given complete facilities to channel their voting rights at the embassies of each country. The rights obtained by Indonesian citizens are by the provisions of Article 1 Paragraph (2), Article 6A Paragraph (1), Article 19 Paragraph (1), and Article 22C Paragraph (1) of the 1945 Constitution. Indonesian citizens to be able to exercise their voting rights. This provision emphasizes that all forms of laws and regulations governing general elections should open the widest possible

space for every citizen to be able to exercise their right to vote in general elections and regional head elections.

If we refer to the percentage of overseas voters and student voters in Bima Regency outside the region, around 16 thousand Bima students are spread all over Indonesia who are conducting studies, in addition to the Bima community who are on an official/work trip on voting day. This number is about 5 percent of the total DPT in Bima Regency in the 2020 Pilkada and as many as 361 thousand voters. This figure is quite high compared to the number of overseas voters in the 2019 Election where around 2 million voters or about 2 percent of the National DPT of 193 million voters. With this comparative data, it is clear that the percentage of the Bima Regency community, especially students who in fact still have the status of Bima Regency citizens and are included in the Permanent Voters List (DPT), is a higher percentage of Indonesian citizens who are abroad. Meanwhile, Bima Regency students who are in Malang City alone, around 1,500 people and cannot give their voting rights in the 2020 Bima Regency Pilkada, because there are no transitional regulations.

This issue has implications for the integrity of the election itself and has implications for the decreasing level of voter participation. This problem has even occurred since the direct elections for the Regent and Deputy Regent of Bima were first held in 2005 until now. The Bima Regional Election in 2020 should be an important moment to carry out every aspect of democracy. Because democracy for the Indonesian nation is a state structure that is most in line with human dignity that respects and guarantees the fulfillment of human rights (HAM).

The State's Obligation to Protect the Right to Vote

The state's obligation to respect Human Rights (HAM) can be divided into two, namely Immediate Obligations and Progressive Obligations. The State's direct obligations towards human rights are often manifested in the form of a juridical process. Meanwhile, Progressive Obligations are obligations that can be put off if there is a lack of supporting resources. The State's obligation to respect human rights and the obligation to protect human rights is seen as a direct obligation.[3]

The first generation, the development of civil and political rights (such as the right to life, freedom and personal security, equal rights before the law, the right to a good name, the right to be free from restrictions on movement and domicile, the right to free thought, conscience and religion, freedom to speak, the right to information, the right to vote and be elected, and so on). At least several provisions in the 1945 Constitution can be used as a constitutional basis to guarantee political rights, for example,

Article 22 of the Constitution, Articles 27, 28 which regulates the rights of citizens to vote (Right to vote). A number of the provisions referred to, among others, Article 27 paragraph (1) of the 1945 Constitution states that "All citizens have the same position in law and government and are obliged to uphold law and government without exception". Then there is also Article 28D paragraph (1) that "Faithful people have the right to recognition, guarantee, protection and legal certainty that is just and the same treatment before the law".

Of course, what is no less important is the provision of Article 28D paragraph (3) which reads "Every citizen has the right to equal opportunities in government". Several provisions in the constitution are sufficient to show how the true protection of the State for its citizens and the State guarantees and protects the constitutional rights of citizens. In particular, political rights in granting voting rights in general elections and regional head elections. It's just that in further implementation that all provisions in the constitution are not always interpreted comprehensively by lower-level regulators. In practice, there are still a lot of things that are difficult to implement in Law Number 7 of 2017 due to the problem of granting voting rights to voters outside the region in regional head elections. Even though the law is a law that includes a form of further regulation on the holding of general elections in Indonesia as mandated by the 1945 Constitution.

Likewise, it is explained in Law Number 39 of 1999 concerning Human Rights (HAM) in article 71 which reads "The government is obliged and responsible for respecting, protecting, upholding and advancing human rights regulated in this Law as well as other statutory regulations and international law regarding human rights received by the State of Indonesia. Based on the mandate of the law, it is clear that the government has the responsibility to respect, protect, uphold and promote human rights.[3]

Human rights are a nature that is inherent in every human being since he was born into the world. Conditionally, humans have the right to freedom. A democratic state is an instrument of society that is authorized by the community to exercise a power that aims to protect the rights of citizens. And the State makes the rights of citizens as the basis for making policies.

Conclusion

This paper is intended to emphasize that the politics of electing and being elected are human rights. Restrictions, deviations, abolition, and

abolition of these rights are forms of violation of the rights of citizens. According to the provisions of Article 23 paragraph (1) of Law Number 39 of 1999 concerning Human Rights, it states that "Everyone is free to vote and has political beliefs". Furthermore, "Every citizen has the right to be elected and to vote in general elections based on equal rights through direct, general, free, secret, honest and fair voting by statutory provisions".

With this problem, the state has ignored the political rights of the people of the Bima Regency who are outside the region. So that it causes human rights violations Under these conditions, course, it will affect the integrity of the election itself, because in a democratic system, the level of voter attendance does not determine the quality of democracy itself, but the level of voter attendance affects the legitimacy of the election results. The higher the level of voter attendance, the higher the legitimacy. Participation, or in another definition, means that the participation of the public in general elections is a right for every citizen by the prevailing laws and regulations, should be used properly and carried out responsibly as a citizen's obligation.

From the above provisions, it is clear that there is an inherent juridical guarantee for every Indonesian citizen to exercise their right to vote. Referring to article 27 paragraph (1) and Article 28D of the 1945 Constitution of the Republic of Indonesia, every citizen should receive the same treatment, both from a legal perspective and in the distribution of his political rights. Thus, the equal rights of citizens can be enforced fairly and evenly throughout Indonesia. Likewise with the implementation of the Pilkada of Bima Regency so as not to neglect the constitutional rights of its own citizens who are outside the region, such as students in Malang City.

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Price Discount and Brand Image Toward Impulse Buying

Majio Moshi Mujaya[1], Sayed Momin Hashemi[2]

Introduction

Consumer behavior that has characteristics unique compared to most other consumers. According to [4] Indonesian consumers have ten unique characters, short-term thinking, unplanned, technological stuttering, context-oriented, like foreign brands, religious, prestige, strong subculture, less concerned environment and like to socialize. Brand image, price discount can motivate customer toward impulse buy due to the various evidence. Stated that impulsive buying behavior was a complex and varied behavior phenomenon; such consumers contributed the most to the volume of sales of retail products each year [3]. Mentioned that the character of cherry pickers tended to make them buy spontaneously after knowing that the shops offered big discounts. This was seen when the consumers shopped in a mall that frequently offered big discounts, from 50% to 70% off [11].

The retail industry in Indonesia, as one of the most dynamic and fast developed industries, is controlled by both domestic and foreign companies. Retailers in Indonesia have shown increasing sales growth over the last ten years this is due to price discount as well as brand image.

Marketing is arguably the key to success of sales product. A reliable ability to market a product or service can be more important than the product itself. Good marketing techniques, of course supported by effective marketing strategies. The strategy used One can vary, one of which is setting prices, such as the price discount, bonus pack and brand image [1].

Price discount is a form of Sales promotions are often applied by more targeted marketers to consumers. Price discount is very influential on consumers, most of them never planned to buy it but with the price discount they immediately buy it without a plan or need.

Impulse buying does not only happen in Indonesia, but also in other countries. But impulse buying in Indonesia tends to be greater than that

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with other countries in Southeast Asia, Africa, Arab and America. In a country like India, where the existence of modern markets is still limited, consumers make purchases still more disciplined and shop according to plan [2].

Discussion

Price Discount

According to [17], *price discounts* are discounted prices provided by the seller to the buyer as a tribute to the activity certain buyers are pleasing to the seller. Consumers are interested to get a fair price. Fair price means value at perception is appropriate at the time the transaction is made.

The purpose of holding a price discount according to are:

1. Encourage buyers to buy in large quantities so Sales volume is expected to increase. Discounted prices will be impact on consumers, especially in consumer buying patterns which ultimately also affects the sales volume obtained company.
2. The purchase can be focused on the seller, so this can add or maintain a seller's subscription concerned.
3. Is a sales service that can attract purchase transactions.

Discount Factors

Discounts are given with a specific purpose for this matter profitable for companies and consumers alike. There are several opinions says why discounts are given and factors that are cause supermarkets and department stores to give *discounts to consumer*.

Kotler believes that the discount is given due to several factors, i.e [1]

1. Goods will soon be replaced by newer models
2. There is something wrong with this product so that it has difficulty in the sale
3. The company is experiencing serious financial problems
4. Prices will fall even further if you have to wait longer
5. The quality of this product is reduced by the company

Brand Image

Brand Image is a representation of the overall perception of the brand and formed from information and past experience with the brand. Imagery towards the brand associated with attitudes in the form of beliefs and preferences towards a brand. Consumers who have a positive image of a brand, it will be more possible to make a purchase [3].

Described in his book Kotler defines *brand image* as a set of beliefs, ideas and impressions that a person has of something brand. Because of

that the attitudes and actions of consumers towards a brand are very on Determine by *brand image* is a requirement of a strong brand. Brand image formed in the minds of *consumers*. *Consumers* who are accustomed to using brands certain tend to have a consistency of *brand image* [10].

Components of Brand Image

According to Kotler in defines brand image as a perception of a brand as reflected by brand associations that are in the minds of consumers. Brand image consists of components [6]:

1. Attributes
   a. Is a descriptive definition of the features that exist in the product *or service*
   b. Product related attributes
   c. Defined as the ingredients needed to function the product what consumers are looking for can work. Related to physical composition or the requirements of a service offered, can function.
   d. Non product related attributes (non product attribute)
   e. Is an external aspect of a product related to purchase and consumption of a product or service. Consists of: information about price, packaging and product design, people, per group or celebrity who use the product or service, how and where the product or service is used.
2. Benefits
   a. Personal values attributed by consumers to product or attribute these services.
   b. Functional benefits: related to meeting basic needs such as physical and security needs or problem solving.
   c. Experiential benefits: associated with feelings that arise with using a product or service. These benefits satisfy the needs experimenting like sensory satisfaction.
   d. Symbolic benefits: related to the need for approval social or personal expression and self-esteem someone. The consumer will respect the values of prestige, exclusivity and fashion style of the brand because these things are related to their self-concept.
   e. Brand Attitude; Defined as an overall evaluation of a brand, what is trusted by consumers about certain brands to what extent consumers believe that the product or service has or attributes certain benefits, and evaluative evaluations of these beliefs how good or bad a product if it has or attributes these advantages.

Type of brand image (Brad Type)

Explanation of the meaning and type of brand will be explained by in a brand has 6 (six) levels of understanding, as following:

1. Attributes
   Brands are reminiscent of certain attributes of a product, both from after sales program, service, as well as the advantages and the company use these attributes as their creative.
2. Benefits Customers certainly do not buy limited attributes of a product
3. Customers certainly do not buy limited attributes of a product but rather the benefits.
4. Value, the brand represents the value of its products. Rolex brand watches, for example which gives a high value to its users.
5. Culture, Brands represent certain cultures.
6. Personality, Brand like someone who reflects a personality certain.
7. User, the brand indicates the type of consumer who buys or uses an item the product.
   According to Tjiptono in explained that understanding of the role of the brand cannot be separated from the types main brands, because each type has a different brand image. These three types will be explained on the next page including:

Impulse Buying

According to [8] definition *of impulsive buying (impulse buying*) is the act of buying carried out without having problems prior or intention / intention to buy formed before entering the store. Meanwhile according [15] impulse buying is emotional decisions or according to the urge of the heart. The same thing was expressed also by Shoham & amp; Brencic (2said that impulse buying is related to emotional buying behavior.

Aspects of Impulse Buying

Verplanken and Herabadi in say that there are two important aspects in impulsive buying (impulse buying), that is:

1. Cognitive
   This aspect focuses on conflicts that occur in an individual's cognitive include:
   a. Purchasing activities carried out without consideration of a price product.
   b. Purchasing activities without considering the usefulness of a product.
   c. Individuals do not make product comparisons.
2. Emotional (Affective)
   This aspect focuses on the emotional state of the consumer which includes:
   a. There is a feeling of encouragement to immediately make a purchase
   b. The feeling of disappointment that arises after making a purchase.
   c. The purchase process is carried out without planning.

Types of Impulse Buying

The types of *impulse buying* according to Loudon & amp; Bitta inside:

a. *Pure Impulse* (pure impulsive purchase) A purchase deviates from the normal buying pattern. This type can declared as novelty / escape buying.
b. *Suggestion Impulse* (Impulsive purchases arising from suggestions) In purchasing this type, consumers do not have that knowledge enough beforehand about new products, consumers see the product for the first time and visualize a need for the object.
c. *Impulse Reminder* (impulsive buying because of past experience) the buyer sees the product and is reminded that the inventory is at home needs to be added or exhausted.
d. *Planned Impulse* (impulsive purchases that occur when the conditions of sale Certain are given).

Relationship between Price Discount and Impulse Buying

According to Kotler *price discount*, represents savings offered to consumers from normal prices a product, which is listed on the label or product packaging. *Discounted promotions* provide some advantages include: can trigger consumers to buy in quantities a lot, anticipating the promotion of competitors, and supporting trade in greater numbers [4].

From the definition above it will stated that the price discount was created to increase sales of a product that has decreased and encourage consumers to make trial purchases. To obtain consumers with a large number of producers maximize profits short term by offering a price discount. The above opinions goes with the line of results of Putri's study, Y.T.A. and Edwar, M., (2014) on "*Influence Bonus Pack and Price Discount on Impulse Buying for Giant Consumers Diponegoro Surabaya hypermarkets* "shows that the variable price discount individual and significant effect on impulse buying [5].

The Relationship of Brand Image with Impulse Buying

Based on several previous studies that *brand image* has a significant relationship with impulse buying. The most factor influencing impulse buying including aspects of *Affinity*. The affinity aspect is an emotional relationship that arises between a *brands* with its consumers. Products with brands that are preferred by consumers it will be easier to sell and product with a perceived quality high will have a good reputation [18].

Emotions created in the store are not only through visuals merchandising only, but also provides a unique and interesting experience to customers. Customer experience is the emergence of *emotional impulse*

as a result of the stimulation of product or service offerings that are strategies from marketing.

This experience can be felt as a set of sense approaches, *feel, think, act,* and relate that make customers can distinguish a product or services provided compared to other products or services. Positive experience encourage customers to make purchases immediately. Purchases that don't it is planned that this will occur because of successful marketing stimulation creating interesting experiences. A series of associations perceived by individuals when gaining direct or indirect experience over a brand finally produces a brand image [17].

The Relationship of Price Discount and Brand Image to Impulse Buying

Based on the description above, the variable price discount and brand image has a significant relationship with the *variable impulse buying*. A *price discount* was created to increase sales of a product has decreased and is encouraging consumers to make trial purchases - try. To get consumers with a large number of producers maximize short-term profits by offering *price discount*. While the *brand image* variable has a relationship significant with *impulse buying*. The most influential factor on impulse buying including aspects of *Affinity*. Affinity aspects is an emotional relationship that arises between a brands with its consumers [16]. Products with *brands* that are preferred by consumers will be easier to sell and products with high quality perception have a reputation for being good.

Conclution

Due to development of science and technology nowadays the development of the retail business in the world as well as Indonesia is growing rapidly. Hence there is influence of brand image as well as price discount toward impulse buys this is marked by the existence of traditional markets that have been displaced by the emergence of various types of modern markets, so that various kinds of centers retail shopping popping up with a variety of shapes and sizes. The highest price discount provides discounts for product users. This means that the higher the discount it will be increase impulse buying as well as brand.

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Safety and health skills of factory operational manager, perceptions of management postgraduate student

Setiyo Budi Utomo[1]

Introduction

"***Operation*** *is that part od as organization, which is concerned with the transformation of a range if inputs into the required output.* ***Management*** *is the process which is combines and transforms various sources used in the operation subsystem of the organization into value added service in a control manner as per the policies of the organization*" [1].

So, Operation Management is defined with, Management activity which involves the operation process, start from design, supply, process and transform all to the required output. It is very important to continue this research about what requirements are needed to become an Operation manager, especially in Safety and health skills. It will be confusing when there is a request but cannot provide a clear description of what is wanted. In this case, is a request about the ability to manage safety and health by the operation manager. In the modern era, system of manufacture developed quite high and many section of development, from machine and technology also kind of material and variant of raw material that utilize from process side, forward and supply product and also the trend for human value on safety and health program.

Operation Manager getting responsibility not only correlated with proses productions and technical maintenance but also must be consider system for human resource [2], research and development and also marketing.

We can easy find discussion about skill of Operation Manager for Supply Chain[3], Inventory and Logistic Management [4], Product design and development [5], process optimization [6], ergonomic [7], traceability [8], risk management, quality Management [9], management strategic [10], and other skills but not many discussions that connecting Operation Manager with skill on Safety and Healthy matter.

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And also many program developing for manager are concentrate on manufacturing skills and more close to technical skill on factory [11].

This is one important reason to discuss and research about Safety and Health related with Operation Manager responsibility. Since the trend at the global about human resource as asset of organization, operation manager is a position that have big responsibility for this matter, most of total employee in manufacturing business, factory or service business are under operation manager.

Related to safety regulation, Indonesia constitution No. 1 1970, about Work Safety, Chapter V Article 9.3 "*Accident prevention, fire eradication as well as improvement in safety and occupational health also include first aid in accidents being the responsibility of the Management, as well as fostering the workforce under it which is its responsibility*. And "Management" have specific definition as mention on Chapter 1 Article 1.3 "*The person who is responsible for leading directly in a work area or who stands alone is called the Management*". And reinforce by OHSAS 18001 2009 article 4.4.1. Resource, role, responsibility and accountability, that mention as Top Management

If we back to the previous definition on Operational Manager "*A person who use all sub system of organization to reach a goal of organization*". Related with Indonesia statue Operational Manager include in *Management* definition and must take responsible to all work safety and fire, that mean Operational Manager also lead for Safety Management

The purpose of this study is to get the criteria skills and abilities for Safety Working required to become an Operations Manager, and the results can be used to determine the educational program and or course to be taken, including to evaluate the existing education programs and courses.

In this article further contains the study literature related to the discussion and the rest is a discussion accompanied by conclusions. Considerations and input for further research are included.

Literature Review

The emergence of Maslow's theory [12] about meeting the basic needs of workers, which states that "*Individuals will advance to meet their higher needs, when lower needs have been met*". The development of the industry which is very rapid and has contributed to the community both culturally and economically, so that aspects of the industry process began to be very deeply noted, including in terms of safety in the workplace.

The history of the development of safety in the work area also shows a more impartiality of humanity, beginning with a reactive form where after an accident, an investigation, analysis and preventive action are carried out. Developed into proactive measures, where Risk Assessment [13] (*Kiken Yochi Training*) (*hiyari hatto*) is carried out, followed by risk evaluation and control so that zero accidents can be obtained.

The development of the implementation of Safety in the workplace is very massive at this time carried out to reduce the level of accidents in the workplace, and with the implementation of the safety and health program proven to reduce accident rates [14], one of them is by increasing awareness in being safe [15].

The development of safety implementation in work areas linier with manufacturing process targets development, so there are 4 things that become the target, namely, Quality, Cost and Delivery, and Safety in addition [16].

The addition of Safety in the target manufacturing component is a challenge for Operation managers. The operational manager must be able to: 1. Increase awareness of employees about safety 2. Supervise the implementation of safety programs and 3. Nominate programs other than safety (quality with TQM, Maintenance and productivity with TPM, supply chain management) to be integrated with the implementation of safety programs.

The most important thing in the implementation process is the commitment of the Operational Manager is always the top leader in giving examples as a leader in the implementation of safety programs [17], as required in OHSAS 18001.

Every company that will recruit for the Operation manager, always includes the ability to manage HSE, but is not specific about the desired ability model.

Some certification bodies and training managers based on OHSAS 18001 often organize training and education for safety programs at manager level, but not as safety managers.

This will be a reference in the research to be conducted.

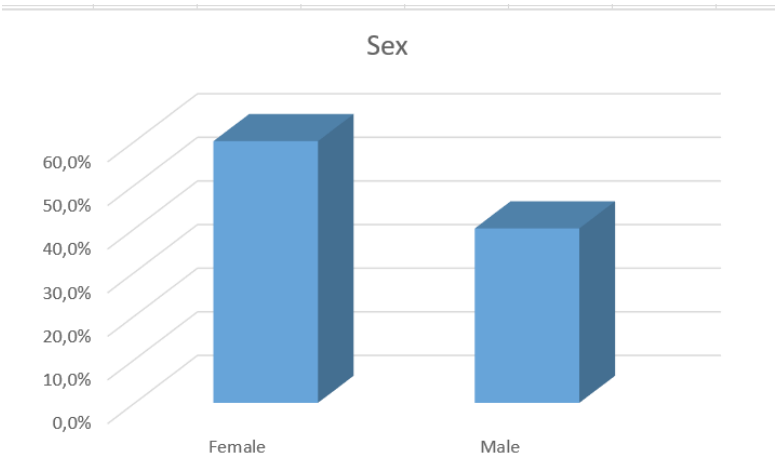
Research design and Survey

Skill selections and sample populations

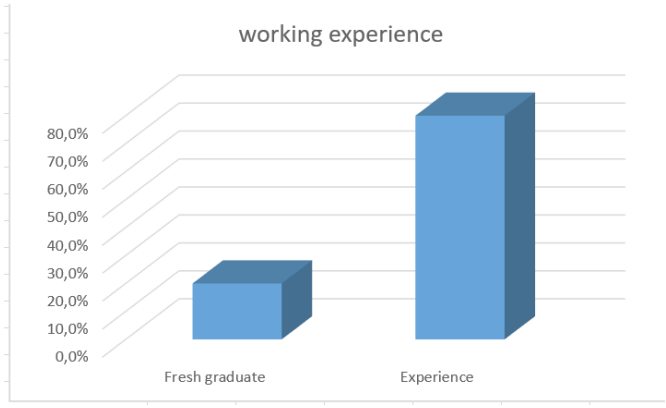
Safety skills for operation manager are refer from training program that held by certificate body and standardization, Safety Culture and Leadership

1. Basic Safety Element
2. Safety Management System
3. Safety Observation
4. Integrating Safety
5. Incident Investigation
6. Demonstrate Personal Commitment
7. Fostering Involvement
8. Action Planning

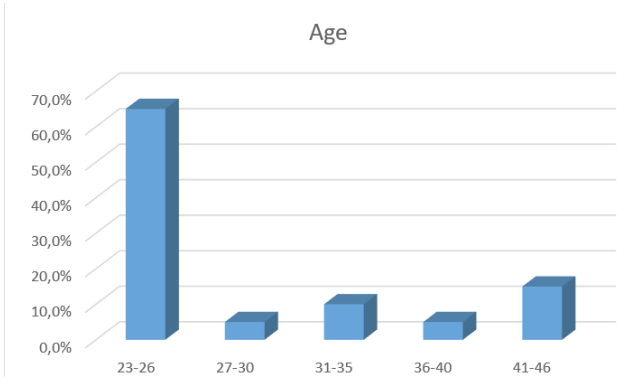
Research method using descriptive explanatory method [18], this method choose because this research do with collect factual information by questionnaire to know the fact that correlated with the tittle, the respondents are student of Management Post Graduate Program 1st grade 2019, the profile of respondents are :



Pic 1. Respondent distribution gender based on percentage.



Pic 2. Respondent distribution age based on percentage. Average age of respondent is 25 years old.



Pic 3. Respondent distribution of working experience Almost 80% of respondent is with working experience.

Research Analysis and Result

The research result is mention all respondent (100%) agree with Operational Manager must be have skill of Safety at workplace.

1. According sex categories, 100% respondent agree with operational manager must be have safety skill. 50% of female respondents chose Safety culture and Leadership skills. 37.5% of male respondents chose the Safety Culture and Leadership Skill and 37.5% chose the Skill Demonstrate personal.
2. According age of respondent
   Based on age respondent, all respondents are agreed with Operation Manager must have Safety skill. Respondents who are over 35 years old,

all sexes, nearly 80% choose the Demonstrate Personal Commitment skill.

3. Based on working experience
   Respondent with working experience also agree that Operational Manager must have Safety Skill. For respondents who have work experience, it is almost balanced in choosing Skill Safety culture and leadership, safety management and demonstrate personal commitment.

Conclusion and discussion

1. All respondent with all categories are agree with the statement. Operation manager must have skill for safety and health.
2. The respondent that over 35 years old and mention as result No.2, showing emotional and mental maturity, This linier with [19] A person's age is very influential on their perspective and decision making. It is not easy to find evidence that it is difficult for older managers to process and make decisions.
3. The respondent that have working experience have a tendency to choose 3 categories as explained by sub result no. 3. The selection of these 3 skills is directly proportional to what is stated below. Whether or not someone has worked or for a long or short period of time someone has worked will have a positive correlation to the person's understanding of work and improved performance.[20]
4. The level of education of the respondent is actually also very influential in the selection of answers in the questionnaire. Low education level does not prioritize the ratio when compared with people with higher education.[21]. Formal education will shape expectations and changes in a person's behavior including their abilities.[21]

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The Existence of the Death Penalty Viewed from a Sociological Perspective and Human Rights Enforcement

Shalsa Ayu Mega Puspita[1]

Introduction

The death penalty is one of the oldest types of crime in its era, as old as human life and the most controversial of all criminal systems, both in the Anglosaka countries with a general constitutional system and also in continental European countries with civil law systems (civil law). Historical investigations regarding the death penalty have proven that today, countries in various parts of the world always question the application of the death penalty. In Indonesia, the death penalty came into force on January 1, 1918, as stated in the Wetboek van Strafrecht (KUHP) which was stipulated by the Dutch colonial government based on KBv15 October 1915, No. 33. S. 15-732 jis. 17-497, 645 namely W.v.S which was already in effect in the Dutch East Indies. The death penalty review has been nationalized by Law No.1 of 1946, the errors of which are contained in Article 10 of the Criminal Law and there are also errors spread outside the Criminal Code in the form of a Law.

This provision has been amended in the memory of the explanation (Memorie van Toelichting), that the state has the right to implement all of these regulations, including the death penalty as a necessity with the aim that the state can fulfill its obligations to maintain legal order and the interests of the common people (A. Hamzah and A, Sumangelipu, 1984) The implementation of the death penalty in several countries in the world have actually experienced pros and cons, namely since the publication of the book "Dei Dellitti E Delle Pene" by Cesare Beccaria (1764), and the influence of his writing is felt to have flown again and had a major influence between the Wars. World I and II encourage an increase in the flow of humanism. In essence, the recognition of human dignity will demand respect for human rights, especially the right to life and other social rights.

Retentionists (pro) define the death penalty as a transcendental character, which is built from the conception of abstraction, which tries to

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see the death penalty only from the point of absolute theory, with aspects of retaliation and elements of annihilation. In the specific definition of the absolute theory, that the death penalty is not retaliation but a reflection and a manifestation of people's disgust towards punishment and crime, then legal grief in the form of the death penalty must be used to maintain balance in legal provisions. Meanwhile, the Abolitionists (contra) argue that the state does not have the right to claim people's lives. Since the emergence of this elimination movement, it has given the impression that many countries have reduced the types of criminal acts that are punishable by death (Todung Mulya Lubis, 2009: 225). Prodan regarding the suspension of the death penalty in Indonesia is currently starting to appear, especially when the news about the implementation of drug convictions increases, some people agree about the death penalty, but on the other hand, some do not agree with it. Various perspectives are used to corroborate their arguments about whether the death penalty is legal or not, from the religious, human rights, law, socio-cultural to the ideology espoused by a State.

Result and Discussion

Death Penalty is viewed from the Human Rights Enforcement Process in Indonesia

In Indonesia, the criminal code made by the Dutch government has been in effect since January 1, 1918, Article 10 still includes the death penalty as the main punishment, although in the Netherlands itself the death penalty was abolished in 1870. This was not followed in Indonesia because special circumstances in Indonesia demanded that the greatest punishment can be overcome with the death penalty (Andi Hamzah and A. Sumangelipu, 1984: 15) With the orientation of the Dutch legal system, Indonesia then moved with the death penalty as the main way to solve various criminal acts such as murder. Unfortunately, Indonesia's legal journey did not go as smoothly as expected. This is because several cases that have caused polemics have colored the position of the death penalty in Indonesia. One of them was the anti-death penalty movement that was heated in 1958 under the direction of Prof. Sir. Ruslan Saleh, the pioneer of the movement to abolish the death penalty (abolition) in Indonesia. Coupled with the progress of the Vice President of the Republic of Indonesia Adam Malik who in 1978 also led the movement (Andi Hamzah and A. Sumangelipu, 1984: 15).

From an international perspective, provisions regarding human rights relating to the right to life can be found in the International Covenant on Civil and Political Rights (ICCPR) which regulates the right to life. Article

6 paragraph 1 of the ICCPR states that every human being has the right to life and the right to legal protection and no one can revoke this right. Also, Article 6 (2) applies to decisions only for crimes classified as serious by the laws in force at this time for countries that have not abolished the provision of the death penalty, which are inconsistent with the Treaty and this Convention. Regarding the prevention and punishment of murder in general. Power strengthening refers to the final decision made by a competent court in the field of power (Todung Mulya Lubis: 2007). The international community has taken many steps to abolish the death penalty in the world. One of them is the Declaration of Universal Human Rights (UDHR) which clearly states that the death penalty violates two human rights clauses. This means that no one has the right to revoke their respective rights to life, and no one has the right to carry out the punishment. [1]

On various occasions, he has always stated that he rejects the death penalty as the cruelest and inhumane expression of punishment 18. The death penalty is the most important type of violation of human rights, namely the right to life. This human right (the right that cannot be denied) is a type of right that cannot be violated, reduced, or limited under any circumstances, as well as in emergencies, war, including when someone is a prisoner. Indonesia itself has signed the Universal Declaration of Human Rights and President SBY has ratified the International Covenant on Civil and Political Rights, both of which clearly state that the right to life is the right of every human being in all circumstances and it is the obligation of the state. to guarantee it. Unfortunately, the ratification of the Civil and Political Treaty was not followed by the ratification of the Second Protocol Supplement to the International Agreement on Civil and Political Rights regarding Imposition of the Death Penalty.

The death penalty has serious human rights violations, namely violations in the form of torture (psychological), cruelty, and inhumanity. This is permissible because practically the distance between the death penalty and its execution is quite long. Tragically, Indonesia itself has ratified the Convention Against Torture and applied it to the Anti-Torture Law No.5 / 1998. [2]

The advantages and disadvantages of the death penalty have once again emerged in the community, the implementation of the Poso case has caused riots because several people are not satisfied with its implementation. Although the rejection of implementation in the context of this case is thicker with nuances of solidarity with others compared to the issue of abolition of the death penalty, the pros and cons of the abolition of the

death penalty still prevail in society and the recent controversy over the method of the death penalty for Bali bomber bandanas. Demands for the abolition of the death penalty, as an issue, have become a continuous struggle for human rights activists. In an international context, Amnesty International and Human Rights Watch are the two organizations most persistent in eliminating inhuman forms of punishment including the death penalty. Talking about the death penalty in the context of human rights itself, cannot be separated from the designation of international human rights laws such as the universal human rights issue (UDHR), the international convention on civil and political rights (ICCPR), and the most explicit statement of abolition. the death penalty is second. ICCPR preferred protocol. In the preamble to the second choice protocol of the ICCPR, several references were made to the need to abolish the death penalty about Article 3 of the UDHR and Article 6 of the ICCPR, both articles affirming the protection of the right to life.

The right to life as the main issue used for the defense of the death penalty is not the only issue raised in the context of abolishing the death penalty. Several criminological perspectives also raise the issue of the death penalty as something that needs to be challenged by questioning the effectiveness of the death penalty to reduce penalties and questioning the state's right to take human life. However, not a few people defend the death penalty based on the view that there are times when some crimes cannot be forgiven and only the death penalty can make up for the wrongs committed. [3]

Arguments for the Pros and Cons of Death Penalty

The death penalty or law is implemented as "the death penalty that is legal as a law. As a form of law. In fact, what happens then becomes the same problem, whether death is legal or haram. Regarding this, there are two groups. contradictory thoughts. State (abolition). Meanwhile, the second camp is those who support death as an instrument of criminal law for criminal action (retentionists). In the midst of these two extremes are also the opinions of those who agree with prohibition, active not limited to being threatened with certain crimes and carried out under strict conditions. Several arguments are often put forward by those who are pro-death. Some of them are related to criminal theory, while some are related to moral, religious, and even economic aspects. non-active advocates often point out as follows:

1. The eternal death penalty eliminates punishment from the common people (imprisonment).
2. The death penalty contains the impression of retaliation which can

satisfy the sense of justice of the victim of punishment and his family.
3. The death penalty brings deterrence to other members of society.
4. Punishment is not prohibited by major religious norms.

In discussing death laws in several countries around the world, there are two mainline schools of thought published and the vices of the imposition of death in several countries around the world, namely:

1. A collection that wants to complete death (deletion); and
2. Groups that want to perpetuate the gift based on the applicable positive law (retentionist).

Opinions for the abolition of the death penalty include:

- Van Hamel stated that powerful countries do not need to use the severe death penalty in their criminal code designation, the weaker the ruling party wants to perpetuate their norms, the greater and more violent the crimes.
- Sudarto stated that humans have no right to risk the lives of others. In stopping the imposition of criminal restrictions, judges can make wrong sentences, it is not true that the death penalty aims to frighten people so that people do not commit evil, lust cannot be contained by threats.
- Rolling stated that the death penalty has destructive power, that is, if the state does not respect human life and considers it natural to kill someone's life calmly, then there is a high probability that people's respect for human life will decrease, and the act of murder by the state will provoke-provoke. retaliation against him.

Meanwhile, the opinions of retentionist groups regarding the death penalty include:

1. Bichon Van Ysselmonde stated that the threat and execution of the death penalty must exist regularly in all nations and societies, both in terms of judicial decisions and in that respect cannot be ruled out. There are also two courts Divino humano, criminal sword, and sword in the country. Rights and obligations must not only be granted but also protected and exercised.
2. Bambang Purnomo said that maintaining a criminal act still requires a strong threat such as the death penalty, especially for heinous crimes.
3. De Safornin Lohman states in the statute book that he must not admit that the country has the right to exclude the life of a judge who does not comply with the regulations. Criminal law is basically a law of revenge. [4]

Conclusion

The death penalty is considered by some activists to be a violation of

human rights (HAM) and should not be used as a means of deterrence. The death penalty cannot be implemented and used as a deterrent to strengthening the power of the law because:

1. The first case is knowing that the death penalty is derived from serious human rights violations, namely violations in the form of torture (psychological), cruel and inhumane. This is permissible because practically the distance between the death penalty and its execution is quite long. Tragically, Indonesia itself has ratified the Convention Against Torture and applied it to the Anti-Torture Law No.5 / 1998.
2. The implementation of the death penalty in Indonesia is also contrary to the development of civilization in countries in the world today. Amnesty International, stated that as of September 2007, there were 142 countries - with an average increase of 3 countries each year - that had abolished the death penalty, both through legal mechanisms and concrete practices.
3. The death penalty also does not correct punishment. The death penalty leaves no room for correction or opportunity. Because how to make corrections if it has been implemented, he said.
4. During the period awaiting the death penalty, death anxiety often prevails.

It's really amazing to have the facts that the person who got the punishment got punished a lot of punishment. The death penalty does not coincide with modern punishment it is usually based on recovery, socialization efforts and not in the aspect of revenge.

As the purpose of the law is to encourage rectification to promote life improvement.

For the reasons mentioned above, it is an encouragement for the author to write this article in the form of a student creativity program so that it can be read by all groups, especially the government can pay attention to the death penalty. With the steps that have been discussed by the author above.

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Why Mindfulness is Crucial at middle-aged?

Siti Rezeki Emilia[1]

Introduction

Some aspects of life can increase as we get older so that the ability of adaption with transformation and challenge are needed. The transformation at middle-aged is susceptible to stress. One of the factors to contribute to the high stress vulnerability of middle-aged is the large number of tasks performed at one time in both family and workplace. At middle-aged, feeling stress out in the workplace will give a negative impact. Middle age generally has a dual role as workers, parents and the responsibility to care for their elderly parents or commonly known as the "Sandwich Generation" [1]. In early middle age, people who are aware of the opportunities in the future may be more likely to view their life as satisfying. However, by getting older and awareness of limitations, people can change to consider how their experiences affect them. Therefore, when people transition to middle age or early old age, growth from past experiences may have a greater influence on previous life satisfaction, providing a shift from future to present orientation [2].

Although adults were more likely have negative experience more than teenagers, they are significantly having more positive affect and mindfulness than teenagers. The differences contribute to mindfulness and emotional well-being [3], especially in middle age there is a positive relationship between mindfulness and well-being. Although mindfulness skill can improve the quality of life at all age levels, mindfulness is easier for parents who have more free time and wisdom to use to benefit from mindfulness which can improve well-being [4].

In addition, mindfulness meditation practice has been found to increase the maintenance of visuospatial attention, which is a strategy to outsmart cognitive decline associated with aging [6]. These findings illustrate that mindfulness is a positive coping strategy that is suitable for middle-aged adults in facing life's challenges. In this paper will describe more about the effectiveness of mindfulness exercises in middle-aged adults.

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Discussion

Mindfulness in the Middle-aged

Middle age begins around the age of 40 and ends around the age of 65. Commonly, at the age 65 old an individual looks younger than her ages, such as active, optimistic, calm, and stable. On the other hand, a number of other individuals feel old at the age of 40 years, as if their life has reached its breaking point and is now starting to move downward. Physical development at this time began to decline, such as changes in physical, hearing, vision, muscle-fat, skeleton, reproductive system, health and fitness, sexuality and disease. Negative stereotypes about aging cause middle adults to fear physical changes, especially in women [7]. There are many things that middle aged and older women should pay attention regarding to their family, career and financial situation. For women, facing difficulties at workplace and the pressure from family make them dealing with high level of stress. This study was shown that women in middle age who have experience in stressful life transformation and have a higher body mass index, lack of sleeping and have a greater health stress are associated with lower life satisfaction [8].

Positive coping is defined as a response aimed at reducing the physical, emotional and psychological burdens associated with stressful life events and daily burdens. Effective coping can reduce the burden of short-term stress and contribute to relieving long-term stress by building resources or supporting future challenges. These resources are physiological, psychological and social, including physical health, subjective well-being and social support [9].

Mindfulness is defined as receptive attention and awareness of current events and experiences. When individuals are more mindful they are better able to act in a variety of ways and are more open, attentive and aware of themselves and the situations in which they find themselves. Mindfulness is considered as the innate capacity of humans that can be increased through training, although other factors also play a role, namely cognitive, emotional, somatic and behavioural factors that can foster or inhibit a conscious state such as the effects of stress, fatigue, lifestyle and other factors that affect the condition. conscious mind. Mindfulness plays a role in increasing healthier and more adaptive potential. In the process, mindfulness shows changes in the use of attention, cognition and emotions, including characteristics of mindfulness itself, including insight, desired exposure and detachment. Benefits gained were associated with better self-regulation, more autonomy and increased capacity in relationships. [10].

Skills Mindfulness at Middle-aged

Mindfulness skills focus on the current mind and environment with an open, non-judgmental attitude toward oneself and acknowledge that whatever is being felt or experienced in the moment is temporary and will change. Mindfulness focusing on the present can be a valuable resource and strategy for adults who are increasingly motivated to organize themselves by optimizing their present experiences. In addition, there was a positive relationship between decentring and flexible goal adjustment which became stronger with age and was also evident only for adults around 40 years and over. Middle adulthood is a transitional stage between a previous life period usually marked by a tenacious pursuit of goals and a later life, when previously valued goals often become unreachable and accommodation must be made. The transitional stage and the demands of middle adulthood can increase the salience of unrealized personal goals so that the adaptive ability to let go of the pursuit that cannot be done and re-engage with alternative goals becomes highly relevant [4].

There are two distinct components to focusing attention: first, it involves self-regulation of attention / attention in the present moment. Second, related to the adoption of an orientation characterized by curiosity, openness and acceptance. Mindfulness skills can be improved by improving attention skills and developing an open, non-evaluative attitude towards various mental experiences that may arise [6]. Theoretically, Decentering is a capacity that develops over time because of experiencing and understanding life changes in various aspects such as social relationships, professional identity, and physical health. Thus in the context of middle and advanced adulthood the ability to define and adopt a broader and more objective perspective in the self-regulation function supports the negative effects of acknowledging and letting go of previously unattainable goals and facilitating openness and orientation towards alternative goals [11]. Practicing mindfulness skills by monitoring current experiences with a positive emotion enhancing reception lens. Acceptance skills in mindfulness interventions help people see more positive experiences in everyday life [12].

The Effectiveness Mindfulness at Middle-aged

Middle age becomes an individual's turning point from early adulthood and later in life so that the capacity to pay attention to the present and not be judgmental becomes more important to well-being than ever before. During this period of development, well-being becomes more strongly associated with appreciating and engaging with 'here' and 'now' than with contemplating the past or worrying about the future. In

addition, the ability to adopt non-evaluative attitudes towards 'good' and 'bad' related events and experiences. As we get older this capacity may be had as a side effect of accumulated experience in managing complex problems and increasing wisdom throughout life [13].

The balance between work, family and high levels of mindfulness is useful for improving the psychological well-being of working middle-aged parents [5]. Quality of life and psychological well-being are integrally important for the overall health of older adults. Mindfulness is beneficial for improving health, cognitive, emotional, and physical in the context of aging. In fact, the benefits of mindfulness are given to those with few or no psychological symptoms as well as those with psychological or medical conditions to increase the motivation of older adults towards emotional well-being and exhibit specific cognitive processes through to broad daily functioning [14].

Mindfulness Based Stress Reduction (MBSR) training was found to lead to consistent brain changes and more effective handling of negative emotions during stress, in addition to showing a significantly greater increase in antibody titres in the group following the MBSR. These changes can persist for at least 4 months after intervention [15]. Mindfulness Based Stress Reduction (MBSR) was also found to improve cognition, positive emotions, and immune function in younger and middle-aged samples while the benefit was less for older parents. This is because the elderly people experience a decrease in antibodies with increasing age [16]. Repetitive meditation practice shows the degree of change in individuals varies significantly in the nature of mindfulness and psychological symptoms across individual trajectories [17].

Conclusion

The transformation at middle-aged experience with age cannot avoid stress so that middle-aged parents need to maximize their potential that is healthier and more adaptable to stressful situations. Mindfulness focuses on awareness of current experiences which can be increased through practice. Mindfulness can significantly improve the quality of life and well-being of an individual including affecting physical health in the context of aging, cognitive and emotional in middle age. Although as you get older your physical abilities as you get older will experience a decline, using mindfulness skills can help middle-aged parents deal with negative emotions when stressed and will be beneficial for later development.

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Monitoring and Evaluation of the Implementation of Reproductive Management Training

Subianto[1]

Introduction

One of the main functions of Animal Husbandry Training Center (in Indonesia known as Balai Besar Pelatihan Peternakan/BBPP) is to support human resource development in the farming sector by providing technical, functional, and entrepreneurial trainings for both official and non-official employees. In giving training, a measuring instrument is required to see the success rate of the training. As a result, the problem being faced now is how to measure the success rate of the trainings given. The objective of this study is to find out the success rate of reproduction management training for 2020 officials, so that the institution's goal to support human resource development and improvement in the farming sector can be accomplished.

Trainings are part of education, it is specific in nature, practical, and urgent [1]. States that a training is an effort to improve one's knowledge and skills in order to carry out their activities and responsibilities [1].

Formal education within an organization is a process to develop skills toward the directions desired by the said organization [2]. Education is a process of improving an employee's knowledge, which is done by an organization [6].

Evaluation is an investigation (a process of collecting information or data) from numerous aspects of professional progam developments and trainings to evaluate the functions and benefits [5]. Mention that evaluation is a process to assess something based on objective criteria and standard [1].

The study conducted is a monitoring and evaluation of a training that was held in Animal Husbandry Training Center Batu in 2020. This study is a qualitative study with a sample of 30 people who were participants of reproductive management training for 2020 officials.

The primary data were collected by distributing questionnaire directly to the respondents /sample population. The instrument is regarded to be valid when r table is of 0.361 and regarded to be reliable

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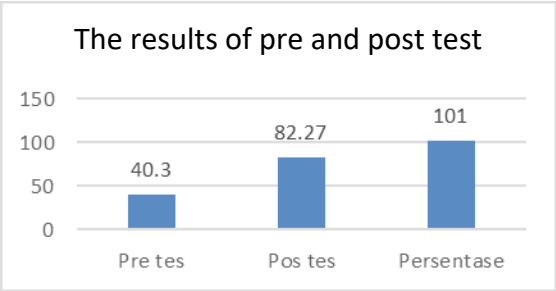
when the crombaach's alpha is over 0.6. The data were then analyzed using descriptive statistics analysis.

Findings and Discussion

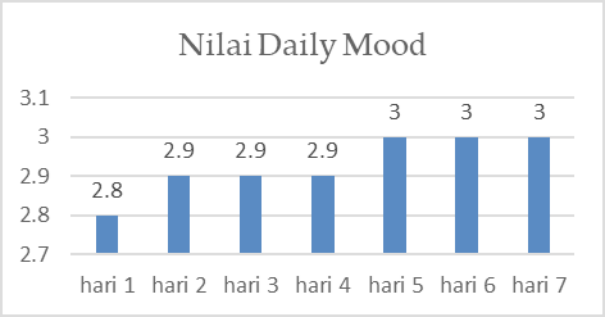
For participants to progress, an effective training program is needed. An effective program will achieve partcipants' competence as good as the organization intend to, which will result in bigger benefits. This is necessary because developing knowledge and skills is proven to be the main source of competitive strengths [4].

The extent of knowledge development that was gained during participating in the training can be seen from the pre-test and post-test results. This simple method proves that the level of knowledge and skill development can be measured. The success of a training that is effective in its implementation and the material understanding is seen from the before and after the materials are delivered in the training. The results of pre-test and post-test show that there was a significant increase of knowledge, so that the training can be considered to be successful in terms of materials delivery and acceptance as seen in Graph 1 below:



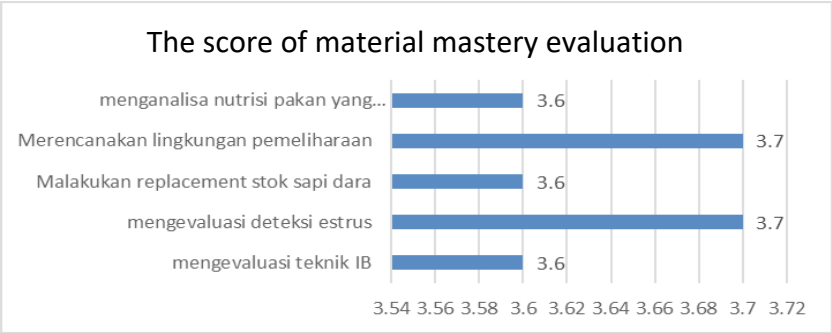
Graph 1. The results of pre and post tes

During a seven-day training, the average score of daily mood was 2.93, which means that the participants felt happy following the training. When the participants were feeling happy attending the training, it would be easier for them to understand the raining materials. As it can be seen form Graph 2 below which shows that the average score on the first day was 2.8 because the participants were still adapting with a new environment and new friends. The result of daily mood score can be seen in Graph 2 as follow



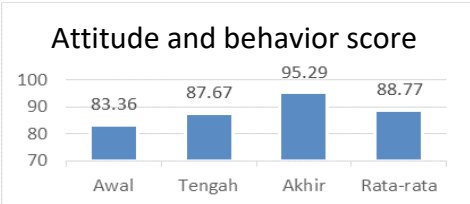
Graph 2. Daily mood score

Reproduction management training for 2020 officials also included an evaluation of material mastery by the participants with an average score of 3.6 with criteria; < 0.4 (no mastery), >1.4 (poor mastery), >2.4 (fair mastery), >3.4 (mastery), >4.4 (excellent mastery). Hence, seeing the result of the average daily mood score, it can be said that the participants had an excellent mastery of the training materials. The result of daily mood evaluation can be seen in the graph below



Graph 3. The score of material mastery evaluation

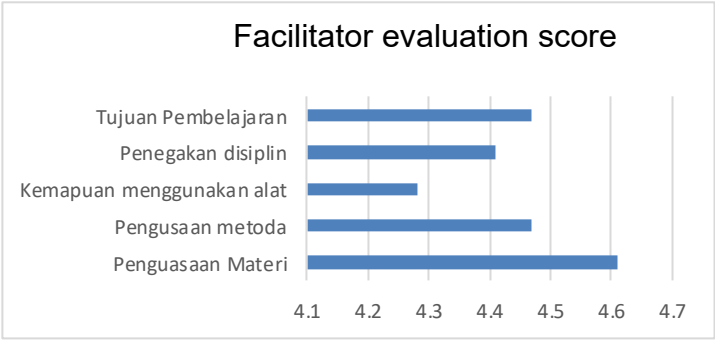
Graph 3 indicates that the participants could master six materials given by the training facilitators. This is in line with the result of knowledge improvement obtained from pre and post test.



Graph 4. Attitude and behavior score

When the reproduction management training for 2020 oficials was carried out, an evaluation on participants' attitude and behaviour was also performed as seen in Graph 4 above. As it can be obviously seen, the average score for attitude and behavior score is 88.77, which means the participants' attitude and behavior during training is very good. The criteria used are; <50 (not good), >51 (rather good), >61 (fairly good), >71 (good), >80 (very good). The training participants were taught how to serve customers, build a cooperation with other colleages, and build relations. The success of a training program can be seen from the participants' motivation. Argue that "the success of a training program is indicated by a change of behavior [7]."

An evaluation on facilitators or trainers was also performed to assess their material mastery (knowledge, skills, and attitude), method mastery (the ability to present and communicate knowledge, the ability to answer questions, the tone and voice when delivering materials, and cooperation), the ability to use devices (facilities and infrastructure), discipline enforcement (attendance, dresscode, attitude and behavior), the learning objectives that are relevant to the success indicator. The score criteria for facilitator evaluation are 1 (not good), 2 (barely good), 3 (somewhat good), 4 (good), >4.5 (very good). The evaluation result can be seen in Graph 4 below:



Graph 5. Facilitator evaluation score

Evaluating participants' satisfaction toward the training is necessary to know the level of participants's satisfaction toward administrative service and training facilities, with criteria of 1 (not good), 2 (barely good), 3 (somewhat good), 4(good), 5 (very good). The result of evaluation is 4.16 (good) as seen in Table 4 below:

Table 1. the result of participants' satisfaction evaluation

No	Description	Score
1	Administrative service	4,21
2	Training facilities	4,13

Data source 2020

From the result of this study, it can be seen that the results of pre-test and pos-test show a significant increase of knowledge. The score of daily mood evaluation is 2.39, which means that the participants were happy following the training. Evaluation on participants' material mastery signifies that the participants possessed good mastery. Evaluation on participants' attitude and behavior is categorized as very good, and facilitator evaluation indicates a good criterion. The results of these evaluations are aligned with the research done entitled "an evaluation on vocational training program at Learning Center Ujung Pandang, Makasar, with a result showing that participants were satisfied with the training, participants understood the materials given, participants were able to implement the program into their workplace and the program generated positive impacts [3].

Consequently, monitoring and evaluation toward training implementation are needed to uncover whether or not the training could be considered successful based on a number of evaluations that had been done.

Conclusion

From this present study, it can be concluded that monitoring and evaluation toward reproduction management training program for 2020 officials at Animal Husbandry Training Center Batu generates a good result, which means that the training has been done successfully.

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The Concept of Justice in Plea Bargaining

Sucihana Andinisari Purnama[1]

Introduction

There are changes to the judicial system in Indonesia, one of which is fundamentally an arrangement that discusses Plea Bargaining as regulated in article 199 of the RKUHAP. Plea Bargaining has actually developed for a long time in countries that use the common law system, one of these countries is the United States.[1] However, unlike in Indonesia, the Plea Bargaining system is still too taboo.

Plea Bargaining, in general, is a negotiation process offered from the investigator to the suspect/defendant for an admission of guilt from the suspect/defendant in which in the negotiation process the suspect/defendant is given some concessions and/or is given a lighter charge. This can be called special treatment, as in Article 199 of the RKUHP which regulates the Special Route. In the Special Route, one of which is an arrangement that contains "beneficial recognition". Beneficial recognition, in this case, means a situation when a defendant admits all events that have been committed as he has heard from the description of the indictment read out by the public prosecutor, and the defendant has a feeling of guilt for having committed a criminal act for not more than seven years. the threat of criminal penalty. In practice in court, the application of Special Routes will be given to cases being examined, if the defendant gives them recognition and from this confession, the judicial process will be shorter, and the defendant will benefit from a lighter verdict than a normal trial.

The existence of a special line in the RKUHAP is expected to be able to create the realization of the principles of criminal procedural law. Also, it is expected to be able to reduce the increase or intensity of social institutions. Thus, Plea Bargaining in implementing its enforcement is expected to be able to provide justice for all levels of society. What are the Theory of Justice in the Plea Bargaining System (Special Track in the Draft Criminal Procedure Code) and the perspective of sociological jurisprudence? This paper uses the juridical-normative research method, where this approach can also be referred to as literature law research because normative legal research researches library legal materials, both

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primary, secondary, and tertiary legal materials.[2] The approach taken uses a sociological jurisprudence legal approach.[3] The theoretical framework uses the theory of justice.

Discussion

Basically, the position of guilt admission in the proving process cannot be eliminated. because in criminal justice, the process of proof is an important part of an effort to obtain material truth from legal events that occur. This can give the judge confidence in his judgment so that he can make fair decisions. Evidence can also be interpreted as a standard that contains methods and provisions permitted by law, containing limitations in proving wrongdoing as indicted.[4]

In HIR, evidence that can be used in criminal and civil justice in Indonesia is first regulated in a limited manner. One of them is that there is an arrangement regarding a "Confession" which can be used as evidence. Also, before the Criminal Procedure Code (KUHAP) was enacted, evidence in the form of recognition in history states that it has been applied to civil and criminal proceedings as stipulated in HIR.[5]

Several new norms have emerged in the RKUHAP, where these norms are taken from the criminal justice system of countries that adhere to the common law system, one of which is what makes the author discuss it in this study, namely the existence of a special pathway system in article 199 RKUHAP which takes the concept of Plea Bargaining system. Also, with the existence of Plea Bargaining, it is hoped that it can create the realization of a simple, fast, and low-cost criminal procedure law. Also, it is hoped that it can reduce the increase or intensity of social institutions.

In general, there is no finding regarding the meaning of Plea Bargaining, but there are several definitions of Plea Bargaining, which is in a criminal case the relationship between the public prosecutor and the defendant occurs to carry out the negotiation process, which aims to gain benefits including the possibility that the defendant will get relief in his sentence. After the defendant confesses his guilt, the court will then submit an agreement to the court.[6]

Meanwhile, Timothy Lynch in The Case Against Plea Bargaining (2003) states differently, Plea Bargaining gives birth to an agreement, both formal and informal. Thus, it can be found from the agreement that the public prosecutor agrees to reduce the law of the defendant and does not pay attention to the right to be tried for the defendant and the constitutional non-self-incrimination.

Based on the definition above, related to the concept of Plea Bargaining is for efficiency and effectiveness of law enforcement, so to find the most beneficial agreement for the parties, namely the public prosecutor and the party as the defendant who carries out the negotiation process (not in a bargaining framework) namely an offer from the public prosecutor to the defendant for a lighter charge provided the defendant has acknowledged the description of the indictment.

The public prosecutor carried out the reason for Plea Bargaining because it was caused by two main reasons, including the factor that the position of the public prosecutor found it difficult to work effectively with the consideration of the time factor caused by the very large case burden, while the second was due to lack of evidence or the defendant a respectable person among the court so that the likelihood of a prosecution being successful was very slim. Over time, the Plea Bargaining mechanism has now developed into an action by the public prosecutor to influence the defendant to confess guilt and override his right to be tried in front of a trial.

As for the application, a confession can be given before the judge at trial or outside the trial. The confession of the defendant given before the judge (either in writing or verbally) at the trial, constitutes a one-sided statement, so that the result of this admission can be concluded that the defendant has confirmed the contents of the indictment, either partially or completely from a legal relationship or the rights of his opponent. , has legal consequences the judge does not need to examine the case again.[7]

Article 199 of the Draft Criminal Procedure Code states the admission of guilt as a special route, while it reads:

1. When the public prosecutor reads the indictment, the defendant admits all the acts accused and pleads guilty to committing a criminal offense which carries no more than 7 (seven) years of punishment so that the public prosecutor can immediately delegate the case to a brief examination procedure.
2. The defendant's confession is outlined in an official report signed by the defendant and the public prosecutor.
3. The judge must:
   a. Inform the defendant of the rights he has released by confessing as referred to in paragraph (2);
   b. Inform the defendant about the length of the sentence that may be imposed;
   c. Asking whether the recognition referred to in paragraph (2) was given voluntarily.

4. The judge can reject the confession as meant in paragraph (2) if the judge is unsure of the truth of the defendant's confession.
5. Excluded from Article 198 paragraph (5), the imposition of the sentence of the accused as meant in paragraph (1) may not exceed 2/3 of the maximum criminal offense charged.

In the provisions above, in criminal justice in Indonesia, there is a legal breakthrough that can still be studied for its application.[8] So that this can be used as a basis that, informal and material criminal law, the design must be immediately updated and the design is formulated to improve legal needs in society.

The purpose of Plea Bargaining is to obtain a confession from the defendant, which means that if he admits his mistake as he was accused of, there is an offer of a lighter threat of punishment than if the defendant's case is submitted to the court and requires him to be examined by a panel of judges before the trial. So when Plea Bargaining is implemented there will be several things that require attention from law enforcement officials, in particular, injustice will arise for victims and the existence of the Plea Bargaining concept, and this arrangement will certainly affect the system adopted in the law enforcement process in Indonesia, which so far adopts a continental legal system and does not recognize plea bargaining.

Thus the Plea Bargaining concept in the Theory of Justice if applied to the legal reform system in Indonesia will still cause social disparities to the litigants of several cases, and in the formulation of the Plea Bargaining concept at least it makes a regulation that prioritizes social values in its application and enforcement so that it becomes an effective regulation and does not focus on the sanctions alone, thus the implementation of law enforcement can be fair, as is the concept in the Sociological Jurisprudence school.

Conclusion

The concept of Plea Bargaining is for efficiency and effectiveness of law enforcement, so to find the most beneficial agreement for the public prosecutor and the defendant will negotiate (not in the framework of bargaining), which basically benefits some of the parties including the defendant as the giver the admission of guilt will get relief in the case of lower criminal sanctions, while on the side of the public prosecutor as the provider of the confession offered to the accused can carry out the principles of the implementation of a criminal procedure, to shorten the course of the trial process.

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Aggressive Virus Fosters Student Innovation Towards the Era 5.0

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Introduction

Innovative behavior and innovation are social shifts in explaining innovation, which have disparities in the transition characteristics that focus on the study. An object that is seen as something new to someone becomes the focus of innovation. Innovation is very much concerned with the innovative behavior of a person. Meanwhile, innovative action focuses on inventive behavior so that it can develop to improve quality in creating new markets and provide more benefits for the surrounding community, especially during the Covid-19 pandemic. The initial period of Covid that was felt by the community was the discomfort in socializing with family, neighbors, workmates, school friends with restrictions on associating with others for various fundamental reasons, the main one being the very aggressive nature of the corona-19 virus in its transmission [1]–[3].

Background Covid-19 is a large family of viruses that cause illness ranging from mild to severe symptoms. At least two covid-19 types cause diseases that can cause severe symptoms, such as Middle East Respiratory Syndrome (MERS) and Severe Acute Respiratory Syndrome (SARS) [4]. Viruses that can cause infection in humans and clinical signs and symptoms reported are mostly fever. Some cases have difficulty breathing, and X-rays show large pneumonia infiltrates in both lungs. Many victims have caused deaths from various groups. But there are also groups, clusters that are not too prone to contracting the covid-19, namely young people and productive age people who have healthy immune powers [5].

Lately, many have discussed the Corona-19 virus, which is currently popular around the world. Covid-19 is a family of viruses that cause minor illnesses ranging from the common cold to severe, interfere with breathing, and are very quickly transmitted aggressively from one person to another. Another impact of the spread of news is that people in the red zone receive isolation treatment by the government. News and information from

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various valid media can help the community understand and follow up on preventing it. There is also hoax news about handling covid-19 and causing public misunderstanding regarding the impact of the spread of covid-19 [5], [6].

People in early adulthood and people in the productive period have good immunity because they still have physical abilities that are still developing according to their developmental age and have firm psychological morale. Even though age groups that still have a lot of physical and psychological energy are getting more substantial during the pandemic, they can respond to the difficult times felt by all society levels by replacing useful activities. Useful activities that can be carried out, especially during the pandemic, include planting hydroponics, carving, and convection. Opening land and training that is useful for people affected by covid-19 may also be ways that the government can seek [7]–[10].

The work is an innovation made by people who can make dreams that cannot be made into innovations that are useful for society. Innovations are made in the form of products introduced to the public, which can be sold online or directly to consumers. The benefits obtained can be enjoyed and used by many people due to innovation. Dharma and Akib (2007) say that innovation is any effort that results in better products, processes, procedures, or new and better ways of doing things introduced by individuals, groups, or institutions. Individuals who have innovative behavior are daily habits [11].

Community groups who have worked on their innovations need to get support from the surrounding community to foster other innovator's spirit, namely the children of the younger generation, namely the enthusiasm of students who are still in school. The physical and psychological energies of adolescent who are still sitting in school also have a body resistance, although perhaps their psychological immunity is still low with life's problems. The ability of innovation in students can be in the form of participation in research and engineering products that can be useful for society. Although the possibility of his innovative work is still in the product design introduction stage, it is necessary to get encouragement to realize the form of the product he designed [12]–[15].

Students welcome the 5.0 society era as part of the super-smart ecosystem. The age of Society 5.0 is a community developed as the Japanese government's vision for a future society supported by the internet as supporting technology such as big data, internet of things (IoT), artificial intelligence (AI). As young people who have fresh intellectual abilities to

carry out cognitive and conative activities, students can be involved and need encouragement from people around them to realize their innovations. Adolescents have strong, aggressive power in capturing stimuli from their environment. During adolescence, this aggression requires students in schools to raise awareness in building innovations for their students to produce products during a pandemic. Following Law No. 18 of 2002, innovation is a research, development, and engineering activity aiming to develop practical applications of new values and scientific contexts or new ways of applying existing science and technology to products or production processes [16], [17].

Discussion

Aggressive

Aggressive behavior often gets negative attributes from society; for example, if someone commits violence against others, they will get the label as someone who has disrespectful and dishonorable behavior. Most of the aggressive behavior carried out by a person can be carried out spontaneously, intentionally, or unintentionally, resulting in offending the dignity of the person being verbally attacked, injuring, and harming others. This opinion is supported by Atkinson (1999), which defines aggression as behavior that deliberately intends to hurt others directly, both physically and verbally, as well as destroying their possessions [18].

Aggressive behavior is synonymous with action that deliberately intends to injure others directly with physical and verbal forms. Furthermore, it is to damage and destroy property belonging to oneself and others. However, when aggressive studies are viewed from a different perspective, not all aggressiveness is a bad problem. There is the aggressiveness of someone who has speed in capturing a problem to solve problems through positive activities. An example is if a student or student who still has brightness in his intellect during a pandemic can produce work that can be enjoyed by the community.

For certain people, positively aggressive behavior will take a different form of action; for example, a student quickly answers a teacher's question in class. A behavioral psychology review with the speed of answering the teacher's questions is positively aggressive behavior, mostly based on the teacher's orders with a speed competition in answering questions. Another example is the way teachers motivate and train their students to speak up and dare to answer. Many characters still think about dealing with aggressiveness in adolescents but are still in an aggressive context that contains negative emotions. Negative emotions will give birth to aggressive

behavior carried out by individuals to hurt or harm others with a specific purpose or without the aim of protecting themselves who are being threatened.

Aronson stated that aggressive behavior is behavior carried out by individuals to hurt or harm other individuals with or without a specific purpose (Koeswara, 1988). However, in certain conditions, if someone gets a threat from outside, he will spontaneously try to protect himself aggressively. In connection with the student, aggressiveness is aggressive behavior by carrying out activities by their intellectual power in the form of innovative works that can be used by the community. In a threatening condition, a person will spontaneously take aggressive actions; likewise, during a pandemic, a person feels threatened by his discomfort and aggressively captures the necessities of life in the form of innovative product work.

Before getting further about destructive, aggressive behavior and productive aggressive behavior, it is necessary first to assess the dimensions of aggressive behavior in a person. Buss argues that aggressive behavior can be classified into three dimensions: physical-verbal, active-passive, and direct-indirect. The difference in the physical-verbal extent lies in the difference between hurting someone else's body or body and attacking with words; the difference in the active-passive dimension is the difference between real action and failure to act. Simultaneously, direct aggression means face to face contact with someone attacked, and aggression does not appear immediately in connection with the person being attacked [19].

Schneiders explained the aspects of aggressive behavior, namely; a) Authoritarian, that is, people have rigid personality traits in holding conventional values and cannot tolerate weaknesses that exist in themselves or others b) Superior, namely individuals feel the best compared to other individuals c) Egocentric, namely individuals prioritize personal needs without paying attention to their interests as shown by power and ownership d) The desire to attack both objects and individuals and have a tendency to vent their wishes and feelings that are uncomfortable or dissatisfied with the surrounding environment by attacking individuals or other objects around it [20].

Various expert opinions are still and may lead to the point of view of destructive aggressiveness. If we look at the three dominance of aggressive behavior, a person's tendency to combine aggressive behavior will be obtained. The combination of three dimensions produces a framework to categorize various forms of aggressive behavior. However, the combination is still being studied about destructive, aggressive behavior, even not

responding to aggression that builds superior personality traits. Still the same as Medinus and Johnson and Medinnus (1976) opinion classifies aggression into four categories, namely: a) Physical attack, such as hitting, pushing, spitting, punching, kicking b) Attacking an object, such as attacking an inanimate object or star c) Verbally or symbolic, such as verbally threatening, aggravating others, threatening, and demanding d) Violation of other people's property or attacking other people's territory [21], [22].

According to Buss, aggressive behavior divides human aggression into eight classes, namely: a. Direct active physical attack, b. Direct passive physical aggression, c. Indirect active physical aggression, d. Indirect passive physical aggression, e. Direct active verbal aggression f. Direct passive verbal aggression, g. Indirect active verbal aggression, h. Indirect passive verbal aggression [23]. When applied to adolescents as students who have optimal physical abilities and intelligence, the type of aggression is a combination of the types of aggression put forward by Buss. As a student, adolescents require guidance in interpreting aggressiveness during the development of his personality and fast-paced motivation.

The spirit possessed by adolescents in the form of aggressiveness can become a virus that sticks to their bodies from every behavior. The aggressive virus will move quickly to encourage enthusiasm to express abilities and manifest in skills. The ability of aggressive viruses to mutate soon, likewise with aggressive adolescent viruses, will mutate in the sense of rapidly expressing abilities as a form of innovation during their development. During the psychological development of adolescents, they still need guidance and assistance to express life values. The expression of youth's values as students will encourage other students to work as products of innovation.

Innovation

The form of innovation that follows the values in Indonesia is stated in Law Number 18 of 2002. According to the Law, innovation is a research, development, and/or engineering activity aiming to develop the practical application of new scientific values and contexts, or methods - new ways to apply existing technological sciences to a product or production process. Janssen (2000) defines innovative behavior as the deliberate creation, introduction, and application of new ideas in a job, group, or organization to gain benefits in the performance of a job, group, or organization. This definition limits innovative behavior as attempts are deliberately made to bring about new, profitable outcomes [24].

According to Wess & Farr (2013), the definition of innovative behavior is all the behavior of a person aimed at creating, introducing, and implementing something new and useful in various organizations. Some researchers call it shop-floor Innovation [25]–[28]. Zhou and George (2001) stated that the character of individuals who have innovative behavior are: 1) Digging up information about the latest technology and new ideas, 2) Creating creative ideas, 3) channeling the resulting ideas to others, 4) Develop and prepare the resources needed to implement new ideas, 5) Build a mature plan to realize these ideas [29].

De Jong & Den Hartog (2008) detail in more depth innovative behavior in carrying out the innovation process into four stages as follows:

1) Opportunity
   Find an opportunity for someone and analyze the various options that arise. Finding opportunities can come from dissatisfaction with existing methods and improve the process for the better, such as the emergence of difficulties in the ongoing work system, unmet consumer needs, or the emergence of changing trends.
2) Idea Generation
   At this stage, individuals generate inventive ideas that aim at improvement, such as creating something new or improving services and making supporting technology. The main thing about generating ideas is aggregating and reorganizing existing knowledge and data to improve performance or solve problems.
3) Championing
   When an idea is born, it must be realized. This stage is often referred to as convergent innovation behavior. Convergent innovation behavior is an attempt to become a champion and strive hard. Fighting for ideas can take the form of building relationships with other people or influencing others and can also pressure or negotiate. This effort is useful for convincing others of the added value or function of our proposed innovation.
4) Application
   This stage is the last, namely realizing the ideas that have been generated, including individual behavior, to apply the resulting ideas. The behavior at this application stage relates to the efforts carried out by individuals in implementing ideas in the real world. According to Janssen (2000), innovative work behavior is defined as creating, introducing, and applying new concepts or ideas in a job, group, or organization to improve the individual, group, or organizational role. [25], [30]

Scott & Bruce (1994) have two kinds of innovation: radical Innovation and incremental Innovation when viewed from the speed of

change in the innovation process. Radical innovations are usually realized on a large scale, carried out by experts in their fields, and are generally managed by agencies related to research and development. This radical innovation is usually carried out in manufacturing companies and financial service institutions, and incremental innovation is implementing or applying smaller innovations. These innovations generally produce goods or services that are not much different from their origin, but these incremental innovations often create significant added value for their users [31]–[33].

Conclusion

Society 5.0 is a human-centered and technology-based (technology-based) concept developed by Japan around October 4, 2019. The idea of society 5.0 is a concept that introduces community in the future that human life will be based on digital technology. Therefore, the Indonesian nation in welcoming the era of society change 5.0 started at childhood. Preschool age and school-age are followed by the child's cognitive development, which will make them capable of fantasizing. Fantasy in children is needed to provide rapid stimulation to capture the content of the problems found aggressively.

At school age, children's cognitive development makes them capable of fantasizing. The content of fantasy is much influenced by the spectacle that is watched by children. Through this spectacle, children learn about bad and good characters so that they want to behave like admired characters. According to Cavell (2000), the factors that cause aggressive behavior are biological, family factors, socio-cognitive factors, peer or group, academic, school teachers, and the community. Biological factors related to genetics (e.g., temperament), pioneering mass, and biological mechanisms. Family factors such as parenting styles and family disruptions, such as pressure or rejection from the group, are peer factors. Cognitive, social factors are associated with a person's inadequate ability to process social information appropriately. From infancy, biological development also coincides with cognitive development until childhood, which appears in childhood in fantasy [34].

Wenar & Kerig (2000), one of the factors causing aggressive behavior is low self-control [35]. According to Hurlock (1990), a person's self-control is related to how individuals control their emotions and drives in them [36]. Rahman (2013) besides that aggression is differentiated based on how the behavior is carried out, namely, first, whether aggression is carried out directly (directly aimed at the perpetrator to the victim) or

indirectly (carried out by other people or directed at people or objects related to the target of aggression). Second, whether aggression is active (hurting others by showing actions or words) or passive (hurting others by not doing or saying something that should be done or said). Third, aggression is carried out verbally (hurting others through words) or non-physically (hurting others through actions) [37], [38].

If an individual experiences problems and fails to deal with these problems, frustration will arise, leading to aggressive behavior. Student aggressiveness in society 5.0 has a superior perspective if they receive guidance and are given opportunities and a place to express their abilities. The nature of the virus is mutating in developing its ability with aggressive traits that can be modified in adolescents' aggressive behavior. The attributes of aggressiveness in adolescents get a good label, and it is not always that every adolescent aggression has a destructive impact on society. Hanurawan (2005) argues that one of the factors causing the emergence of aggressive behavior is frustration; aggression behavior arises because someone is obstructed from achieving specific goals, needs, desires, expectations, or actions [39], [40].

Year	Harvested Area		Production		Productivity		%Area to Prov	%Production to Prov
	Batu City	East Java	Batu City	East Java	Batu City	East Java		
2018	505	4,119	90.692	725,834	179.59	76.22	12.26	10.11
2019	558	9,169	101.024	910,118	181.05	99.26	6.08	11.10

Source: BPS of Batu City, 2020

Conclusions

The implementation of FFS-GAP has shown an increase in carrot production and productivity. It can be regarded from the increase in productivity in 2019 from the total productivity in 2018, which is around 2.00% to 7.00%.

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Analysis of Emergency Services for Patients Participating in the Social Security Administration (BPJS)

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Introduction

Emergency services are services that require speed and accuracy in handling. An emergency condition signifies a condition which, if not treated quickly in less than 10 minutes, will cause death or serious disability. This encourages every health worker to provide fast and appropriate services in such conditions. The main goal of emergency care in an Emergency Room (IGD) is to prevent death and reduce the risk of patient disability. So it is very important for all health care providers, especially emergency services to prepare good emergency management so that it can prevent unnecessary deaths [1] [2]

Patient visits to the Emergency Room in 2007 in Indonesia reached 4.4 million visits. This value is equivalent to 13.3% of total visits to general hospitals, of which 12% were emergency visits. Based on data on emergency room visits to hospitals in a region in East Java in 2007-2012, the average annual visit to emergency patients was 28.17%. The figure was 28.17% higher than the normative 5% annual visit to hospital accreditation. [3] Data from another hospital show that emergency visits have increased from year to year compared to 2013. It was found that in that year, there were 4000 emergency visits, which then increased very significantly to 13,000 in 2014. Meanwhile, a year later (2015) experienced an increase which in the end in 2017 increased to 16,000 cases. [4]

The government has formed a Social Security Administering Body (BPJS) for Health. This is done to support the implementation of social health insurance programs for all communities without exception. The formation of BPJS Kesehatan, namely in January 2014, since then the system through the National Health Insurance (JKN) has also been implemented. BPJS Kesehatan plans to increase the number of community members as members of BPJS Kesehatan which can support and assist Indonesians to get holistic, comprehensive, and affordable health services. [5]

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BPJS in its practical guide explains that in an emergency, all health service facilities, whether cooperating or not collaborating with BPJS Kesehatan, are required to provide emergency services according to medical indications. For costs for emergency services provided by health facilities that do not collaborate with BPJS Kesehatan, the Health Facilities will charge directly to BPJS Kesehatan. Health facilities are not allowed to charge for emergency services to participants. [6]

IGD services prioritize services for patients who first come to the ER and patients who are referred or transferred from other health care facilities. This requires every emergency service to provide effective services by existing emergency handling procedures. Each IGD service is said to be effective and according to standards if the IGD service complies with laws and regulations, both from the provision of competent human resources, qualifications of certain types of hospital facilities and infrastructure (by Law Number 44 of 2009 concerning Hospitals), and service management systems. by the applicable Hospital Rash standards. Hospitals are organized based on the principles of Pancasila, based on human values, ethics and professionalism, justice, benefits, anti-discrimination, protection, social functions, and prioritizing patient safety. [7]

Some of the problems that arise are the mismatch in the number of patients with the capacity of the hospital concerned. Also, the limited human resources (HR) related to the handling of emergency patients affects the retirement of emergency services. The key to successful handling in the emergency room is the achievement of patient stabilization in the emergency room, supported by human resources and the availability of medical devices that support Basic Life Support (BLS) and Advanced Life Support (ALS). There are still many hospitals that do not have the advice and infrastructure to support good emergency services.

The era of BPJS demands every Health Service Facility to serve emergency room patients without considering financing. However, there are still some hospitals that say that claims for patient services in the ER are not liquid due to several conditions that are not by the requirements set by the BPJS.

Discussion

Emergency Services

Emergency care is a medical action that is needed by emergency patients immediately to save lives and prevent disability. Emergency services are carried out by the IGD. The Emergency Room (IGD) is an installation that is part of the hospital, which performs initial treatment

of life-threatening cases due to injury or trauma or has high comorbidity; threatens the environment or surroundings; have airway obstruction or obstruction; have circulatory disorders such as bleeding or loss of large amounts of blood; experience decreased consciousness due to the severity of the disease experienced; as well as all those requiring immediate action.

The hospital has emergency services through Level I, Level II, Level III, and Level IV. The types of emergency services at Level I to Level IV are as follows:

1. Level I
   a. Diagnosis and treatment of problems in A: Airway problem; B: Exhalation ventilation (breathing problem) and C: circulation (circulation problem)
   b. Perform basic resuscitation, stabilization, and evacuation
2. Level II
   a. Diagnosis and treatment of problems in A: Airway problem; B: Exhalation ventilation (breathing problem) and C: circulation (circulation problem)
   b. Performing life-saving measures (basic resuscitation), disability examinations, administering drugs according to emergency or symptomatic conditions, ECG examinations, Defibrillation Interventions, or Synchronize of Cardioversion
   c. Conducting referrals between health facilities
3. Level III
   a. Diagnosis and treatment of problems in A: Airway problem; B: Exhalation ventilation (breathing problem) and C: circulation (circulation problem) with more complete equipment including a ventilator
   b. Performing life-saving measures (basic resuscitation), disability examinations, administering drugs according to emergency or symptomatic conditions, ECG examinations, Defibrillation Interventions, or Synchronize of Cardioversion
   c. Transfer the patient to the emergency observation roomMelakukan transfer pasien menuju ke Ruang Observasi emergensi
   d. Transfer the patient to the emergency surgery room
4. Level IV
   a. Diagnosis and treatment of problems in A: Airway problem; B: Exhalation ventilation (breathing problem) and C: circulation (circulation problem) with more complete equipment including a ventilator

b. Performing life-saving measures (basic resuscitation), disability examinations, administering drugs according to emergency or symptomatic conditions, ECG examinations, Defibrillation Interventions, or Synchronize of Cardioversion
c. Conducting referrals between health facilities
d. Transfer the patient to the emergency observation room
e. Transfer the patient to the emergency surgery room
f. Performing anesthesia for certain actions

Triase

The triage procedure is a must-have procedure for all hospitals. This procedure is a procedure to perform a quick and structured sorting of a patient with an emergency condition and to determine the type of treatment or intervention required. This procedure is a procedure to prioritize which patients should be treated first and which patients can. This priority is based on which condition is the most life-threatening or which patient is most likely to be saved first according to the clinical condition and clinical decision of the treating doctor. Patients who are categorized as not serious but an emergency can be postponed treatment for the next few hours. This procedure is a procedure established by the Director along with his ranks, by the joint decision of the medic committee and several other medical staff.

1. Triase Procedure:
2. Patients come and are immediately directed to a triage bed / special triage room in the emergency room of the hospital
   a. Determine the patient's diagnosis by conducting a brief and targeted examination to be able to determine the gradation of the disease and its comorbidities:
   b. Vital sign assessment and General examination
   c. Assess the possibility of the patient's survival point / the possibility of surviving the trauma/condition experienced by the patient
   d. An assessment of what medical needs is required to save the patient's life
   e. Conduct an assessment regarding what assistance should be prepared and provided
   f. Carry out treatment according to the patient's definitive therapy
3. Triage procedures can be carried out outside the ER (on the terrace / front yard of the ER) if the patient or victim consists of more than 50 people or more than the capacity of the ER Triage room
4. Distinguishing patients according to patient color labels:
   a. Red category: is the patient with the highest priority for treatment or resuscitation. This patient is classified as a patient with a very

serious injury who can die if not treated immediately. Patients in this category can be performed as a result of a medical assessment or medication or immediate medical action related to stabilization and life-saving of the patient. Patients can be stabilized in Triage or directed directly to the CITO Surgery room or referred to a Pain Rash with more complete facilities

b. Yellow category: Is a patient with second priority (can be postponed). Patients in the yellow category are patients who need definitive treatment but can be postponed for action. The patient's condition is a non-life-threatening condition. After the red category patient is treated, the yellow category patient is treated and transferred to the observation room when treatment has been done
c. Green category: Represents the third priority patient. Patients in this category are classified as patients with very minor injuries or trauma, can still speak and express complaints, have active movements, and are in a stable condition. These patients can have their complaints treated and then they can be discharged on an outpatient basis.
d. Black category: zero priority. Patients in this category are patients whose condition it is impossible to get help (fatal injury, death) or if help is done, the chance of success or chance of survival is very small.

Principles of Emergency Installation

Emergency services are very important services for health services. This is because emergency cases are life-threatening cases, if not treated quickly it can increase the risk of comorbidity and patient disability. Because the ER is a service that requires speed and accuracy of handling, it requires competent health personnel and a good emergency response management system. This can be achieved by increasing the capacity of both human resources (increasing training and competence of medical personnel), fulfilling facilities and infrastructure as well as setting a good ER management system so that IGD services are by standards and provisions of laws and regulations. Another thing explains that currently decentralization and autonomy provide opportunities for each region to be able to develop their respective regions by taking over several decisions and responsibilities from the previous central government. That is what supports the importance of a standard/guideline that can be a reference to be able to develop and improve emergency services, especially for services in hospitals. [8]

Some of the general principles of Emergency Room Service (IGD) services in hospitals are Kepmenkes RI Number 856 of 2009, as follows:

1. Hospitals are required to have qualified initial emergency services for initial handling and follow-up procedures related to triage, resuscitation, and life-saving for patients.
2. Hospitals may not ask for a down payment when handling emergency cases
3. Emergency patients must be treated no later than 5 (five) minutes after arriving at the ER
4. Management in the ER must be based on good work management because it consists of various multidisciplinary disciplines and professions. There must be ahead of the IGD who is competent and can manage both functional and structural services who have responsibilities and duties by their respective authorities.
5. Hospital emergency services must be by the relevant IGD service classification

Legal Basis for Emergency Services through BPJS Health

Legislations have regulated emergency services. Every health worker on duty in the hospital or health service provider can provide first aid to every patient if the patient is classified as an emergency. This is regulated in Law Number 44 of 2009 concerning Hospitals and Law Number 36 of 2009. Article 32 paragraph (1) and paragraph (2), it stipulates that: In an emergency, health service facilities, both government and private, are required to provide services. health for saving the patient's life and preventing disability first ".8

The provisions above explain that every emergency service must prioritize the interests and safety of the patient first to prevent disability and death of the patient. This is by Law Number 44 of 2009 concerning Hospitals, namely in Article 1 paragraph (2) and Article 29 paragraph (1) letter c. [9]

Other regulations governing emergency services, namely:

1. Presidential regulation Number 12 of 2013
   a. Article 25 Point b: "Health services provided in health facilities that do not cooperate with BPJS Kesehatan, except for emergency cases"
   b. Article 33 "*Participants who need emergency services can immediately get services at every Health Facility*"
2. Permenkes Number 71 the Year 2013 Article 29
3. Circular Number HK / MENKES / 31 / I / 2014 concerning Implementation of Standard First Level Health Service Rates and Advanced Level Health Service Facilities in the Implementation of the Health Service Programatan

Influencing factors as well as some obstacles to emergency services at the hospital for BPJS Kesehatan participants

Various kinds of problems that often occur in the hospital are the response of cases of patients who come to the emergency room for treatment. Health workers in the emergency room through the hospital will not serve patients who are not included in the emergency category to look after in the emergency room. There is no ER terminology is for life-threatening cases, not cases that can support outpatient services (through general or specialist polyclinics). However, the public perception is that they feel disadvantaged because they feel that their rights as BPJS participants are reduced and Rash Pain refuses BPJS patients. Seeing the above cases, BPJS can expand cooperation with other health service providers so that in the end cases of handling patients who are in the ER do not occur. [10]

Some conditions occur unnecessary referrals. Some doctors refer patients to health services when it is indicated that the patient needs treatment or specialists, which in fact these cases can help independently. The understanding regarding the diagnosis of a case affects the rate of referral of maternal cases. The doctor's level of understanding regarding the diagnosis and severity of the disease should be further improved by the doctor. The limitation of having a permanent doctor at the puskesmas affects the stabilization of emergency patients who require referral to a larger hospital (Advanced Level Health Facility). This affects the prognosis of the patient when empowering the intended referral hospital. This was also related to the inadequate supply of medicines at the FKTP (emergency medicines were not available) so that the initial resuscitation treatment at the FKTP could not be carried out optimally. [11]

Many who come to the ER are not in an emergency condition (after being examined by a doctor) so that the handling is not emergency handling so that BPJS Kesehatan patients cannot use emergency services and the cost of treatment and medication. A study of patients classified as Prasurvey obtained visit data from the number of patients who came to the emergency room, namely in the hospital in East Kalimantan, in 2016, some cases were true emergencies and not false emergencies. Data for true emergency cases were about 25%, while the proportion of false emergency cases was greater, namely 75%, from 11,704 cases. The data above shows that it turns out that very many cases that are not classified as emergency cases come and serve the emergency room. After the recapitulation was carried out, several supporting diseases were found in the ER, namely dyspepsia; February; DHF; ARI; Febris; GEA; Hypertension; Abdominal pain, and labor (childbirth). [12]

The quality of human resources is also an influencing factor. Often the insufficient number of ER doctors can hinder services. Also, the terms of diagnosis between one ER doctor and another vary and are not accurate or not by the SPO, so that many unnecessary supporting examinations are carried out. This is evidenced by the number of IGD service claims submitted to BPJS that are not entirely able to be found by BPJS. Then the factor of the availability of specialist doctors who are few and do not stand by close to the hospital also hinders complete service to patients. Because complete service is the right of BPJS Kesehatan participant patients.

There are still many hospitals with Type B and Type C criteria that have not been able to provide services according to the hospital criteria due to limited facilities and infrastructure. Such as the absence of a decontamination room, High Care Unit (HCU) room, an emergency operating room in the ER. In government hospitals, this is due to the lack of budget allocation for hospital construction.

The budget problem is a crucial constraint because inappropriate budget allocations from local governments can hinder efforts to fulfill Human Resources (HR) and fulfillment of facilities and infrastructure to support emergency services. The government is obliged to pay attention to hospitals and emergency services, especially to get emergency services by the provisions of the laws and regulations.

Public knowledge is also a major obstacle in the field. Public ignorance of the latest information or procedures for JKN services for emergencies can hinder the service process and service quality in general. The community felt the process was convoluted, but it was triggered by public disobedience regarding the latest information. BPJS has also not yet carried out massive outreach to the public and health service providers, thus increasing the risk of handling emergencies that are not optimal.

Problem Solving Solutions

To support emergency services that comply with standards and by the provisions of laws and regulations, a budget allocation for funds originating from both the Central and Local Governments is required. The allocation of these funds must be rational and can ensure the fulfillment of the needs for the purchase of medical devices as well as the financing of quality and competent Human Resources.

Hospitals must do good advocacy to the government to fulfill both facilities/infrastructure and human resources by compiling good budget planning. This advocacy must be carried out periodically and emphasize the principles of effectiveness and efficiency in supporting emergency services.

The Social Security Administering Body (BPJS) must increase outreach to the public regarding the National Health Insurance (JKN) service through strengthening information and updating information to health service providers in collaboration with BPJS Kesehatan. Then the Health Office must also coordinate with its staff to carry out evaluations related to the effectiveness of services and the implementation of BPJS Kesehatan. There is a need for a quick response from the Ministry of Health to BPJS so that emergency services for BPJS participants are standard and effective.

From the perspective of the community itself, the community must try to increase knowledge regarding the development of JKN service information from BPJS Kesehatan so that they know the latest procedures or changes to the latest information regarding the criteria for handling emergency services.

Conclusion

Emergency service facilities for BPJS participants in general still have many obstacles. The role of the government, health service providers, and BPJS itself about social insurance providers both play a major role in the continuation of fair health services and meet patient safety aspects. Also, the active role of the community in seeking information related to BPJS services affects participants' knowledge of what constitutes emergency services. Change can be achieved by collaborating with each group by fostering communication and openness from all parties.

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